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# *House of Representatives*

The House met at 10 a.m. and was called to order by the Speaker pro tempore (Mr. THOMPSON of Pennsylvania).

## DESIGNATION OF SPEAKER PRO TEMPORE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

WASHINGTON, DC,
*October 2, 2013.*

I hereby appoint the Honorable GLEN THOMPSON to act as Speaker pro tempore on this day.

JOHN A. BOEHNER,
*Speaker of the House of Representatives.*

## MORNING-HOUR DEBATE

The SPEAKER pro tempore. Pursuant to the order of the House of January 3, 2013, the Chair will now recognize Members from lists submitted by the majority and minority leaders for morning-hour debate.

The Chair will alternate recognition between the parties, with each party limited to 1 hour and each Member other than the majority and minority leaders and the minority whip limited to 5 minutes each, but in no event shall debate continue beyond 11:50 a.m.

## THE REAL WORLD OF OBAMACARE

The SPEAKER pro tempore. The Chair recognizes the gentleman from California (Mr. MCCLINTOCK) for 5 minutes.

Mr. MCCLINTOCK. Mr. Speaker, yesterday the President charged that the government shutdown is the result of an ''ideological crusade to deny affordable health insurance to millions of Americans.'' I would beg the President to read his correspondence and listen to the millions of Americans who are losing their affordable health insurance as a result of ObamaCare, who are seeing their health care premiums skyrocket or their hours cut back at work or who are losing their jobs or the health plans they liked and that he promised they could keep.

Here's a sampling of the emails and letters I've received last week from people who have come face to face with the ugly reality of ObamaCare. A woman from El Dorado County, California, writes:

Last month, I received a letter from the human resources manager at my place of employment that states I am going to receive a 23 percent pay cut as a result of ObamaCare. They say they are required by the employer mandate to provide insurance for every employee or face a fine. My 23 percent pay cut is equal to $22,000 and will financially devastate my family, as I am the primary income of our family. I tried to explain that I already have insurance through my husband's employer and Blue Cross/Blue Shield and I do not need another policy. However, they said ObamaCare does not have an option for married employees who are paying for coverage through their spouse's employer. I even offered to pay the $2,000 employer fine instead of being subject to the $22,000 pay cut, but they said that is not an option.

A man from the town of Pioneer, California, writes:

I received a letter from my insurance carrier that, as of the end of this year, they will drop all individual plans in our State because of ObamaCare.

A woman from Markleeville writes:

ObamaCare is already affecting me in my ability to obtain diabetic testing supplies. Please at least defund it; better yet, repeal it. And then go to work on real reforms that are necessary.

A man from Sonora writes:

I have just received my projected health care cost for this coming year through Kaiser. The premium will be increasing by 43.8 percent. Health care is becoming increasingly unaffordable. The current health care, fuel, and power cost is destroying our economy. Wages are going down, and the cost of living is rising. If the current trend is not reversed, our country and all in it are looking at financial and economic ruin.

A man from Amador County, who is in the durable medical equipment business, writes:

Obama has already killed our industry, and soon your telephone is going to be ringing off the hook with disgruntled patients that cannot get product.

A woman from Nevada City writes:

Please repeal ObamaCare. The health insurance for our family this year went up more than $450 each month. It's not possible for middle class citizens to pay that.

From Farmington, California, a woman writes:

I have worked in the health care industry as a registered nurse for over 25 years and have already seen its negative impact in the hospital just in preparing to begin working with it. Also, my husband and I have noticed the increasing of prices in our own private health care charges.

A woman from Granite Bay writes:

As a result of ObamaCare, our health insurance costs have tripled . . . our copay has doubled, and the deductible has also gone up. Also, my primary doctor retired, the next one closed his practice, and my present doctor will close her practice if ObamaCare is not repealed.

A man from Rocklin writes:

As a result of this legislation, my health insurance cost through my employer has nearly tripled. Combined with anemic economic growth—resulting in 1 percent pay raise per year since 2009 and bonus cut by two-thirds—increased taxes, et al, I have effectively had severe pay cuts. And most of my coworkers as well. The ACA is a burden on me, my family, my community, and our future.

From Auburn, California, a woman writes:

I did some shopping at Save Mart in Auburn today and talked to a woman who works there. She said the store is cutting back everyone's hours to 20 hours per week. I asked if it was because of ObamaCare, and she said yes. This is happening all over the country, and it's outrageous.

Mr. Speaker, I'm sure that the President and our Democratic colleagues are hearing these same complaints. I wonder: Why aren't they listening?



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## ISN'T IT TIME TO END THE REPUBLICAN SHUTDOWN?

The SPEAKER pro tempore. The Chair recognizes the gentleman from Oregon (Mr. BLUMENAUER) for 5 minutes.

Mr. BLUMENAUER. Mr. Speaker, this is day two of the Republican shutdown, holding America hostage. The stated objective of their fury is what they feel to be the ''unconstitutional'' Affordable Care Act that will wreck the economy and destroy health care in America.

They harbor these feelings and will not relent until the law is defunded, even if it means shutting down the government, denying people essential services, furloughing Federal employees, and raising the specter of default on our national debt. This is despite the fact that the health care bill passed 3 years ago. It was declared constitutional by the United States Supreme Court and was argued extensively in the 2012 elections, which the Republicans lost.

We've now seen the first day of the Affordable Care Act, already about 10 million visits to the Web site, phone lines jammed, hundreds of thousands of Americans—doctors, nurses, people in hospitals, insurance companies—involved in making the biggest advance in health care since Medicare 50 years ago.

Are the Republicans afraid that the program will succeed, that Americans will see that this effort to help 40 to 50 million Americans with low income or people with preexisting conditions will actually get help?

Republicans, in any event, should not pull the rug out from underneath the people who could benefit from the law or the hundreds of thousands of people who have made significant investments and are working to improve the delivery of health care in America at great effort and expense for themselves.

According to the independent Congressional Budget Office, this is going to provide more access at less cost and lead to a deficit reduction on the order of $1 trillion over the next 20 years. In fact, the Republicans in the House of Representatives have taken $500 billion of these savings from the Affordable Care Act and stuffed it in their budget to make it appear that it's more affordable.

If they were serious and not cynical, they would remove the money from their budget that's attributed to the bill they're working so hard to defund. While they're at it, if they're serious and not cynical, they would have a conference committee on the budget.

Wasn't it interesting, the 11th hour Hail Mary proposal late Saturday night to have a conference committee on the continuing resolution despite the fact that there was nothing to conference—it was defund ObamaCare or nothing.

But if House Republicans really think conference committees are such a good idea, why don't we have a conference committee on the budget? The Senate has been waiting for the House Republican leadership for 6 months to approve conferees so we can see if we can reconcile some of these differences.

If my friends were serious and not cynical about saving money, they would bring their own spending bills to the floor. Remember, it's been over 2 months since they abruptly stopped the appropriations process with the Treasury-HUD bill still in limbo, just walked off the floor halfway through the debate. The remaining eight spending bills appear to be so bad under the Ryan budget, which uses those evil ObamaCare savings, that their own Members don't even seem to want to vote for them.

Finally, if they are serious and not cynical, they should absolutely take the debt ceiling blackmail off the table. There's no reason to threaten to destabilize not just our economy, but the global economy, by pretending for 1 minute that America won't pay its bills. We will. But to threaten we would do otherwise invites chaos.

This is day two of the Affordable Care Act. The sun came up in the East. No one was forced to go to the post office for their prostate exam. No women had to go to the airport screeners for a mammogram. No doctors have been arrested or hospitals shut down. What did happen is people are getting better insurance with more choices at more affordable rates. I even bet that the sun sets in the West tonight.

Isn't it time to end the Republican shutdown?

## VA FUNDING

The SPEAKER pro tempore. The Chair recognizes the gentleman from Texas (Mr. WILLIAMS) for 1 minute.

Mr. WILLIAMS. Mr. Speaker, last night House Republicans once again showed up and took action to stop the bleeding of HARRY REID's government shutdown. President Obama has already bullied the House by threatening to veto these important bills to protect our Nation's veterans, keep D.C. schools and services open, and preserve and reopen our national parks.

By voting against these bills, House Democrats turned their backs on the Nation's veterans. It's reprehensible to sit back and watch our veterans suffer. The Honoring Our Promise to America's Veterans Act would ensure vital funding for disability compensation, pensions, the GI Bill, and other critical benefits that are threatened by HARRY REID's shutdown.

Today we will give the Democrats another chance to vote in favor of veterans. This is not a partisan issue, it's an American issue, and we must pass this legislation today. House Republicans are here. We're ready to negotiate. Mr. Speaker, I would suggest that the President should cancel his trip to Asia and come negotiate with us.

Simply put, in God we trust.

## BIPARTISAN IMMIGRATION REFORM

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. GUTIÉRREZ) for 5 minutes.

Mr. GUTIERREZ. Mr. Speaker, we've all heard that later today an immigration bill will be introduced in the House of Representatives in order to keep the issue moving forward.

I plan to sign on to that bill. As I understand it, it will combine elements of the Senate's bipartisan compromise bill with a bipartisan House border security bill. I am going to sign on because I want to stand with 200 of my Democratic colleagues and assert that the Democratic Party is ready to move forward on immigration reform. The bill that Democrats will put forward is not a perfect bill. It is the product of negotiations, compromise, and bipartisanship.

Having spent many long hours working with Ted Kennedy, JOHN MCCAIN, Jim Kolbe, and JEFF FLAKE on bipartisan bills in 2004, 2005, 2006, and 2007, I know that you never get everything you want when you engage in genuine bipartisan efforts; but these days, with our sharply divided politics, bipartisanship is the only way you get anything done. The American people are sick of the U.S. Congress because we are totally divided and can't seem to come together, even to keep our government open.

Yesterday, Puerto Rican Korea war veterans and Mississippi and Iowa veterans of World War II had to break down barricades to visit the monuments on The National Mall that celebrate their sacrifice and honor. It should have never had to come to this.

And on immigration, I still think we have a chance to work together and get something done. It's really rare that the AFL–CIO and the U.S. Chamber of Commerce agree on anything. But you know what? They came to agreement to move immigration reform forward. The largest growers actually worked out an agreement to move forward on immigration reform with the union founded by Cesar Chavez that's been fighting for them for 40 years.

The New York Times and The Wall Street Journal editorial pages represent different ends of the political spectrum, but their editorials calling for Congress to address immigration reform are so similar, they could practically be accused of plagiarism.

□ 1015

And I've talked with many of my Republican colleagues. They too understand that our current legal immigration system is broken. Many of them understand that creating ways for people to come legally is necessary to spark our economy, reunite families and maintain our values in the United States.

They understand that the path to law and order is to have a functioning, legal immigration system that allows people to come with a visa and not a

smuggler. Many of my Republican colleagues understand that we cannot secure the border unless we secure and combine border security with a legal avenue for people to come here.

And they understand that we cannot establish law and order without getting the millions of people here into the system, on the books, paying taxes, and legitimize their stay in the United States, including citizenship for those who choose to embrace this country, just as every wave of previous immigrants have had that choice.

Many of my Republican colleagues realize that the best way, politically and practically, to achieve a full implementation of things like E-Verify and an entry/exit visa system, the only way to effectively enforce our law is to allow for legal immigration. We can and must do the legalization, the border security, and all of the enforcement together.

With the introduction of a bill, you will see the unity and commitment of my party, the Democratic Party. But I believe it is only after we emerge from this very dark tunnel of partisanship and budget bitterness that we can find a way for leaders in both parties to move forward, work together and get the Speaker to give us a vote.

But the clock is ticking. Two million people will have been deported by this administration, a Democratic administration, by President Barack Obama, sometime in October. Believe me, the deportation machine does not pause for a government shutdown.

This Saturday, October 5, in 163 cities there will be marches and demonstrations and activities to push this Congress, and especially the Republican leadership, to allow a vote on immigration reform.

I will march in Chicago, meet with evangelical leaders, and join canvassers fanning out across congressional districts on Saturday.

And then, on Tuesday, October 8, I invite all my colleagues to join the tens of thousands of Americans, immigrants, supporters, citizens, for a concert and a rally to make sure this Chamber knows the truth, and that is that the persistent and consistent pressure to pass an immigration bill in red States, blue States, purple States has not subsided and is stronger than ever.

I ask you all to come and join me and our immigrant community from across this Nation.

Mr. Speaker, I will show you the faces of families who want this Congress to put aside our party differences and to act for the families of America, for the millions of American citizens that need a fair and just immigration system.

Come and join us in your city on October 5 and, if not, come and join us here in the Capitol of the United States on October 8. The people will be speaking.

## CR VS. APPROPRIATIONS BILL VS. DOD

The SPEAKER pro tempore. The Chair recognizes the gentleman from Alabama (Mr. BROOKS) for 5 minutes.

Mr. BROOKS of Alabama. Mr. Speaker, the Federal Government is shut down, thereby damaging America's economy generally, and the Tennessee Valley's economy in particular, where thousands of defense and NASA and other Federal Government employees have been furloughed because the President, in his discretion, designated them non-essential.

I hope my remarks add clarity about the shutdown, its cause, and the efforts to fund the government.

City, county and State governments across America pass one bill, called a budget, that funds services for their fiscal years.

In contrast, Washington uses a three-step spending process. First, Washington should pass a bill that is called a budget, yet, does not, in fact, spend a dime. Rather, in Washington, the word budget is more like a game plan. It is much like a football coach's playbook. It lists the team's plays but does not, in and of itself, gain a single yard.

Second, Washington should pass authorization bills that describe the programs the Federal Government is to operate. For example, the NASA authorization bill authorizes NASA to work on the Space Launch System so that America can have a human space flight program. Like budgets, authorization bills spend no money.

Third, Washington must pass appropriation bills to actually spend money on the programs authorized. If Congress fails to pass appropriation bills, then Congress uses continuing resolutions as crutches for our failure.

There are 12 appropriation bills that, collectively, fund the Federal Government. So far this year, the House, months ago, passed appropriation bills for national defense, energy and water, homeland security, military construction, and veterans affairs.

If the Senate passes these appropriation bills, then each of these Federal programs are fully funded and exempt from the Federal Government shutdown. That's correct: exempt from the shutdown.

Unfortunately, the Senate inexplicably refuses to vote on any of the 12 appropriation bills. Senate intransigence is why we are here today debating a continuing resolution to temporarily fund the Federal Government.

For emphasis, continuing resolutions are the worst way to fund the Federal Government. By definition, continuing resolutions are for a short period. Speaker BOEHNER's CR is for 2½ months. Senate Majority Leader HARRY REID's CR is for even less, 1½ months.

Each CR kicks the can down the road and forces America to quickly face yet another shutdown risk. Each CR means Federal agencies cannot plan long-term, and contracting officers are restricted in their ability to let contracts for services and goods provided by the private sector to the Federal Government and American citizens.

Generally speaking, continuing resolutions fund at prior-year spending levels, which means spending does not change to reflect changing priorities, circumstances and challenges.

In sum, continuing resolutions are inherently inefficient, waste tax dollars, and retard proper Federal government operation.

Hence, I have historically voted against less-than-year-end continuing resolutions in hopes of forcing Congress to do the compromising necessary to pass authorization and appropriations bills. This work will not be done so long as the continuing resolution crutch protects Congress from failure.

Which brings us to today. The Senate, White House and Congress agree on roughly 99 percent of the appropriation bills. Let me emphasize that. The Senate, White House and Congress agree on roughly 99 percent of the appropriation bills.

The solution, therefore, to our impasse is simple. Congress and the White House should fully fund the 99 percent we agree on, end the government shutdown, and work out our differences on the remaining 1 percent.

Instead, the Senate and White House use a Federal Government shutdown to coerce the House of Representatives into spending money America does not have on a socialized medicine program that does not work and that a majority of Americans do not want.

Yesterday, I spoke with House leadership, and I urged them to pass bills that, one at a time, fund the 99 percent of the Federal Government that we agree on. I thank the House leadership for doing exactly that yesterday and today. Each bill we pass exempts yet another part of the Federal government from the shutdown.

I urge my friends across the aisle to stop using the 99 percent as a hostage, to stop punishing citizens across America in their effort to coerce the House of Representatives into funding the 1 percent we have a legitimate disagreement on.

I urge my friends across the aisle to join us, to join America, to compromise, yes, to compromise, and pass as many funding bills as we can to minimize and eliminate the harmful effects of a Federal Government shutdown.

## THE TIME HAS COME FOR REASON

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. QUIGLEY) for 5 minutes.

Mr. QUIGLEY. Mr. Speaker, the time has come for reason. No longer can we afford to allow a small segment of this Congress to drive the debate. It's not just the tail wagging the dog, it is the tip of the dog's tail wagging the entire body politic.

The time has come for those in the middle to come together and take back the wheel from those intent on crashing this Congress into a ditch.

As I stand here today, the government of the United States is shuttered, shut down by nothing more than brinksmanship.

Small business loans are not being processed. The Centers for Disease Control flu prevention program is being halted, and the National Institutes of Health is no longer accepting kids into a cancer research program. Some food safety operations have ceased, and cleanup at 600 toxic waste sites has been suspended.

It wasn't always this way though. There was a time when we had regular order. There was a time when budgets were proposed, funding levels and priorities were debated, differences were hashed out, and bills were passed to fund the government.

And even when regular order broke down, we were always able to at least pass a continuing resolution to continue funding the government. Not this time.

This time, an effort to repeal a law that was passed by both houses, signed by the President, approved by the Supreme Court, has shanghaied all Federal spending.

Many across the aisle acknowledge how harmful and irresponsible such a plan is. Senator MCCAIN said, ''In the United States Senate, we will not repeal or defund ObamaCare. And to think we can is not rational.''

Budget Chairman PAUL RYAN said, ''We have to stay on the right side of public opinion. Shutting down the government puts us on the wrong side.''

My colleague, Senator KIRK said, ''Let's not shut down the government just because you don't get everything you want.''

The list goes on and on. Chris Christie, Mitt Romney, Bruce Josten of the U.S. Chamber of Commerce, and many more all oppose efforts to shut the Federal Government. Yet, we continue down this dangerous path.

When I first came to this Congress, Congressman KIRK, now Senator KIRK, told me that everything that gets done here gets done in the middle. Now is the time for the reasonable middle to come together and reject the strategy that says, ''If I can't win, I'll just kick the ball in the woods.''

Sorry, Seth.

Not only is shutting down the government harmful to my constituents, businesses, and the economy, it doesn't solve the problem. It doesn't address the budget deficit.

If we really want to get our fiscal house in order, let's fund the government and bring back a balanced, big, bipartisan deficit deal to the floor. We did it before and we can do it again.

I, along with only 37 colleagues, voted for the Cooper-LaTourette budget, which mirrored the bipartisan Simpson-Bowles plan.

Where were those so concerned with the debt then?

If the fiscal watchdogs on the other side of the aisle really want to solve our budget woes, let's get together on a big budget deal, and let's do it now, because every day we waste in this useless limbo land is one less day we have to address the very real and very harmful problems facing this country.

We have got to pass comprehensive immigration reform, a farm bill, an infrastructure funding bill, a reauthorization of the Elementary and Secondary Education Act, reasonable gun reforms, tax reform, and numerous other much-needed legislation.

But without doing the basic work of Congress, like passing a budget, we can't address the real issues facing us. As long as we continue to look in the rearview mirror at a law passed 3 years ago, approved by the Supreme Court, we will fail to navigate the real obstacles before us.

We need to keep our eyes on the road, and come together to solve the real challenges that lie ahead.

## WHEN YOU THINK YOU'VE SEEN IT ALL, STICK AROUND FOR ANOTHER DAY

The SPEAKER pro tempore. The Chair recognizes the gentleman from Florida (Mr. MICA) for 5 minutes.

Mr. MICA. Mr. Speaker, and my colleagues, when you think you've seen it all, just stick around here for another day.

Yesterday, one of the most appalling events I've seen in our Nation's Capital was the closing of the World War II Memorial, putting up barriers to stop our veterans from accessing that open space area.

How offensive could you be?

How much more pain do you want to inflict on the American people?

Now, here is the group that closed the White House. This President closed the White House and said he didn't have money to open it to the public.

I would suggest, first of all, maybe we need to get a new parks director and fire those folks, or furlough those folks that can't leave public spaces and memorials open to the public. What an offense.

When I thought that was offensive yesterday morning, I came to the House last night and saw, again, another horrible offense. We passed, Republicans passed a measure to make certain that our military were paid and our servicemen and -women in harm's way were taken care of financially. We saw, also, the need, afterwards to help our veterans.

And last night, in one of the most offensive actions of the House, the other side of the aisle turned down an opportunity to keep our veterans whole.

How offensive could you be?

But they want to inflict pain.

I'm telling you, folks, I've been around here a long time. I've never seen an operation like this. The chief of staff in the U.S. Senate—Ronald Reagan would pick up the phone, he would even call me, as a chief of staff, to get things going in the Senate, talk about things.

He called the Senators. He would work with Representatives. He would bring them in and have communication.

Even Bill Clinton, after I voted to impeach him, would work with you to get things done, and we got things done.

We had a shutdown then. This isn't the end of the world. There were 17 shutdowns, and some good came out of that shutdown. It was a horrible thing. We don't need to repeat them. We don't need to have this one.

But we did balance the budget. We balanced the budget with a Republican Congress working with a Democrat President. There's no need for this offensive approach that's being taken, not working, not communicating.

□ 1030

This can and should be resolved. Members of Congress have that important responsibility and can't neglect it.

This is much more difficult than just a temporary shutdown. We're talking about a permanent shutdown of the Federal Government. Do you think having a few of the Federal services eliminated or suspended temporarily is tough?

In a few weeks, the government will run out of money. Why? Because these folks will talk to you about a budget. They haven't passed a budget since 2008. The only way we got the other body—the Senate—to pass a budget was to pass a bill to embarrass them that said, no budget, no pay.

This is the group that had control of the House, the Senate, and the White House. They couldn't even pass an FAA bill. There were 20 extensions. A transportation bill. They couldn't pass a budget, and here they're criticizing us.

We came to work, and we worked until 12:30 into Sunday morning. They were absent without leave. The Senate never even came to work on Sunday. They came to work on Monday at 2 o'clock in the afternoon. And then they rejected every offer. We offered three times to compromise and then we said, Let's sit down. Yesterday we had a conference. No one showed up. You have to show up. The President has to be the President. Let him take a little of this Malaysia money—he's not going to Malaysia—and open the White House, open the memorials to our veterans. Use some of that money that he's gaming the system, trying to inflict pain on our veterans and our citizens.

There is no reason for this. Good people of good intention can come together, make this government work, make it better, pay our bills, and be responsible and bring this out-of-control spending under control and get our government accountable and responsible. That's what the American people want. They're tired of the blame game.

Let's get America going in a positive direction. I know we can do it.

## WE NEED LEADERSHIP IN THE HOUSE

The SPEAKER pro tempore. The Chair recognizes the gentleman from California (Mr. BERA) for 5 minutes.

Mr. BERA of California. Mr. Speaker, it's day number two of a government shutdown. The American public is watching, and they're not happy with what they're seeing.

Mr. Speaker, you are the leader of this body, the House of Representatives. You're the Speaker of the House. This is a House that's made up of both Democrats and Republicans. We need leadership at this juncture; and, Mr. Speaker, you are the one person who can bring it, but you're not showing that leadership. You need to take Democratic and Republican ideas and help us move forward.

I'm here to work. I'm a freshman, and I came here with the mandate to get Washington working again, to get people working again. That's what I intend to do. But, Mr. Speaker, you've got to reach out to Democrats and invite us in to bring our ideas forward. You are the one person who can do it.

I talk to my colleagues on the Republican side, and I'll talk to the Republicans right now. We want to get the country moving forward, but we can come up with the best ideas possible, and there's only one person who can bring that legislation to the floor. Mr. Speaker, that's you. We need leadership at this juncture, and the country is watching. Enough with the Washington politics.

We hear that you may shut the government down to play more Washington politics for 17 days to tie this to the faith and credit of the United States of America. You are the one person who's going to do that, Mr. Speaker. Don't take us down that path. Too many Americans are suffering.

We need leadership at this juncture, Mr. Speaker. There is a clean funding bill on your desk. Bring it to the floor. Bring it to the floor and let us have a chance to vote up or down. That's regular order. Give us a chance. It will keep government open for 6 or 10 weeks. But give us a chance to vote up or down on that. If the Republicans don't like it, fine. They're going to vote against it. But give us a chance to bring it to the floor. And it's not a bill that Democrats like, but we understand it'll keep the government open and it'll give us a chance to do what we were elected to do—pass a real budget, put a budget together.

Mr. Speaker, enough is enough with the Washington politics. Now you're going to continue playing politics and bring little pieces of legislation here and there forward when what we need is a big plan and leadership. Bring the funding bill to the floor. Let's continue to pay our debt and let's keep moving forward, because people are hurting.

Mr. Speaker, I'm a doctor. The oath I took has two critical elements. One is to do good. Well, Mr. Speaker, right now you are not doing any good. You are not doing the American public any good. And to do no harm—the failure of this body and you to bring this legislation to the floor for us to vote on is doing irreparable able harm.

And as a doctor, do you know what's happening to the NIH? Do you know that they have to turn patients away—patients who have no place else to go? This is their last-ditch effort to get in there. That isn't what we do in America.

Mr. Speaker, you're the one person who can bring this legislation to the floor—and do it.

As a doctor, do you know what's happening in the CDC? We're about to enter flu season. God forbid we have an epidemic of anything. They're laying off almost 70 percent of their staff. This is putting America in harm's way.

Mr. Speaker, do what my oath says as a doctor: do good and do no harm. Right now, you are doing the exact opposite.

Let's get Washington working again, and let's put the American people first. We the people. This is the United States of America, united. That means we've got to come together as a country and put the people first.

Mr. Speaker, the American public is watching you.

## THE SENATE MUST ACT

The SPEAKER pro tempore (Mr. MICA). The Chair recognizes the gentleman from Pennsylvania (Mr. THOMPSON) for 5 minutes.

Mr. THOMPSON of Pennsylvania. Mr. Speaker, this morning, one of my colleagues across the aisle said—very accurately—in quoting another elected official, that everything that gets done, gets done in the middle. I happen to believe that the only type of legislation that really passes and lasts is that which is done in a bipartisan way. That's why I commit in every bill that I author and I work on to reach across the aisle and find a friend to be the lead coauthor, and we build support on both sides of the aisle.

But, Mr. Speaker, based on the comments of my colleague and my own personal beliefs, I believe that's why this health care law is so flawed and has so many flaws in it, because it was not done in that spirit. It did not honor that principle. It was done unilaterally, in the most partisan way, and shoved upon the American people.

It is publicly acknowledged that it has flaws. The majority of Americans are demanding fixes of the publicly acknowledged flaws in the health care law—flaws that are acknowledged by Republicans and Democrats alike.

So instead of protecting perhaps the President's legacy, it's time to come together. Republicans are only seeking commonsense fixes to decrease costs and increase access, and fixes that are bipartisan and common sense.

Last night, I was very disappointed on this House floor. I voted to protect our veterans and to protect the citizens of the District of Columbia. Last night, we had a bill that would just allow them to use their own money—money that they pay in taxes to the municipality that they contribute through the parking meters and the fines and the fees that they pay and just be able to use their own money, and also be able to open our monuments and our parks to the American tourists. And our American heroes, our honor flights, are coming in each and every day, World War II, part of that Greatest Generation.

And yet it was defeated by votes from my colleagues on the other side of the aisle for political purposes; and I know politics within the Beltway, but those were bipartisan solutions to help key individuals.

Mr. Speaker, it's troubling that the Senate leader has prevented consideration of even the most commonsense changes to the President's health care law, including one that has bipartisan support and previously passed his own Chamber. Lawmakers on both sides of the aisle—in both parties—already have overwhelmingly rejected the medical device tax.

Last year, 37 House Democrats voted with all Republicans to repeal the tax, with a large bipartisan majority of 270–146. In March, the Democratic-led Senate voted 79–20 to repeal the tax.

The Senators from my own home State of Pennsylvania—one Democrat, Senator BOB CASEY, and one Republican, Senator PAT TOOMEY—supported the bill. In fact, Senator CASEY was its chief author and sponsor.

The medical device tax repeal was part of the House continuing resolution. It was blocked was consideration by Leader REID. For the past 2 weeks, the House has worked to fund the government, prevent a shutdown, and protect the American people from the President's health care law. The Senate has decided to drag its feet and reject these reasonable proposals.

There is an appropriate way to conduct budget negotiations, and that is through the normal procedure of appointing a conference committee—that's appointing negotiators, Republicans and Democrats alike, from both the House and the Senate—to get to the table and sit down and work out our differences. That is elementary civics. Unfortunately, the Senate leader has prevented regular order from proceeding.

Mr. Speaker, I was elected to represent my constituents and reform government, and I will continue fighting on their behalf. Congress must act now to end this shutdown and get to work on the many challenges facing this great Nation.

## DAY TWO OF THE GOVERNMENT SHUTDOWN

The SPEAKER pro tempore. The Chair recognizes the gentleman from Massachusetts (Mr. MCGOVERN) for 5 minutes.

Mr. MCGOVERN. Mr. Speaker, today is day two of the Republican government shutdown. It is day two of the Republicans throwing a temper tantrum because they don't have the votes to overturn the Affordable Care Act. They have chosen to hold the Federal Government hostage in order to placate a small, reckless, extreme faction of their conference. It's shameful and it needs to stop.

Already, National Parks are closed, Head Start facilities are beginning to close, and paychecks to Federal employees could be delayed. And if closing Head Start facilities wasn't bad enough, shutting the government down could cause great harm to pregnant women, infants, and children.

That's right, Mr. Speaker. Pregnant women, infants, and children will begin feeling the impacts of this Republican shutdown as funding for the WIC program begins to lapse. There are nearly 9 million pregnant and breastfeeding women, infants, and children on WIC. Nine million low-income people receive healthy food and nutrition education from this important and vital program.

WIC is a critical program that provides food and nutrition counseling for low-income pregnant and breastfeeding women, as well as newborns and infants. It is a key program that helps pregnant and breastfeeding women stay healthy through proper nutrition and actually helps prevent many health issues associated with nonnutritious meals.

In about a week, funding for WIC will dry up. Funding for food and nutrition education for low-income women and their children will be eliminated. Some States will see their funds dry up right away; and some, like Massachusetts, have budgeted in a way that will allow them to patch funds together to prevent major shortfalls only for a couple of weeks.

I come to this floor week after week to talk about how we can end hunger now. A few weeks ago, this House of Representatives cut SNAP, formerly known as food stamps, by $39 billion. Year after year, Budget Committee Chairman PAUL RYAN tries to block grant SNAP, a $130 billion cut in the program. And a few years ago, the Agriculture Appropriations Subcommittee, chaired then by the gentleman from Georgia (Mr. KINGSTON), attempted to cut WIC by hundreds of millions of dollars.

There's a pattern here of trying to balance the budget on the backs of the poor, on the backs of the hungry. There's a pattern here of saying to people who are struggling to make ends meet that they just don't matter.

The Republicans, who are forcing this government shutdown—those Republicans who are cheering on a government shutdown like cheerleaders at a pep rally—are inflicting real damage on real Americans. And those on the front lines are, unfortunately, poor women and their children.

We're not going to end hunger now by painting a target on their backs and using them to balance our budgets. Income disparity is currently at its greatest gap since the Great Depression. Hunger is not getting any better in this country. Yet the Republicans in the House think it's okay to take food away from hungry people, including veterans and kids, just because they don't like those programs.

The cut in food stamps that we debated and voted on a couple of weeks ago would throw 170,000 of our veterans off the program—men and women who have served our country in battle. They'll be cut from the program.

What they are doing is wrong. It takes my breath away, Mr. Speaker.

Ending hunger requires real leadership and not letting some right-wing zealots eviscerate the Federal budget so that the hungry in America don't have the ability to put food on their tables. What is happening here is cold. It is heartless. It is unconscionable.

We should be working to end hunger now instead of shutting down the Federal Government. The low-income women, infants, and children of this country deserve a hell of a lot better than they're getting from this Republican-led House of Representatives.

□ 1045

## AFFORDABLE HEALTHCARE ACT

The SPEAKER pro tempore (Mr. THOMPSON of Pennsylvania). The Chair recognizes the gentleman from New Jersey (Mr. HOLT) for 5 minutes.

Mr. HOLT. Mr. Speaker, the health care marketplaces are finally open. The only complaint is that people are so eager to learn more about their options and to sign up that too many people logged on yesterday.

Now, to hear my colleagues from across the aisle describe this day, you might expect to look out the window and witness the beginning of, as ''Ghostbusters'' once put it, 40 years of darkness—earthquakes, volcanos, the dead rising from the grave, dogs and cats living together, mass hysteria. Perhaps these warnings were overblown.

The start of the Affordable Care Act resulted in exactly zero people locked out of their offices with their paychecks on hold. By contrast, the Republican shutdown has furloughed 800,000 Federal employees.

Exactly zero people yesterday were deprived of their annual flu shots because of the Affordable Care Act. In fact, ObamaCare has made preventive care for things like vaccines free, without copay, to insured patients nationwide. By contrast, the Republican shutdown has forced the CDC to halt its annual seasonal influenza program, just as flu season is getting underway.

Because of the Affordable Care Act, exactly zero infants yesterday were deprived of healthy food and nutrition information. By contrast, the Republican shutdown has put at risk the entire Women, Infants, and Children program, which provides some 9 million Americans with the support they need to feed their children.

The Republican shutdown has also brought to a standstill critical lifesaving biomedical research being conducted at the NIH and NSF. Exactly zero people yesterday went untreated because of the ACA for foodborne illnesses. By contrast, the Republican shutdown has forced the FDA to cease many of its food safety operations.

The Affordable Care Act has not ushered in an era of doom and gloom that the Republicans promised. Instead, it has offered hope and opportunity for good health care coverage.

Here is the reality: The ACA is helping my constituents who previously found health insurance out of reach. The access provided by ACA is long overdue. Rather than seek delay, we should be embracing it.

For years I've been hearing from people like Nicole, from Lawrence, who writes not about the fear of the ACA but, rather, ''the fear that the health care of your family will bankrupt you and that your lack of resources will leave you and your loved ones vulnerable to sickness and death.''

Now, I also hear optimism—optimism—that comes from the options that can now be found in the new marketplace. Just ask Mary, from Princeton, who wrote me earlier this week:

> Please do not allow the implementation of ObamaCare to be delayed. I've been waiting and waiting for a time when my adult children would be able to afford health insurance.

She goes on to say that the health care marketplace has given her ''the opportunity to review plans with them and to assist them to choose the best plan.''

There is the single mother from Scotch Plains who wrote me:

> I am a registered Republican, and I am embarrassed by all that has been happening for the last few days. The Tea Party and some Republicans keep yelling that they're speaking for the people. Well, they're not speaking for me or anyone I know.
>
> ObamaCare must be given a chance. I have been without coverage since my COBRA ended 2 years ago. I was unable to get reasonable coverage at a reasonable rate. I don't want charity; I'm not looking for a handout. I want affordable health care. I've been praying I stay healthy. I'm patiently waiting for the affordable care exchanges so that I can finally try my luck there. Please, please don't let the Tea Party take this away from me and so many others who need it.

Now, I wish my colleagues on the other side of the aisle would accept this as the good news that it is. I wish they would accept that their stories of doom and gloom for ObamaCare were wrong. But instead, we're learning that the dire stories were not a prediction, they were a threat.

The Tea Party, confronted with the prospect of a duly passed law that has been upheld by the Supreme Court, have thrown a temper tantrum. They have taken hostage the entire Federal Government, and they have sabotaged the process of self-government—all to

prevent Americans from gaining access to affordable health care.

Let's make the health care law work as well as possible. Let's, together, make our other government services—necessary services—work as well as possible.

## REPUBLICAN SHUTDOWN AND ACA

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from California (Ms. LEE) for 5 minutes.

Ms. LEE of California. Mr. Speaker, here we are, day two of the Republican shutdown. The Tea Party extremists are really achieving their goal of dismantling government. Their shutdown is step one.

It's no secret that the Tea Party Republicans came here not as public servants, but to destroy and decimate our government. Now, millions of families, children, seniors, Federal employees, and our economy are paying the price. The Republican refusal to back off their extreme, ideological demands has taken our country down a very dangerous path that will surely push millions more into hunger and poverty.

In my congressional district and throughout the State of California families are already feeling the impact of the Republican government shutdown. The California Women, Infants, and Children program is on the brink of turning away low-income pregnant women and new mothers if this shutdown continues. How ruthless can you get?

The California National Guard, the largest in the Nation, is forced to furlough technicians and aviation mechanics, even as the fire season is still upon us. And throughout the State of California, eighth graders, like my constituents from Oakland who wrote to me yesterday, are cancelling field trips to national parks and monuments which are closed to visitors. What are they going to do now?

To add insult to injury, Republicans have shut down the government because they are obsessed with destroying the Affordable Care Act, which is the law of the land and which the Supreme Court upheld. Most Americans continue to see how senseless and wrong it is to shut down the government because you want to deny health care to millions. Two wrongs don't make a right.

Despite the Republican government shutdown, health care exchanges established under the Affordable Care Act have successfully opened for enrollment, and now millions of uninsured Americans are just 3 months away from having the health care coverage they so desperately need.

California, the first State to commit to establishing its own exchange, launched the Covered California exchange. Covered California's exchange includes health care options for individuals and small businesses. In my congressional district alone, there are nearly 100,000 uninsured constituents, and the opening of the exchanges means that they are one step closer to health care coverage that can literally—mind you, literally—make the difference between life and death.

Hostage taking really is a deplorable tactic. Members of Congress are elected to make sure our government functions. Time and time again, Democrats have reached across the aisle to try to negotiate a budget plan that is fair and that ensures that the government pays our bills on time. Yet, instead of working together to do our jobs, Republicans continue to double down on the Tea Party plan to destroy and decimate our government.

Instead of working on a serious option to reopen the government, Republicans' latest strategy now—and this is really cynical—is to exploit our veterans and to exploit the people of the District of Columbia by voting on piecemeal bills that will not end impacts of a shutdown that extend across the country.

Mr. Speaker, of course we support our veterans and of course we support our national parks and of course we support the District of Columbia to use its locally raised funds, but let's not use them to score political points to advance an ideological agenda.

How do Republicans vote this week to allow the District to use its discretion on local funds during a shutdown—that they created—yet next week block the same funds being used for saving reproductive health care services or badly needed needle exchange programs to fight HIV and AIDS?

Again, this is so cynical and it is so wrong. The American people deserve a functioning government. This hostage taking must end.

## WORKING TO END GOVERNMENT SHUTDOWN

The SPEAKER pro tempore. The Chair recognizes the gentleman from North Carolina (Mr. MEADOWS) for 5 minutes.

Mr. MEADOWS. Mr. Speaker, I come here today just perplexed at what I see unfolding here today. My colleague just said that two wrongs don't make a right; and indeed, she is correct. But today, this fight is really starting to get to be more political and we're not focusing on the people.

Yesterday in this very Chamber, Mr. Speaker, we put forth three different bills, one that would pay our veterans and make sure that those benefits continue to flow. And what did the Democrats say? They said ''no.'' One would open up our parks and monuments to be that economic stimulus once again. And what did the Democrats say? They said ''no.'' Then, even in the District of Columbia, where we looked, Mr. Speaker, at truly putting forth and allowing them to use some of their funds to pay the teachers and do some of the operations—I can tell you, I don't get any votes from the District of Columbia. For me, that is not a politically expedient thing to do, but it was the right thing to do. So what did we do, Mr. Speaker? We put forth a bill. Yet what did the Democrats say? ''No.''

I am so troubled that what we are seeing over and over again is this bantering back and forth, and yet we are willing to open up parts of the government and continue to do that every single day until we get everything restored.

This is not about ObamaCare. ObamaCare is mandatory spending. This is about getting the government back open in a responsible way. What we're doing is working very hard, trying to work in a bipartisan way to do that.

So, Mr. Speaker, I rise today to just say that it is time that the Senate comes back to the negotiating table and starts to negotiate on behalf of the American people that they represent. We have a responsibility to our veterans, to those that serve in the Reserves. So today, we will see more opportunities in this very Chamber to fund those things that are precious, near and dear to all of us. I humbly ask my colleagues on the other side to join us, in a bipartisan effort, to start working for the American people and representing them.

## THE PRICE OF PARTISAN GAMES

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Arizona (Mrs. KIRKPATRICK) for 5 minutes.

Mrs. KIRKPATRICK. Mr. Speaker, partisan games have serious consequences. One of the many consequences is in my Arizona district where the Grand Canyon National Park is closed and our local economy is taking a direct hit.

Instead of acting responsibly and funding the government with a clean bill, on Monday night the House GOP acted recklessly. The bill that they passed Monday night was so weighted down with partisan baggage that they knew it would lead to a government shutdown, and yet they chose this approach intentionally.

The price of these partisan games is high and the American people are now stuck with the tab. Some estimates have the shutdown costing our Nation about $300 million every day. In Arizona and across the country, this hurts our working families, small business owners, veterans, and seniors. And this hurts our tribal communities. I have 12 Native American tribes in my district. All of these folks need and deserve to have elected leaders working to help them, not hurt them.

After what happened on Monday, we must now do the urgent work of funding and reopening our government. But instead, the House GOP is stalling with more games, introducing piecemeal bills that pick winners and losers for funding. Last night, they tried to do it with piecemeal bills for veterans and for national parks.

I will always fight for our veterans. I am proud to serve them in my work on the Veterans' Affairs Committee. The first piece of legislation I passed this year will help our veterans who are stuck in the VA backlog.

And I will always stand up for our national parks. I am grateful to live near the Grand Canyon, a national treasure. My district has many of these wonderful destinations. I recently introduced a bill that will protect and expand the Casa Grande Ruins National Monument in southern Arizona.

So my support for these issues is clear. But the real way to support our veterans and support our parks is to reopen the government. And if piecemeal is their solution, then what about making sure Social Security offices are open to help our seniors?

□ 1100

What about making sure programs to help women and children are up and running? What about our Indian health services, which serves the 12 tribes in my district?

We need to restart everything and protect our economy. Taking a piecemeal approach to the shutdown is like driving down a dead-end street. The House GOP knows this, and yet they refuse to allow a vote on a clean CR.

We are wasting precious time. Every ounce of energy and urgency in Congress should be directed toward reopening the government and protecting our economy. Our local economies in Arizona are taking a direct hit.

Yesterday, on day one of the shutdown in my district, busloads of tourists and hundreds of visitors were turned away from the Grand Canyon National Park. These folks waited a year or more for their turn to go on a river rafting trip in the canyon. There were even folks whose weddings, planned long ago, had to be scrapped today.

The Grand Canyon National Park generates more than $1.2 million a day in visitor spending. That spending, like the government, is now shut down.

I represent several other national park attractions, including the Petrified Forest National Park, the Grand Canyon Ruins National Monument, and the Montezuma Castle National Monument. These are some of Arizona's most important economic drivers. We can't afford to hang a ''closed'' sign out in front of these destinations. This shutdown will devastate the small communities in my district.

I call on my House colleagues to stop the games and get to work to restart government.

## CONTINUING RESOLUTION

The SPEAKER pro tempore. The Chair recognizes the gentleman from Georgia (Mr. WOODALL) for 5 minutes.

Mr. WOODALL. Mr. Speaker, I have a heavy heart about this issue, as I know many of my colleagues do. In fact, I haven't bumped into one of the 432 of us who is enthusiastic about the situation that we are in.

I will tell you, Mr. Speaker, one of the things that is most troubling to me is the decision to define success as passing a CR that the Senate is dictating. I don't say that because it is the Senate. My constituency back home doesn't care about CRs. A CR is a continuing resolution, as you know, Mr. Speaker.

The only time—the only time—a continuing resolution comes to the floor of this House is when the House has already failed to do the job it was supposed to do. That is passing appropriations bills, Mr. Speaker. That is appropriating through 12 different bills, one step at a time, making those decisions about spending priorities for the Nation.

It is fascinating to me, Mr. Speaker, because it has been years—years—since this House has gone through that process not through any fault of this House, but because we have absolutely no activity on the Senate side. Again, it somehow is getting defined today as if you do things ''piecemeal'' that you are somehow doing something wrong. Again, that is regular order. Doing things one bill at a time is normal. That is what is supposed to happen. You are supposed to make individual decisions on individual bills.

Last year, the House passed seven different appropriations bills, Mr. Speaker, one step at a time the way the government is supposed to be funded. The Senate passed one and, thus, the process broke down. No appropriations bills were passed. We have been funding the government through these continuing resolutions. Well, here we are again: this year, Mr. Speaker, the House has worked on five appropriations bills; the Senate has passed zero—zero.

So we are here where we are today because the Senate hasn't been able to move anything at all. It is with a heavy heart that I hear my colleagues say we could reopen services for veterans, but we are not going to do it because we have a better plan that we ought to do everything at once. If we can't help everybody, we don't want to help anybody.

I don't believe that is actually the sentiment of my friends on the other side of the aisle. In fact, Mr. Speaker, in June of this year, we came together—we came together—in this House, only four votes against a Veterans Affairs appropriations bill. Four votes in this entire House of Representatives voted ''no.'' Everyone else voted ''yes.'' That bill, which fully funds all of our veterans services, in fact, pluses up the funding for our veterans services not for 3 months, not for 3 weeks, but for the entire fiscal year. We passed that in June, Mr. Speaker, and it sits in the Senate dusty today having received no attention since June.

I don't know about your constituents, Mr. Speaker, but my constituents want us to get something done. They understand there are things that we disagree about, but isn't there more that unites us than divides us? I tell you that there is. I am absolutely certain that there is. If the only way we can find it is to move one small piece of legislation at a time, that may not be the most efficient way to do it, but if that gets the job done, let's get the job done.

Mr. Speaker, I am tired of excuses and I am tired of the blame. The Rules Committee is going to report out a rule today that is going to bring these provisions back to the House for an opportunity to open up those parks that my colleague was talking about just a few minutes ago, an opportunity to serve our veterans, an opportunity to deal with the important research at NIH, and on and on.

Let's find those things we agree on. Let's get something done. We can do it, Mr. Speaker.

## GOVERNMENT SHUTDOWN

The SPEAKER pro tempore. The Chair recognizes the gentleman from Virginia (Mr. MORAN) for 5 minutes.

Mr. MORAN. Mr. Speaker, this Republican shutdown is an outrageous abdication of Congress' responsibility. It didn't need to be this way.

In fact, if the House leadership were to call up a clean continuing resolution appropriations bill today it would pass. There are a sufficient number of votes from both sides of the political aisle to pass the measure. So far, however, the House Republican leadership has refused to do so, afraid of extremists within its own caucus—the so-called TED CRUZ Tea Party faction—whose demand is to shut down the government until the Affordable Care Act is either repealed or delayed.

So the American people's government has shut down. Ninety percent of the employees of the Environmental Protection Agency have been furloughed. Eighty-four percent of the employees of the Department of Interior all over the country, but mostly in the Western States, have all been furloughed. Seventy percent of the employees of our essential intelligence agencies have now been furloughed. Recipients of the Women, Infants, and Children program, the most vulnerable mothers and children, have had their livelihoods jeopardized. The National Institutes of Health have had to turn away 30 children with cancer from clinical trials.

We in this House must end this shutdown. This debate isn't even about the budget. The President and the Senate have already agreed to trillions of dollars of cuts set by the so-called Ryan Republican budget even though this draconian budget will endanger basic government operations, it will disinvest in our children's future, and it will trigger even more Federal employee furloughs and possible RIFs.

Rather, this shutdown is about a measure that strengthens insurance

coverage for the roughly 260 million Americans who have insurance. It will also eliminate preexisting conditions and lifetime limits and makes health insurance available and affordable to roughly 40 million uninsured Americans through State exchanges where insurance companies compete to provide coverage, and through expansion of the Medicaid program.

The Affordable Care Act is the law of the land. It has been affirmed as constitutional by the Republican-dominated Supreme Court and by a 5 million vote majority of the American people with the defeat of the Presidential candidate who promised to repeal it less than a year ago.

Regardless of where one may stand on the issue of the Affordable Care Act—aka ObamaCare—our Democratic process for enacting laws and setting policy should not be held hostage to the threat of a government shutdown. It sets a terrible precedent for the future.

My Republican colleagues continue to demand concessions with serious long-term consequences in exchange for funding a spending bill for just a relatively few more days, another 45 days or so. They want long-term concessions at their preferred inadequate spending levels.

What unreasonable demands will be made when this latest CR expires in 2 months or 1 month? These attempts to overturn the democratic results of the last election by threat-making and hostage-taking must end now. We should do our job, fund the government, and we should remove the looming threat to the global economy in the form of the expiration of the debt ceiling, which will occur in just a couple of weeks.

Not content with the economic destruction and hardship brought by their government shutdown and their refusal to let the Federal Government play its historic role to stimulate a strong economic recovery, House Republicans continue to threaten the full faith and credit of the United States.

As President Obama noted, if the tables were turned and you had a Republican President and a Democratic Speaker, as you did during the Reagan administration, neither Speaker O'Neill nor the American people would tolerate what is going on today.

In fact, that is the situation that we have today—a broken Congress, a situation where the American people's voices aren't heard or represented. It is time for us to heed the American people, to let the majority of this Congress determine public policy.

Let's stop the extremism. Let's be responsible. Let's pass this continuing resolution clean and go on with the business of the government.

## 10TH AMENDMENT OF THE CONSTITUTION

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from North Carolina (Ms. FOXX) for 5 minutes.

Ms. FOXX. Mr. Speaker, I know that the American people are watching what is happening in Washington these days with a little more than a passing interest. I am sure they wonder sometimes about where is the truth because they hear folks on one side of the aisle saying one thing and folks on the other side of the aisle saying another thing.

When I talk to people at home, I do my best to explain the situation in Washington right now. I try to point out the fact that we have deep philosophical differences in this body and in the Senate. We do have two parts of our legislative branch of government—the House and the Senate. The philosophical differences are pretty strong in both bodies.

They really stem from the beginning of the country. Our Founders felt very strongly—the majority of them, though—that the Federal Government should be weak. We, obviously, had just come off of getting our independence from Britain and we wanted to not have a king and we wanted not to have a strong central Government.

I think the Founders were right. The Founders in the Constitution outlined the duties of our respective branches of government. They enumerated them. People will talk about enumerated powers. They made those powers very few for the Federal Government. They emphasized that with the 10th Amendment. It said: If we didn't tell the Federal Government to do this in the Constitution, then we don't want the Federal Government to do it. We leave those responsibilities to the States and to the individuals. We have gotten along very well, we did get along very well, following the Constitution for a long time in this country.

Then we came about in the 1930s with an era of great involvement by the Federal Government—in my opinion and in the opinion of many of my colleagues—overstepping its bounds by getting involved in things that are not mentioned in the Constitution.

Bring us forward to the 1960s, a period of great activism in this country when many more programs were begun, but in the opinion of many of us, again, had absolutely no place in the Federal Government. We should not be doing things like running the education of this country out of the Federal Government or running health care out of the Federal Government.

□ 1115

So what we have here is the result of these deep philosophical differences, and I want to say that that's what is playing out here. Those of us who are opposed to the Federal Government's running health care in this country do so not out of pettiness, not out of meanness, not out of a lack of concern for our fellow citizens, but because we want to diminish the role of the Federal Government in our lives. We believe that, once you turn health care over to the Federal Government, you've basically turned the lives of citizens over to the Federal Government, and that is not a good place to be.

Our colleagues on the other side of the aisle also act as though no act of Congress has ever been repealed. My goodness, we spend a good part of our days here repealing bad legislation that somehow or another got passed before. So what we are doing and what we have been doing for the last few days is making every effort we can to repeal or to delay what is called the Affordable Health Care Act, which we are finding out is absolutely not affordable. That's what we have been doing, but we have been unsuccessful. So we are trying to keep the government open. We have passed bill after bill after bill out of the House to keep the Federal Government open. We have failed in doing that in a large way, so we are working at doing it in minor ways, by passing individual bills. That's what we are here to do today.

I just came out of the Rules Committee. We had these bills on the floor yesterday—three of the five that we are going to vote on today. Our colleagues on the other side of the aisle voted against paying our National Guard even though the President sort of quietly, Saturday night, signed a bill to continue to pay our troops. That was a bill the President said he'd never sign and that he wouldn't compromise, that he wouldn't negotiate. Yet, he did that. Now we want to keep our national parks open; we want to pay our National Guard and Reserve people; we want to provide local funding for the District of Columbia; and we want to keep our promises to America's veterans.

## ENOUGH IS ENOUGH

The SPEAKER pro tempore. The Chair recognizes the gentleman from New York (Mr. JEFFRIES) for 5 minutes.

Mr. JEFFRIES. Mr. Speaker, I rise in this institution after spending 6 years in the New York State Legislature. It was a very meaningful experience for me, notwithstanding the fact that the legislature in New York is sometimes derided as one of the more dysfunctional bodies in the country; but after witnessing the last few days here in the House of Representatives, it is clear to me that there is no more dysfunctional place in this country than the House of Representatives under the current majority control.

This is a manufactured crisis that has unnecessarily plunged us into a painful government shutdown, a shutdown that will harm the American people. The House majority has placed children in jeopardy—tens of thousands shut out of the Head Start program. The House majority has placed seniors in jeopardy—unable to benefit from the Meals on Wheels program, partially funded by the Federal Government. The House majority with this government shutdown has placed expectant

mothers in jeopardy and individuals who are now unable to get the nutritional assistance that might otherwise be available. You have placed veterans in jeopardy, Mr. Speaker. The House majority has placed families in jeopardy—more than 800,000 hardworking civil servants cast out onto the streets, with the uncertainty to determine when they may be able to pay their bills. The House majority with this government shutdown has placed the economy of the American people in jeopardy.

Enough is enough.

I am trying to figure out who actually is in charge, Mr. Speaker. Are you in control of your conference on the other side of the aisle? Is it the Tea Party that is in control of the House of Representatives agenda? Is it outside agitators or the junior Senator from Texas who barks out orders on the other side of the aisle, and then they're executed in lockstep by the extremists here in the House of Representatives? Mr. Speaker, who is in charge? Who is responsible on your side of the aisle for marching us down this dangerous path?

I have also been struggling in trying to figure out why are you so angry about the Affordable Care Act. What is it that you are so upset about? Are you angry about the fact that tens of millions of previously uninsured Americans will have access to health care? Are you upset about the fact that the law will prevent discrimination against individuals, including children with preexisting conditions? Are you angry about the fact that the Medicare part D doughnut hole will be closed and that seniors all across America will have access to more robust prescription drug coverage? Are you angry about the fact that young people in a difficult economy can stay on their parents' health insurance plans until they are the age of 26? What exactly are you upset about? Are you angry about the fact that small businesses will have access to tax credits—as much as 35 percent—in order to insure their employees in a manner that will help these small businesses grow and prosper?

Enough already.

The Affordable Care Act is the law of the land. It was passed by a duly elected Congress in 2010 with the great leadership of NANCY PELOSI and HARRY REID. You have lost legislatively, Mr. Speaker. The Affordable Care Act was determined to be constitutional by the Supreme Court of the United States of America in an opinion written by Chief Justice John Roberts, an individual nominated by George W. Bush. You've lost legally. Then the President of the United States of America was reelected last November in an electoral college landslide. You have lost politically, Mr. Speaker.

Enough already.

Why are we in this situation? I would simply ask that we pass a clean CR and get back to doing the business of the American people.

## A REPRESENTATIVE GOVERNMENT

The SPEAKER pro tempore. The Chair recognizes the gentleman from North Carolina (Mr. PITTENGER) for 5 minutes.

Mr. PITTENGER. We were elected to be Representatives—to represent our districts, to represent our constituents, to listen, and to respond.

Mr. Speaker, I have been listening. I have been listening to phone calls. I have been reading emails. I have been hearing what my constituents have to say, and I can tell you that they are deeply concerned. They are concerned with the direction of our country. Yes, they are concerned with a body that can't seem to come together, that can't seem to listen to each other. One of them wrote me just today.

He said:

> I have watched with great interest the ongoing debate between the House and the Senate regarding the new Federal health care law. Quite frankly, I was of the opinion that an absolute stand by House Republicans to defund ObamaCare was an inappropriate step as compared to less drastic measures . . . However, in the mail today, we received a 92 percent proposed increase from Blue Cross-Blue Shield for our current plan in 2014. The explanation of the increase all boiled down to the changes in the insurance market required as a result of the full implementation of ObamaCare. You can easily understand why we are astounded that this is the best health care direction that our country can embark upon.
>
> I encourage you to take whatever opportunities come your way to stop this disaster that is looming. The financial impact on people who are not a drain on the government will be immense.

Here is another one, Mr. Speaker:

> I just received a letter from Blue Cross informing me that my current coverage has been outlawed by ObamaCare and that the premium for my family will increase by 400 percent if I switch to a legal coverage option. This increase is over $9,000 a year . . . I don't care if you have to risk shutting down the government or defaulting on the debt. It is just postponing the inevitable default if ObamaCare is allowed to exist.

Mr. Speaker, we are not here because we want to shut down the government. We have made every effort possible. We have gone to great lengths—the extra mile—to the other side to present to them alternatives, to present to them ways that we could come together and agree. We had three proposals there on the table. Now we have offered to go and sit down and talk. That's what our body does. When we have disagreements between the House and the Senate, our formal agreement is to meet and we confer. We bring in negotiators. We talk, and we try to reason this out. We do this in our families, don't we? That's what is done in this body in the normal course of business.

However, in our efforts of trying to bring resolution and sound reasoning to this process, we can't get a response. They say, No, we don't want to talk to you. We don't want to reason with you. We don't want to hear what your constituents are saying. We don't want to hear the problems. We just want to ram this through.

Where is that in a representative government? Where is that in being responsive to the American people?

Mr. Speaker, if we really want good policy—and I have to believe that my colleagues on the other side of the aisle truly want good policy—then we need to take politics out of this. We need to take self-service out of this. We need to come together like adults and sit down and talk this through and come up with a reasonable solution that would bring the best outcome for the American people. That's what our hope is.

We invite, still today, the leadership of the Senate to come and sit down and to conference with us—to negotiate with us, to lay out their concerns and their thoughts. Let's be adults. Let's do the right thing for the American people.

## POLITICAL BRINKMANSHIP OVER RESPONSIBLE COMPROMISE

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Alabama (Ms. SEWELL) for 5 minutes.

Ms. SEWELL of Alabama. Mr. Speaker, I take to the floor with a heavy heart, a heavy heart that is disappointed, frustrated and, frankly, outraged by our government shutdown.

Once again, we have put partisan politics ahead of the needs of the American people; and as I stand before you this morning, millions of Americans are already suffering the consequences at the hands of a dysfunctional Congress. The legislative process that has resulted in this shutdown reflects a neglect of the responsibilities that we were sent here to meet.

The House majority had a chance to avert the government shutdown, but chose political brinkmanship over responsible compromise. In order to avoid the shutdown earlier this week, the Senate sent the House a bill, a compromise spending bill, which accepted the Republicans' lower funding levels. Instead of allowing a clean funding bill to come to this floor, the House majority, once again, attached unreasonable amendments which had no hope of gaining bipartisan support.

Now House Republicans want to partially open the Federal Government, cherry-picking winners and losers. This is no way to run a government. Think about it: if we and all of the small businesses and big businesses out there would run their institutions the way we run this Congress, our economy would be in shambles.

□ 1130

I hate to play the blame game, Mr. Speaker, but this government shutdown is solely the responsibility and the creation of House Republicans. We have tried to compromise, but Republicans time and time again have been using America's tax-paying money to redebate again and again the Affordable Care Act.

People say that House Democrats, the Senate, and the President should

compromise on this. How do you extend a hand to a clenched fist? You cannot compromise when the other side is not willing to accept the fact that the Affordable Care Act is the law of the land. It has been debated. It has been voted on. It has been found to be constitutional. Let's just get on with the American people's business.

I think that if we all ran our households and our businesses the way this Congress is now functioning, simply put, it would be unacceptable. We know better. We know that it's irresponsible and reckless to make the American people pay when we don't get our way. We were sent to Congress to represent something bigger than ourselves. We were sent to represent the American people, all of the people, all Americans, not just the privileged few.

We represent every military family and every veteran, from the homeless veteran in Birmingham, Alabama, to those serving overseas right now. We represent every child in this great country of ours, from the child who will eat free lunch today because of the SNAP program, to the child here in D.C. who is enrolled in the Head Start program. All Americans. We were elected to be representatives. We need to start earning the title of being a representative by representing all of the people. It's unacceptable that we are in this Chamber while the rest of government is shut down. It is unacceptable.

Mr. Speaker, I urge that you bring to this House floor a clean funding bill unencumbered by unreasonable amendments. Bring a clean funding bill to this floor, and I guarantee you that both Republicans and Democrats would pass that bill and we would open back up the Federal Government.

It's important that we put our partisan politics aside and truly start representing the American people that sent us here. Let's be representative of all the people.

## GOVERNMENT SHUTDOWN

The SPEAKER pro tempore. The Chair recognizes the gentlewoman from Tennessee (Mrs. BLACKBURN) for 5 minutes.

Mrs. BLACKBURN. Mr. Speaker, I appreciate the opportunity to address my colleagues today. Indeed, being in the middle of a government shutdown is something we did not want, and my colleagues and I on our side of the aisle continue to invite the Senate colleagues and their conferees to sit at the table with us and negotiate. We want to make certain that we work out the issues of our Nation's fiscal health.

We have to remember currently we're borrowing $2 billion, $3 billion a day to keep the doors open. This is something we cannot do. It is not fair. It is not fair to future generations. It is not fair to our children and grandchildren. It is not fair to the small business people who have dreams of building a business, watching that business grow, watching those dreams come true. It is not fair to the future of their families. To our Senate colleagues, we do continue to ask them to join us and to negotiate these issues.

There's a lot that's been said about ObamaCare, and some say, Well, it doesn't have anything to do with the budget. You know what, Mr. Speaker? It has everything to do with the budget because of the amount of growth that is taking place in this program. I think we all remember that originally ObamaCare was to be a health insurance access program. Let's give a pathway for uninsured Americans to have access to health insurance, a laudable goal, something that there was agreement on. Where it ran off the rails, if you will, was in the projections of the cost—far exceeding what anybody thought it would be—when it began to make $600 billion worth of cuts in Medicare, taking money out of Medicare, money that the Federal Government is taking out of wage earners' paychecks and putting it into the pot that says ''ObamaCare'' and using that money to redirect, to stand up the ObamaCare program.

There's a problem with that. There's a problem when there are mandates that are made on our hospitals, on our physicians that are paying them less. There's a problem when there is $819.3 billion of new taxes specifically embedded in the ObamaCare legislation, the law, $819.3 billion worth of new taxes that are going to come out of the paychecks of workers and be put into the ObamaCare pot to implement that law.

The impact is dramatic. Even though the President has given 1,200 waivers and special favors, even though he's chosen to make 19 delays of the program for people and entities that have gone to him and said, Hey, we would like a delay or we would like a waiver—the list goes on and on—it is individuals, like my constituents, who are dealing with the full impact of this.

Here are a couple of the emails that I have received:

> Marsha, please stop ObamaCare from happening.

This is a small businessowner in one of my cities:

> It was great for me to have insurance through the CoverTN program for small business. It works great for me and others. It's affordable. There's no way I can afford ObamaCare. My insurance cost is going up five times more than what I pay now. We cannot afford this program.

A small business owner who went to a check-cashing facility, got $400, started a business, and now has five locations, 45 employees, wants to grow this business, and cannot because with a 40-hour workweek, 50 employees, it would cause him to have to shutter the doors of his five locations and do something different for his 45 employees. That is the impact that this law is having on a regular daily basis.

Another constituent with a child with type 1 diabetes, they have utilized their employer's reimbursement account, $5,000 that was there. Now that's going to be limited to $2,500. They are looking at how unaffordable the Affordable Care Act is going to be for them.

The list goes on and on.

## GARRETT LEE SMITH MEMORIAL ACT REAUTHORIZATION

The SPEAKER pro tempore. The Chair recognizes the gentleman from Illinois (Mr. DANNY K. DAVIS) for 5 minutes.

Mr. DANNY K. DAVIS of Illinois. Mr. Speaker, my colleague, Dr. BILL CASSIDY, a Republican from Louisiana, and I, introduced a bipartisan bill, H.R. 2734, the Garrett Lee Smith Memorial Reauthorization Act, on July 19 of this year. This legislation would reauthorize the Garrett Lee Smith Memorial Act to help State and local governments and universities to continue to provide and develop suicide prevention programs. This current bill is budget neutral and would revise and extend provisions of the original act signed into law by President George W. Bush in 2004. It is named for former-Senator Gordon Smith, Republican of Oregon's 22-year-old son Garrett whose life was ended in September of 2003.

Every year, over 38,000 Americans die by suicide, and many more are treated for self-inflicted injuries that result from suicide attempts. As you may know, suicide still remains the second leading cause of death for our adolescents and young adults between the ages of 10 and 24, and results in 4,800 lives lost each year according to the Centers for Disease Control and Prevention.

Also, the same agency reported that youths in grades 9 through 12, in public and private schools in the United States, found that 15 percent of students reported seriously considering suicide, 11 percent reported creating a plan, and 7 percent reported trying to take their own life. The 2010 American College Health Association's National College Health Assessment II noted that 45.6 percent of the students surveyed reported feeling that things were hopeless and 30 percent reported feeling depressed.

The Garrett Lee Smith Memorial Act Reauthorization grant program has assisted 35 tribes, 45 States, and 85 institutions of higher education to develop suicide prevention and intervention programs, which are often the first line of defense for those with this troubling disease of mental illness concerns, who are distraught and aren't certain about what to do.

Again, H.R. 2734 is budget neutral, and I come to the floor to ask all of my colleagues to cosponsor the Garrett Lee Smith Memorial Act. We can disagree on some things, but I don't think we need to disagree on this.

Please, sign up as a cosponsor.

## GOVERNMENT SHUTDOWN

The SPEAKER pro tempore. The Chair recognizes the gentleman from Indiana (Mr. STUTZMAN) for 5 minutes.

Mr. STUTZMAN. Mr. Speaker, I come to the floor today to share what I believe is a lack of cooperation in Washington, D.C.

I come from Indiana as a farmer who served in the Indiana Legislature at times where we had divided government. My belief is that the only way you're going to solve a problem when you have issues is to talk. When you have one party who's at the table and is willing to discuss the problems that we face and you have another party who refuses to come to the table, we're not going to get anything done.

The gentleman from New York asked a little bit ago: Who is in charge in the Republican conference, is the Speaker of the House or the Tea Party faction? I'll tell you who I believe is in charge, and that is our Speaker with the authority from the American people who elected each of us to come to Washington to represent them and to fight for them and to fight against an overaggressive Federal Government, $17 trillion of debt, and to fight a health care law that only intrudes more and more on American lives.

As I think about history, we have been in a government shutdown before. Under those circumstances, we had President Ronald Reagan, who was a Republican, and we had Speaker of the House Tip O'Neill. Speaker of the House Tip O'Neill shut down government seven different times during President Reagan's time in office, but President Reagan didn't just sit at the White House and refuse to talk. He didn't go out traveling around the country pointing the finger back at Congress. He invited Tip O'Neill down to the White House and sat down over a cup of coffee and talked the problems out. That's what leadership does. Leadership brings people to the table and finds a way to get the problems resolved.

□ 1145

Here in the Western Hemisphere, we work—whether it's in business, whether it's in our family budgets, whether it's in our family problems, we try to find a way for both sides to win because that's how we're going to walk away from the table feeling like we were successful and that we didn't break the principles that we believe in, that we're going to find a way to work together and it's going to be a win-win for both parties.

But right now, we're seeing that it's going to be a win-lose situation, where President Obama and Senator HARRY REID are going to say: We're going to win and Republicans are going to lose. Because we have sent over four different compromises, four different proposals to the Senate, and what does the Senate do with them? They table them. They put them on the table and say: We're not going to even negotiate. We're not even going to talk.

Now, is that what Tip O'Neill did? Is that what President Ronald Reagan did? Even after seven times, the government was shut down because what were they fighting over? Speaker Tip O'Neill was actually fighting for the Fairness Doctrine. It wasn't over bigger government spending or more government spending or $17 trillion of debt or a massive, much larger health care program. It was over an ideology. So if we can't even come to the table to talk about the problems that we face today, Washington is going to continue to be broken for a long time.

I hear the frustration from my colleagues about the furloughs, and I sympathize with that because I have constituents in the Third District of Indiana who are furloughed. But at the same time, there have been many Americans who have been furloughed without pay, who don't have work because of the uncertainty that ObamaCare has placed on this economy. And I believe that it's time that we stand up for the American people rather than for the American Federal Government and start looking out for the people in this country and say: We're with you.

## CIVILITY

The SPEAKER pro tempore. The Chair recognizes the gentleman from Pennsylvania (Mr. MARINO) for 3½ minutes.

Mr. MARINO. Mr. Speaker, I am certainly not going to be 3½ minutes at this point. I had some notes. But that's what I usually do when I get up with notes, go away and I try to speak from the heart.

I have been watching this, and it's very frustrating. And first let me say, there's no one who should go without health insurance. I have a daughter who has a disease for which there's no cure, none whatsoever. She will be lucky to live to her late twenties. So it's critically important that there be a method by which we can get some help to pay for treatment, not only for her, but for every child out there and every human being.

But aside from that, I go to the gym every morning at about 6:00, and I work out with my colleagues on the other side of the aisle and on my side of the aisle. The camaraderie is extraordinary. We joke with each other. We help each other in the weight room. We spot each other. We talk about our families. We even talk about politics. But it's civil. And I would really like to have the whole floor, as well as the American people, see how we communicate with one another in that gym in the morning.

But I am asking that every person be civil. The Republicans have been called Nazis, terrorists, people that don't want to take care of children and seniors—and that's wrong. We can have ideals, we can have a belief, but we need to be civil about it. And we need to give an example and show an example to the American people that we're adults and that we can have different views. And that's what a democracy is about. We don't have to make it personal. We don't have to aggrandize it to get attention, to call names.

So I'm saying to my colleagues, I'm reaching across. I have not been uncivil. I will not do it. I will criticize my colleagues if they do it. But let's use this moment to show the American people that we can have a dialogue, we can have arguments, but to keep it civil; because when the dust is settled, America is going to be better for it, and the Congress is going to be much better for it.

## RECESS

The SPEAKER pro tempore. Pursuant to clause 12(a) of rule I, the Chair declares the House in recess for a period less than 15 minutes.

Accordingly (at 11 o'clock and 49 minutes a.m.), the House stood in recess.

□ 1200

## AFTER RECESS

The recess having expired, the House was called to order by the Speaker at noon.

## PRAYER

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

Almighty God, we give You thanks for giving us another day.

You have promised, O God, that You are with us wherever we are and whatever we are doing, to heal and to help, to give strength and make us whole.

We pray that we all, and the Members of this assembly especially, will be receptive to Your promises and receive them with confidence and conviction that, armed by Your Spirit, they will be able to forge good solutions to the current impasse which promote justice, equity and truth.

Pardon us as we have missed the mark to this point, and yet, we pray that we will be faithful messengers of Your word and steadfast stewards of all Your gifts.

May all that is done today be for Your greater honor and glory.

Amen.

## THE JOURNAL

The SPEAKER. The Chair has examined the Journal of the last day's proceedings and announces to the House his approval thereof.

Pursuant to clause 1, rule I, the Journal stands approved.

Mr. CICILLINE. Mr. Speaker, pursuant to clause 1, rule I, I demand a vote on agreeing to the Speaker's approval of the Journal.

The SPEAKER. The question is on the Speaker's approval of the Journal.

The question was taken; and the Speaker announced that the ayes appeared to have it.

Mr. CICILLINE. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER. Pursuant to clause 8, rule XX, further proceedings on this question will be postponed.

## PLEDGE OF ALLEGIANCE

The SPEAKER. Will the gentleman from Arkansas (Mr. WOMACK) come forward and lead the House in the Pledge of Allegiance.

Mr. WOMACK led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

## ANNOUNCEMENT BY THE SPEAKER

The SPEAKER. The Chair will entertain up to 15 requests for 1-minute speeches on each side of the aisle.

## WASHINGTON DEMOCRATS SHOULD NEGOTIATE

(Mr. WILSON of South Carolina asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. WILSON of South Carolina. Mr. Speaker, President John F. Kennedy once said, ''Let us never negotiate out of fear, but let us never fear to negotiate.''

House Republicans are willing to negotiate. House Republicans have been proactive in preventing a shutdown by passing four different pieces of legislation that keep the government functioning.

Unfortunately, the President and Senate Democrats have slammed the door and have refused to come to the table and negotiate until—just announced—tonight.

This sentiment is shared outside of Washington. Yesterday, I received a letter from a constituent saying:

Refusing to come to the table, Obama and Reid are counting on the media lapdogs to blame Republicans. I understand that. Washington is putting incredible pressure on the House to cave, but the American people feel differently.

We are now on Day 2 of a government shutdown. It's past time for Washington Democrats to join House Republicans and work together to find a solution.

In conclusion, God bless our troops, and we will never forget September the 11th in the global war on terrorism.

## SCIENCE GOVERNMENT SHUTDOWN

(Ms. EDDIE BERNICE JOHNSON of Texas asked and was given permission to address the House for 1 minute.)

Ms. EDDIE BERNICE JOHNSON of Texas. Mr. Speaker, the Republicans have forced the government to shut down, and it's a disservice to the hard-working professionals in the Federal Government and to the American people.

Our Federal agencies have a long history of working hard on research and education programs that return huge payoffs to the American people, both in economic growth and societal benefits.

Unfortunately, 97 percent of NASA employees are being furloughed, and all public NASA events and activities will be ended.

The National Science Foundation will make no payments for the duration of this shutdown.

The Department of Energy will furlough nearly 7 percent of their employees, jeopardizing research done all over our national laboratories.

Most research activities at the National Institute of Standards and Technology and the National Oceanic Atmospheric Administration will be suspended. Weather research and United States Geological Survey studies will also shut down.

As ranking member of the Committee on Science, Space, and Technology, I want to highlight that our competitors in other countries surge ahead in their R&D as we shut ours down. We are closing the door to our future.

## KEEP OUR MEMORIALS OPEN

(Mr. WESTMORELAND asked and was given permission to address the House for 1 minute.)

Mr. WESTMORELAND. Mr. Speaker, I think the American people have got to be wondering, from maybe seeing some of the news reports today or yesterday, why we are closing some of these open air attractions to the American people that are coming to Washington.

The World War II Memorial is open every day, all day long, 24/7, 365. Now it's got barriers up. And because some Members of our side of the aisle went down there yesterday to allow some of the same people that landed on the beach of Normandy to go in and to see their memorial, today they were back putting up wire against those barriers.

If you go down Rock Creek Parkway, where many people in D.C. come to exercise, to ride their bikes, to walk their dogs, every mile or so there's six or seven parking spots where people can park their car, get out, exercise, walk. They've got barricades in front of them.

Are we nuts?

They've got barricades where people can't even park to go ride.

This is amazing, and I hope that whoever has given these orders will come forward and give the American people reasons why they cannot enjoy things open.

## WE NEED A CLEAN CR TO GET OUR GOVERNMENT BACK TO WORK

(Mrs. CHRISTENSEN asked and was given permission to address the House for 1 minute.)

Mrs. CHRISTENSEN. Mr. Speaker, lawmakers should be the first to uphold and respect the laws of our land, and the Affordable Care Act is a very important law for over 30 million people in every one of our districts, for our entire country.

There are almost 700 Federal employees in my small district. Traveling yesterday, it was hard to see the CBP and TSA folks working as usual, not knowing if and when they'll be paid.

My employees, like all congressional employees, are under the same cloud and the stress that comes with it.

Complaints began early about our Virgin Islands park closures. This not only affects NPS employees, but all of our small businesses, from wedding planners to shop and concession owners to taxi drivers, the entire St. John economy. And despite our ''Open Beach'' laws, the beaches in the park are closed to Virgin Islanders.

In my district, already reeling from the shutdown of our largest private employer, the highest energy costs in the country, and reduced government revenues, this shutdown, if it continues any longer, can be the final nail in our economic coffin.

The negative impact of this shutdown will only hurt more people and hurt our national economy, if it continues.

The President and Democrats are willing to negotiate, but we, and the American people, say not like this. No fake, piecemeal fixes. We must have a clean CR now and get our entire government back to work.

## THE MISSING ELEMENT: COMPROMISE

(Mr. MCCLINTOCK asked and was given permission to address the House for 1 minute.)

Mr. MCCLINTOCK. Mr. Speaker, at the center of our government is a bicameral legislative branch, two separate houses specifically designed to have a different perspective on issues.

Those two houses are supposed to disagree, and yet, ultimately, they have to pass the same legislation to the President to get anything done.

Well, how does that happen?

It is because, once the House and the Senate individually exercise their best judgment, they are supposed to meet to then resolve any differences. That is the only possible way that our bicameral system can function. Without this mechanism, it's doomed to gridlock.

And yet, the current leader of the Senate, and those in his thrall, have refused to do precisely that, to sit down and resolve the differences between the two houses through negotiation and compromise. Their refusal to do so is at the heart of this impasse that's now shut down the government.

It is time for HARRY REID to meet his constitutional responsibility, or for the Senate to find somebody who will.

## A GOVERNMENT SHUTDOWN IS AN ABANDONMENT OF CONGRESS' DUTY

(Ms. SINEMA asked and was given permission to address the House for 1 minute.)

Ms. SINEMA. Mr. Speaker, a government shutdown is an abandonment of Congress' duty, and it's irresponsible. We must focus solely on creating a commonsense solution that ends this shutdown.

I believe Members of Congress need to talk to and listen to one another, even when we don't agree. I listen to my Republican colleagues and, while I don't agree with them all the time, I'm open to hearing their ideas because this country deserves a Congress that finds commonsense solutions.

I voted, over the past week, to keep the process moving forward, but the process and Washington are clearly broken. Nine months of cynical posturing has led to this shutdown, which is hurting hardworking Arizonans in my district.

Mr. Speaker, there is no more time for games or gimmicks. We have to find a reasonable, bipartisan solution. We cannot end this shutdown without House Democrats and Republicans voting together.

Let's get to work now.

## HISTORY IS MUCH DIFFERENT

(Mr. LABRADOR asked and was given permission to address the House for 1 minute.)

Mr. LABRADOR. Mr. Speaker, over the last few days we keep hearing about how Republicans are terrorists, Republicans have guns to everybody's head. And it's been, actually, really sad to hear the other side talk about these things.

At this point in Ronald Reagan's second term, for example, the government had already shut down the government six times, according to The Washington Post and according to many other articles. And this happened under the leadership of Democratic leader Tip O'Neill, precisely the opposite of the political dynamic that exists today.

Former O'Neill staffer and MSNBC pundit Chris Matthews has written an entire book extolling the era as a time when politics actually worked. You can probably guess how he feels today about this.

But the problem is that, during Tip O'Neill's career, there were seven different shutdowns with the Democrats. The final shutdown of O'Neill's career, according to Andrew Stiles of the National Review, happened in October of 1986. House Democrats had picked a fight with Reagan on a number of issues, including labor, energy, and welfare policy.

Today, Democrats insist that this has never happened in history, and the reality is that the history is much different.

## SHAMEFUL IDEOLOGICAL TANTRUMS

(Ms. KELLY of Illinois asked and was given permission to address the House for 1 minute.)

Ms. KELLY of Illinois. Mr. Speaker, it has been 2 days since an extreme few in Congress put politics ahead of country and allowed a government shutdown. It's shameful that some will allow ideological tantrums to take the place of civility and a real legislative agenda.

This partisan paralysis has put us on pace to be the least productive Congress in history. We voted nearly 50 times to repeal the Affordable Care Act, even though it's been upheld by the highest court and reaffirmed by the reelection of our President.

Yes, I said the reelection of our President. Some of my colleagues still seem to be having a hard time with the fact that he won. It's time to get over it and move on because the most important issue for Americans is the economy. And this Congress hasn't even come close to passing a jobs bill.

The individuals holding America hostage with their political games claim they're doing so because they want their voices to be heard.

Well, my constituents also want to be heard. Their message is loud and clear: End this irresponsible shutdown and get back to the business of rebuilding our economy, restoring the American Dream, and rehabilitating our reputation with the American people.

Let's act now and end this shutdown today.

## WE NEED A REASONABLE PROPOSAL

(Mr. LANKFORD asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LANKFORD. Mr. Speaker, I hear from folks all the time—we need to have a reasonable proposal to be able to end this. Well, how about this for a reasonable proposal.

There are lot of people that are concerned about the penalties and the effects that are coming down on them in the next year. People have reasonable questions about how this is going to happen.

Am I going to sign up right?

Am I going to have a problem?

So let's do this. Let's take, for the first year, just take the penalties away from individuals; that if you make a mistake on filing of your ObamaCare, or if you have real problems with it, for the first year you won't have to pay those penalties. Just for the first year.

And then also, here's something else reasonable: How about Members of Congress and the White House have to live under the same rules that every American does dealing with ObamaCare?

Is that a reasonable proposal?

Well, that happens to be the proposal that we have on the table right now—that if someone makes a mistake on their filing of ObamaCare, or they don't want to do it this first year, they won't face penalties the first year.

Every Member of Congress and all of the White House will have to be in the exchanges, just like every other American that's out there that's required to be in that. We think that's a reasonable proposal.

For my colleagues that support ObamaCare, I am amazed they're fighting like crazy to not be in it.

At this point, we should meet face-to-face. I was pleased to see the President say he wants to meet, was disappointed to see he wants to meet to say he won't negotiate.

Let's meet face-to-face and solve this.

□ 1215

## NO NEW PATIENTS, NO NEW CLINICAL TRIALS

(Mr. HIGGINS asked and was given permission to address the House for 1 minute.)

Mr. HIGGINS. Mr. Speaker, instead of waging a war on cancer, the Republican Tea Party is waging a war on cancer patients.

The Tea Party shutdown will deny 200 patients a week—30 of them kids—treatment at the largest research hospital in the world, the National Institutes of Health. These are often last-chance cancer treatments that offer the only hope for kids who are stuck with cancer.

And why did the Tea Party shut down the government? Because they oppose the Affordable Care Act. This is a law that says that never again can insurance companies deny coverage for a family with a kid who is stuck with cancer. Under the Affordable Care Act, no family will go bankrupt because of cancer. And this is the bill the Tea Party is so furious about.

What's more, the Tea Party budgets have decimated cancer research. NIH used to fund 33 percent of applications for promising research; today, it's 16 percent. The shutdown is stopping cancer research at Roswell Park and across the country.

I hear we may take another fake vote tonight to restore funding to the National Institutes of Health. This is disgusting. This bill will continue the sequester assault on cancer research.

I would remind my colleagues that for families and kids fighting cancer, the only failure in cancer research is when you are forced to quit because of a Tea Party Federal Government shutdown.

## TIME FOR SENATE TO EMBRACE #FAIRNESSFORALL, TIME TO REOPEN GOVERNMENT

(Mr. ROTHFUS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. ROTHFUS. Mr. Speaker, 10 months ago, I came to Washington, D.C., as the new employee of 705,000 people in western Pennsylvania.

Before I came to Washington, I heard about inside deals that happened in this town. I saw some of these deals when President Obama cut special breaks for Big Business and Senators and Representatives. What the President left out was a break for the American people.

It's just not fair. It's an outrage.

Western Pennsylvanians are right frustrated with Washington, D.C. It seems that HARRY REID and the Senate are intent on keeping the government shut down so they can protect the special breaks they cut for themselves and for their friends and allies.

Mr. Speaker, I'm here to deliver a message from my constituents to the Senate: no special deals. If Big Business and President Obama's friends get a break from the health care law, then so should individuals and families in western Pennsylvania and around the Nation.

It's time for the Senate to embrace fairness for all. It's time to reopen the government.

## OPENING DAY FOR THE AFFORDABLE CARE ACT IN CONNECTICUT

(Mr. COURTNEY asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. COURTNEY. Mr. Speaker, yesterday was opening day for the Affordable Care Act in the State of Connecticut. Despite the hysterical predictions on the other side, where you would have thought the Four Horsemen of the Apocalypse would be riding through the streets of New London, Norwich, and Hartford, instead, the headlines this morning were:

Enrollment better than expected on exchange's first day.

Forty-five thousand people contacted the Connecticut exchange. Hundreds enrolled. They didn't wait until January to begin the process of getting health coverage.

One of them was a lady named Elly Banos, 48 years old, who said she's been without coverage for a year and half due to a layoff. She's been holding her breath and ''thanking God every day that I don't get sick or get into a car accident.'' She was excited to learn that she could get good individual coverage for a month or qualify for the expanded Medicaid coverage.

Another, Babz Ivy, said that she has gone to bed ''with a prayer on my lips, asking God to keep me healthy and in no need of medical attention.''

''Today was amazing,'' Ivy said. ''I felt so empowered and in control of my health.''

The fact of the matter is these are the targets of the shutdown effort. It's not President Obama or Democrats in Congress. It's people like Elly Banos and Babz Ivy that we need to protect by keeping this government open and allowing people to get access to health care for the first time in American history.

## TIME TO TALK

(Mr. MESSER asked and was given permission to address the House for 1 minute.)

Mr. MESSER. Mr. Speaker, President Obama is willing to negotiate with Syria's dictator. The President made a phone call last week to open negotiations with Iran's new leader. But yesterday, the President held a press conference in the Rose Garden to talk about why he's not willing to talk to House Republicans about ending this shutdown.

The President should follow President Kennedy's example. President Kennedy famously said:

We should never negotiate out of fear, but we should never fear to negotiate.

If we talk, we can surely find a solution that reopens the Federal Government and protects the American people from ObamaCare; but we need the President and our Democratic colleagues at the negotiating table.

## PASS A CLEAN FUNDING BILL

(Ms. TSONGAS asked and was given permission to address the House for 1 minute.)

Ms. TSONGAS. Mr. Speaker, the Federal Government is shut down today for one reason: we in the House have been denied any chance of voting on the clean funding bill passed by the Senate.

Four times now, House leaders have demanded that we dismantle a democratically enacted and Supreme Court-upheld law as their ransom, but not once have they allowed us to vote on the Senate's bill.

This recklessness has real consequences. At military installations in my home State of Massachusetts, thousands of civilian employees who support our Nation's servicemembers have already weathered furloughs. Now they and their families are being punished yet again.

The path forward is clear: vote on the Senate-passed CR and send it to the President today, put the government back to work, negotiate on a long-term budget, and work together to fine-tune the Affordable Care Act. With yesterday's opening of the exchanges, we saw the tremendous need and response.

I urge the Speaker to do the responsible thing: bring us a vote on a clean funding bill.

## DEMAND FAIRNESS

(Mrs. WAGNER asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. WAGNER. Mr. Speaker, moments ago, I joined veterans from all over Missouri's Show Me State at the sacred grounds of our Nation's World War II Memorial. This memorial is a monument to the spirit and sacrifice of our veterans, and yet HARRY REID and the President decided to slam the door on the American people and block the House from providing benefits to our Nation's heroes and keeping our national treasures open.

Time and time again, the House has voted to keep the government open and provide fairness for all Americans—fairness from an administration that believes they can pick and choose which laws to enforce, while subjecting the American people to the heavy burdens of ObamaCare; fairness from a President who thinks ObamaCare doesn't apply to Members of Congress or the White House.

As a result of partisan bickering and gridlock, I have waived my salary for the duration of the government shutdown because Congress didn't get the job done. Those who make the laws should live by the laws, and I will continue to fight for the people of Missouri's Second District.

## FAIRNESS IS NOT SHUTTING DOWN THE GOVERNMENT

(Mrs. BEATTY asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. BEATTY. Mr. Speaker, so often we hear our colleagues saying, We come here to Congress to protect and to represent the American people. Well, the American people have spoken. They have asked us to open the doors of government, not shut them.

Mr. Speaker, I say to you that we cannot let you have a few of your Republican Members hold the government hostage because they dislike this President or they dislike the Affordable Care Act.

We cannot piecemeal this funding cycle, because fairness is not letting children starve. Eleven States will not be able to have grants for Head Start. The NIH has announced that they are not going to be able to have clinical trials for hundreds of patients. Thirty of those cancer patients are children.

Fairness is not starving small businesses. Fairness is not piecemealing it. It's like having a large family and asking the parents to pick three children to feed and let the others starve before their eyes.

We are starving America, we are starving government. And I say to my Republican colleagues, fairness is not shutting down the government.

## ANTI-GOP VANDALISM

(Mr. WILLIAMS asked and was given permission to address the House for 1 minute.)

Mr. WILLIAMS. Mr. Speaker, the 25th District of Texas is home to the Texas State Capitol, the University of Texas, the Comanche Peak nuclear

plant, the Barnett shale, the dairy farms in great Texas, and the largest military installation in the country, Fort Hood, Texas.

It's a shame that the level of discourse in our Nation has come to this—that my district office in Cleburne, Texas, would be the victim of hateful anti-Republican vandalism by anonymous individuals.

House Republicans have been called extortionists, terrorists, drunks, kidnappers, anarchists, and the list goes on.

I understand that this government shutdown has caused uncertainty and tension for hundreds of thousands of Americans, but this type of behavior cannot and will not be tolerated.

We are the United States of America, and it's time for the Senate, the White House and the House to come to the negotiating table, unite and figure out this problem we have for all Americans. The sooner the better.

In God we trust.

## GOVERNMENT SHUTDOWN

(Mr. CICILLINE asked and was given permission to address the House for 1 minute.)

Mr. CICILLINE. Mr. Speaker, we're now in our 37th hour of the House Republican shutdown; 800,000 Federal employees have been furloughed from their jobs; 800,000 Americans don't know how they'll be able to pay their bills and provide for their families because Speaker BOEHNER refuses to stand up to the extremists in his own party.

I keep hearing people say the Speaker is just doing what he has to do because of the Tea Party, but the fact is that a real leader wouldn't jeopardize the jobs and livelihoods of 800,000 Americans to save his own.

That's what this is all about. This is about one man standing in the way of ending the shutdown.

It's time for Speaker BOEHNER to find the courage to end the Republican crusade against health care reform and Federal workers by bringing a clean funding bill to the floor, which will pass with bipartisan support, and demonstrate to the American people we can work together to get things done.

It's time for the Speaker to do what's right for our country: reopen the government and be the Speaker of the United States House of Representatives, not simply the Speaker of the Republican Party.

## VETERANS

(Mr. PITTS asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. PITTS. Mr. Speaker, right now we have wounded warriors and veterans needing medical care, wondering whether they will receive all the care they're entitled to. These are men and women who have suffered for our Nation to keep us free and safe.

It is a shame that last night we could not agree to fully fund operations for Veterans Affairs. The House passed a full Veterans appropriations bill in June, with a vote of 421–4. That bill was never taken up in the Senate.

If we cannot have our conferees negotiate on a full bill to open back up the government, we will act to protect the must vulnerable.

Today, we will again consider this bill. I hope that the dozens of my Democratic colleagues who supported this sensible measure last night will continue to stand with us. We have to make sure that we are serving those who served us on the field of battle. Wounded warriors should not be used as pawns in this political bickering.

## BIPARTISAN APPROACH TO GOVERNMENT SHUTDOWN

(Ms. BROWNLEY of California asked and was given permission to address the House for 1 minute.)

Ms. BROWNLEY of California. Mr. Speaker, instead of working with Democrats and Republicans to find a bipartisan budget solution, Monday night the Speaker made the reckless and irresponsible decision to shut down the government. This did not have to happen.

There is bipartisan support in the House for the Senate-passed legislation. Let's come together and solve this crisis now. Every moment we wait, it hurts small businesses trying to apply for startup loans; it hurts our veterans applying for pension, disability, education, and job training benefits; and it could send our very fragile economy back into a recession.

I came to Congress to create jobs, to grow our economy, and to move my county, Ventura County, and my country forward.

The Speaker must allow the House to simply vote on the responsible Senate-passed plan to get the government working again for the American people.

□ 1230

## GOVERNMENT CAN OPEN TODAY

(Mr. TIPTON asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. TIPTON. Mr. Speaker, better than a day ago this House acted in a bipartisan manner to be able to fund government, to make sure that Members of Congress have to abide by the same laws that they pass, to make sure that individuals, just like big businesses, are going to be treated fairly under the Affordable Care Act, and to fully fund government. This passed with bipartisan support out of the House of Representatives.

The offer is there. Government can open today. Senator REID just needs to pick up the phone and answer the call to make sure that we're working together in that bipartisan fashion, as we demonstrated in the House of Representatives, to work for the American people.

Government can open today. Senator REID just needs to pick up the phone and listen to the voice of the House of Representatives. Let's make sure that the laws that we pass apply to Congress and that all Americans are treated fairly.

## THE TEA PARTY IS WORRIED

(Mr. CARTWRIGHT asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CARTWRIGHT. Mr. Speaker, so the Tea Party has successfully shut down the operations of the Federal Government. And why have they done it? Well, they've done it because they're worried:

They're worried about the danger that the Affordable Care Act is going to work and people are going to like it;

They're worried about the danger that people with preexisting conditions are going to be covered;

They're worried about the danger that women are going to qualify for preventative health care services;

They're worried about the danger that children living at home up to age 26 are going to be covered under their parents' insurance policies;

They're worried about the danger that seniors are going to save money on their prescription drugs as the Medicare part D doughnut hole closes.

What they're worried about is that the Affordable Care Act is going to work and people are going to like it.

Mr. Speaker, the Tea Party thinks these things are dangerous, so they shut down the government. But with all respect, I say to you, it is the Tea Party—it is the Tea Party, itself. They are the danger.

## THE HOUSE WILL CONTINUE TO LEAD TO FIX PROBLEMS

(Ms. FOXX asked and was given permission to address the House for 1 minute.)

Ms. FOXX. Mr. Speaker, last night I voted to stop shutdown policies that are delaying veteran benefit applications and shuttering national parks and memorials. But those measures failed to pass because the President threatened a veto and more than 160 Democrats voted to stop them. That dumbfounds me.

Days ago, the President signed similar legislation to protect pay for Active Duty military members throughout any shutdown, why not now?

Surprise. Republicans and Democrats have policy differences, but we shouldn't differ here. Correcting problems for veterans, military families, the National Institutes of Health, and visitors to national parks—including the World War II Memorial and North Carolina's Blue Ridge Parkway—is common sense and provides common

ground for Democrats and Republicans to make some progress toward solving this shutdown.

The President's and Senate's refusal to work with us to reopen the government has consequences well beyond Washington. If they won't contribute to a bipartisan solution to stop the pain, we'll continue to take the lead to fix problems for the American people.

## GOP SHUTDOWN

(Ms. MCCOLLUM asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. MCCOLLUM. Mr. Speaker, well, here we are, the day my Republican colleagues have warned about for years, the day after ObamaCare. So what happened? Did the sky fall? Did insurance markets crash? No, of course not. Instead, health care marketplaces across the Nation went live. Millions of Americans logged on to learn about affordable health care plans. They gathered information to make decisions about what plan best meets their health care needs.

Yes, some glitches need to be fixed, and we knew that would happen, but yesterday was not the end of the world. It was the beginning. It was the first step.

The Tea Party, 46 times they attempted to shut down the Affordable Care Act. They stopped no one from being able to make good decisions on health care plans.

So I urge my colleagues, commonsense Republicans and Democrats can still come together to stop this reckless GOP—the Grand Ole Party—from shutting down our government. Let's pass a clean CR.

## FORT BRAGG SUFFERING DUE TO PRESIDENT'S INACTION ON LAW

(Mrs. ELLMERS asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. ELLMERS. Mr. Speaker, I have the distinct honor and privilege to represent Fort Bragg in my district; and I found out yesterday evening that, despite passing funding to keep our military paid and to keep our military civilians paid, there have been over 7,000 Fort Bragg civilian employees furloughed. Now, I find this very interesting there again because the President signed this very bill into law Monday, and here we have a situation where I have needless—needless—suffering happening in my district.

I have a letter from Chairman BUCK MCKEON, chairman of the House Armed Services Committee, to the Department of Defense on clarification of this, that I would like to read:

The text does not limit the provision of pay to civilians who were previously categorized by the administration as ''excepted'' or ''essential'' for the purposes of Department of Defense operations in the event of a government shutdown.

We passed H.R. 3210, the Pay Our Military Act, sponsored by my colleague from Colorado (Mr. COFFMAN).

## MAJORITY CR AND WOMEN'S HEALTH

(Mrs. DAVIS of California asked and was given permission to address the House for 1 minute.)

Mrs. DAVIS of California. Mr. Speaker, not only has the majority chosen to shut down vital government functions that all Americans depend on, but they have specifically and unabashedly targeted women.

Some of my colleagues are willing to gamble with the livelihoods of millions of public servants simply to ensure that women do not have access to affordable contraception and preventative health care. They are willing to sabotage our government to prevent prenatal checkups and cancer screenings. They would risk our economic recovery to make sure that women will pay more for health care than men.

The government shutdown has already taken a toll on women and children by slashing funding for vital nutritional and clinical services. We cannot allow this shutdown to be used to strip away all of the gains the ACA made for women's health. Do they really want pregnancy to be a preexisting condition again? And are they willing to shut the place down to stop women from being able to pay for health care?

Enough, Mr. Speaker. Bring on a clean funding bill, open the government, and let it pass for all of our sakes.

## REPUBLICAN MAJORITY HAS ABDICATED THEIR RESPONSIBILITY

(Ms. VELÁZQUEZ asked and was given permission to address the House for 1 minute.)

Ms. VELÁZQUEZ. Mr. Speaker, the Republican majority has abdicated their responsibility. Make no mistake: a small faction of the Republican Party is holding our economy hostage to get their way.

Just 36 hours into this shutdown and the American people are already feeling the consequences. Hundreds of thousands of Federal workers across the country are being furloughed without pay. Soon, women who rely on WIC will begin losing benefits. Our national parks are closed. Important biomedical research and environmental work is being delayed.

Make no mistake: this could all end today. If leadership would allow a simple up-or-down vote on the Senate-passed CR, this would all be over.

But this has never been about budgeting. This is about a single-minded obsession with repealing a law Congress passed, the Supreme Court upheld, and that was reaffirmed by the American people in the last Presidential election.

That fight is over. Even with the government closed yesterday, health exchanges were open and uninsured Americans began purchasing coverage.

## PASS SENATE CR TODAY

(Mrs. CAROLYN B. MALONEY asked and was given permission to address the House for 1 minute.)

Mrs. CAROLYN B. MALONEY of New York. Mr. Speaker, the path to ending this shutdown right now is clear: bring up the clean Senate-passed CR for a vote. That would end this manufactured, self-inflicted crisis immediately.

These piecemeal attempts at deflection offered by my friends on the other side of the aisle are wretched governance.

Compromise is built into our Constitution, and the Senate-passed CR is itself a compromise. It accepts the annual spending level of $986 billion, roughly $70 billion less than what the Senate endorsed in its budget plan earlier this year.

Again, this manufactured crisis could end right now by voting on the clean Senate continuing resolution today.

According to Moody's, a shutdown that lasts even 3 or 4 days will cost the economy approximately 0.2 percentage points of the annual GDP growth in the fourth quarter. And the consequences only get worse, as the shutdown continues, on our economy. This completely avoidable contraction is the opposite of policies we need to create jobs and strengthen and grow our economy.

We need to pass a clean CR today.

## RECESS

The SPEAKER pro tempore (Mr. WOMACK). Pursuant to clause 12(a) of rule I, the Chair declares the House in recess subject to the call of the Chair.

Accordingly (at 12 o'clock and 40 minutes p.m.), the House stood in recess.

□ 1340

## AFTER RECESS

The recess having expired, the House was called to order by the Speaker pro tempore (Mr. YODER) at 1 o'clock and 40 minutes p.m.

REPORT ON RESOLUTION PROVIDING FOR CONSIDERATION OF H.J. RES. 70, NATIONAL PARK SERVICE OPERATIONS, SMITHSONIAN INSTITUTION, NATIONAL GALLERY OF ART, AND UNITED STATES HOLOCAUST MEMORIAL MUSEUM CONTINUING APPROPRIATIONS RESOLUTION, 2014; PROVIDING FOR CONSIDERATION OF H.J. RES. 71, DISTRICT OF COLUMBIA CONTINUING APPROPRIATIONS RESOLUTION, 2014; PROVIDING FOR CONSIDERATION OF H.J. RES. 72, VETERANS BENEFITS CONTINUING APPROPRIATIONS RESOLUTION, 2014; PROVIDING FOR CONSIDERATION OF H.J. RES. 73, NATIONAL INSTITUTES OF HEALTH CONTINUING APPROPRIATIONS RESOLUTION, 2014; PROVIDING FOR CONSIDERATION OF H.R. 3230, PAY OUR GUARD AND RESERVE ACT; AND PROVIDING FOR CONSIDERATION OF MOTIONS TO SUSPEND THE RULES

Mr. WOODALL, from the Committee on Rules, submitted a privileged report (Rept. No. 113–241) on the resolution (H. Res. 370) providing for consideration of the joint resolution (H.J. Res. 70) making continuing appropriations for National Park Service operations, the Smithsonian Institution, the National Gallery of Art, and the United States Holocaust Memorial Museum for fiscal year 2014, and for other purposes; providing for consideration of the joint resolution (H.J. Res. 71) making continuing appropriations of local funds of the District of Columbia for fiscal year 2014; providing for consideration of the joint resolution (H.J. Res. 72) making continuing appropriations for veterans benefits for fiscal year 2014, and for other purposes; providing for consideration of the joint resolution (H.J. Res. 73) making continuing appropriations for the National Institutes of Health for fiscal year 2014, and for other purposes; providing for consideration of the bill (H.R. 3230) making continuing appropriations during a Government shutdown to provide pay and allowances to members of the reserve components of the Armed Forces who perform inactive-duty training during such period; and providing for consideration of motions to suspend the rules, which was referred to the House Calendar and ordered to be printed.

PROVIDING FOR CONSIDERATION OF H. RES. 370, NATIONAL PARK SERVICE OPERATIONS, SMITHSONIAN INSTITUTION, NATIONAL GALLERY OF ART, AND UNITED STATES HOLOCAUST MEMORIAL MUSEUM CONTINUING APPROPRIATIONS RESOLUTION, 2014; PROVIDING FOR CONSIDERATION OF H.J. RES. 71, DISTRICT OF COLUMBIA CONTINUING APPROPRIATIONS RESOLUTION, 2014; PROVIDING FOR CONSIDERATION OF H.J. RES. 72, VETERANS BENEFITS CONTINUING APPROPRIATIONS RESOLUTION, 2014; PROVIDING FOR CONSIDERATION OF H.J. RES. 73, NATIONAL INSTITUTES OF HEALTH CONTINUING APPROPRIATIONS RESOLUTION, 2014; PROVIDING FOR CONSIDERATION OF H.R. 3230, PAY OUR GUARD AND RESERVE ACT; AND PROVIDING FOR CONSIDERATION OF MOTIONS TO SUSPEND THE RULES

Mr. WOODALL. Mr. Speaker, by direction of the Committee on Rules, I call up House Resolution 370 and ask for its immediate consideration.

The Clerk read the resolution, as follows:

Providing for Consideration of the Joint Resolution (H.J. Res. 70) Making Continuing Appropriations for National Park Service Operations, the Smithsonian Institution, the National Gallery of Art, and the United States Holocaust Memorial Museum for Fiscal Year 2014, and for Other Purposes; Providing for Consideration of the Joint Resolution (H.J. Res. 71) Making Continuing Appropriations of Local Funds of the District of Columbia for Fiscal Year 2014; providing for Consideration of the Joint Resolution (H.J. Res. 72) Making Continuing Appropriations for Veterans Benefits for Fiscal Year 2014, and for Other Purposes; Providing for Consideration of the Joint Resolution (H.J. Res. 73) Making Continuing Appropriations for the National Institutes of Health for Fiscal Year 2014, and for Other Purposes; Providing for Consideration of the Bill (H.R. 3230) Making Continuing Appropriations During a Government Shutdown To Provide Pay and Allowances to Members of the Reserve Components of the Armed Forces Who Perform Inactive-Duty Training During Such Period; and Providing for Consideration of Motions To Suspend the Rules

October 2, 2013.—Referred to the House Calendar and ordered to be printed

Mr. Woodall, from the Committee on Rules, submitted the following report [to accompany H. Res. 370.]

The Committee on Rules, having had under consideration House Resolution 370, by a record vote of 9 to 3, report the same to the House with the recommendation that the resolution be adopted.

SUMMARY OF PROVISIONS OF THE RESOLUTION

The resolution provides closed rules for H.J. Res. 70, H.J. Res. 71, H.J. Res. 72, H.J. Res. 73, and H.R. 3230. The resolution provides 30 minutes of debate on each measure equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations. The resolution waives all points of order against consideration of each measure and provides that each measure shall be considered as read. The resolution waives all points of order against provisions in each measure. The resolution provides one motion to recommit each measure.

Section 4 of the resolution provides that it shall be in order at any time through the calendar day of October 6, 2013, for the Speaker to entertain motions that the House suspend the rules and that the Speaker or his designee shall consult with the Minority Leader or her designee on the designation of any matter for consideration pursuant to this section.

EXPLANATION OF WAIVERS

The waiver of all points of order against consideration of H.J. Res. 70, H.J. Res. 71, H.J. Res. 72, H.J. Res. 73, and H.R. 3230 includes a waiver of clause 11 of rule XXI, prohibiting the consideration of a bill or joint resolution which has not been reported by a committee until the third calendar day (excluding Saturdays, Sundays, or legal holidays except when the House is in session on such a day) on which such measure has been available to Members, Delegates, and the Resident Commissioner.

The waiver of all points of order against consideration of H.J. Res. 73 and H.R. 3230 also includes a waiver of Clause 9(a)(2) of rule XXI, which prohibits consideration of a bill or joint resolution not reported by a committee, unless the chair of each committee of initial referral has caused a list of congressional earmarks, limited tax benefits, and limited tariff benefits in the bill or a statement that the proposition contains no congressional earmarks, limited tax benefits, or limited tariff benefits to be printed in the Congressional Record prior to its consideration. However, it is important to note that the chair of the Committee on Appropriations submitted an earmark statement to the House on October 2, 2013 for printing in the Congressional Record. The statement affirms that the measures do not contain any earmarks, limited tax benefits, or limited tariff benefits under the meaning of the rule.

Although the resolution waives all points of order against provisions in H.J. Res. 70, H.J. Res. 71, H.J. Res. 72, H.J. Res. 73, and H.R. 3230, the Committee is not aware of any points of order. The waiver is prophylactic in nature.

COMMITTEE VOTES

The results of each record vote on an amendment or motion to report, together with the names of those voting for and against, are printed below:

*Rules Committee record vote No. 78*

Motion by Ms. Slaughter to make in order the clean Senate Continuing Resolution so we can send it to the President for his signature today. Defeated: 3–9

| | Vote |
|---|---|
| Majority Members: | |
| Ms. Foxx | Nay |
| Mr. Bishop of Utah | Nay |
| Mr. Cole | Nay |
| Mr. Woodall | Nay |
| Mr. Nugent | Nay |
| Mr. Webster | Nay |
| Ms. Ros-Lehtinen | Nay |
| Mr. Burgess | Nay |
| Mr. Sessions, Chairman | Nay |
| Minority Members: | |
| Ms. Slaughter | Yea |
| Mr. McGovern | Yea |
| Mr. Hastings of Florida | Yea |
| Mr. Polis | — |

*Rules Committee record vote No. 79*

Motion by Ms. Foxx to report the rule. Adopted: 9–3

| | Vote |
|---|---|
| Majority Members: | |
| Ms. Foxx | Yea |
| Mr. Bishop of Utah | Yea |
| Mr. Cole | Yea |
| Mr. Woodall | Yea |
| Mr. Nugent | Yea |
| Mr. Webster | Yea |
| Ms. Ros-Lehtinen | Yea |
| Mr. Burgess | Yea |
| Mr. Sessions, Chairman | Yea |
| Minority Members: | |
| Ms. Slaughter | Nay |
| Mr. McGovern | Nay |
| Mr. Hastings of Florida | Nay |
| Mr. Polis | — |

H. RES. 370

*Resolved*, That upon adoption of this resolution it shall be in order to consider in the House any joint resolution specified in section 2 of this resolution. All points of order against consideration of each such joint resolution are waived. Each such joint resolution shall be considered as read. All points of order against provisions in each such joint resolution are waived. The previous question shall be considered as ordered on each such joint resolution and on any amendment thereto to final passage without intervening motion except: (1) 30 minutes of debate equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations; and (2) one motion to recommit.

SEC. 2. The joint resolutions reffered to in the first section of this resolution are as follows:

(a) The joint resolution (H.J. Res. 70) making continuing appropriations for National Park Service operations, the Smithsonian Institution, the National Gallery of Art, and the United States Holocaust Memorial Museum for fiscal year 2014, and for other purposes.

(b) The joint resolution (H.J. Res. 71) making continuing appropriations of local funds of the District of Columbia for fiscal year 2014.

(c) The joint resolution (H.J. Res. 72) making continuing appropriations for veterans benefits for fiscal year 2014, and for other purposes.

(d) The joint resolution (H.J. Res. 73) making continuing appropriations for the National Institutes of Health for fiscal year 2014, and for other purposes.

SEC. 3. Upon adoption of this resolution it shall be in order to consider in the House the bill (H.R. 3230) making continuing appropriations during a Government shutdown to provide pay and allowances to members of the reserve components of the Armed Forces who perform inactive-duty training during such period. All points of order against consideration of the bill are waived. The bill shall be considered as read. All points of order against provisions in the bill are waived. The previous question shall be considered as ordered on the bill and on any amendment thereto to final passage without intervening motion except: (1) 30 minutes of debate equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations; and (2) one motion to recommit.

SEC. 4. It shall be in order at any time through the calendar day of October 6, 2013, for the Speaker to entertain motions that the House suspend the rules as though under clause 1 of rule XV. The Speaker or his designee shall consult with the Minority Leader or her designee on the designation of any matter for consideration pursuant to this section.

The SPEAKER pro tempore. The gentleman from Georgia is recognized for 1 hour.

□ 1345

Mr. WOODALL. Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to my friend from New York (Ms. SLAUGHTER), pending which I yield myself such time as I may consume. During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. WOODALL. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Georgia?

There was no objection.

Mr. WOODALL. Mr. Speaker, we're here today because we don't have a ''my way or the highway'' system of government. We have a system of government that requires that the people's representatives come together and build consensus, find a common path forward. And that path has been illusive, Mr. Speaker.

Oftentimes, as the reading clerk is reading a bill, you'll see someone ask to waive the reading of the bill, ask unanimous consent that the bill not be read. I'm so pleased that today we had every single word of this resolution read, Mr. Speaker, because the words matter.

I open up a newspaper, it talks about all the division in Washington, D.C. It talks about all the things on which we cannot agree. And what we have before us today, Mr. Speaker, is a bill about things on which we agree.

I hear it from my constituents all the time. They say, Rob, why in the world can't you all get something done? I understand there are things that you legitimately disagree about, ideas about which different parts of the country have different paths forward. But what about those things on which you agree?

That's what we have here today, Mr. Speaker. There's not a Member in this body that is celebrating a government shutdown. What we can celebrate, though, is a path out of the government shutdown. This rule allows for that today.

I want to read those titles again, Mr. Speaker. H.J. Res. 70, to reopen our national parks and museums, common ground on which this body agrees.

H.J. Res. 71, to provide local funding for the District of Columbia. A lot of folks don't realize, but because the District of Columbia is a Federal district, the Federal Government provides a little money, but most of the money comes from the District of Columbia itself. But the District of Columbia is not allowed to spend its local funds without a Federal authorization. This does that.

And then, so important, Mr. Speaker, honoring our promise to America's veterans. I don't believe there's a man or woman in this Chamber that doesn't believe our veterans deserve the very best service that we can provide. I don't think there's a man or a woman in this Chamber who wants to see our VA services halted or curtailed. We solve that today, Mr. Speaker.

Research for Lifesaving Cures Act, Mr. Speaker, H.J. Res. 73, to continue funding at the NIH. NIH makes us all so proud. We do so many first-in-human trials at the Winship Cancer Institute down just outside of my district in Georgia.

Mr. Speaker, lifesaving research, lifesaving opportunities caught up in this government shutdown, not one of those things on which we disagree; one of those things on which we agree. We have an opportunity to get that done today.

And, Mr. Speaker, H.R. 3230, Pay Our Guard and Reserve Act.

Again, there's a lot to be frustrated about here today. And I know folks back home, Mr. Speaker, in your district and in mine, they have a lot to be frustrated about too. But one bright moment in this debate came late on Saturday night when we came together unanimously and said, whatever our disagreements here, our men and women in uniform should not get caught up in it. Pay our troops first. It brought us together.

Not just in this House, Mr. Speaker, we have the ability to come together, but also in the Senate, where, by unanimous consent, they passed that bill. It went to the President's desk.

But what that bill did not include, and what I believe we all believe it should have included, was funding for our National Guard and our Reserve. This bill gives us the opportunity to solve that today.

Mr. Speaker, we tried to bring up three of these five bills yesterday under a process they call suspension of the rules. It requires two-thirds of the House to support it. But because we unanimously supported our troops last week, we assumed that we would be able to unanimously support our veterans, unanimously support our folks here in the District of Columbia, using their local forums, unanimously support our parks and our monuments, and we were wrong.

I'll say to my friends, I don't know if they looked at the numbers—80 percent of my friends on the other side of the aisle said no. They said yes, this is something on which we agree, but no, we are not going to participate in solving that problem. We want that problem to persist until you solve all the problems.

Mr. Speaker, I'll close with this. One of our great patriots during the American Revolution, Edmund Burke, said, No man does worse than he who does nothing because he can only do a little.

Mr. Speaker, I concede that some of the things we're working on today might seem like a little. But we have the opportunity to help people. We have an opportunity to make a difference, and shame on us if we do nothing because we can only do a little.

Mr. Speaker, I reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, good day to you. I yield myself such time as I may consume.

I think if Edmund Burke were alive today he would say that what we're really doing is so very little it's shameful, when we could do so much.

I want to say this, and I want to say it about every chance I get. We could stop this today.

We have just come from a 3-hour Rules meeting and hearing people on the floor and a lot of my colleagues, I have the sense that they don't have any idea what a government shutdown was. All of a sudden it's starting to hurt. Let's pick this piece over here, that one over there, and we can fix that.

800,000 people who work for the United States Government are being used as pawns. We are hurting all of the citizens of the United States who need the services that those 800,000 people provide.

We have one thing to do, Mr. Speaker, one thing: we can take from this desk and concur with the Senate CR. That's it. It doesn't have to go back to the Senate. It can go directly to the President of the United States, maybe even before the big meeting today. Sign it and it's over with. But no, we're not going to do that.

Now, don't believe that this bill was written today because there is a particularly sympathy for patients at NIH or the visitors to the national parks or the citizens of the District of Columbia. These proposals are cynical attempts to make these things pinch just a little bit less.

Yesterday, The Wall Street Journal reported that 30 sick children, most with cancer, were turned away from NIH clinical trials because of the government shutdown. Should they be pawns in this political, cynical game to hurt the health care bill?

This morning, the majority proposes to reopen NIH, or part of it. Yesterday, the TV cameras were dispatched around the country to capture the footage of museums and monuments closed. This morning the majority proposes they're going to open those sites.

The majority's making itself clear: anytime they see a bad headline, they're going to bring a bill to the floor to make it go away. At this rate, it could be a year from now before we ever finally come to some conclusion thereon, because nobody has said anything about what the end game is here.

How long are you going to hold the government, the country hostage?

Surely it doesn't have anything to do with health care anymore, after yesterday.

Now, if the majority really cared, we'd reopen the entire government, all of NIH, national parks right here, right now on this floor in this action we're taking today.

If the majority held a simple vote on a clean version of the Senate CR, the government shutdown would be closed upon the President's signature.

This afternoon I will give every Member of this Chamber a chance to do just that, as I did just in the Rules Committee. I want you to know that the opportunity to vote for the CR, end the government shutdown, failed 9–4 on a party-line vote. That tells us something about why we're here today and what the purpose is for all of this.

Let me be clear. This amendment is the only chance that this Chamber may ever have to end the government shutdown. If this Chamber supports my amendment, we will pass a clean CR this afternoon.

Now, if the majority really cared about helping those cancer patients' access to health care or letting the World War II veterans visit the monuments and reopening the doors of the Nation's parks and museums, they will vote for my amendment.

The VA, by the way, has announced today that they are running out of money. Furthermore, passing a clean CR would actually do more to help the Nation's veterans than the majority's proposal to fund the Department of Veterans Affairs.

Under the majority's proposal, the VA would receive $6 billion less than if we simply passed the CR which, in other words, has $6 billion more for the veterans than what you're proposing today.

So for all the cries of concern, the majority's desire to shortchange the veterans by $6 billion tells you all that you need to know. And the veterans understand that. They know that they're being used as a pawn in this cynical, political game, and they resent it.

Far from honest policy, today's proposals are more cynical politics. For almost a week, the majority has found itself in a legislative box, or at least I thought so until a little while ago, and the Rules Committee vote, and when they voted 9–4 not to open up the government, I realized that that was the aim all along.

Now, because the Senate voted for cloture on a clean funding bill, a simple majority of Senators have been able to put an end to the repeated attempts to dismantle the Affordable Health Care Bill.

Now, under these circumstances, the majority knows they can't keep proposing ransom demands, so they've broken cloture and returned to a 60-vote threshold in the Senate. The need to break cloture is why they tried to go to conference 15 minutes before the government shutdown, and that's why they are continuing to avoid a clean vote on the Senate CR today.

Mr. Speaker, two paragraphs in The Washington Post this morning sum up what this fight always has been and continues to be about: defunding the Affordable Care Act and taking health care away from 300 million Americans who have no insurance.

Referring to yesterday's events, Ezra Klein of The Washington Post wrote:

> The top story all day was that Republicans had shut down the Federal Government because President Obama would not defund or delay the Affordable Care Act. The other major story was that the government servers were crashing because so many people were trying to see if they could get the insurance through ObamaCare. On the one hand, Washington was shut down because Republicans don't want citizens to have ObamaCare. On the other hand, ObamaCare was shut down because so many Americans did want that insurance.

Yesterday was, indeed, a historic day for our Nation and for every American who's ever been denied access to health care. In my home State of New York, there were more than 2 million visits to our online exchange in less than 90 minutes.

And by later in the day, the last number that I have, just for yesterday, 10 million people had visited the Web site at the end of the day. That is about 12 percent of the entire population of the State of New York, yesterday.

Meanwhile, 4.7 million people visited healthcare.gov yesterday—that's the national database—while almost 100,000 more visited online exchanges in Illinois, in Colorado. Most importantly, in States from Kentucky to California, in red States and blue States, thousands of Americans went to sleep last night having purchased health insurance through the newly launched exchanges.

Now, while these Americans went to bed realizing their long-awaited dream, the majority woke up this morning realizing that their worst nightmare had come true. Despite their best efforts, the American people were finally given access to safe and affordable health care.

Now, the only question that remains is if the majority will finally acknowledge reality, or if they will keep the government closed while they continue their quest to take American's health care away.

I'm extremely grateful to the chairman of my committee this morning, when he said, when we called for a vote on funding the government today, he said, and I quote, ''I would say on behalf of the majority, what we think we are doing here today is probably some straight-line Republican viewpoints.''

I strongly urge my colleagues to reject the majority's latest gimmicks by voting ''no'' on the rule and the underlying legislation, and vote ''no'' on the PQ so that we can put our amendment on the floor.

Mr. Speaker, I reserve the balance of my time.

Mr. WOODALL. Mr. Speaker, I yield myself 30 seconds just to say to my friend that we have an opportunity to do something today. There's been a lot of talk on this floor. We have an opportunity to actually do something, and I don't think there's going to be a single Member on the other side of the aisle that challenges the notion that, if we pass these bills, we will make a difference for American veterans, we will make a difference for American families, and we will make a difference for American Guardsmen and Reservists.

And I do not believe that the heart of my colleagues on the other side of the aisle is that, because we can only do a little, we should do nothing.

At this time, Mr. Speaker, I yield 2 minutes to the gentleman from Tennessee (Mr. ROE), a good friend and great leader in this institution,

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Mr. ROE of Tennessee. I thank my friend.

Mr. Speaker, I rise in strong support of the rule and the underlying resolutions.

The situation in which we find ourselves is as unfortunate as it is unnecessary. The House has voted three times to fund the government. It's been rejected three times by the Senate Democrats. With each successive vote, the House compromised on its position that ObamaCare should be defunded.

Our most recent offer would have delayed the individual mandate for 1 year and ended the congressional exemption from ObamaCare. Nine House Democrats supported this proposal, which would give American families the same relief from ObamaCare that President Obama unilaterally gave Big Businesses. But, again, HARRY REID said ''no.''

As we wait for Senate Democrats to come to the table, the House will continue its efforts to restart government operations.

Two areas we seek to fund today—national parks and veterans benefits—hit incredibly close to home. The district I represent in east Tennessee includes parts of the Great Smoky Mountains National Park. The Smokies are more than a natural wonder. They are an important part of the economy in Sevier County, Tennessee.

Dale Ditmanson, the park's superintendent, told me that 1.1 million people typically visit the park in October; but as long as the gates to the park remain closed, hotels, restaurants, and other parts of the service industry in that county will suffer.

Even more important than reopening our national parks is meeting our commitment to America's veterans. I'm privileged to serve on the nonpartisan Veterans' Affairs Committee; and as a veteran myself, I hope we can come together on a bipartisan basis to provide funding for processing disability claims and for benefits like the GI Bill and VA home loans. How could anyone stand in opposition to those who have stood in the line of fire to keep this country free? The answer is President Obama, who has promised to veto such a bill. This is unconscionable.

These funding bills represent a series of commonsense steps to get more of the government back online and to meet our commitments to the American people. After all, I wasn't elected and sent here by my constituents to shut down the government. I was sent here to reform it, to make it smaller, and to make it more accountable.

I urge my colleagues to support the underlying rule and the underlying bills.

Ms. SLAUGHTER. Mr. Speaker, I yield myself 30 seconds to say that it would be the best of common sense for us to end this charade today. But I understand now, because I've heard it twice, that the intent really is to wait and whittle down the government. As Grover Norquist, I believe, famously said, he would like to shrink it down to drown it in the bathtub.

I think we're in the process of doing that today by funding it a little piece here, a little piece there, and the devil take the hindmost.

I am happy to yield 2 minutes to the gentleman from North Carolina (Mr. BUTTERFIELD).

Mr. BUTTERFIELD. I thank the gentlelady for yielding.

Mr. Speaker, let's be clear. We are now in day two of a Republican-created shutdown.

While my Republican colleagues drag their feet on allowing an up-or-down vote on the Senate's clean continuing resolution, vital research at the NIH has been halted, student loan processing has been delayed, and veterans can't apply for a VA home loan.

The same bills that this rule will bring to the floor have already been debated and voted on. My colleagues are not being reasonable, to say the least. Because Republicans didn't get their way yesterday, they now bring the same bills up again, only this time under regular order. They will get their 216 votes, but they know and I know that this action does nothing to advance the ball. It does nothing to get us closer to a solution.

I remind my colleagues that House Democrats are willing to accept a clean CR at the levels that House Republicans have demanded. It's not what we want, but we compromised in an effort to do the business of the people.

The votes are here, Mr. Speaker, for a clean CR. Every Democrat, I believe, will vote for a clean CR. And many Republicans will do the same.

We're asking you to compromise. Your refusal to compromise has shut down this government. And for what? Political theater.

I repeat, the votes are here. Prove me wrong.

In closing, Mr. Speaker, in my prior life, as many of you know, I was a trial judge. I presided over thousands of very difficult cases. So often, jurors could not agree, but they worked hard without a political agenda. They reasoned together and administered justice.

Let us reason together. Let's get the CR passed today.

Mr. WOODALL. Mr. Speaker, I yield myself 60 seconds to say to my friend that there's a little revisionist history in that recitation.

You will remember, Mr. Speaker, that the House passed its package, and the Senate said, No, it's our way or the highway. So the House said, Well, let me give you a different package—one that is a little closer to that position. The Senate said, No, it's my way or the highway.

Then the House said, Let me give you a third position that's a little closer to you. And the Senate said a third time, No, it's my way or the highway. And then the House said, Well, come and sit down with me at the table so that we can find a way through our differences. And the Senate said, No, it's my way or the highway.

The American people know who's looking for common ground and consensus in this body.

With that, Mr. Speaker, I yield 3 minutes to the gentlewoman from Michigan (Mrs. MILLER), a real supporter of finding that pathway forward, the chairwoman of the House Administration Committee.

Mrs. MILLER of Michigan. I certainly thank my colleague for yielding the time.

Mr. Speaker, on Sunday, just 3 days ago, this House unanimously passed the Pay Our Military Act. The Senate unanimously passed the same bill, and the President signed it into law.

That was 3 days ago. That legislation guaranteed that all members of our Armed Forces would receive their pay for their service during any government shutdown. And that law also applies to full-time Guard and Reserve members. Yet Secretary of Defense Chuck Hagel has improperly furloughed countless Guardsmen and -women across the country, in violation of the intent of that law.

Mr. Speaker, today, a bipartisan group of myself and my colleagues will be sending a letter to Secretary Hagel demanding that he enforce this law properly and to send our Guardsmen and -women back to work.

Today, we will also consider legislation that will provide for funding to make certain that the Guardsmen on inactive status are paid as well and allowed to continue to train during a government shutdown. This readiness is absolutely essential to the protection of our great Nation. Secretary of Defense Chuck Hagel is needlessly furloughing Guardsmen who are essential to defending our great Nation.

Mr. Speaker, yesterday, President Obama sent a letter to Federal workers telling them they should not be used as punching bags, but that is exactly what his administration is doing to members of our National Guard.

In fact, this is the same thing this administration did when the sequester was enforced.

They immediately shut down the White House to tours.

They scared the public into believing that their travel plans would be interrupted at our airports.

They tried in every possible way to hurt and to scare the public as much as possible.

And they are once again playing true to form, this time harming our National Guard to make a political point.

Now, I know that our friends on the other side of the aisle say that they're going to oppose this legislation because they say that they need an entire government funding bill or nothing at all.

And yet they are calling Republicans the absolutists. That's what they're calling us? Seriously.

I would just say to my Democratic friends that we aren't asking you to repeal ObamaCare in order to make certain that our National Guard gets paid. We are just asking our Democratic friends to pay the National Guard, for goodness sake.

Yesterday, Mr. Speaker, I heard some Members on the other side, our Democratic friends, say that what we are talking about here is just a fig leaf or a distraction. Mr. Speaker, I do not consider paying our National Guard a fig leaf or a distraction. I consider our National Guard to be warriors essential to the defense of this Nation.

I would urge this House to pass this legislation that will allow our men and women who serve so bravely in our National Guard to do their job and to protect our freedoms.

I urge a ''yes'' vote on the rule and also the underlying bills.

Ms. SLAUGHTER. Mr. Speaker, I yield myself 30 seconds to say that the three bills that everybody is so proud of that they've put out to try to refund the Government have a dagger at the heart of the health care bill and would have destroyed it.

I am pleased to yield 3 minutes to the gentleman from Massachusetts (Mr. MCGOVERN), a member of the Committee on Rules.

Mr. MCGOVERN. Well, Mr. Speaker, here we are, on Day 2 of the Republican shutdown of the Nation's government, and the Republican majority has come up with yet another bit of meaningless political theater.

Yesterday's strategy from the gang that couldn't shoot straight was to bring up a small handful of bills to fund popular government programs and to try to pass them on suspension. That failed. Today's nonsense is to bring up those same bills under this rule and try to pass them with a majority vote.

Now, just for a moment, let's leave aside the fact that none of these bills are going anywhere. The Senate isn't going to go along with this, and neither is the President. So all of this is just a gigantic waste of time, which is one of the few things the majority is good at.

We say it all the time around here: budgets are about priorities. Budgets reflect things that you believe are most important to support.

And yesterday we learned all about the priorities of the Republican leadership. The first bill they brought up for debate—the one that they wanted to get over to the Senate most quickly—was a bill to fund the national parks and monuments. Now, I like the national parks. In fact, I love them. I support their full funding. I even believe they should get more funding than they would receive under the lousy Republican sequester numbers. But that's their number one priority?

What about the researchers at the Centers for Disease Control who protect us from epidemics? More than 8,700 people have already been furloughed from the CDC. I hope my Republican colleagues have gotten their flu shots, Mr. Speaker.

What about the low-income mother who has been cut off from WIC? What about the children who have been turned away from the Head Start programs?

No, they want to fund parks. And why? Let's be honest about this. Because right now every television network in America has a camera crew down at the National Mall interviewing disappointed tourists and taking pictures of the ''Closed'' signs on the Smithsonian museums. Because today, camera crews in California and Wyoming and Montana will be taking pictures of visitors turned away from Yosemite and Yellowstone and Glacier National Park.

Mr. Speaker, when my kids were little, we used to give them trail mix as a snack. There was granola and raisins and nuts and all kinds of healthy things. But my kids always wanted to pick out the M&Ms. That's what this Republican majority has been reduced to—trying to pick out the M&Ms from the trail mix. Eventually, my kids grew up. I hope the Republican majority will do the same.

We can do this right away. We can do this today. We can do this right now. We can pass the clean continuing resolution that has already passed the Senate. That's the way you keep the government functioning while the two Chambers work out their differences.

The notion that you're shutting the government down on a 5-week continuing resolution when we still have to negotiate a long-term spending bill is unconscionable. People all across this country, Democrats and Republicans, are outraged by the behavior of this Republican leadership. It is time to grow up. It is time to pass a clean continuing resolution.

Let's open up this government. Let's open it up today.

Mr. WOODALL. Mr. Speaker, it's clear we're going to hear more ''it's my way or the highway'' from the other side throughout today.

I yield 3 minutes to the gentlewoman from Indiana (Mrs. WALORSKI), a freshman Member of this body who believes that there is a pathway forward and that we can make a difference.

Mrs. WALORSKI. Mr. Speaker, I rise today to urge my colleagues to support this rule, which would allow the House to vote on the Pay Our Guard and Reserve Act and the Honoring Our Promise to America's Veterans Act.

The Pay Our Guard and Reserve Act provides funding for the pay and allowances of military personnel in the Reserve component who are in inactive status.

Like most of us, my office has been flooded with phone calls and emails sharing real-life stories about how this government shutdown is negatively impacting the folks that we represent. This government shutdown is such a disappointment. In the meantime, there's no logical reason for members of the military, Reserves, veterans, and their families to go one more day without the support they deserve.

According to an article in the Indy Star, about 600 full-time civilian employees and Air Force Reservists have been furloughed at Grissom Air Reserve Base located in Miami County. This could affect the ability for Grissom Air Reserve Base to maintain their operational readiness.

The Peru Tribune, Miami County's hometown paper, stated:

> Reservists were told to go home.

One thousand Indiana National Guard employees were furloughed on Tuesday. Indiana has the fourth largest National Guard in the country.

□ 1415

We're proud that our brave men and women so strongly represent the Guard and a steadfast commitment to our country.

This is so unfair to our Hoosier heroes who fight every day. Indiana's Second District is home to more than 53,000 veterans. One of them called my office yesterday expressing concern about losing access to VA health services.

The Honoring Our Promise to America's Veterans Act provides immediate funding to ensure the continuation of veterans' disability payments, the GI Bill, education training, and VA home loans. Passing these bills is the least we can do.

I urge my colleagues to put politics aside. Be fair to the individuals and the families who have sacrificed everything for the continued defense of this Nation.

Ms. SLAUGHTER. Mr. Speaker, just 10 seconds to say let's not do the least we can do. This is the day we can open up the government and serve our people.

Mr. Speaker, I yield 3 minutes to the gentleman from Virginia (Mr. CONNOLLY).

Mr. CONNOLLY. I thank my dear friend, the ranking member of the Rules Committee.

I had a prepared talk, Mr. Speaker. I'm not going to give it. I'm going to respond to the distinguished manager who has used phrases like ''revisionist history'' and ''my way or the highway.'' You know, those are words that are worthy of what surrounds this issue, but they are, of course, exactly the opposite of what the distinguished manager suggests.

It wasn't this side of the aisle that said: We'll fund the government on a condition, and that condition is you have to agree to what we could not achieve legislatively, what we could not achieve in the courts, what we could not achieve at the ballot box; we're going to hold you hostage. You're going to do it, or else.

You're right, it's my way or the highway, but it's you who are saying ''my

way or the highway''—one might say you.

In terms of revisionist history, this idea that we're just trying to help veterans and the National Guard and that's the least we can do, well, what about all the other agencies of the Federal Government? What about the rest of the people that need to be served?

I say to my friends on the other side of the aisle, Mr. Speaker, my family has participated in the National Guard. My nephew has been in the National Guard—still is. He has served two tours of duty in Iraq and one tour of duty in Afghanistan. He is now a Blackhawk helicopter pilot for the National Guard and ready to go again.

I and my family and my colleagues need no lecture about patriotism and about service to country. What we do want—and what my nephew wants and all like him—is that we stand up in this Congress and fund the government. That's the least we can do for National Guardsmen and for the clerk who processes applications for people to qualify for Social Security. We owe that to our constituents. We owe that to our country.

Can we put aside the issues of revision and ''my way or the highway'' and come together and have a clean continuing resolution—buy ourselves some time to continue the debate on ancillary issues, but stop the hostage-taking for the sake of my nephew, and perhaps yours?

It is time to put an end to this reckless Republican shutdown. We are now in day 2 of this manufactured crisis, in which House Republicans are holding hostage the American people and the essential government services on which they rely.

The cavalier nature in which Republicans have allowed this shutdown to occur—if not outright advocated for it—is shameful. Some have even suggested that the shutdown has gone largely unnoticed. That is outrageous! Do they not see the very real pain they are causing in their own communities? I suggest they visit with some of the 10,000 seniors a day who now have to wait for their Medicare enrollment to be processed . . . or the small businesses that cannot open their doors and hire new workers because SBA loans have been put on hold . . . or the dedicated men and women of our federal workforce—the majority of whom live outside the DC region in their communities—who protect our borders, safeguard our food supply, and respond to natural disasters and now have to worry about how to pay their mortgages.

Mr. Speaker, the majority of Americans say it is unacceptable for Republicans to shut down the government to meet their narrow, partisan demands. The U.S. Chamber of Commerce—along with the Prince William and Fairfax Chambers in my district—has urged Congress to fund the government and raise the debt ceiling without any extraneous provisions for fear of disrupting the economy.

That is what Democrats have offered to do, but House Republicans refuse to compromise on their demand to defund or delay the Affordable Care Act. Mr. Speaker, it's like our Republican colleagues have been overcome by a mass psychosis to satiate the rabid demands of the Tea Party crowd.

We know there are some sensible members on the other side of the aisle who want to do the right thing. I implore them to prevail upon their leadership to work with us in bipartisan fashion to end this shutdown.

The SPEAKER pro tempore (Mr. HULTGREN). Members are reminded to address their remarks to the Chair.

Mr. WOODALL. Mr. Speaker, I yield myself such time as I may consume.

I would say to my friend from Virginia, before he leaves the floor, that I'm grateful to his nephew for his service. I, too, represent a part of the world where service is not an opportunity but an obligation.

I would say, as my friend knows very well, this body, this United States House, in June, passed our Veterans and Military Construction appropriations bill. This whole idea that you're supposed to fund the government in one giant bill is more of that revisionist history. That's exactly the wrong way to fund the government.

The way the government is supposed to be funded, as you know, Mr. Speaker, is that we're supposed to fund it one piece at a time—that's the way it always has been, the way it always should be—because you end up looking to see where those funding priorities are.

So this House, Mr. Speaker, in June, with only four dissenting votes, passed a bill affirming the financial commitment that this Nation should have to our veterans, and it has been sitting, gathering dust, in the United States Senate since June.

Funding for all veterans ran out on September 30. We all knew that. We knew it last September 30 that funding was going to run out this September 30, which is why this House has moved forward on appropriations bills. The Senate has moved forward on zero, Mr. Speaker. That's why it's my way or the highway.

There's a right way to get this done, and we've been trying to do it here. The Senate won't do it the right way. They want to do it their way—and a way that doesn't serve folks back home the way you and I, Mr. Speaker, know that they are entitled to be served.

You have not heard one voice on this floor today dispute that the bills we have before us would make a difference in the lives of American families. You've had folks say it doesn't do enough, but you haven't had folks say it doesn't do what it's intended to do. We have an opportunity to do some good. Let's do it.

I reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I am pleased to yield 1½ minutes to the gentleman from California (Mr. MCNERNEY).

Mr. MCNERNEY. Mr. Speaker, what I'd like to know is why the Republicans are so afraid of the Affordable Care Act. Is it because it makes health care affordable to millions?

The Republicans have spread fear about the ACA for so long, it's no wonder people are afraid. Well, maybe they're afraid because the ACA is going to work. In fact, the ACA is already working—making health care accessible and lowering health care costs. It's increasing competition amongst insurance providers.

But here's what's happening: Republicans don't like the ACA, so they crash the government to get their way. That's no way to govern. You don't like the law, so you crash the government?

Republicans don't like environmental regulations and the EPA. Are they going to crash the government to eliminate them?

Are they going to crash the government to roll back the Dodd-Frank law?

This sets a horrible and reckless precedent, threatening 200 years of governance. There's a better way: Work together with people you disagree with to make this a better country.

Now the Republicans are using a cynical effort to peel Democrats to their side. The real way to honor veterans is to uphold the rule of law that they fought so hard and sacrificed for.

The ACA is the law. Let's fight to uphold the law. There will be glitches in the ACA, and some things should be improved. Let's work together to make it work for all Americans.

Mr. WOODALL. Mr. Speaker, I yield myself such time as I may consume.

My colleague in the Rules Committee earlier said if we could just get a few of us together around the table we could sort this out. I believe that. I absolutely believe that. If we could just sit down around the table and talk to each other, get together on the facts, we could sort this out. But we're not even together on the facts, Mr. Speaker.

My colleague just talked about how we're taking away 250 years of American governance with this government shutdown. I don't celebrate this shutdown. I wish the Senate would have come to the table so we wouldn't have had a shutdown. But the truth is, Mr. Speaker, in the 16 years that Republicans have controlled this body, this is the third shutdown that has the great misfortune of occurring.

I came along in the Carter administration. I'm from the State of Georgia; President Carter is from the State of Georgia. You go back to the Carter administration, come 16 years forward, Democrats controlled this institution, shut the government down 15 times. In the Carter administration, Mr. Speaker, it was all Democrats—Democrats in the White House, Democrats running the U.S. House, Democrats running the U.S. Senate, shut down the government five times for more than 50 days. I don't celebrate that, but I do recognize that when people refuse to sit down and talk to each other that is sometimes the outcome. It didn't have to be the outcome this time, but here we are.

So we can either throw up our hands in disgust or we can start pointing the fingers of blame or we can do something about it. Again, Mr. Speaker, not one Member of this body has come to

the floor to attest that the passage of this rule and the passage of these underlying bills wouldn't make a difference for American families—and the reason they haven't is because they would.

I understand we're going to continue to disagree, but let's do those things on which we agree. These five bills contain the first of those ideas. And I commit to my colleagues, if we can begin this process today, we can be right back here tomorrow doing more of it.

Wonder of wonders, Mr. Speaker, if we start working together and doing those things that we know our constituents want us to do, we might just find a way out. We might just make constituents back home proud. We can and we should.

I reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I yield 3 minutes to the gentlewoman from Texas (Ms. JACKSON LEE).

(Ms. JACKSON LEE asked and was given permission to revise and extend her remarks.)

Ms. JACKSON LEE. Mr. Speaker, let me thank the gentlelady from New York, and certainly my good friend on the Rules Committee. We see each other often in his work, and I know his passion and commitment. And as I walked on the floor today, I was listening to him recount history. But the history of shutdowns of years past will not help us be guided by our hearts and our minds today.

The American people are asking not for a recounting of historical perspective—years past that have been solved, Congresses who came together, patriots who stood in the line of fire and have lost their lives long since those particular shutdowns have occurred—we owe the American people today an answer.

I just came from the east steps of the United States Capitol. It's a very somber place. It's a place of joy, but it's a place of remembrance. If my good friend wants to remember anything, he needs to remember 9/11, when Members of Congress poured out of this place to show America that we were not going to be undermined by terrorists, that we were going to stand united together. That was a moment that America looked to with pride as we sang ''God Bless America.''

Today we stood on the steps, standing with Members of Congress who actually were wounded in Iraq and veterans who are now Members of Congress, and we asked for another moment of unity—unity to be able to address real issues in this House, to put 800,000 workers back to work who are not working for themselves in the Federal Government but are processing veterans' benefits and Social Security and Medicare. We asked for this Speaker and this Republican Conference and Tea Party-driven Members to put all of that aside.

Let us recount the history of the unity that was shown on those steps, so symbolic when we come together—at that time on 9/11, we came together as Republicans and Democrats—and vote for a clean CR.

The idea that national parks are important, they're right, they are important. The idea that the National Guard is important, they're right, it is important. Right now, Ellington Field is shut down that the National Guard in Texas used, and they are there as front liners for our borders and needs in that area. It is shut down.

The National Institutes of Health is one of these bills, D.C. and the veterans. All of those are important. But I will tell you, just as important are the men and women in the FBI and the DEA, the Drug Enforcement Administration, or the Alcohol, Tobacco, and Firearms that are on the front lines of ensuring the safety and security of America. More funding for those in Homeland Security that are not presently being funded by fees are very, very important, and that is not on this list. So recounting the history doesn't do us any good.

The National Institutes of Health, all of us who have had conditions such as what I've had and surviving breast cancer realize the importance of it. But we will not, Mr. Speaker, piecemeal. What we want is what we want for America—unity.

Mr. Speaker, we want a clean CR. Put it on the floor now. We will vote now. We will vote now.

Mr. WOODALL. Mr. Speaker, I reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I am pleased to yield 2 minutes to the gentleman from Texas (Mr. GENE GREEN).

Mr. GENE GREEN of Texas. Mr. Speaker, my concern with this rule is it allows us to debate and vote on four bills. Each of these bills picks and chooses what government program should be open, what is most important.

I guess of all these four bills, the one I find the most cynical is the one that didn't pass last night under suspension, H.J. Res. 72, the partisan resolution that will cut $6 billion from our Nation's veterans from what passed the House this last June.

□ 1430

There are many issues that divide our parties. One of the issues that has always received bipartisan support is supporting our Nation's heroes and their families.

Unfortunately, due to the extreme views of some in the majority, this Chamber is now considering a resolution that will cut $6.2 billion from the VA and excludes funding for several VA programs which are vital to the thousands of veterans in my district, including national veterans cemeteries, VA construction, and grants for State veterans homes and State cemeteries.

Mr. Speaker, our Nation's veterans deserve better. I call on this Chamber to demand a vote on the full VA for the entire year. Every day that goes by without full appropriations for the VA is another day that our veterans are being harmed and denied the support and services they paid for with blood, sweat, and sacrifice.

Let me explain it again. This House on a very bipartisan vote in June voted for a VA appropriations bill that was $6.6 billion more than what we are considering today. So this would be a cut in what we need. In fact, even the one in June is not enough. But this makes it even worse. That is why this is the most cynical of all these bills.

What we need to do is come here on the floor and pass a clean CR and get the government back to work. Don't pick and choose here, don't waste the time of the American people. Let's have a clean CR today and vote and get the government back to work today.

Mr. WOODALL. Mr. Speaker, I yield myself 60 seconds to ask my friend from Texas whose words had an impact on me.

My friend from Texas who was talking about the bill we passed in June, I happen to share his commitment to that legislation. It is my understanding that that legislation is sitting today, as it has been since June, in the Senate, and they could take it up and pass it and not fund veterans just for a week or 10 days, but fund those programs at those levels for the entire year.

I would ask my friend if he would join with me in calling on the Senate to do exactly that.

Mr. GENE GREEN of Texas. Will the gentleman yield?

Mr. WOODALL. I would be happy to yield to my friend from Texas.

Mr. GENE GREEN of Texas. I support our veterans. I voted for the one in June, like a majority of both our conferences and caucuses. You and I can't control the Senate, but we can control what is on the floor today. This bill cuts $6 billion, which you and I supported in June. That is the issue we have on the floor today.

I want a clean CR and I would like to have regular order for our appropriations. We will deal with the Senate, but we need to get our act together here in the House.

Mr. WOODALL. Reclaiming my time, I say to my friend that the clean CR that he is advocating so passionately for cuts the exact same $6 billion that he said is a problem. I agree with him that that's a problem. I hope we won't do that. I hope the Senate will take up that bill.

With that, Mr. Speaker, I yield 3 minutes to the gentleman from Florida (Mr. RADEL), a new Member of this body, but one who brings commonsense idea after commonsense idea, bipartisan idea after bipartisan idea to the Rules Committee.

Mr. RADEL. Mr. Speaker, I thank the gentleman from Georgia for this time.

We are here today trying to do some pretty simple things—trying to support our veterans, keep open Veterans Affairs, open up our parks around this

great Nation, and even keep open schools right here in D.C. Heck, I take the Metro every single day. I am here supporting this. Do you know what? Even last night we saw House Democrats that are supporting the same causes.

The problem today really lies with Senate Democrats. They simply are refusing to come to the negotiating table just to even talk with us.

I have been in Washington working through the weekend—many of us have been here until 3 in the morning every night working—to simply keep the government open. But no offer has been good enough for the Senate, not one. They have rejected every single compromise that we have sent them.

Compromise is essential, especially when we have a time of divided government, because we are here to pass laws—sometimes repeal them—but most of all to govern, to give certainty and stability to this great Nation.

We have sent four different bills to the Senate to keep government open. All of them have been rejected. We even sent legislation to simply offer a small group of Members to come to the negotiating table to compromise, again, with the Senate to keep government open. The Senate rejected us time and time again.

It is a sad day when we can't even get Democrat Senators to come to just have a conversation with us to keep government open. In fact, this is ridiculous. It is a disservice to the American people. I knew Washington was broken before coming here, but the Senate's pure refusal to even work with the House is an all-time low.

As a result of the Senate's actions, we now have a government officially shut down. Parents all across the country are now worrying where their next paycheck is going to come from, how they are going to pay their mortgage, how they are going to pay their rent, how they are going to put food on their kid's table all because Democrats won't have a conversation.

I don't think it is unreasonable for us in all of these compromises that House Republicans—and some House Democrats—I don't think it is unreasonable to ask for a simple 1-year delay of the individual mandate. After all, the President himself has already delayed ObamaCare for big business. Think about that. Big business, big corporations, are exempt from this law, but you are not.

He has delayed this, he has delayed the launch of online enrollment for small business, even delayed the Spanish language version of the Web site: If you all speak Spanish, good luck—si ustedes hablan espanol, buena suerte.

The President has been willing to exempt everyone from this signature piece of legislation, except for you. Yesterday, when you went to healthcare.gov to sign up, most people saw glitches and errors. The administration has had 3 years—3 years—to build a Web site which a 14 year old can do in his parents' basement today.

Again, ObamaCare is just not ready for prime time. All we are asking is just for this small piece to be delayed. It is a compromise that I think all of us can live with.

I stand here ready to work with the Senate to get the government open and do the right thing for you and this great Nation.

Ms. SLAUGHTER. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from California (Mr. FARR), ranking member on the Appropriations Subcommittee on Agriculture, Rural Development, and Food and Drug Administration.

Mr. FARR. Mr. Speaker, give us back our government.

I am on the Appropriations Committee. We shouldn't be talking about CRs; we should be talking about passing appropriations bills. But those were stopped, and we are now down to the emergency tool that we have had to use over and over again to continue government operations.

I have been here 20 years. We have done CRs many times. We have never, ever had a pre-condition to a CR.

People are not entitled to make up facts here. The facts are that the Senate is negotiating and the House Democrats are negotiating. We came up with your numbers. We hate those numbers, but we swallowed them.

There is only one thing to do—reject this proposition. Vote ''no'' on the rule and vote ''no'' on the ability to bring the rule up. We have a bill here. It is in the House right now. It is the Senate version. It is clean. Send it to the President and before tonight it is all over and people can come back to work tomorrow—tomorrow.

So stop this game playing, this selfishness, this poor loser and this whining and just get on with doing the business you were elected to do.

Mr. WOODALL. Mr. Speaker, I yield myself 60 seconds to agree with my friend that folks are not entitled to their own facts. The fact is that the law of the land is the budget number that the Senate is proposing. There is no set of circumstances you can spend a penny more than that. In fact, as all of my colleagues know, beginning on January 1 that number is going to drop another $19 billion.

To suggest that the Senate is compromising by agreeing to follow the law of the land says a lot about where we are in this town, but it says absolutely nothing about genuine compromise.

I reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from New Jersey (Mr. ANDREWS).

(Mr. ANDREWS asked and was given permission to revise and extend his remarks.)

Mr. ANDREWS. Mr. Speaker, if the bills that are on the floor today pass unanimously—which they won't—here is what happens next. They go to the Senate, the Senate maybe takes them up, maybe doesn't take them up, passes them, maybe doesn't pass them, and this whole charade continues.

If you want to get the veterans programs funded today, if you want to get the programs for the parks funded today, if you want to get the NIH funded today, there is a way to do it. It is to take up the bill that the Senate has passed, that the President says he will sign, that at least 14 Members of the majority have said publicly they will vote for—I think it is many, many more than that—put it on the floor and take a vote. That is the way to do this. That bill would go directly to the desk of the President of the United States. Before the day is over the government would be funded.

If that is what you really want to do, you would put that bill on the floor, and we would take a vote on it. I would just ask any Member of the majority to tell us why we can't do that.

Mr. WOODALL. Mr. Speaker, at this time, it gives me great pleasure to yield 3 minutes to the gentleman from North Carolina (Mr. HOLDING), a new Member of this body, but a growing leader in this body.

Mr. HOLDING. Mr. Speaker, just hours after the President and Senate Democrats refused to compromise, causing our government to shut down, ObamaCare exchanges opened for business. Folks across the aisle said yesterday was a day to celebrate, but it is clear that is simply not the case.

The President likened the ObamaCare rollout to a new Apple product. But the difference is that the American people are not forced to buy iPods, and this is not just about buying a new technological gadget, but something extremely important and personal—your health care.

As soon as the ObamaCare exchanges became available online, there were immediate problems and glitches. The administration had to know millions of Americans would be trying to get on the site yesterday, and yet they still didn't account for the traffic.

Mr. Speaker, not only has the administration forced an individual mandate on the American people—they haven't even adequately prepared for it. The arrogance of this law is becoming more and more apparent. The administration is more concerned about getting ObamaCare off the ground than whether or not it actually works.

Ms. SLAUGHTER. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from California (Mr. SCHIFF), a member of the Committee on Appropriations.

Mr. SCHIFF. Mr. Speaker, last night, the GOP followed through with their threat to shut down the government if they didn't get what they lacked the votes to obtain—the destruction of health care reform. It was staggeringly irresponsible, but the leadership was not willing to buck their Tea Party membership and meet even the most basic obligation of governance—to keep the lights on.

I can only hope that this shutdown is short-lived and we pass a basic funding bill soon. A small group of Members cannot be allowed to burn the House down when they don't get their way. We simply cannot continue to engage in these ''my way or the highway'' exercises every couple of months.

The Affordable Care Act was passed by Congress, signed by the President, and upheld by the Supreme Court. Democrats are willing to entertain improvements to this landmark law, but we are not seeking to undermine or destroy it.

The worst thing about this latest manmade crisis: our economy might have fully recovered long before now if Congress would just get out of the way. Let us take up the Senate bill—a clean bill—to keep the government running and end this latest manmade disaster.

Mr. WOODALL. Mr. Speaker, I reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from Virginia (Mr. MORAN), the ranking member of the Appropriations Subcommittee on the Interior.

Mr. MORAN. Mr. Speaker, this is unbelievable. All we need is less than 20 Republicans and we can open up the government today. You will have the Democrats voting to open up the government. Just give us 20 Republican votes and we can open it today.

Instead, because of the Ted Cruz Tea Party faction within your caucus that somehow has managed to intimidate the Republican leadership, you are willing to bring this country to its knees—to furlough 800,000 Federal employees, to cause suffering around the country, and to cause billions of dollars in economic damage to our economy.

How can you do this? This is so wrong.

Today, open it, give us 20 Republican votes. Get our country functioning again. Let us do our job. This is an outrageous abdication of responsibility.

Mr. WOODALL. Mr. Speaker, I yield myself 60 seconds to say to my friend I know he has a lot of Federal employees in his district, as do I—certainly not as many as he does. I know he speaks from the heart in terms of the struggles that those families are going through.

But I would say to my friend that while that might be his goal, we could have taken a step towards it yesterday and all of your VA employees would have been back and all of your park service employees would have been back and all of your folks who are in the D.C. Government would have been protected.

□ 1445

We could have done it yesterday, and the Democrats defeated it. Now we are bringing it back today, but we could have made a difference yesterday, and we didn't.

I would just say to the gentleman that I know his concern for everyone is heartfelt, but I wish that he would join me in helping at least someone today. We might get all the way there. I believe that we can, but we have got to get started. These bills today get us started in that direction. Again, I appreciate the gentleman's commitment.

Mr. MORAN. Will the gentleman yield?

The SPEAKER pro tempore. The time of the gentleman from Georgia has expired.

Mr. WOODALL. I yield myself an additional 30 seconds, and I yield to the gentleman from Virginia.

Mr. MORAN. I thank my friend from Georgia.

The problem is that we are creating, really, a politics of divisiveness here because we are exempting some agencies at the expense of others. Even in the Department of the Interior, we still have 84 percent of Interior Department employees who will be furloughed even when we open up the national parks. The vast majority of Federal employees are without jobs. They may not be as visible to the public, but it doesn't mean they aren't performing essential services. That's the problem—picking and choosing. Tomorrow, we will be back with another agency. That's what we are trying to avoid. We are trying to do it appropriately.

The SPEAKER pro tempore. The time of the gentleman from Georgia has again expired.

Mr. WOODALL. I yield myself an additional 30 seconds to say that it encourages me that what I hear from my friend is that he doesn't like our proposal because he thinks it's a policy of divisiveness, and he would like to move toward those things that unite us. I happen to feel the same way about these proposals before us.

I think where the Senate is pushing us is a place that divides us, but that these ideas are common-ground ideas that unite us. While we may disagree on that, it does give me great encouragement, as I know it does my constituents back home, that the goal is to find those things that unite us, to focus on those and to move America forward.

With that, I reserve the balance of my time.

Ms. SLAUGHTER. I reserve the balance of my time.

Mr. WOODALL. Mr. Speaker, at this time, it gives me great pleasure to yield 1 minute to a leader from the great State of South Carolina (Mr. RICE), a good friend of mine and a new Member of this body.

Mr. RICE of South Carolina. Mr. Speaker, the last speaker for the minority was complaining of these small continuing resolutions because they pick and choose which groups will get funded. That is our exact problem with putting this Affordable Care Act into place—the President's picking and choosing. We hear it's the law of the land; but, actually, the President is deciding what parts of the law of the land he wants to put in place. He says he is for the working man, and he says he is for the middle class; but, in fact, he has exempted Big Business, and he has exempted many of his friends in the unions and so forth.

So if this law is so wonderful and if we are going to put it in place and if, as you're saying, we want a whole CR that funds the whole government, let's put the whole thing in place that funds every aspect the law was designed to apply to. Let's put the whole law in effect. If it's the law of the land, let's treat it like the law of the land with no exemptions and no waivers. Let's put it into effect exactly like it's written.

Ms. SLAUGHTER. Mr. Speaker, may I inquire if the gentleman from Georgia has any more speakers. If not, I am prepared to close.

Mr. WOODALL. I very much thank my friend. I do not have any speakers remaining.

Ms. SLAUGHTER. I yield myself the balance of my time.

Mr. Speaker, if we defeat the previous question, I am going to offer an amendment to the rule that would allow the House to vote on the clean Senate continuing resolution so that we can send it to the President for his signature today. I don't want that to be lost on anybody. This will probably be the only chance in this House that you will get to vote on what everyone has been asking for.

Mr. Speaker, I ask unanimous consent to insert the text of the amendment into the RECORD, along with extraneous material, immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New York?

There was no objection.

Ms. SLAUGHTER. Mr. Speaker, we found out already this morning in the Rules Committee, admittedly by the chair, that they don't intend to open the government back up. I brought this very same motion today to the Rules Committee. It was defeated 9–4 on a party-line vote.

My hope today lies in all of the people from the other side, my good friends, who have said that, if they had an opportunity, they'd open up the government again. They would put people back to work and stop the terrible pain that we are simply laying on our Federal workers. What we have done is simply punish them. What we have done to medical science cannot be turned off and on like a faucet, as well as what we have done to our security and what we are doing to our intelligence—all of it, Mr. Speaker. We cannot do this multiple choice of what we will save today, and maybe we will do something else next week if we get a bad headline.

This is terribly important, this opportunity. I want to give notice to all of my friends on the other side to stand up for what you said. Today, please put your voting cards where your mouths have been. Vote because you know it is the right thing to do—to get this government back to work.

I will remind everybody that the Senate has not been holding us up here. The Senate sent a clean CR over early. We have simply ignored it, and everything that we have sent back to them has had nothing to do with the running of the government, but has had everything to do with trying to kill health care.

Today, let's get ourselves back on track and get this magnificent government working again. This country of which we are so proud is looking pretty bedraggled right now because we don't know, with this lurch from crisis to crisis, what is going to happen from one day to the next. This is the day, Mr. Speaker. This is the time. This is the opportunity. I urge my colleagues to vote ''no'' and defeat the previous question. At that point, we will have our opportunity to vote on the clean CR that does nothing but continues the spending and allows the government to reopen.

I urge a ''no'' vote on the rule, and I yield back the balance of my time.

Mr. WOODALL. I thank my friend from New York for joining me on the floor today.

Mr. Speaker, in closing, it is sad for the House that we have come to define a CR as any sort of success whatsoever. Every Member of this body knows that, when we talk about CRs, we are just talking about varying degrees of failure, because there was a better way that the House was obligated to do that we didn't do.

I want to say to my friends again that no one has said this bill won't help. Absolutely, everyone knows this bill will help, but I want to reach out my hand once again, Mr. Speaker, and say what my friend from South Carolina said moments ago: take your pick. I will meet you on your terms. Either let's take these things that we agree on in government, and let's fund them—let's pick and choose those things we agree on, and let's fund them—or let's fund it all, and let's stop the picking and choosing in ObamaCare of what we like. If it's all good, let's fund all of the government, and let's obey all of ObamaCare, giving those waivers to individuals that Big Business got. If it's not good, then let's focus on these things that we unanimously agree are good.

There is a path forward, Mr. Speaker. We can find it together. I believe the rule and the bill we have before us today begin to take us down that path.

The material previously referred to by Ms. SLAUGHTER is as follows:

The material previously referred to by Ms. SLAUGHTER is as follows:

AN AMENDMENT TO H. RES. 370 OFFERED BY MS. SLAUGHTER OF NEW YORK

Strike all and insert the following:

''*Resolved,* that immediately upon adoption of this resolution the joint resolution (H.J. Res. 59) making continuing appropriations for fiscal year 2014, and for other purposes, with the House amendment to the Senate amendment thereto, shall be taken from the Speaker's table and the pending question shall be, without intervention of any point of order, whether the House shall recede from its amendment and concur in the Senate amendment. The Senate amendment shall be considered as read. The question shall be debatable for 60 minutes equally divided and controlled by the chair and ranking member of the Committee on Appropriations. The previous question shall be considered as ordered on the question of receding from the House amendment and concurring in the Senate amendment without intervening motion or demand for division of the question.

SEC. 2. Clause 1(c) of rule XIX shall not apply to the consideration of H.J. Res. 59 as specified in the first section this resolution.''

THE VOTE ON THE PREVIOUS QUESTION: WHAT IT REALLY MEANS

This vote, the vote on whether to order the previous question on a special rule, is not merely a procedural vote. A vote against ordering the previous question is a vote against the Republican majority agenda and a vote to allow the Democratic minority to offer an alternative plan. It is a vote about what the House should be debating.

Mr. Clarence Cannon's Precedents of the House of Representatives (VI, 308–311), describes the vote on the previous question on the rule as ''a motion to direct or control the consideration of the subject before the House being made by the Member in charge.'' To defeat the previous question is to give the opposition a chance to decide the subject before the House. Cannon cites the Speaker's ruling of January 13, 1920, to the effect that ''the refusal of the House to sustain the demand for the previous question passes the control of the resolution to the opposition'' in order to offer an amendment. On March 15, 1909, a member of the majority party offered a rule resolution. The House defeated the previous question and a member of the opposition rose to a parliamentary inquiry, asking who was entitled to recognition. Speaker Joseph G. Cannon (R-Illinois) said: ''The previous question having been refused, the gentleman from New York, Mr. Fitzgerald, who had asked the gentleman to yield to him for an amendment, is entitled to the first recognition.''

The Republican majority may say ''the vote on the previous question is simply a vote on whether to proceed to an immediate vote on adopting the resolution . . . [and] has no substantive legislative or policy implications whatsoever.'' But that is not what they have always said. Listen to the Republican Leadership Manual on the Legislative Process in the United States House of Representatives, (6th edition, page 135). Here's how the Republicans describe the previous question vote in their own manual: ''Although it is generally not possible to amend the rule because the majority Member controlling the time will not yield for the purpose of offering an amendment, the same result may be achieved by voting down the previous question on the rule . . . When the motion for the previous question is defeated, control of the time passes to the Member who led the opposition to ordering the previous question. That Member, because he then controls the time, may offer an amendment to the rule, or yield for the purpose of amendment.''

In Deschler's Procedure in the U.S. House of Representatives, the subchapter titled ''Amending Special Rules'' states: ''a refusal to order the previous question on such a rule [a special rule reported from the Committee on Rules] opens the resolution to amendment and further debate.'' (Chapter 21, section 21.2) Section 21.3 continues: ''Upon rejection of the motion for the previous question on a resolution reported from the Committee on Rules, control shifts to the Member leading the opposition to the previous question, who may offer a proper amendment or motion and who controls the time for debate thereon.''

Clearly, the vote on the previous question on a rule does have substantive policy implications. It is one of the only available tools for those who oppose the Republican majority's agenda and allows those with alternative views the opportunity to offer an alternative plan.

Mr. WOODALL. With that, Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. SLAUGHTER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 and clause 9 of rule XX, this 15-minute vote on ordering the previous question will be followed by 5-minute votes on adoption of House Resolution 370, if ordered; and approval of the Journal.

The vote was taken by electronic device, and there were—yeas 227, nays 197, not voting 7, as follows:

[Roll No. 509]

YEAS—227

| | | |
|---|---|---|
| Aderholt | Ellmers | Kingston |
| Amash | Farenthold | Kinzinger (IL) |
| Amodei | Fincher | Kline |
| Bachmann | Fitzpatrick | LaMalfa |
| Bachus | Fleischmann | Lamborn |
| Barletta | Fleming | Lance |
| Barr | Flores | Lankford |
| Barton | Forbes | Latham |
| Benishek | Fortenberry | Latta |
| Bentivolio | Foxx | LoBiondo |
| Bilirakis | Franks (AZ) | Long |
| Bishop (UT) | Frelinghuysen | Lucas |
| Black | Gardner | Luetkemeyer |
| Blackburn | Garrett | Lummis |
| Boustany | Gerlach | Marchant |
| Brady (TX) | Gibbs | Marino |
| Bridenstine | Gibson | Massie |
| Brooks (AL) | Gingrey (GA) | McCarthy (CA) |
| Brooks (IN) | Gohmert | McCaul |
| Broun (GA) | Goodlatte | McClintock |
| Buchanan | Gosar | McHenry |
| Bucshon | Gowdy | McKeon |
| Burgess | Granger | McKinley |
| Calvert | Graves (GA) | McMorris Rodgers |
| Camp | Graves (MO) | Meadows |
| Campbell | Griffin (AR) | Meehan |
| Cantor | Griffith (VA) | Messer |
| Capito | Grimm | Mica |
| Carter | Guthrie | Miller (FL) |
| Cassidy | Hall | Miller (MI) |
| Chabot | Hanna | Miller, Gary |
| Chaffetz | Harper | Mullin |
| Coble | Harris | Mulvaney |
| Coffman | Hartzler | Murphy (PA) |
| Cole | Hastings (WA) | Neugebauer |
| Collins (GA) | Heck (NV) | Noem |
| Collins (NY) | Hensarling | Nugent |
| Conaway | Holding | Nunes |
| Cook | Hudson | Nunnelee |
| Cotton | Huelskamp | Olson |
| Cramer | Huizenga (MI) | Palazzo |
| Crawford | Hultgren | Paulsen |
| Crenshaw | Hunter | Pearce |
| Culberson | Hurt | Perry |
| Daines | Issa | Petri |
| Davis, Rodney | Jenkins | Pittenger |
| Denham | Johnson (OH) | Pitts |
| Dent | Johnson, Sam | Poe (TX) |
| DeSantis | Jones | Pompeo |
| DesJarlais | Jordan | Posey |
| Diaz-Balart | Joyce | Price (GA) |
| Duffy | Kelly (PA) | Radel |
| Duncan (SC) | King (IA) | Reed |
| Duncan (TN) | King (NY) | |

Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Runyan
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stockman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (FL)
Young (IN)

NAYS—197

Andrews
Barber
Barrow (GA)
Bass
Beatty
Becerra
Bera (CA)
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clarke
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Garcia
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Matheson
Matsui
McCollum
McDermott
McGovern
McIntyre
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Peterson
Pingree (ME)
Pocan
Polis
Price (NC)
Quigley
Rahall
Rangel
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Watt
Waxman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—7

Herrera Beutler
Labrador
Lewis
McCarthy (NY)
Rush
Stivers
Stutzman

□ 1518

Messrs. BARROW of Georgia and GARCIA changed their vote from ''yea'' to ''nay.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. SLAUGHTER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. This will be a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 228, nays 198, not voting 5, as follows:

[Roll No. 510]

YEAS—228

Aderholt
Amash
Amodei
Bachmann
Bachus
Barletta
Barr
Barton
Benishek
Bentivolio
Bilirakis
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Calvert
Camp
Campbell
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cotton
Cramer
Crawford
Crenshaw
Culberson
Daines
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Kelly (PA)
King (IA)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Lankford
Latham
Latta
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Massie
McCarthy (CA)
McCaul
McClintock
McHenry
McKeon
McKinley
McMorris Rodgers
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paulsen
Pearce
Perry
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Radel
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Runyan
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (FL)
Young (IN)

NAYS—198

Andrews
Barber
Barrow (GA)
Bass
Beatty
Becerra
Bera (CA)
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clarke
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Garcia
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Hinojosa
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
King (NY)
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Matheson
Matsui
McCollum
McDermott
McGovern
McIntyre
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Pelosi
Perlmutter
Peters (CA)
Peters (MI)
Peterson
Pingree (ME)
Pocan
Polis
Price (NC)
Quigley
Rahall
Rangel
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Watt
Waxman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—5

Graves (GA)
Herrera Beutler
Lewis
McCarthy (NY)
Rush

□ 1527

Mr. McINTYRE changed his vote from ''yea'' to ''nay.''

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

THE JOURNAL

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, the unfinished business is the question on agreeing to the Speaker's approval of the Journal, on which the yeas and nays were ordered.

The question is on the Speaker's approval of the Journal.

This will be a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 246, nays 173, answered ''present'' 2, not voting 10, as follows:

[Roll No. 511]

YEAS—246

Aderholt
Amodei
Bachmann
Bachus
Barber
Barletta
Barr
Barrow (GA)
Barton
Becerra
Bilirakis
Bishop (GA)
Bishop (UT)
Black
Blackburn
Blumenauer
Bonamici
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brown (FL)
Brownley (CA)
Buchanan
Bustos
Butterfield
Calvert
Camp
Campbell
Cantor
Capito
Capps
Carney
Carter
Cassidy
Chabot
Clay
Cleaver
Clyburn
Coble
Coffman
Cole
Collins (NY)
Cook
Cooper
Courtney
Cramer
Crenshaw
Cuellar
Culberson
Daines
Davis (CA)
Davis, Danny
DeGette
Delaney
DeLauro
DelBene
Dent
DesJarlais
Diaz-Balart
Doggett
Doyle
Duncan (SC)
Duncan (TN)
Ellmers
Esty
Farenthold
Fattah
Fleischmann
Forbes
Fortenberry
Foster
Frankel (FL)
Franks (AZ)
Frelinghuysen
Gabbard
Gallego
Garrett
Gibbs
Gingrey (GA)
Goodlatte
Gosar
Gowdy
Granger
Grayson
Griffith (VA)
Grimm
Guthrie
Hall
Hanabusa
Harper
Hartzler
Hastings (WA)
Heck (WA)
Hensarling
Himes
Huelskamp
Huffman
Hultgren
Hunter
Hurt
Issa
Johnson (GA)
Johnson, Sam
Jones
Jordan
Kaptur
Kelly (PA)
Kennedy
Kildee
King (IA)
King (NY)
Kingston
Kline
Kuster
Labrador
LaMalfa
Lamborn
Lankford
Larsen (WA)
Latta
Loebsack
Long
Lowenthal
Lucas
Luetkemeyer
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lummis
Maffei
Marchant
Marino
Massie
McCarthy (CA)
McCaul
McClintock
McCollum
McHenry
McKeon
McKinley
McMorris Rodgers
McNerney
Meadows
Meng
Messer
Mica
Michaud
Miller (MI)
Miller, Gary
Moran
Mullin
Murphy (FL)
Murphy (PA)
Nadler
Napolitano
Neugebauer
Noem
Nunes
Nunnelee
O'Rourke
Olson
Palazzo
Pascrell
Pearce
Pelosi
Perlmutter
Perry
Peters (CA)
Peters (MI)
Petri
Pingree (ME)
Pitts
Pocan
Polis
Pompeo
Posey
Price (NC)
Quigley
Rangel
Reichert
Ribble
Rice (SC)
Roby
Rogers (KY)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Ross
Rothfus
Royce
Ruiz
Runyan
Ryan (WI)
Sanford
Schneider
Schock
Schrader
Schwartz
Schweikert
Scott, Austin
Scott, David
Sensenbrenner
Serrano
Sessions
Shea-Porter
Sherman
Shimkus
Simpson
Sinema
Smith (NE)
Smith (NJ)
Smith (TX)
Smith (WA)
Southerland
Speier
Stewart
Stutzman
Takano
Thornberry
Tiberi
Titus
Tonko
Tsongas
Upton
Van Hollen
Wagner
Walden
Walorski
Walz
Wasserman Schultz
Watt
Waxman
Weber (TX)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (FL)
Wilson (SC)
Wolf
Womack
Yarmuth
Yoho
Young (FL)
Young (IN)

NAYS—173

Amash
Andrews
Bass
Beatty
Benishek
Bentivolio
Bera (CA)
Bishop (NY)
Brady (PA)
Braley (IA)
Brooks (IN)
Broun (GA)
Bucshon
Burgess
Capuano
Cárdenas
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chaffetz
Chu
Cicilline
Clarke
Cohen
Collins (GA)
Conaway
Connolly
Conyers
Costa
Cotton
Crawford
Crowley
Cummings
Davis, Rodney
DeFazio
Denham
DeSantis
Deutch
Dingell
Duckworth
Duffy
Edwards
Ellison
Engel
Enyart
Eshoo
Farr
Fincher
Fitzpatrick
Fleming
Flores
Foxx
Fudge
Garamendi
Garcia
Gardner
Gerlach
Gibson
Graves (GA)
Graves (MO)
Green, Al
Green, Gene
Griffin (AR)
Gutiérrez
Hahn
Hanna
Harris
Hastings (FL)
Heck (NV)
Higgins
Holding
Holt
Honda
Horsford
Hoyer
Hudson
Huizenga (MI)
Israel
Jackson Lee
Jeffries
Jenkins
Johnson (OH)
Johnson, E. B.
Joyce
Keating
Kelly (IL)
Kilmer
Kind
Kinzinger (IL)
Kirkpatrick
Lance
Langevin
Larson (CT)
Latham
Lee (CA)
Levin
Lipinski
LoBiondo
Lofgren
Lowey
Lynch
Maloney, Carolyn
Maloney, Sean
Matheson
Matsui
McDermott
McGovern
McIntyre
Meehan
Meeks
Miller (FL)
Miller, George
Moore
Mulvaney
Neal
Negrete McLeod
Nolan
Nugent
Pallone
Pastor (AZ)
Paulsen
Payne
Peterson
Pittenger
Poe (TX)
Price (GA)
Radel
Rahall
Reed
Renacci
Richmond
Rigell
Roe (TN)
Rogers (AL)
Rogers (MI)
Roybal-Allard
Ruppersberger
Ryan (OH)
Salmon
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Scott (VA)
Sewell (AL)
Shuster
Sires
Slaughter
Smith (MO)
Stivers
Stockman
Swalwell (CA)
Terry
Thompson (CA)
Thompson (MS)
Thompson (PA)
Tierney
Tipton
Turner
Valadao
Vargas
Veasey
Velázquez
Visclosky
Walberg
Waters
Welch
Wittman
Woodall
Yoder
Young (AK)

ANSWERED ''PRESENT''—2

Gohmert
Owens

NOT VOTING—10

Grijalva
Herrera Beutler
Hinojosa
Lewis
McCarthy (NY)
Roskam
Rush
Scalise
Vela
Webster (FL)

□ 1535

So the Journal was approved.

The result of the vote was announced as above recorded.

## DISTRICT OF COLUMBIA CONTINUING APPROPRIATIONS RESOLUTION, 2014

Mr. CRENSHAW. Mr. Speaker, pursuant to House Resolution 370, I call up the joint resolution (H.J. Res. 71) making continuing appropriations of local funds of the District of Columbia for fiscal year 2014, and ask for its immediate consideration.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. Pursuant to House Resolution 370, the joint resolution is considered read.

The text of the joint resolution is as follows:

H.J. RES. 71

*Resolved by the Senate and House of Representatives of the United States of America in Congress assembled,*

SEC. 1. This joint resolution may be cited as the ''District of Columbia Continuing Appropriations Resolution, 2014''.

SEC. 2. (a) The District of Columbia may expend local funds under the heading ''District of Columbia Funds'' for such programs and activities under title IV of H.R. 2786 (113th Congress), as reported by the Committee on Appropriations of the House of Representatives, at the rate set forth under ''District of Columbia Funds—Summary of Expenses'' as included in the Fiscal Year 2014 Budget Request Act of 2013 (D.C. Act 20–127), as modified as of the date of the enactment of this joint resolution.

(b) Appropriations made by subsection (a) are provided under the authority and conditions as provided under the Full-Year Continuing Appropriations Act, 2013 (division F of Public Law 113–6) and shall be available to the extent and in the manner that would be provided by such Act.

SEC. 3. Appropriations made and authority granted pursuant to this joint resolution shall cover all obligations or expenditures incurred for any project or activity during the period for which funds or authority for such project or activity are available under this joint resolution.

SEC. 4. Unless otherwise provided for in this joint resolution or in the applicable appropriations Act for fiscal year 2014, appropriations and funds made available and authority granted pursuant to this joint resolution shall be available until whichever of the following first occurs: (1) the enactment into law of an appropriation for any project or activity provided for in this joint resolution; (2) the enactment into law of the applicable appropriations Act for fiscal year 2014 without any provision for such project or activity; or (3) December 15, 2013.

SEC. 5. Expenditures made pursuant to this joint resolution shall be charged to the applicable appropriation, fund, or authorization whenever a bill in which such applicable appropriation, fund, or authorization is contained is enacted into law.

SEC. 6. Appropriations made and funds made available by or authority granted pursuant to this joint resolution may be used without regard to the time limitations for submission and approval of apportionments set forth in section 1513 of title 31, United States Code, but nothing in this joint resolution may be construed to waive any other provision of law governing the apportionment of funds.

SEC. 7. It is the sense of Congress that this joint resolution may also be referred to as the ''Provide Local Funding for the District of Columbia Act''.

The SPEAKER pro tempore. The joint resolution shall be debatable for 30 minutes, equally divided and controlled by the Chair and ranking minority member of the Committee on Appropriations.

The gentleman from Florida (Mr. CRENSHAW) and the gentleman from New York (Mr. SERRANO) each will control 15 minutes.

The Chair recognizes the gentleman from Florida.

GENERAL LEAVE

Mr. CRENSHAW. Mr. Speaker, I ask unanimous consent that all Members

may have 5 legislative days in which to revise and extend their remarks and include extraneous material on H.J. Res. 71, and that I may include tabular material on the same.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Florida?

There was no objection.

Mr. CRENSHAW. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, ladies and gentlemen of the House, I bring before the House today a continuing resolution that's very limited in scope. It simply allows the District of Columbia to spend their locally raised revenues. That's all it does.

I brought this same resolution before the House yesterday, under the suspension of the rules. The vote was 265–163, a majority, but not the two-thirds majority required by the suspension of the rules. So the bill that is back before us today will require a majority for passage.

Quite frankly, I don't understand why so many of our friends on the other side of the aisle voted ''no'' yesterday, because all it does is allow the District of Columbia to spend their own money. But, be that as it may, that's what happened.

ELEANOR HOLMES NORTON, who represents the District of Columbia, made a very eloquent, very impassioned plea as to why we should pass this continuing resolution. But apparently that didn't convince enough of her Democratic colleagues for it to reach the two-thirds majority. So here we are today.

I think most of the Members recognize that the District of Columbia is unique. It's a unique city among all the cities in our great country. It's called a Federal city. And because of that unique relationship, Congress must appropriate the locally raised funds before they can be spent.

We do that every year, on a routine basis, as part of the Financial Services appropriations bill. We've done that from time to time, and things always seem to work out. But this time, we're back with the same resolution that we had yesterday.

The way it works is simply this: the District of Columbia has passed the 2014 budget. The mayor makes his proposal, the city council receives the proposal, it considers the budget, and this year it has approved the budget. There's an independent chief financial officer that has certified the budget. It's balanced. And there we are.

So now we're faced with a situation, unless Congress appropriates the money, they're not able to spend the money.

I don't think that, after they passed their budget, that just because the United States Congress is arguing back and forth between the House and the Senate as to how we should fund the government, I don't think that should stop the District of Columbia, this unique city, from spending the money that they've raised locally.

For instance, you have people that work for the District of Columbia, like any other city. You have schoolteachers that go to work every day, and they teach kids. You've got policemen that get up every day, that work night shifts, day shifts, to make sure that the streets in the District of Columbia are safe.

You've got firemen that go to work every day. They're there on call in case there's an emergency. Other first responders, they're working every day.

People keep the streets clean. They pick up the garbage. People go to work as librarians, and they do the work to make sure that people have access to reading material.

Now, there's no reason in the world why these people should be furloughed or not paid simply because Congress can't get its act together as to how to fund the Federal Government. That doesn't make any sense.

And if you live in the District of Columbia, you shouldn't have your quality of life degraded because of what goes on in Congress. You ought to have the police and fire protection. You have all the services that other cities have. You ought to have those.

Despite the fact that we tried to get together, the House and the Senate, to figure out a way to keep our government running, to keep it open, we haven't been able to do that. And so we shouldn't penalize the people in the District of Columbia for that.

So this simple resolution takes care of that. It authorizes, it appropriates the money, under the law, that needs to be spent on the local level by the locally raised funds. That's what it does.

Mr. Speaker, I reserve the balance of my time.

Mr. SERRANO. Mr. Speaker, I yield myself as much time as I may consume.

For the people watching at home, this debate may seem familiar, and it is, because we just considered this same bill yesterday. Unfortunately, nothing has changed in the past 24 hours, so I continue to oppose this bill.

Our Nation still finds itself in the midst of a completely unnecessary government shutdown caused by the Republican Party. And we all know the solution—passing the Senate version of the continuing resolution, which would reopen our Nation's government totally for everyone.

Doing anything less than a full CR is simply a political ploy. It is a false process designed, strangely enough, by a member of the other body to deflect attention from the harm that the shutdown is causing.

Now, for 23 years that I've been in Congress, I've been, at times, begging Members of the other side of the aisle to help the District of Columbia. I've spent years getting rid of riders that they imposed on the District of Columbia.

All the things that you just heard today from the chairman of the committee, who I have a lot of respect for—and I know the public listens to this kind of debate and then says, but they say they respect each other. We do. We care for each other.

□ 1545

But a lot of this is just simply politics. All of the things that he just said are things that for 23 years his party refused to do for the District of Columbia. This is only to make it look good now so they can find yet another way to go after ObamaCare.

In fact, this bill continues that meddling by continuing a harmful and controversial rider that prevents the District of Columbia from spending its own funds on abortion services. No other State in the Nation has such a restriction.

Although I support D.C. being able to spend its own money, I do not understand why this bill is not being considered as part of the full Financial Services appropriations bill.

Many agencies under our jurisdiction have suffered, or will suffer, devastating problems as a result of the Republican Federal Government shutdown. Let me recap briefly some of the problems that I mentioned yesterday.

The Republican shutdown has required the Small Business Administration, our committee, to furlough almost two-thirds of its workforce. The agency has had to shutter almost all of its loan programs for our Nation's small businesses, including loan programs for veterans, women-owned small businesses, and small businesses located in underserved areas.

The Federal defenders currently have enough money to continue operations for just a couple of weeks. However, once that time is up, they will be unable to fulfill their constitutional duty to uphold the Sixth Amendment rights of criminal defendants.

The Consumer Product Safety Commission is going down from 540 employees to only 22, putting all of the American people at risk.

The IRS, a favorite target of the other side, has been forced to lay off most of their workforce, preventing the agency from providing taxpayer assistance to those who have questions, to examine questionable tax returns, or even to accept paper tax filings. The IRS brings the vast majority of our Nation's revenue, and the Republican shutdown is harming our ability to pay our bills.

All of these agencies need and deserve a continuing resolution so they can perform the many functions of government that remain essential to American consumers, investors, taxpayers, and small businesses.

Let me close by saying that I have a lot of respect for the Members on the other side, but you've been caught up by a small group in your party and one person in the other body who is running this show and telling you that this shutdown has to go down for as long as it can—until the public tells you not to do it any longer. And they will do that soon.

And so rather than now open up the government totally by approving a proper resolution, you're going to start nitpicking little pieces—not necessarily because you have now developed this great love for the District of Columbia, but because you know that it can divide people on this side and on your side. And division is what is best for this situation right now for a lot of folks on your side.

I hope that we can see this for what it is—which is a sham, a trick, and more of the same.

I reserve the balance of my time.

Mr. CRENSHAW. Mr. Speaker, I yield myself such time as I may consume.

I just find it ironic that the other side always likes to complain that Republicans meddle too much in the affairs of the District of Columbia. And yet yesterday, so many of them voted not to even let the District of Columbia access their own local funds.

I reserve the balance of my time.

Mr. SERRANO. Not allowing them to use their local funds is something that has been said on that side many, many, many times.

Mr. Speaker, it is my honor to yield 3 minutes to the gentleman from Michigan (Mr. DINGELL), the dean of the House.

(Mr. DINGELL asked and was given permission to revise and extend his remarks.)

Mr. DINGELL. Mr. Speaker, I thank my good friend for the time.

One of my colleagues yesterday said, You've seen it worse, haven't you? Well, I've only been here 57 years, and I never have.

I've never seen such small-minded, miserable behavior in this House of Representatives and such a disregard of our responsibilities to the people. We're supposed to solve the problems of the people. We're supposed to deal with the concerns they have. We're supposed to see to it that the Nation prospers. None of that is being done. The American people could get better government out of the monkey island in the local zoo than we're giving them today.

I'm embarrassed and I'm humiliated. I certainly hope that my colleagues on both sides—especially on the Republican side—are embarrassed.

This is going to cost us huge amounts of money. It's going to waste money in an amount which will exceed that which we saw wasted during the last time the Republicans shut the House down. They shut it down in 1995 and 1996. In today's dollars, it cost $2 billion, according to the Office of Management and Budget. This shutdown is no different. It's going to end up not only costing money, but hurting the economy, hurting jobs, and hurting the American recovery.

During the last shutdown, we lost huge amounts of revenue through the IRS, EPA, and other agencies. Passport applications were not processed, which meant even more revenue was lost. National parks, battlefields, and monuments were closed.

Now we're going to pass a budget with hit-and-miss legislation and the subjugate people are going to think that in some quaint way we're solving the Nation's problems.

We are called the Congress. That means coming together. I see no coming together here. I see a waste of time, a waste of money, and a behavior of a bunch of people who look small, petulant, and small-minded.

I'm embarrassed. I hope my colleagues are embarrassed. And the American people are not only embarrassed; they're being hurt by the shameless, miserable behavior that we're demonstrating today in this Chamber and on the television to the Nation.

Let's get down to business. Let's pass a continuing resolution. Let's do our responsibilities. Let's behave as a Congress of the United States, not an aggregation of petulant children.

Mr. CRENSHAW. Mr. Speaker, I yield myself such time as I may consume.

I still don't understand why it's so hard for my friends on the other side to vote in favor of allowing the District of Columbia to spend their own locally raised funds.

Back in 1996, as they may recall, there was a shutdown of the government; and there was a standalone provision, pretty much just like this, and it was signed into law by the President of the United States. It was Bill Clinton, a Democrat.

I just don't understand why it's so hard for Democrats to accept that today.

With that, I yield 4 minutes to the gentleman from California, DARRELL ISSA, the distinguished chairman of the Government Oversight and Reform Committee.

Mr. ISSA. I thank the gentleman.

Mr. Speaker, I must admit that I'm the gentleman, the colleague, that walked up to Mr. DINGELL and asked him if he'd ever seen it this bad before. And I'm sorry to hear that he did. Because in his 57 years, he covered 57 of my 59 years of life. So I hope I'm not the petulant child when I say that, quite frankly, the disregard over the District of Columbia is on his side of the aisle.

It's not an appropriations bill. It's not really part of the CR.

The truth is the District of Columbia pulls quarters out of meters every day, and they're not going to be allowed to spend that. They receive revenues from building permits, but they're not going to be able to use that money to keep the people that look at those building permits employed.

They receive money from the various services they do, including, obviously, making sure that the property in the District of Columbia is protected. And that creates the property value on which we who own property in the District of Columbia—and I am among them—pay our taxes.

Now, the Democrats love to talk about taxation without representation. Well, I'm here today to say, Where is ELEANOR HOLMES NORTON's representation? Give her her due.

They're being taxed locally. Those moneys will build up locally. And you're saying they can't spend it?

There's no question in your mind that the right thing to do is to pass a CR on everything cleanly. That's good. But until we pass a CR which would include some funds for the District of Columbia, allowing them to have what every single Member on both sides of the aisle has going on in every single city in their districts, it's just fairness.

Do not treat the District of Columbia greater than what it is—it is the Federal city—but for goodness sake, it's a city. It should have the right to spend its own money.

Yesterday, I was pleased to see some 34 Democrats cross former Speaker PELOSI's orders and edicts to vote ''no'' on everything and vote with ELEANOR HOLMES NORTON. I just hope today that people will search their souls and ask the question, Don't you really want to vote ''yes''?

Isn't this a time in which you show your independence and do the right thing for the District of Columbia and let them spend their own money? Or will you go home to the city you live in tonight or this weekend, knowing that they're spending the money that they collect locally and you're denying the District of Columbia the ability to spend the money it collects locally?

Our committee passed unanimously a bill to make that permanent. It wasn't an appropriations bill. It was a statutory change to the Home Rule Act. I only ask that you realize that we were on a trajectory toward providing an enhancement in home rule that would cover this. I want that bill brought up as soon as possible, but this is the equivalent for this crisis period.

I saw my friend ELEANOR HOLMES NORTON almost in tears yesterday because she couldn't believe her own party wouldn't support her. Don't do that today.

Support the Delegate from the District of Columbia and support the people of the District of Columbia in their ability to spend their own money, or you will be damning them to taxation without representation.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair will remind all persons in the gallery that they are here as guests of the House and that any manifestation of approval or disapproval of proceedings is in violation of the rules of the House.

Mr. SERRANO. Mr. Speaker, I yield myself such time as I may consume.

Just two quick points. First of all, the gentleman from California (Mr. ISSA), the bill yesterday passed on a voice vote, and then he interrupted the Speaker and asked for a vote, which then led to a recorded vote.

Secondly, I yield 2 minutes to the gentlelady from New York (Mrs. LOWEY), my colleague and ranking

member on the Appropriations Committee.

Mrs. LOWEY. Mr. Speaker, I rise in opposition to the Republican shutdown. We can't cherry-pick our way through funding the government. Of course we support funding for the District of Columbia; but we also support funding for 800,000 Americans who are being furloughed, restoring SBA loans to help small businesses grow, and restarting Head Start centers.

Mr. Speaker, I would say to my friend, Delegate ELEANOR HOLMES NORTON, it really pains me that Republicans have brought up this cynical bill yet again today. Funding one budget at a time is no way to fulfill our constitutional responsibilities to keep the government running or growing our economy.

This bill is nothing more than a Republican ploy. It isn't designed to solve problems. It is designed only to help Republicans shift blame for the most evident results of their shutdown. It would not be before us if Republicans had not been so irresponsible throughout the budgetary process, forcing us into a shutdown.

This bill is wasting critical time that should be spent passing the Senate-passed compromise bill that we know the President would sign to end the shutdown for all of government. This bill is irresponsible.

Mr. CRENSHAW. Mr. Speaker, could I inquire as to how much time is remaining on each side.

The SPEAKER pro tempore (Mr. COLLINS of Georgia). The gentleman from Florida has 6 minutes; the gentleman from New York has 5¼ minutes.

Mr. CRENSHAW. Mr. Speaker, I reserve the balance of my time.

□ 1600

Mr. SERRANO. Mr. Speaker, I yield to the gentlewoman from Ohio (Ms. KAPTUR) for a unanimous consent request.

Ms. KAPTUR. I want to thank Ranking SERRANO, and ask unanimous consent that the House bring up the Senate amendment to H.J. Res. 59, the clean continuing resolution, so we can go to conference on a real budget.

Let's end this Republican government shutdown that is already harming economic recovery and has already slowed growth by a third of 1 percent.

The SPEAKER pro tempore. Under guidelines consistently issued by successive speakers, as recorded in section 956 of the House Rules and Manual, the Chair is constrained not to entertain the request unless it has been cleared by the bipartisan floor and committee leaderships.

Mr. SERRANO. Mr. Speaker, I yield to the gentleman from North Carolina (Mr. PRICE) for a unanimous consent request.

Mr. PRICE of North Carolina. Mr. Speaker, I ask unanimous consent that the House now consider the Senate-passed clean continuing resolution so that the Department of Homeland Security can pay the frontline personnel that put their lives on the line every day and secure our country's critical infrastructure.

The SPEAKER pro tempore. As the Chair has previously advised, the request cannot be entertained absent appropriate clearance.

Mr. SERRANO. Mr. Speaker, I yield to the gentleman from California (Mr. FARR) for a unanimous consent request.

Mr. FARR. Mr. Speaker, I ask unanimous consent to bring up the Senate amendment to H.J. Res. 59 and stop this silly game-playing, multiple-choice government.

The SPEAKER pro tempore. As the Chair has previously advised, that request cannot be entertained absent appropriate clearance.

Mr. SERRANO. Mr. Speaker, I yield to the gentleman from Arizona (Mr. PASTOR) for a unanimous consent request.

Mr. PASTOR of Arizona. Mr. Speaker, I ask unanimous consent that the House bring the Senate amendment to H.J. Res. 59, the clean continuing resolution that will end the outrageous Republican shutdown which threatens the recovery of our housing sector, furloughs more than 3,000 aviation safety inspectors, and is reckless to our economy.

The SPEAKER pro tempore. As the Chair has previously advised, that request cannot be entertained absent appropriate clearance.

Mr. SERRANO. Mr. Speaker, I yield to the gentleman from Rhode Island (Mr. LANGEVIN) for a unanimous consent request.

The SPEAKER pro tempore. The Chair will recognize for proper unanimous consent requests, but not for debate.

The gentleman from Rhode Island is recognized.

Mr. LANGEVIN. Mr. Speaker, I ask unanimous consent that the House bring up the Senate amendment to H.J. Res. 59, the clean CR, and go to conference on a budget so that we end this Republican government shutdown that is slowing the economic growth and threatening to derail our economy at a time when we can least afford it.

The SPEAKER pro tempore. As the Chair has previously advised, the request cannot be entertained absent appropriate clearance.

Mr. SERRANO. Mr. Speaker, I yield to the gentleman from North Carolina (Mr. BUTTERFIELD) for a unanimous consent request.

Mr. BUTTERFIELD. I ask unanimous consent that the House bring up the Senate amendment to H.J. Res. 59, which is the clean CR, and go to conference on a budget so that we can end this Republican government shutdown that is delaying student loans.

The SPEAKER pro tempore. As the Chair has previously advised, the request cannot be entertained absent appropriate clearance.

The gentleman from New York will be charged.

Mr. SERRANO. Charged with what?

The SPEAKER pro tempore. Time will be deleted.

Mr. SERRANO. Oh, just checking what I was being charged with.

The SPEAKER pro tempore. Understandable.

Mr. SERRANO. Mr. Speaker, I yield to the gentlewoman from Florida (Ms. WASSERMAN SCHULTZ) for a unanimous consent request.

Ms. WASSERMAN SCHULTZ. Mr. Speaker, I ask unanimous consent that the House bring up the Senate amendment to H.J. Res. 59, to end this reckless Republican-orchestrated shutdown. It is time for the House Republican leadership to stop with the gimmicks and step up with a legitimate effort to re-open the government.

The SPEAKER pro tempore. As the Chair has previously advised, that request cannot be entertained absent appropriate clearance.

The gentleman from New York's time will be charged.

Mr. SERRANO. Mr. Speaker, I yield to the gentlewoman from New York (Ms. MENG) for a unanimous consent request.

The SPEAKER pro tempore. The gentlewoman will suspend. The Chair would like to clarify.

The Chair would advise Members that although a unanimous consent request to consider a measure is covered by the Speaker's guidelines for recognition. Embellishments constitute debate and can become an imposition on the time of the Member who is yielded for that purpose.

Mr. SERRANO. Mr. Speaker, does that mean that the Members cannot state why we should end this charade?

The SPEAKER pro tempore. The Members can state their unanimous consent request but cannot engage in debate thereon.

The gentlewoman can continue.

Ms. MENG. Mr. Speaker, I ask unanimous consent that the House bring up the Senate amendment to H.J. Res. 59, the clean CR, and go to conference on a budget so that we end this Republican government shutdown that is taking away nutritious foods from young children and mothers in the WIC program.

The SPEAKER pro tempore. As the Chair has previously advised, that request cannot be entertained absent appropriate clearance.

Mr. SERRANO. Mr. Speaker, I yield to the gentleman from Massachusetts (Mr. KENNEDY) for a unanimous consent request.

Mr. KENNEDY. I thank my colleague from New York.

Mr. Speaker, I ask unanimous consent to address the House and ask that the House bring up the Senate amendment to H.J. Res. 59, the clean CR, and go to conference on a budget so that we can end the Republican government shutdown that is hurting public safety.

The SPEAKER pro tempore. As the Chair has previously advised, that request cannot be entertained absent appropriate clearance.

Mr. BARTON. Mr. Speaker, how much time does the gentleman from New York control at this point in time?

The SPEAKER pro tempore. The gentleman from New York has 5 minutes remaining. The gentleman from Florida has 6 minutes remaining.

Mr. SERRANO. Mr. Speaker, I yield to the gentleman from Washington (Mr. KILMER) for a unanimous consent request.

I yield to the gentleman from Texas (Mr. VEASEY) for a unanimous consent statement.

I yield to the gentleman from California (Mr. TAKANO) for a unanimous consent request.

PARLIAMENTARY INQUIRY

Mr. TAKANO. Mr. Speaker, before I state my unanimous consent request, may I ask a point of information?

The SPEAKER pro tempore. The gentleman may state a parliamentary inquiry.

Mr. TAKANO. My inquiry is: Who is the Speaker of this House? Is it JOHN BOEHNER or is it TED CRUZ?

The SPEAKER pro tempore. The gentleman has not stated a proper parliamentary inquiry.

Mr. TAKANO. Mr. Speaker, I ask unanimous consent that the House bring up the Senate amendment to H.J. Res. 59, the clean CR, to go to conference on a budget so that we end this Republican government shutdown that is adding to the veterans' disability backlog.

The SPEAKER pro tempore. As the Chair previously advised, that request cannot be entertained absent appropriate clearance.

Mr. SERRANO. Mr. Speaker, I yield to the gentlewoman from Ohio (Mrs. BEATTY) for a unanimous consent request.

Mrs. BEATTY. Mr. Speaker, I ask unanimous consent that the House bring up the Senate amendment to H.J. Res. 59, the clean CR, and go to conference on a budget that will end this Republican government shutdown that is delaying home loans.

The SPEAKER pro tempore. As the Chair has previously advised, that request cannot be entertained absent appropriate clearance.

Mr. SERRANO. Mr. Speaker, I yield to the gentleman from Arizona (Mr. BARBER) for a unanimous consent request.

Mr. BARBER. Mr. Speaker, I ask unanimous consent that the House bring up the Senate amendment to H.J. Res. 59, the clean CR, and go to conference on a budget so that we can end this irresponsible shutdown of the United States Government and restore the people's government.

The SPEAKER pro tempore. As the Chair has previously advised, that request cannot be entertained absent appropriate clearance.

Mr. SERRANO. Mr. Speaker, I yield to the gentleman from New Jersey (Mr. HOLT) for a unanimous consent request.

Mr. HOLT. I thank the gentleman.

I ask unanimous consent that the House bring up the Senate amendment to H.J. Res. 59, the clean CR, and go to conference on a budget so that we can end this Republican government shutdown that is undermining public health by preventing the CDC from working on its annual flu vaccine or detecting disease outbreaks.

The SPEAKER pro tempore. As the Chair has previously advised, that request cannot be entertained absent appropriate clearance.

Mr. SERRANO. Mr. Speaker, I yield to the gentleman from the great State of New York (Mr. SEAN PATRICK MALONEY) for a unanimous consent request.

Mr. SEAN PATRICK MALONEY of New York. Mr. Speaker, I ask unanimous consent that, to help the hundreds of workers at West Point and the Stewart Air National Guard base, we bring up the Senate amendment to H.J. Res. 59, the clean CR, and stop this reckless Republican government shutdown.

The SPEAKER pro tempore. As the Chair has previously advised, that request cannot be entertained absent appropriate clearance.

Mr. SERRANO. Mr. Speaker, I'd now like to yield 3 minutes to the gentlelady from the District of Columbia (Ms. NORTON).

Ms. NORTON. I thank the gentleman for yielding and for his support during his service in Congress for the District of Columbia.

Notwithstanding the way the D.C. budget is coming to the floor this year, I come to the floor to ask my colleagues for help. And I think each and every last one of you would be saying exactly what I'm saying if your own district was on the line.

I'm speaking for 618,000 innocent bystanders to this Federal food fight. They have raised $8 billion—more than four States—but they are not able to spend a dime of it as I speak because this Congress hasn't done its work, and they have no authority to spend their own local funds. They are living off of contingency funds that are fast running out. You are holding their local funds as if it were your money. It's our money.

The strategy of each side seems to deepen the city's crisis. The Republicans cherry-pick, but the health care bill is still on the table. The Democrats see that the public is on its side, so they don't have any incentive to move. The goals of each side are known, but neither has an exit strategy, and it is the District of Columbia that is hurting.

If the game plan is to keep this going until the debt ceiling in the middle of the month, please don't. Each day without an agreement is punishing millions of Americans and every single D.C. resident. Freeing D.C. leaves every bit of the strategy of each side in place because all the Federal funds are there.

The sin was requiring the local budget to come here in the first place. Don't compound that sin by simply throwing D.C. into the pile with Federal appropriations and pretending as if they were the same.

You have no right to pull a defenseless city into this Federal boxing match. You have no right to use the good name of the people of the District of Columbia alongside appropriations—no matter how wonderful they are. Those appropriations depend upon your funding. The $8 billion is our funding.

You have no right to leave our local budget sticking up like a sore thumb among the Federal appropriations. It's our money, not yours. Do not drive the Nation's Capital into crisis. Pass this bill. Free D.C. Please free the people of the District of Columbia.

Mr. CRENSHAW. Mr. Speaker, can I inquire of the gentleman from New York how many speakers he has remaining?

Mr. SERRANO. We have two.

Mr. CRENSHAW. We don't have any additional speakers, so I reserve the balance of my time.

Mr. SERRANO. Mr. Speaker, may I inquire as to how much time I have remaining?

The SPEAKER pro tempore. The gentleman from New York has 2 minutes remaining. The gentleman from Florida has 6 minutes remaining.

Mr. SERRANO. Mr. Speaker, I yield 1 minute to the gentleman from Michigan (Mr. KILDEE).

Mr. KILDEE. I thank the gentleman for yielding.

I'm new to Congress, and I knew when I was elected last year that I was coming to a place where I would be in the minority and where it was a highly partisan environment.

I was elected to replace a gentleman—my uncle—who served in this body for 36 years. He sat alongside Mr. DINGELL, whom we heard from earlier. I did not believe, though, that I was elected to a body where the majority would impose its will and use the rules to prevent a vote on the floor of the House for action that would open government—that the President supports, that the Senate has already adopted, and that Democrats and Republicans in this body have both acknowledged would pass if it were brought to a vote here on the floor of the House.

We know how we can get D.C. and the whole rest of the government open again. It's simply to do what the will of this body would have us do if we were only allowed a vote. And that is to bring the Senate CR to the floor of the House. We will pass it; we will get government open again; and then we can go to conference on the rest of the budget.

Mr. CRENSHAW. I reserve the balance of my time.

Mr. SERRANO. Mr. Speaker, I now yield to the gentleman from Georgia (Mr. BISHOP) for a unanimous consent statement.

Mr. BISHOP of Georgia. I thank the gentleman.

In order to end these childish games and put our government back to work

for the American people, I ask unanimous consent, Mr. Speaker, that the House bring up the Senate amendment to H.J. Res. 59.

The SPEAKER pro tempore. As the Chair has previously advised, that request cannot be entertained absent appropriate clearance.

Mr. SERRANO. Mr. Speaker, I yield myself the balance of my time.

Mr. Speaker, I just wish that in the 23 years I've been fighting on behalf of the District of Columbia I had heard so much love from the other side for the District of Columbia.

□ 1615

This is a game, this is a ploy. It is such a ploy that even when they had an opportunity to get by under the screen yesterday, they didn't do it.

Let me just end briefly by repeating this. There was a vote call on the floor. No one from this side called for a vote. The Speaker said that the bill had passed. Someone—they are denying now who it was—from that side called for a vote.

We had a vote on this bill yesterday which resulted in what it resulted in because that side called for a vote. Why? Because they wanted to show a vote on the board. They wanted to make this a show, a trick, a ploy, and a sham. They didn't want that bill to really pass, and I am not sure they want the bill to pass today.

I yield back the balance of my time.

Mr. CRENSHAW. Mr. Speaker, I yield myself the balance of my time.

There has been a lot of talk about political games. To watch people parade up and down and make speeches under the guise of a unanimous consent, I am not sure how serious that is. I am not sure how much that complies with the rules of the House. But be that as it may.

You have folks on the other side that say they really believe the District of Columbia ought to be able to spend its own money, but yet they vote ''no'' on the authorization to do that.

We are in the second day of a shutdown in the Federal Government. A lot of people are upset. I am upset, I am disappointed, because it doesn't have to be this way.

On three separate occasions, this House sent to the Senate a continuing resolution that would have kept the government open, kept the government running—three times. Yet three times the Democratic-controlled Senate said no—not once, not twice, but three times.

Then this House sent to the Senate a continuing resolution that also said: let's appoint a conference committee. That is a group of individuals from the House and a group of individuals from the Senate. They would sit down and they would try to resolve these differences to try to keep the government open. Because how are you going to solve a problem unless you sit down—that is what we call a conference committee—and then you try to move forward? But the Senate once again said no.

Now, we all know that we have conference committees from time to time. The gentleman from New York and I—he is the ranking member of the Financial Services Subcommittee of Appropriations. We have jurisdiction over lots of different agencies—the IRS, the Department of Treasury, the Federal Court system, the Supreme Court, the Securities and Exchange Commission, the Federal Communications Commission.

We drafted a spending bill this year. I assumed the Senate was working on their own spending bill somewhere, somehow, some way. Usually, when it all ends up there is a conference committee and you try to work out your differences.

For instance, we oversee the IRS. Members might remember the scandal that took place. As we were appropriating money to the IRS, we found out that they had been singling out individuals and groups of individuals based on their political philosophy and they had intimidated them, they bullied them, and it held them up. We thought that was wrong. So when we drafted our appropriations bill we didn't give the IRS all the money they asked for.

But the Senate might have done something different. If that was the case, then we would come together and have a conference committee, and we would talk about that.

That is all we are saying here. Why don't we sit down and have a conference committee about how we are going to fund the Federal Government? That is the way to get started, that is the way to figure out a final way, that is a way to stop this shutdown.

Again, we don't have to be here. It is disappointing. I wish we could move ahead. But at least—at least—let's pass this continuing resolution. Let's say to the District of Columbia we have met our legal responsibility and we have appropriated their own local funds so they can move on with their lives. Let's don't punish the citizens of the District of Columbia, let's don't punish the people that work in the District of Columbia to try to keep the city open, keep it running, keep it safe, keep it clean. Let's pass this resolution and move ahead.

With that, I urge the adoption of this joint resolution, and I yield back the balance of my time.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to House Resolution 370, the previous question is ordered.

The joint resolution was ordered to be engrossed and read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

MOTION TO TAKE FROM THE SPEAKER'S TABLE H.J. RES. 59, CONTINUING APPROPRIATIONS RESOLUTION, 2014

Mr. VAN HOLLEN. Mr. Speaker, I move to take from the Speaker's table H.J. Res. 59 with the House amendment to the Senate amendment thereto, to recede from the House amendment and concur in the Senate amendment.

The SPEAKER pro tempore. Under section 2 of House Resolution 368, that motion may be offered only by the majority leader or his designee.

PARLIAMENTARY INQUIRIES

Mr. VAN HOLLEN. Mr. Speaker, I have a parliamentary inquiry.

The SPEAKER pro tempore. The gentleman will state his parliamentary inquiry.

Mr. VAN HOLLEN. Mr. Speaker, I am looking at the standing rules of the House, particularly standing rule XXII, clause 4, which reads:

When the stage of disagreement has been reached on a bill or resolution with House or Senate amendments, a motion to dispose of any amendment shall be privileged.

My question, Mr. Speaker, is: Haven't we now reached that state of disagreement as defined by rule XXII, clause 4?

The SPEAKER pro tempore. The gentleman is correct, but under section 2 of House Resolution 368, the motion may be offered only by the majority leader or his designee.

Mr. VAN HOLLEN. Mr. Speaker, I have a parliamentary inquiry.

The SPEAKER pro tempore. The gentleman will state his parliamentary inquiry.

Mr. VAN HOLLEN. Mr. Speaker, you started by saying the gentleman is correct. Did you mean that I am correct in saying that the standing House rule XXII, clause 4 that says that the ''stage of disagreement has been reached on a bill or resolution with House or Senate amendments,'' that that would be applicable under the standing rule if the standing rule was in order?

The SPEAKER pro tempore. The gentleman is correct about the standing rule.

Mr. VAN HOLLEN. Mr. Speaker, I have a parliamentary inquiry.

The SPEAKER pro tempore. The gentleman will state his parliamentary inquiry.

Mr. VAN HOLLEN. Mr. Speaker, what is it that changed the normal rules of the House with respect to the ability of any Member, including myself or any Member on the other side, to offer a resolution calling up the CR passed by the Senate and asked that it be sent to the White House immediately? Why is that standing rule of the House not in operation right now?

The SPEAKER pro tempore. The House is operating under the terms of House Resolution 368, which provides that the motion may be offered only by the majority leader or his designee.

Mr. VAN HOLLEN. Mr. Speaker, I have a parliamentary inquiry.

The SPEAKER pro tempore. The gentleman will state his parliamentary inquiry.

Mr. VAN HOLLEN. Mr. Speaker, I am asking why it is that the standing rule of the House, the normal rules of the House that we have been operating under, rule XXII, clause 4, what is it that has changed that that makes it impossible for me now to offer a motion to send the clean CR to the White House where the President can sign it tonight? What is it that has changed the standing rule of the House?

The SPEAKER pro tempore. A special order of business resolution adopted by the House limits the motion to the majority leader or his designee.

Mr. VAN HOLLEN. Mr. Speaker, I have a parliamentary inquiry.

The SPEAKER pro tempore. The gentleman will state his parliamentary inquiry.

Mr. VAN HOLLEN. Mr. Speaker, so a special order has changed and modified the standing rule of the House; am I right about that?

The SPEAKER pro tempore. House Resolution 368 has limited the availability of the motion.

Mr. VAN HOLLEN. Mr. Speaker, I have a parliamentary inquiry.

The SPEAKER pro tempore. The gentleman will state his parliamentary inquiry.

Mr. VAN HOLLEN. Mr. Speaker, under the regular order of the House, would any Member of the House, including myself, be able to call up a motion to immediately send the CR to fund the government to the President of the United States, to immediately call up and have a vote on that?

The SPEAKER pro tempore. The Chair will not respond to a hypothetical.

Mr. VAN HOLLEN. Mr. Speaker, I have a parliamentary inquiry.

The SPEAKER pro tempore. The gentleman will state his parliamentary inquiry.

Mr. VAN HOLLEN. Mr. Speaker, just so I understand the response, under the rules of the House, you indicated that the standing rules of the House have been put aside in favor of H. Res. 368; is that correct?

The SPEAKER pro tempore. With regard to the motion in question, that is correct.

Mr. VAN HOLLEN. Mr. Speaker, I have a parliamentary inquiry.

The SPEAKER pro tempore. The gentleman will state his parliamentary inquiry.

Mr. VAN HOLLEN. Mr. Speaker, am I correct that section 2 of that new rule says that any motion pursuant to the standing rule, clause 4 of rule XXII, may now only be offered by the Republican leader or the designee of the Republican leader; is that correct?

The SPEAKER pro tempore. The Chair will re-state his original response.

Under section 2 of House Resolution 368, the motion may be offered only by the majority leader or his designee.

Mr. VAN HOLLEN. Mr. Speaker, I have a parliamentary inquiry.

The SPEAKER pro tempore. The gentleman will state his inquiry.

Mr. VAN HOLLEN. Mr. Speaker, the rule that has now been placed over the House in substitute for the standing rules of the House gives only the majority leader or his designee the ability to move up and ask for a vote on the clean Senate bill that would go to the White House; is that correct?

The SPEAKER pro tempore. The Chair will not respond to a political characterization and will state again:

Under section 2 of House Resolution 368, that motion may be offered only by the majority leader or his designee.

Mr. VAN HOLLEN. Mr. Speaker, I have a parliamentary inquiry.

The SPEAKER pro tempore. The gentleman will state his parliamentary inquiry.

Mr. VAN HOLLEN. Mr. Speaker, it seems pretty clear that we have taken the normal rules of the House, Mr. Speaker, and substitute in its place a provision that says, ''only the Republican leader can make a decision—''

The SPEAKER pro tempore. The gentleman has not stated a proper parliamentary inquiry.

## NATIONAL INSTITUTES OF HEALTH CONTINUING APPROPRIATIONS RESOLUTION, 2014

Mr. KINGSTON. Mr. Speaker, pursuant to House Resolution 370, I call up the joint resolution (H.J. Res. 73) making continuing appropriations for the National Institutes of Health for fiscal year 2014, and for other purposes, and ask for its immediate consideration.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. Pursuant to House Resolution 370, the joint resolution is considered read.

The text of the joint resolution is as follows:

H.J. RES. 73

*Resolved by the Senate and House of Representatives of the United States of America in Congress assembled,* That the following sums are hereby appropriated, out of any money in the Treasury not otherwise appropriated, and out of applicable corporate or other revenues, receipts, and funds, for the National Institutes of Health for fiscal year 2014, and for other purposes, namely:

SEC. 101. (a) Such amounts as may be necessary, at a rate for operations as provided in the Full-Year Continuing Appropriations Act, 2013 (division F of Public Law 113–6) and under the authority and conditions provided in such Act, for continuing projects or activities (including the costs of direct loans and loan guarantees) that are not otherwise specifically provided for in this joint resolution, that were conducted in fiscal year 2013, and for which appropriations, funds, or other authority were made available by such Act under the heading ''Department of Health and Human Services—National Institutes of Health''.

(b) The rate for operations provided by subsection (a) for each account shall be calculated to reflect the full amount of any reduction required in fiscal year 2013 pursuant to—

(1) any provision of division G of the Consolidated and Further Continuing Appropriations Act, 2013 (Public Law 113–6), including section 3004; and

(2) the Presidential sequestration order dated March 1, 2013, except as attributable to budget authority made available by the Disaster Relief Appropriations Act, 2013 (Public Law 113–2).

SEC. 102. Appropriations made by section 101 shall be available to the extent and in the manner that would be provided by the pertinent appropriations Act.

SEC. 103. Unless otherwise provided for in this joint resolution or in the applicable appropriations Act for fiscal year 2014, appropriations and funds made available and authority granted pursuant to this joint resolution shall be available until whichever of the following first occurs: (1) the enactment into law of an appropriation for any project or activity provided for in this joint resolution; (2) the enactment into law of the applicable appropriations Act for fiscal year 2014 without any provision for such project or activity; or (3) December 15, 2013.

SEC. 104. Expenditures made pursuant to this joint resolution shall be charged to the applicable appropriation, fund, or authorization whenever a bill in which such applicable appropriation, fund, or authorization is contained is enacted into law.

SEC. 105. This joint resolution shall be implemented so that only the most limited funding action of that permitted in the joint resolution shall be taken in order to provide for continuation of projects and activities.

SEC. 106. Amounts made available under section 101 for civilian personnel compensation and benefits in each department and agency may be apportioned up to the rate for operations necessary to avoid furloughs within such department or agency, consistent with the applicable appropriations Act for fiscal year 2013, except that such authority provided under this section shall not be used until after the department or agency has taken all necessary actions to reduce or defer non-personnel-related administrative expenses.

SEC. 107. It is the sense of Congress that this joint resolution may also be referred to as the ''Research for Lifesaving Cures Act''.

This joint resolution may be cited as the ''National Institutes of Health Continuing Appropriations Resolution, 2014''.

The SPEAKER pro tempore. The joint resolution shall be debatable for 30 minutes, equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations.

The gentleman from Georgia (Mr. KINGSTON) and the gentlewoman from Connecticut (Ms. DELAURO) each will control 15 minutes.

The Chair recognizes the gentleman from Georgia.

GENERAL LEAVE

Mr. KINGSTON. Mr. Speaker, I ask unanimous consent that all Members may have 5 legislative days in which to revise and extend their remarks and include extraneous material on H.J. Res. 73, and that I may include tabular material on the same.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Georgia?

There was no objection.

Mr. KINGSTON. Mr. Speaker, I yield 2 minutes to the gentleman from Texas (Mr. BARTON).

(Mr. BARTON asked and was given permission to revise and extend his remarks.)

Mr. BARTON. Mr. Speaker, I rise in strong support of this resolution. I am the chairman emeritus of the Energy and Commerce Committee and back in 2006 passed the reauthorization of the NIH, which authorized increased funding, set up some new programs, reformed the agency, and was viewed at that time as a landmark for the NIH.

The bill before us today would fund the functions of the NIH for the next fiscal year. We all agree with the programs that NIH is engaged in, trying to find cures for cancer, Alzheimer's, heart disease, lung disease, autism, you name it.

Unfortunately, yesterday, apparently the majority leader in the Senate doesn't agree with that. He was asked by a CNN reporter named Dana Bash about supporting this particular bill. The Senator gave a somewhat negative answer, so the reporter came back: ''But if you can help one child who has cancer, why wouldn't you do it?'' The answer from the majority leader was: ''Why would we want to do that? I have 1,100 people at Nellis Air Force Base that are sitting at home. They have a few problems of their own. This is—to have someone of your intelligence to suggest such a thing maybe means you're irresponsible and reckless.'' The reporter responded: ''I'm just asking a question.''

Mr. Speaker, we should pass this resolution, notwithstanding what the majority leader in the other body says. It is very straightforward. I think in any normal situation there would be bipartisan support for this. Ms. DELAURO and Mr. KINGSTON have worked very hard on a bipartisan basis. I am not aware that there are any real concerns about the funding that haven't been worked out in the committee. This is an example of bipartisanship that is working. There is absolutely no reason why we can't put our differences aside and pass this resolution. I ask that we support it at the appropriate time.

Ms. DELAURO. Mr. Speaker, I yield myself such time as I may consume.

I rise in opposition to this cynical and, quite frankly, offensive NIH funding bill. Instead of simply allowing a vote on the budget for the full government, the majority is continuing their hostage crisis approach to governing.

□ 1630

Let us call this charade what it is. This is a desperate attempt by irresponsible lawmakers to play political games with a crisis they have created, a crisis that is costing the American economy $300 million a day. The number will go up as the shutdown continues.

I am an ovarian cancer survivor. I stand here today because of the grace of God and because of the hard work done by the men and women at the NIH, so I know firsthand the value and the importance of medical research.

I have been fighting for months—for years—to get this majority to support the lifesaving medical research at the National Institutes of Health. If you factor in population growth and inflation, NIH funding right now is over 14 percent below what it was in 2010, which is when the majority took over. The number of research grants is lower than it has been since 2001. This diminishes the NIH's ability to fund research, to conduct clinical trials, and to develop new lifesaving treatments.

This majority has long refused to bring a labor, health and education funding bill up for consideration, though I have asked over and over and over again for them to bring it up. The budget they drafted a few months ago made deep and dangerous cuts to the NIH, and the bill before us seeks to make permanent the unacceptable funding cuts caused by sequestration—cuts that are stalling lifesaving biomedical research all across this country. The majority talks out of both sides of its mouth. I find this new attention to NIH funding disingenuous.

Mr. Speaker, while medical research is vitally important, it is also only one of the many vitally important things our government does. We also help to feed women and children who are living on the edge, and 9 million have been cut off from nutritional support. We also keep track of the spread of infectious diseases, and the Centers for Disease Control has been forced to halt those activities. We help students pay for college. We protect the Nation's food supply. We provide meals to low-income seniors. We help support food banks for the hungry. We shelter the homeless. We further the march of science. We provide job training for the unemployed and returning veterans. We ensure access to mental health services for those who need them. We educate the disadvantaged and the disabled. We ensure the Nation has clean water to drink and clean air to breathe. We help small businesses start and grow. We help middle class home buyers secure funds.

Where is the funding for all of these other important activities?

The American people are sick of this reckless behavior. It is time to act like responsible adults. Instead of letting the extreme wing of the majority shut down the government, instead of wasting time trying to play politics, instead of cherry-picking important programs like the NIH to fund, we should be working on a budget for the entire government, one that does right by all of our fundamental priorities—creates jobs, supports the middle class and working families, and ensures long-term growth. That is what we were elected to do. That is our job. Let's stop playing games and get to work.

I reserve the balance of my time.

Mr. KINGSTON. I yield 2 minutes to the gentleman from Arkansas (Mr. WOMACK).

Mr. WOMACK. I thank the gentleman.

Mr. Speaker, I rise in support of the resolution because it allows the NIH to continue to operate at the FY13 funding levels until mid-December. The bill mirrors the clean CR that our friends across the aisle and Senate Democrats have said they will support. It should be supported by all Members of Congress.

As you have heard, Mr. Speaker, the NIH's mission is to invest in basic biomedical research to uncover new knowledge that can lead to lifesaving cures for disease, like pancreatic cancer, like Alzheimer's, like diabetes. It supports 35,000 research grants at over 3,000 institutes and universities across our country. In my home State of Arkansas, the University of Arkansas for Medical Sciences is one such institute; and just this morning, the UAMS Cancer Institute announced a new collaboration with Highlands Oncology. It will undoubtedly bring incredible opportunity to Arkansas, our research and our cancer patients.

As many of my colleagues know, two-thirds of NIH's staff has been furloughed due to the lapse in appropriations. NIH has been forced to shut down the pipeline for finding future lifesaving cures, and it has shut off all systems that support grant review, leaving our researchers with many uncertainties. That's where this resolution comes in.

Federal funding is essential to sustaining the mission of improving health through scientific breakthroughs and maintaining international leadership in biomedical research, which is why we must allow the NIH to stay open while we continue to work toward regular order and through funding the rest of our Federal Government.

I urge my colleagues to support this critical legislation, legislation on which our scientists, our doctors, our patients, and our futures depend.

Ms. DELAURO. Mr. Speaker, I yield 1½ minutes to the gentleman from California (Mr. MILLER), my friend, the distinguished ranking member of the Education and the Workforce Committee.

(Mr. GEORGE MILLER of California asked and was given permission to revise and extend his remarks.)

Mr. GEORGE MILLER of California. Mr. Speaker, the House floor is starting to feel like a new episode of ''The Hunger Games.''

Every day, the Republican leadership tries to find a new way to pit one desperate group of Americans against another. Today, because of the shutdown, Republicans are pitting kids with cancer against kids who are hungry. This bill is designed to release funds for the NIH today so that they can reduce funding for programs for kids, programs that keep children with the nutrition that they need. For a little bit longer, they can go hungry while we take care of the kids with cancer.

I don't buy their newfound concern about NIH funding, and the American people aren't buying it either. What did they think was going to happen when they shut down the NIH? Did they have

any working knowledge of what takes place at the NIH?

The gentleman from Arkansas has just related the integral nature of the NIH to universities and research facilities all across this country, and yet they thought it was free to shut down the NIH? Now they've discovered that hundreds of children are receiving treatment at the NIH for cancer, and now they think the NIH ought to be open, but they're not sure that the Head Start reductions ought to be brought back? This means kids can't get their meals during the day—some 85,000 kids in Arkansas—and they'll go without nutritional assistance because of this shutdown. What about those? Are they next in the barrel here?

Will you come and rescue them? Will you come and rescue the Head Start children who are losing the opportunities to go to school?

What about the active servicemembers who are now facing 4-day school weeks in their classrooms? What about the elimination of important summer programs because of the shutdown? When are you going to take care of the military service's children? What is this going on here?

Every day, we pit one unfortunate victim of this shutdown against another helpless victim of this shutdown, and they think that they can cure it one bill at a time.

The SPEAKER pro tempore. The time of the gentleman has expired.

Ms. DELAURO. I yield the gentleman an additional 30 seconds.

Mr. GEORGE MILLER of California. There are millions of people all across the country and millions of businesses and millions of unfortunate people who have nowhere else to go to get help because of diseases, because of the threats to their lives.

I thank the gentlewoman for bringing this opposition to the resolution to the floor.

I would hope that all Members of Congress would just do what they can do, which is, in the next couple of hours, simply have a clean CR to open up the government. Let the people get the services that they need, and let the public servants who provide them those services go back to work in the name of country.

Mr. KINGSTON. Mr. Speaker, I yield 2 minutes to the gentleman from Michigan (Mr. UPTON), the distinguished chairman of the Energy and Commerce Committee.

Mr. UPTON. Mr. Speaker, let's face it: the failure of not having a CR is that both sides have failed to negotiate an agreement to keep the government open.

Let's hope that the 5:30 meeting this afternoon between Speaker BOEHNER, Leaders PELOSI, MCCONNELL and REID, and the President is not a finger-pointing meeting and that it's not a ''my way or the highway'' meeting but, in fact, a constructive way to get an agreement that most of us, Republicans and Democrats, can support. Whether that agreement comes tonight or tomorrow or, God help us, next week or the following week, at some point, the Sun is going to come up. It's going to happen. In the meantime, we shouldn't harm the folks who are in dire need.

I strongly support the NIH. I look at Mr. WAXMAN, my colleague and ranking member on the Energy and Commerce Committee, as the two of us led the effort to double the money for the NIH a number of years ago. We have folks waiting in the queue to participate in lifesaving clinical trials. They have every right to be furious with this body, but we can fix that by passing this bill so that they don't have to wait.

Come on. Let's put policy over politics and do this, not for us but for them.

Ms. DELAURO. Mr. Speaker, I yield 1½ minutes to the gentleman from California (Mr. WAXMAN), the ranking member on the Energy and Commerce Committee.

Mr. WAXMAN. Mr. Speaker, let's put policy over politics by funding the government.

What this reckless closing of the government has accomplished is to stall a lot of government agencies from doing their mission, and one of the most important agencies that has a mission that is irreplaceable is the NIH. Yet, if you look at the underlying bill—the Republican bill to fund the government, which we are willing to accept—it puts NIH at a really low amount for appropriations, so it's hard to take this claim that they want to help the NIH seriously.

The Republican agenda is reflected in its budget. Republicans proposed a 20 percent cut to health, education and labor programs, and that's a $5 billion loss for NIH. What does that mean? That means that the NIH Clinical Center has to turn away hundreds of patients, many of them children who desperately need care. This is singling out NIH.

What about the other important work that is done to prevent and cure diseases? What about the efforts for the Centers for Disease Control and Prevention? They are not going to be reopened by this legislation, and they detect and respond to disease outbreaks. The Food and Drug Administration, they're not going to get any money by virtue of this special singling-out bill. They won't even be able to do their routine inspections of food and drugs to protect the public from abuses.

If the Republicans were truly interested in the NIH, they would remove the sequester and restore funding for the NIH and other critical programs.

Mr. KINGSTON. I yield myself such time as I may consume.

Mr. Speaker, let me say to my distinguished friend from California that I would like to move the CDC and would ask him to cosponsor that legislation if we could do similar to the CDC what we are doing to the NIH, because I agree with you in that I think it's very important.

Mr. WAXMAN. Will the gentleman yield?

Mr. KINGSTON. I yield 15 seconds to the gentleman from California.

Mr. WAXMAN. Let's refund all of the government efforts, including the CDC and the NIH and the FDA, and not single them out and leave everybody else behind.

Mr. KINGSTON. In reclaiming my time, I will say this to my friend: a long journey begins with small steps. If we can just take a few, small bipartisan steps together, I think it would change the entire tone of this debate, and I say that with sincerity.

Mr. WAXMAN. Funding the government is one bipartisan step we could take. It is a compromise for us, and I would vote for it.

Mr. KINGSTON. In reclaiming my time, that's a leap. I'm talking steps.

Mr. Speaker, I yield 1 minute to the distinguished gentlelady from North Carolina (Mrs. ELLMERS), a former nurse.

Mrs. ELLMERS. Thank you to my colleague from Georgia.

Mr. Speaker, this is such an important issue on which to be speaking here at the House. I rise in support of the Research for Lifesaving Cures Act and in support of the funding of the NIH in order to help bring lifesaving cures to sick Americans. The situation in Washington today should not be standing in the way of this important lifesaving work. There is no defensible argument against this legislation.

NIH has been in the forefront of biomedical discoveries that have revolutionized the field of medicine. These discoveries have laid the foundation for treatments and cures for many diseases, including cancer and including improving the lives of countless Americans. The government shutdown is preventing new patients from entering clinical trials. For those patients, it is a matter of life and death; it is not a matter of politics. About 200 people register at the NIH every week. About 30 of those are children, 10 of whom have cancer. We must ensure that medical care is not suspended for these patients, especially for those children who are faced with difficulty.

Mr. KINGSTON. Mr. Speaker, how much time do we have remaining?

The SPEAKER pro tempore. The gentleman from Georgia has 7¾ minutes remaining, and the gentlewoman from Connecticut has 8 minutes remaining.

Ms. DELAURO. Mr. Speaker, there is no defense for keeping this government closed, and if the majority were serious about funding the NIH in their 2014 appropriations bill, they would have provided it with adequate funds.

With that, I yield 1½ minutes to the gentlelady from New York (Mrs. LOWEY), my friend and the ranking member of the Appropriations Committee.

□ 1645

Mrs. LOWEY. Mr. Speaker, I rise in strong opposition to the reckless Republican shutdown.

There's no stronger supporter of the National Institutes of Health. Members on both sides of the aisle have long supported the crown jewel of the government, but we didn't have an opportunity to vote on the bill funding this year because Republicans didn't have the courage of their convictions to stand behind the 22 percent cut. Funding one budget item at a time, even one as important as the NIH, does nothing to help children get immunizations, conduct disease surveillance, provide meals for seniors and poor children who depend on assistance for survival, or continue food inspections to protect the food supply.

This bill is nothing more than a Republican ploy. It would not be necessary if Republicans had not been so irresponsible throughout the budgetary process, forcing us into a shutdown. We could end the shutdown today if the majority would only allow a vote on the Senate-passed bill, which includes the funding levels Republicans support and would be signed by the President.

If you really care about biomedical research and public health, you should vote ''no'' on this bill and demand that the Republican leadership allow the House to vote on the Senate bill immediately and end the reckless Republican shutdown.

Mr. KINGSTON. Mr. Speaker, I yield 1 minute to Dr. TIM MURPHY, a distinguished psychologist, lieutenant commander in the Navy, and the chairman of the Oversight and Investigations Committee of the Energy and Commerce Committee.

Mr. MURPHY of Pennsylvania. Mr. Speaker, I thank my friends, colleagues, and fellow Americans.

Please, listen. I'm not here to defend this government shutdown. Long after we are gone, people are going to remember the rancor of this House, not the good we've done. I don't defend the decision to shut down the National Institutes of Health. It's too valuable. It funds lifesaving research and has a hospital that cares for 200 adults and children waiting for experimental treatments to save their lives.

When asked about shutting down the NIH, even if it saves one child with cancer, Senator REID said, Why would I want to do that? He added that he has people on an Air Force base with ''problems of their own.'' Now, I don't think the Senator is heartless as some have alluded. Rather, I believe he's an honorable man, and it pains him to know that the NIH is closed just because reasonable people cannot sit down and talk.

I also believe the President is an honorable man who doesn't want the NIH to close, even though with the stroke of his pen he could declare it open. But here he is immersed in a battle just because some people refuse to sit down and talk.

I believe our colleagues are honorable, Mr. Speaker. None of us want people with terminal illness hurt. Let's not make the NIH a political battlefield. While some still refuse to sit down and talk, at least let our hearts be with those who suffer. Let us do the honorable thing and keep alive the hopes of those who wait for a cure.

Friends, colleagues, fellow Americans. I'm not here to defend this government shut down. Long after we are gone people will remember the rancor of this House, not the good we have done.

It is not good for America when we fight partisan politics rather than work out our differences. It is not good when we confuse anger with action and rage with results.

I believe members here are more honorable than to just play out each vote in a way that they can use against each other in the next election.

I do not defend the decision to shut down the National Institute of Health. It is too valuable. Not just because it funds life saving research, and has a hospital where 200 adults and children lay waiting for experimental treatments to save their lives.

When asked about shutting down the NIH even if it saves one child with Cancer, the leader of the Senate HARRY REID said "why would I want to do that?" and added folks at Nellis Air Force base have "problems of their own". Now I don't think the senator heartless as some have alluded. Rather, I believe he is an honorable man and it pains him to know the NIH is closed just because reasonable people could not sit down and talk.

I believe the President is an honorable man who does not want the NIH closed. He could with the stroke of a pen declare the NIH open, but here he is, immersed in a battle just because some people refuse to sit down and talk.

And I believe all our colleagues are honorable. None of us want people with terminal illness hurt wondering if they will get life saving treatment. NIH is a hospital and an institute; don't make it a political battlefield.

At least let our hearts be with those who suffer. Let us do the honorable thing and keep alive the hope of those who wait for a cure.

Ms. DELAURO. Mr. Speaker, it would seem that no one cares much about the 9 million women and children who are going to be cut off from nutrition programs or what happens to the spread of infectious diseases or people who need to pay for college.

I yield 1½ minutes to the gentleman from Maryland (Mr. VAN HOLLEN), the ranking member of the Budget Committee.

Mr. VAN HOLLEN. Mr. Speaker, I have the great privilege of representing the congressional district that is home to the national treasure that we call the National Institutes of Health where you have scientists doing critically important work, looking for treatments and cures to diseases that plague every American. These are scientists. They're not Republican scientists. They're not Democratic scientists. They're scientists. They're very smart people.

I've heard from some of them, and they say they are not fooled by the cynical ploy in the House today because they know that the fastest way to open up the National Institutes of Health would be to take up the clean Senate-passed bill and send it to the President tonight. That's how you help the National Institutes of Health.

They also have kids in schools, so they'd also like to keep open the Department of Education and help the Department of Veterans Affairs. They know that the way to do that is not to cherry-pick little pieces of government and leave the rest of it to die on the vine, but to pass a clean CR and keep NIH open, the Department of Veterans Affairs open, all the parks open, the Defense Department open, to keep the government open.

Why hasn't that happened? The Speaker of the House refuses to hold a vote in this people's House. What's he afraid of, the democracy? What's he afraid of, we are going to vote to open the government? Because that's exactly what would happen.

If you want to help NIH, vote for the clean CR. Get it done tonight. Quit the game-playing.

Mr. KINGSTON. Mr. Speaker, I yield 1 minute to the gentleman from Mississippi (Mr. HARPER).

(Mr. HARPER asked and was given permission to revise and extend his remarks.)

Mr. HARPER. Mr. Speaker, I rise today in support of the Research for Lifesaving Cures proposal.

This vote is about helping some of our country's most vulnerable patients: seniors hoping for cures to longtime illnesses, precious children and their families looking for answers about genetic disorders; and the scientists who are moving ever so close to discovering America's next medical breakthroughs find themselves asking if they'll be able to continue their life's work.

The National Institutes of Health provide support to promising research leading to lifesaving treatments, innovative clinical trials aiming to reverse the core symptoms of disorders such as fragile X syndrome, autism, spinal muscular atrophy, down syndrome, Angelman syndrome, and cystic fibrosis to name a few. These give families hope, the research that is there. But this is just the beginning. These studies help our Nation's most dedicated scientists build on promising discoveries.

To continue these trials, Congress must allow the NIH to stay open while we work on getting the government back up and running. This isn't about scoring political points. It's about principles. As the father of a special-needs child, I know the challenges that these families face. Vote ''yes.'' Vote for fairness.

Ms. DELAURO. Once again, if the majority had been interested in the NIH, it would have moved to introduce its appropriations bill with an increase in funding for the NIH, which it didn't.

I yield 1½ minutes to the gentleman from Michigan (Mr. LEVIN), the distinguished Ways and Means Committee ranking member.

(Mr. LEVIN asked and was given permission to revise and extend his remarks.)

Mr. LEVIN. Mr. Speaker, I've listened to the debate. Nobody on the Republican side has answered this question: Why not a vote on the clean CR?

Why not? It would pass. That's why you're not bringing it up. It's politics within your conference, but it's harming the people of this country. Piece by piece it's hiding the reality. Let me just point to a bit of it.

I'm reading from an NIH document, 2013 figures compared to the 2012 figures for NIH. There were approximately 700 fewer competitive research project grants issued; approximately 750 fewer new patients admitted to the NIH clinical center; cuts to research delaying progress in development of better cancer drugs that zero in on a tumor with fewer side effects; research on a universal flu vaccine that could fight every strain of influenza without needing a yearly shot.

Come forth and tell us why not a vote on a clean CR. Don't give us all the other stories. Come, someone, and say why not, why not a clean vote. It would pass. We can do it, a long journey, in one step, right now.

Mr. KINGSTON. Mr. Speaker, I yield 1 minute to the gentleman from Louisiana (Mr. SCALISE), the chairman of the Republican Study Committee.

Mr. SCALISE. Mr. Speaker, I thank the gentleman from Georgia for yielding.

I rise in strong support of this bill that funds the NIH and makes sure that cancer patients are able to get the treatments that they need and that that vital research continues to move forward.

Clearly, we've got some disagreements between the House and Senate on other areas of government funding, but shouldn't we at least be able to come together on this area where we all have agreement and make sure we take care of those cancer patients so that they're not held hostage to these other negotiations?

In fact, we should be able to get that, but Senator REID, the Senate Majority Leader, was earlier asked, ''But if you could help one child who has cancer, why wouldn't you do it?''

Senate Majority Leader REID's response was, ''Why would we want to do that?''

It would be disgraceful, Mr. Speaker, for Senator REID to deny cancer patients the treatment and the research they deserve just because he wants to score some kind of political point.

Mr. Speaker, it's not too late for Senate Majority Leader REID to have a change of heart. Stop holding people hostage. We can come to agreement as Republicans and Democrats. Let's do that, and then deal with the other areas of disagreement. Let's at least take care of our cancer patients.

The SPEAKER pro tempore. Members are reminded to refrain from engaging in personalities toward the Senate or individual Members of the Senate.

Mr. KINGSTON. Mr. Speaker, how much time is remaining?

The SPEAKER pro tempore. The gentleman from Georgia has 4¾ minutes remaining, and the gentlewoman from Connecticut has 3½ minutes remaining.

Ms. DELAURO. Mr. Speaker, I yield 1 minute to the gentleman from Tennessee (Mr. COHEN).

Mr. COHEN. Mr. Speaker, I take umbrage at this whole process.

In September of 1954, I came down with polio, which affects me to this day. The vaccine which was helped developed by the National Institutes of Health didn't become available until about 6 months later. I've asked Mr. KINGston, I've asked people in this House for 6 months, I've spoken on this floor, I've written editorials to fund the National Institutes of Health to find cures for cancer and heart disease and stroke and diabetes and Parkinson's. They can do it, but it's cut by the sequester by $1.6 billion and not once have the Republicans said, We'll fund it and we'll find cures to disease. We'll use this, our ''Department of Defense'' for human beings, and fund it at the level it should be so that other people like me won't get a disease 6 months earlier than the cure was available.

They haven't come forth once. These are crocodile tears. This is politics. It's not trying to cure people. It's not trying to stop illness and create cures. And I really object to this being used politically.

I spoke 6 months ago to put the money back and find cures, and I got nowhere.

Mr. KINGSTON. Mr. Speaker, I say to my good friend from Tennessee that if you take out the TANF funding, which the Obama administration charges the NIH to conduct business, this is level funding.

I yield 1 minute to the gentleman from Pennsylvania, (Mr. ROTHFUS).

Mr. ROTHFUS. Mr. Speaker, I rise in strong support of the Research for Lifesaving Cures Act.

To take a minute, you wonder why we're here right now. It's because the NIH has been closed. Why is it closed? We passed a bill just the other night to keep the NIH open and to hold government open, but we wanted to stop the special treatment that Members of Congress were getting.

As a cancer survivor and someone who has benefited from work by doctors who have worked at the National Cancer Institute at NIH, it's important that we continue to fund NIH. And I rise in strong support of this legislation.

It's time to end Senator REID's government shutdown, which threatens not only research at the NIH, but work across the government. It's very simple to do it. Just stop the special treatment for Members of Congress, and stop the special treatment for the friends of the administration.

Mr. KINGSTON. Mr. Speaker, I yield 1¼ minutes to the gentlewoman from Tennessee (Mrs. BLACK), a former nurse.

Mrs. BLACK. Mr. Speaker, as a registered nurse for over 40 years, I am privileged to speak on the importance of funding NIH, and the research that is done at this institute is invaluable to our health care system and the future of our medical industry. Most importantly, it is important to people's live. But I think it's important to remember exactly how we got here today, to the point where we're voting on this important measure on its own measures.

My House Republican colleagues and I have said at the very beginning that the American people didn't want a government shutdown, and they also didn't want ObamaCare. So we sent three different measures to the Senate that would keep the NIH and the rest of the government open, but also to help shield the people from the harmful effects of ObamaCare, this disastrous law, and also to create fairness for everyone.

□ 1700

But it was a block by Senator HARRY REID and the Senate Democrats, effectively shutting down the government to protect their own ObamaCare carve out. What we truly need is for the Democrat-led government shutdown to stop and for Senator HARRY REID to drop his tactics and to restore these programs.

Ms. DELAURO. I just might quickly say to my colleague from Georgia—and I know he knows this—that Congress set the cap percentage and instructs the Secretary on how it should be used.

And with that, I yield 1 minute to the gentleman from Minnesota (Mr. ELLISON).

Mr. ELLISON. You know, Mr. Speaker, it reminds me of the case where someone stole another person's coat and then came back and offered very piously to help them find it, all the while knowing that it's stashed away. The fact is that we are here for one reason and one reason only, and that is the Republicans object to the Affordable Care Act and refuse to fund the government unless it is defunded. How many times have we heard, delay, defund, and all that little jingle they do? That is why we are here.

And now we have people coming to the floor, piously urging for funding for D.C. and young people and all this kind of stuff. You know, it's as if they didn't know, when they shut down the government, that D.C. and young people and the NIH were going to be cut. Obviously they knew it. Did they just find out after they read their bill? No. They knew it. They knew it all the time. They know it now. And we can solve everyone's problem by putting a clean CR on this moment.

Mr. KINGSTON. Mr. Speaker, if I could ask how much time we have remaining.

The SPEAKER pro tempore. The gentleman from Georgia has 2¾ minutes remaining, and the gentlewoman from Connecticut has 1½ minutes remaining.

Mr. KINGSTON. Mr. Speaker, I yield myself 30 seconds.

I just want to say this: It scares me to death that America is going bankrupt. Our national debt is 100 percent of the GDP. For every dollar we spend, 42 cents is borrowed. ObamaCare adds to that $1.7 trillion. If we don't get control of our spending, then we are not going to have an America as we know it. That's what this fight is about.

Now, what we're trying to do today is say there are tiny steps in which there is an agreement, and the NIH is one of them. We've already done this for military pay. This bill should not be a stretch. It should have widespread bipartisan support.

Ms. DELAURO. Mr. Speaker, I yield myself such time as I may consume.

First of all, I would just say very, very quickly to my colleague from Georgia, the affordable care bill is launched. It is the law of the land. It's going forward. I'm sorry to tell my friends on the other side of the aisle: Get over it. It is the law of the land.

What we have here is really, quite frankly, reckless behavior on the part of the majority, and what you have done is shut this government down. And instead of wasting time trying to play politics, and instead of cherry-picking important programs like the NIH to fund, we should be working on a budget for the entire government, open the government, and move to negotiations.

With regard to health care issues, I think it's important to note—and that's why we shouldn't be opening the government on a piecemeal basis—we need a comprehensive short-term continuing resolution that keeps the entire government open and at work.

What other activities are engaged in health that you are bypassing or ignoring or don't believe they have any priority? Centers for Disease Control, two-thirds of their personnel are now on furlough. Important programs like protecting public health are going by the wayside: monitoring for flu, other infectious diseases; promoting and coordinating immunizations; assistance to State and local departments in detecting and responding to disease outbreaks; programs to prevent, detect, or better manage chronic diseases—diabetes, heart disease, stroke, and, yes, cancer. The Food and Drug Administration, you've sent the staff home. Our food safety is in danger. HRSA, HIV/AIDS, and others, mental health services.

If you care about health, open the government and negotiate on a long-term CR.

I yield back the balance of my time.

Mr. KINGSTON. Mr. Speaker, I will repeat that if I can get a Democrat Party Member to cosponsor a continuation of the CDC, I would be glad to work together to move that bill.

And with that, I yield the balance of my time to the gentleman from Maryland, Dr. ANDY HARRIS, a distinguished committee member.

Mr. HARRIS. Mr. Speaker, when the President and Senate shut down the government yesterday, I don't think they realized what was going to happen at the NIH with pediatric cancer patients.

I want to thank the ranking member of the Appropriations Committee for bringing it to the attention of the House yesterday in her comments, because we get to solve the problem today.

You see, Mr. Speaker, during a temporary lapse in funding, the Department of Justice guidance for continuing government operations includes activities that protect ''the safety of human lives.'' So although over 40 percent of the Office of the Secretary were exempt in this furlough, strangely enough, some lawyer in the executive branch decided that pediatric cancer patients seeking to enroll in research at NIH don't merit those services necessary to protect ''the safety of human life.''

Now, look, I hope everybody here disagrees with that interpretation. Having taken care of many pediatric cancer patients in my medical career and being a parent, I know that pediatric cancer deals with the safety of human life.

Mr. Speaker, interestingly enough, to their credit, the Indian Health Service stayed opened. So if you have a common cold, you get treated, but if you have pediatric cancer, you don't. The lab animals at NIH are being taken care of, but if you have pediatric cancer, you aren't. I would hope we could agree that they should be. This bill solves the problem. This bill protects children seeking to enroll in cancer programs at the NIH.

The President and the Senate have already accepted a step-by-step approach when they accepted legislation over the weekend to fund our men and women in uniform during this lapse in funding. That bill was signed into law with bipartisan support. And this bill should be signed into law with bipartisan support so that we can help those cancer patients, especially those 30 children or so a week.

Now, look, I admit because of what the Senate majority leader said today that we may have a tough hill to climb with this bill in the Senate, but the House has to do what is right, even if for only one child with cancer whose life rests with the NIH.

Mr. KINGSTON. I yield back the balance of my time.

Ms. SCHWARTZ. Mr. Speaker, I rise today to express my strong support for medical research and my equally strong opposition to this legislation, which effectively extends cuts to funding for the National Institutes of Health and exacerbates uncertainty and instability in the federal government.

The effects of the government shutdown are already rippling through every aspect of American society and threatening the health and well-being of our citizens. NIH is the nation's largest single source of biomedical research. It funds research efforts in medical centers, cancer centers and universities across the country. Its work is unique and essential. Its value is personal for the many patients they care for and significant to our economy as the engine of American life-science innovation.

Even before the government shutdown, NIH lost $1.55 billion in fiscal 2013 because of budget cuts required under sequestration. In my home state of Pennsylvania, these cuts to NIH mean the loss of 1,200 jobs and $73 million in grant awards. These devastating cuts threaten America's capacity to cure diseases, treat chronic and acute conditions, and find new technologies that advance the health of people worldwide. And, as if those cuts weren't devastating enough, the government shutdown is forcing NIH to turn away patients who have come to NIH as their last best hope.

On just the first day of the shutdown, NIH Director Francis Collins estimated that for each week of the shutdown the agency would be forced to deny care to about 200 patients, 30 of them children, who are seeking to enroll in studies of experimental treatment. Many of these patients turn to the NIH because they have no other options. This crisis is shameful, unnecessary and unworthy of our great nation. It breaks your heart.

The bill before us today will exacerbate the challenges facing NIH and the people it serves. I urge my colleagues to vote against this misguided plan to cut NIH further. I call on my Republican colleagues to allow an up-or-down vote today on a clean continuing resolution so we can reopen the government immediately and enable NIH to resume the critical services they provide to our nation. The time has come for Republicans to work with Democrats on a balanced plan that replaces the sequester, fully funds NIH and provides the certainty that our families and businesses need to grow our economy.

Ms. CASTOR of Florida. Mr. Speaker, I rise today in strong opposition to H.J. Res. 73 which is a political gimmick designed to distract attention from the great harm being caused by the GOP government shutdown and Republican budget policies.

When you consider what makes America ''great'', you may think of the America's public schools where every child, rich or poor, can get an education unlike other countries. You may think of our civil liberties. You may think of the architectural wonders like the Sunshine Skyway Bridge across Tampa Bay.

I am inspired by the talented young researchers across America who are searching to find the cure for cancer or study treatments for Alzheimer's or advance the artificial pancreas for people with diabetes.

The Republican bill on the floor today relating to the National Institutes of Health is a whitewash and a sham. Despite GOP assertions that they support NIH and research across America, the record proves otherwise.

Over the last two years Republicans in Congress have taken a fiscal hatchet to the positions of young and talented researchers in hospitals, universities and cancer centers across America. For FY13 and FY14, President Obama and Democrats proposed healthy funding for the NIH. Republicans have cut it back by almost two billion dollars each year.

Despite GOP assertions that they support research, Republicans have held firm to the sequester cuts for NIH which has led to the elimination of researchers across America. America's researchers, the scientific community, patients, doctors and all of us are not fooled by the Republican hoax here.

For example, at the Moffitt Cancer Center in Tampa, Florida, one of America's leading cancer research centers, researchers on staff have been cut from 120 to 100. This is devastating for America's ability to investigate and eliminate cancer and treat the disease. America has invested in our best and brightest young men and women in the science and math fields and the Republican budget policies are eliminating their positions, cutting back their work and ceding America's top position in medical research to China and India.

This is the same story at the University of South Florida, and the research in Alzheimer's nursing, neurology, heart disease or mental health. The budget ax employed by Congressional Republicans is hurting us all.

We have fought back. In the Budget Committee, I cosponsored an amendment last spring to restore funding to NIH and cancer research. It was defeated with all Republicans on the Committee voting no. Democrats also offered a balanced sequester replacement plan numerous times, but the GOP has shot it down.

With this context, it is easy to see through the House GOP's ploy to fund the NIH through this bill. They are not beefing up funding levels. They lock in the devastating sequester and thereby lay off more researchers and put diagnoses and treatments further out of reach. The cumulative impacts of year-after-year cuts in research erodes America's status as the world leader in scientific research.

The American people are not fooled by the political games of my Republican colleagues.

And let's not forget that this Republican government shutdown has lead to the NIH turning away new patients from clinical trials—in particular children. Grant applications will not be considered. And the NIH will stop answering hotline calls from our constituents with medical questions.

The legislation we will be debating today is a ruse. It won't work.

Let's stop playing games, and end the irresponsible Republican shutdown. Then, rather than the empty rhetoric relating to scientific research, commit yourself to making America great rather than tearing it down.

Ms. BROWN of Florida. Mr. Speaker, today on the House floor, instead of putting an end to the damaging Republican government shutdown by passing a clean funding compromise passed by the Senate, the House Republican leadership has chosen to take a different path to vote on more political ploys. They are doing this by continuing to offer mini-versions of appropriations bills in a cynical effort to give themselves political cover for causing this shutdown in the first place.

These bills are political gimmicks, not a responsible approach to governing. Republicans have shut down the government and are damaging our economy and the middle class. And today the House is considering the following five GOP piecemeal bills, which only fund selected pieces of the government—National Institutes of Health, local funds for the D.C., the National Parks, certain funding for Reserve/Guard, and part of the VA.

Like my colleagues in the Democratic Caucus, I wholeheartedly support veterans, our National Guard and Reserve, the District of Columbia, important medical research, and our national parks. However, these bills leave out many of the crucial services relied on by the American people such as Head Start programs, veterans' cemeteries, small business loans, education for our children, equipping and training our troops, building housing for military families, getting decisions on veterans disability claims, among many others.

Instead of opening up a few government functions, the House of Representatives should re-open the entire government. The harmful impacts of a shutdown extend across government, affecting services that are critical to small businesses, women, children, seniors, and others across the Nation.

The American people have seen enough, and the time has come for Republicans to abandon their reckless and irresponsible agenda and join Democrats to honor America's commitments to provide vital services our citizens pay for with their hard earned tax dollars. I urge Speaker BOEHNER, Leader CANTOR, and the Republican Party to end its shutdown by working with Democrats to pass a clean funding bill and end this charade immediately.

Ms. LEE of California. Mr. Speaker, here we are day two of the hurtful Republican Government Shutdown.

We still don't have a viable solution to reopen the government.

The Republican refusal to back off their extreme, ideological demands has taken our country down a dangerous path that will surely push millions more families into hunger and poverty.

Mr. Speaker, while all of us believe it is important to keep the government functioning, hostage taking is no way to run federal departments and agencies.

Members of Congress are elected to make sure our government functions.

Yet, instead of working on a serious option to reopen the government, Republicans latest strategy is to exploit cancer patients and the staff who work at the National Institutes of Health by voting on piecemeal bills that will not end impacts of a shut down that extend across our country.

Mr. Speaker, of course we research and funding for the NIH, But let's not use them to score political points to advance an ideological agenda.

The Senate passed continuing resolution would fund the government for an additional six weeks and all this House has to do is pass that bill to end this manufactured crisis.

This hostage taking must end.

Ms. JACKSON LEE. Mr. Speaker, here we go again—the majority instead of opening Federal government they are introducing another scheme to waste time trying to make what they are doing even more painful to the American public.

I rise to speak on the Continuing Resolutions to re-open the National Institutes of Health (NIH), one of many very important Federal government agencies.

NIH is comprised of many institutes that specialize in seeking cures for some of mankind's most dreaded and difficult diseases and afflictions such as: blindness, heart disease, blood diseases, infection diseases, cancer, stroke, alcoholism; arthritis, musculoskeletal and skin diseases, hearing and balance disorders, drug abuse, and mental illness.

NIH institutes focus solely on finding cures for the list of illnesses that I just mentioned. Researchers work often within a closed sterile world for decades looking for that one piece of information when placed within the body of knowledge known about a disease may save lives or health.

The NIH Institutes include the following, the: National Cancer Institute, National Eye Institute, National Heart, Lung, and Blood Institute, National Human Genome Research Institute, National Institute on Aging, National Institute on Alcohol Abuse and Alcoholism, National Institute of Allergy and Infectious Diseases, National Institute of Arthritis and Musculoskeletal and Skin Diseases, National Institute of Biomedical Imaging and Bioengineering, Eunice Kennedy Shriver National Institute of Child Health and Human Development, National Institute on Deafness and Other Communication Disorders, National Institute of Dental and Craniofacial Research, National Institute on Drug Abuse, National Institute of Environmental Health Sciences, National Institute of General Medical Sciences, National Institute of Mental Health, National Institute on Minority Health and Health Disparities, National Institute of Neurological Disorders and Stroke, National Institute of Nursing Research, and National Library of Medicine.

Because of the work of NIH to identify potential treatments and cures each year and a rare few are allowed into treatment and drug trials to discover if what the Institutes' researchers have discovered will yield beneficial results for the entire population, not just in the United States but the entire world.

NIH's work is racing against the clock to find cures in time to save or improve the quality of lives. There are medical professionals who are serving in the Congress and you have each benefited from the work of NIH and so have your patients.

We should listen to what researchers are saying about the Federal government shutdown:

Mary Woolley, president and CEO of Research! America, said: ''On a micro level, we are concerned that an incremental approach to the shutdown neglects disruptions to lifesaving funded by other federal agencies, as well as access to treatments in the pipeline at the Food and Drug Administration,'' Woolley said. ''And because it is unlikely that this measure would pass both houses, it may simply delay funding for NIH.''

Benjamin Corb, director of public affairs for the American Society for Biochemistry and Molecular Biology: ''The data shows that deep cuts to federal investments in research are tearing at the fabric of the nation's scientific enterprise and have a minimal impact on overcoming our national debt and deficit problems,'' he said. ''I hope leaders from both parties in Washington review these findings and join with scientists to say 'enough is enough.' ''

Chris Hansen, president of American Cancer Society Cancer Action Network said ''Every week the government is shut down, the NIH Clinical Center will have to turn away cancer patients who are eligible to start potentially lifesaving clinical trials—a devastating impact that compounds the problem created by the sequester that resulted in 1,000 people being turned away from clinical trials in the past year.''

This Congress has done harm to NIH research through Sequestration: funding cuts occurred indiscriminately across all areas of research. Cell lines were lost that had been developed over generations to see how they change to learn more about what goes wrong within cells and what may be done to prevent cancers from developing.

Sequestration damaged NIH research that involved a study of rabbits that were carefully breed over years to learn about inherited disorders, but due to the Sequestration an entire line was destroyed because they could not be cared for nor were there funds to keep the copious and careful notes needed to document each generation's development.

It should chill us all to think about what may be lost in NIH research because of the last few days of government shutdown. Our tools are words, the work of NIH researchers are cells and specimens that cannot wait for the majority to figure out why the Federal government matters.

Every 36 minutes a child is diagnosed with cancer in the U.S. That's enough children to fill a classroom each day, which adds up to almost 15,000 new cases of childhood cancer each year.

Children under the age of 21 are diagnosed with cancer every year; approximately ¼ of them will not survive the disease.

Each year in Texas, almost 1,200 children and adolescents younger than 20 years of age are diagnosed with cancer. Approximately 200 children and adolescents die of cancer each year, making cancer the most common cause of disease-related mortality for Texans 0–19 years of age.

TREATMENTS AND DEATH RATES

Approximately 2,300 children will die this year from cancer.

The five-year survival rates for childhood cancer have increased greatly over the past 30 years.

Prior to 1970, children diagnosed with cancer would survive less than 50 percent of the time.

Today, due to modern forms of treatment, the five-year survival rate is almost 80 percent.

Cure rates vary for specific cancers depending on the stage of diagnosis and the cancer type; some forms of cancer remain resistant to treatment.

For example, due to better treatments and research, children with leukemia can be cured almost 80 percent of the time. Neuro-blastoma is among the most difficult childhood cancers to cure.

More kids die from childhood cancers than any other disease.

In fact, cancer kills more children than asthma, cystic fibrosis, diabetes, and pediatric AIDS combined.

By the age of 20, one in every 330 Americans will develop cancer.

Approximately 10,400 children and teens ages 0–14 years will be diagnosed with cancer this year in the United States.

Treating childhood cancer differs greatly from treating adults with cancer.

Those children who do survive may have serious health challenges to long term survival—for example a treatment that saves a child's life may cause a severe heart problem that threatens the long term health of that child.

Today, more than 90% of 13,500 children and adolescents diagnosed with cancer each year in the United States are cured because of the work of researchers like those working at NIH.

Research is needed to help these young cancer survivors' live full and productive lives.

I know that members of the majority now know that there is a government agency called the National Institutes of Health and that the work that this government agency does is important, but the work of all of our federal agencies are important.

For this reasons, we cannot wait for the majority to discover all of the reasons why we have a federal government or the importance and purpose of each agency.

We have to pass a clean CR now—we do not need to wait, just bring to the floor the bills sent to this body by the Senate.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to House Resolution 370, the previous question is ordered.

The question is on the engrossment and third reading of the joint resolution.

The joint resolution was ordered to be engrossed and read a third time, and was read the third time.

The SPEAKER pro tempore. The question is on the joint resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Mr. KINGSTON. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 of rule XX, further proceedings on this question will be postponed.

## NATIONAL PARK SERVICE OPERATIONS, SMITHSONIAN INSTITUTION, NATIONAL GALLERY OF ART, AND UNITED STATES HOLOCAUST MEMORIAL MUSEUM CONTINUING APPROPRIATIONS RESOLUTION, 2014

Mr. SIMPSON. Mr. Speaker, pursuant to House Resolution 370, I call up the joint resolution (H.J. Res. 70) making continuing appropriations for National Park Service operations, the Smithsonian Institution, the National Gallery of Art, and the United States Holocaust Memorial Museum for fiscal year 2014, and for other purposes, and ask for its immediate consideration.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. Pursuant to House Resolution 370, the joint resolution is considered read.

The text of the joint resolution is as follows:

H.J. RES. 70

*Resolved by the Senate and House of Representatives of the United States of America in Congress assembled,* That the following sums are hereby appropriated, out of any money in the Treasury not otherwise appropriated, and out of applicable corporate or other revenues, receipts, and funds, for National Park Service operations, the Smithsonian Institution, the National Gallery of Art, and the United States Holocaust Memorial Museum for fiscal year 2014, and for other purposes, namely:

SEC. 101. (a) Such amounts as may be necessary, at a rate for operations as provided in the Full-Year Continuing Appropriations Act, 2013 (division F of Public Law 113–6) and under the authority and conditions provided in such Act, for continuing projects or activities (including the costs of direct loans and loan guarantees) that are not otherwise specifically provided for in this joint resolution, that were conducted in fiscal year 2013, and for which appropriations, funds, or other authority were made available by such Act under the following headings:

(1) ''Department of the Interior—National Park Service—Operation of the National Park System''.

(2) ''United States Holocaust Memorial Museum—Holocaust Memorial Museum''.

(3) ''Smithsonian Institution''.

(4) ''National Gallery of Art''.

(b) The rate for operations provided by subsection (a) for each account shall be calculated to reflect the full amount of any reduction required in fiscal year 2013 pursuant to—

(1) any provision of division G of the Consolidated and Further Continuing Appropriations Act, 2013 (Public Law 113–6), including section 3004; and

(2) the Presidential sequestration order dated March 1, 2013, except as attributable to budget authority made available by the Disaster Relief Appropriations Act, 2013 (Public Law 113–2).

SEC. 102. Appropriations made by section 101 shall be available to the extent and in the manner that would be provided by the pertinent appropriations Act.

SEC. 103. Unless otherwise provided for in this joint resolution or in the applicable appropriations Act for fiscal year 2014, appropriations and funds made available and authority granted pursuant to this joint resolution shall be available until whichever of the following first occurs: (1) the enactment into law of an appropriation for any project or activity provided for in this joint resolution; (2) the enactment into law of the applicable appropriations Act for fiscal year 2014 without any provision for such project or activity; or (3) December 15, 2013.

SEC. 104. Expenditures made pursuant to this joint resolution shall be charged to the applicable appropriation, fund, or authorization whenever a bill in which such applicable appropriation, fund, or authorization is contained is enacted into law.

SEC. 105. This joint resolution shall be implemented so that only the most limited funding action of that permitted in the joint resolution shall be taken in order to provide for continuation of projects and activities.

SEC. 106. Amounts made available under section 101 for civilian personnel compensation and benefits in each department and agency may be apportioned up to the rate for operations necessary to avoid furloughs within such department or agency, consistent with the applicable appropriations Act for fiscal year 2013, except that such authority provided under this section shall not be used until after the department or agency has taken all necessary actions to reduce or defer non-personnel-related administrative expenses.

SEC. 107. It is the sense of Congress that this joint resolution may also be referred to as the ''Open Our National Parks and Museums Act''.

This joint resolution may be cited as the ''National Park Service Operations, Smithsonian Institution, National Gallery of Art, and United States Holocaust Memorial Museum Continuing Appropriations Resolution, 2014''.

The SPEAKER pro tempore. The joint resolution shall be debatable for

30 minutes, equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations.

The gentleman from Idaho (Mr. SIMPSON) and the gentleman from Virginia (Mr. MORAN) each will control 15 minutes.

The Chair recognizes the gentleman from Idaho.

GENERAL LEAVE

Mr. SIMPSON. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days in which to revise and extend their remarks and include extraneous material on H.J. Res. 70, and that I may include tabular material on the same.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Idaho?

There was no objection.

Mr. SIMPSON. Mr. Speaker, I yield myself such time as I may consume.

Well, here we are again, Mr. Speaker. We were here yesterday, with the Republicans trying to open the government back up and the Democrats opposing opening the government back up. But, Mr. Speaker, I rise today in support of this important legislation to fund the operations of the National Park Service, the Smithsonian Institution, the U.S. Holocaust Museum, and the National Gallery of Art.

Mr. Speaker, I spoke yesterday about some of the effects of the government shutdown, which began a couple of days ago. With each passing day, we hear of more and more impacts resulting from the shutdown across the country and in our Nation's Capital.

I want to remind my friends on the other side of the aisle that all 401 National Park Service units in the United States, 19 Smithsonian museums and galleries, including the National Zoo, the Holocaust Museum, and the National Gallery of Art, remain closed to the public. This legislation, if adopted, would reopen these national treasures to the American public.

Mr. Speaker, the government shutdown is having a real impact on real people and on the national economy. I remind my colleagues that it is estimated that the local economy is losing up to $200 million a day, with the National Zoo, Smithsonian museums, Holocaust Museum, the National Gallery of Art, and other popular attractions closed to the public. This doesn't even begin to measure the national and international impacts of these closures.

Think of the families, the veterans groups, the groups of students who all have saved for months and, in some cases, years to travel to our Nation's Capital from across the country to visit the Air and Space Museum, the Lincoln Memorial, the World War II Memorial, the National Zoo, Ford's Theater, or the National Gallery of Art.

This government shutdown has a real impact on real people. Think of the families who made reservations to visit Yosemite or Yellowstone or the Statue of Liberty and now find these national parks shuttered today. This government shutdown, again, has real impacts on real people.

Think of the impact the government shutdown is having on Ford's Theater, one of the most hallowed National Park Service historic sites in our country. Not only are tourists denied entrance to the historic theater, but the shutdown has forced evening performances of the theater to be moved to another location because of the budget impasse.

Think of the young people who have a National Park Service permit to get married at the Jefferson Memorial this Saturday. Their families are arriving from all over the country, over 130 people, for what should be the happiest day of this new couple's life. But because of the government shutdown, they are not able to get married at the Jefferson Memorial and are now scrambling to find an alternative location to get married.

Let's pass this bill so this couple and millions of Americans across this country can enjoy our national parks and this couple can get married at the Jefferson Memorial.

There's a photo on the front page of today's Washington Post showing National Park Service employees putting up barricades around the Martin Luther King Memorial on The National Mall. Remember, this is open air, accessible to the public 24 hours a day, 7 days a week, 365 days a year, and we are putting barriers around it.

Just down the street, barricades were put up around the World War II Memorial—again, a memorial accessible to the public 24 hours a day, 7 days a week, 365 days a year. Fortunately, these temporary barriers didn't stop a large group of visiting World War II veterans, members of the Greatest Generation in their eighties and nineties, many of them in wheelchairs, from storming the barricades so that they could witness the memorial built in their honor of courage and sacrifice.

□ 1715

Tourists visiting Washington, and, indeed, many furloughed Federal employees are, today, finding actual physical barriers to prevent them from experiencing our open-air national monuments honoring Lincoln, Jefferson, King, and our World War II heroes.

At some point, Congress and the President will overcome their differences over Federal funding. But, isn't it ironic and even cynical that when the government shuts down, the President's administration actually builds physical barriers at sites that are otherwise open 24 hours a day, 7 days a week, 365 days a year?

How cynical is that?

Now, some people say they put those barriers there to protect them from vandalism. So we use the Park Police to put up and protect the barriers, but not the monuments. That doesn't make a lot of sense to me.

To my friends on the Democratic side of the aisle and to the President, I say this: If you seek a solution to this government shutdown, if you seek a bipartisan solution, Mr. President, you can start by tearing down these barriers.

Let's open our national parks. Let's open the Smithsonian, the National Zoo, the Holocaust Museum and the National Gallery of Art.

Why are the House and Senate Democrats denying the American people the right to visit these treasured sites?

To my colleagues on the other side of the aisle, I will close with this thought. By opposing this legislation, you are voting to keep our national parks closed, to keep Yellowstone closed, to keep Yosemite closed, to keep the Statute of Liberty closed, to keep Ford's Theater closed.

You are voting to keep the Smithsonian closed. You are voting to keep the National Zoo closed. You are voting to keep the Holocaust Museum closed. You are voting to keep the National Gallery of Art closed.

We should not be using our national parks, the Smithsonian, the National Zoo, the Holocaust Museum and the National Gallery of Art as hostages for the Democratic ''my way or the highway'' shutdown, and that's exactly what this is. This is the Democratic ''you either agree with us, or we will shut the government down.''

We just simply wanted to go to conference, but no, that's not good enough either. We can't go to conference to talk about these differences, so let's shut it down, and that's exactly what the Democratic Party has done.

Mr. Speaker, this is a commonsense bill, and I encourage my colleagues on both sides of the aisle to support it. Let's reopen these national treasures.

Mr. Speaker, I reserve the balance of my time.

The SPEAKER pro tempore. Members are reminded to direct their remarks to the Chair.

Mr. MORAN. Mr. Speaker, I yield myself such time as I may consume.

Mr. Speaker, as Yogi Berra would say, it's deja vu all over again.

Yesterday, the majority rushed to the floor this very bill to partially open the National Park Service, the Smithsonian, the Holocaust Museum, and the National Gallery of Art. We had a spirited debate, and the House failed to pass this bill.

But now, here we are back again, debating the very same bill. It was a bad idea yesterday, and it certainly hasn't improved over the last 24 hours.

I'll explain why. Because, instead of reopening the entire Federal Government, or even the entire Interior Department, the majority has resorted to singling out publicly visible programs for action, while leaving thousands of important functions of government shut down and hundreds of thousands of Federal employees furloughed.

It's time to stop using Federal employees as pawns in this cynical game.

Mr. Speaker, this GOP act of desperation is evidence of how politically

bankrupt this position has become. It's degenerating down to picking winners and losers among Federal workers. The American public is getting burned, and some of the political heat is finally getting to the Republican majority.

So now they would allow workers at the Smithsonian, the Holocaust Museum, and the Gallery of Art, and a few of the employees directly involved in the operation of our National Park System, to return to work.

Do they really think that this is going to save them from the public's wrath?

Under this bill, thousands of National Park Service employees involved in historic preservation and national recreation programs and maintenance and construction still remain furloughed.

And what about the 10,200 furloughed employees of the Bureau of Land Management, the 7,751 furloughed employees at the Fish and Wildlife Service, the 18,800 furloughed employees of the Forest Service, the 16,000 furloughed employees of the Social Security Administration?

Doesn't the majority value their work or support the important programs that they carry out?

We should value all of our Federal employees. We should value the scientists at the U.S. Geological Survey and the health professionals at the Infectious Disease Control and Immunization Program at the Centers for Disease Control just as much as the park ranger and museum workers.

How do you explain to the Library of Congress workers that they are less important than their Smithsonian counterparts?

I want to see our national parks and museums reopened, as do all of the Democrats on this side of the aisle. We want to open the government, and we would vote today to do so if you'd let the bill come to the floor, because we want to see all 561 units of the National Wildlife Refuge System opened, 155 national forests, the 866 areas of the National Landscape Conservation System reopened. But you're keeping all those closed.

Does the majority really believe that those are not important, that they don't deserve to be opened, that the public doesn't deserve to be able to use those national assets?

This bill is a bandaid, and it won't stanch the open rage that the public is beginning to feel. This shutdown is disrupting the work of all Federal workers and the American public that depend on the work that they do. It's an attempt at a quick fix to deflect the political heat the majority is facing.

This idea that we'll pick and choose among Federal activities, which ones are allowed to operate and what has to remain shut down, is politically bankrupt, and it's morally bankrupt as well, Mr. Speaker.

I implore my Republican colleagues to abandon the junior Senator from Texas' plan to play politics with the economy for a dead-on-arrival idea from an extremist ideologue.

The President has reaffirmed that he would veto these cherry-picked bills. We know that the Senate will reject them. So this is a waste of time. People are out of work, and we're wasting our time on this.

If we could just have 20 Republicans, less than that, vote on a clean CR, it would pass. The government would open today. And you won't do it because you're afraid of this ideological extremist faction within your party. You don't want to get them upset.

It's time to stop these games. The House GOP needs to let our hostages go and get on with the real business of governing.

Let's vote on a clean CR. Reopen the whole government.

Mr. Speaker, I reserve the balance of my time.

Mr. SIMPSON. Mr. Speaker, it just stuns me that the gentleman from Virginia is unwilling to put his constituents back to work in opening and working in our national parks.

Mr. Speaker, I yield 2 minutes to the gentleman from Washington (Mr. HASTINGS), the Chairman of the Natural Resources Committee.

Mr. HASTINGS of Washington. I thank the gentleman for yielding, and I rise, again today in support of this resolution.

Mr. Speaker, while it's understandable that, during this shutdown, some services would be limited in some parks and visitor centers, I believe this administration is going out of its way to take unreasonable and unnecessary steps to block public access to parks and monuments.

There is absolutely no reason why open-air parks and monuments here in Washington, D.C., should be barricaded off. These are places without doors, gates or fences where people are allowed 24/7, 365-day access to these memorials. Why are they closed now?

Furthermore, memorials that weren't closed during the last government shutdown in 1996 have been barricaded today. This administration is choosing to do this. It wants the effect of this government shutdown to be as painful as possible.

And the worst example of this is how the Obama administration erected steel barricades to keep our World War II veterans out of the memorial. These men are national heroes who flew here from across the country. The Park Service knew that they were coming. The veterans didn't deserve to be greeted by armed National Park Police at the entrance.

Now, Mr. Speaker, it doesn't cost the Federal Government a single penny to let these veterans walk around this outdoor, open-air structure. But ironically, the Federal Government is spending money to proactively keep them out. It may very well be costing more money to keep these visitors out than it would to simply let them in.

To add further insult to injury, the Obama administration isn't even applying this policy consistently. While highly visible monuments are barricaded off, others remain open. The Obama administration is selectively choosing which memorials to keep open and which to close, further proof, in my mind, that they're just playing politics.

So this bill today would end these type of political games.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. SIMPSON. I yield an additional 15 seconds to the gentleman.

Mr. HASTINGS of Washington. I want to say that, as chairman of the House Natural Resources Committee that has jurisdiction on our national parks, we have started investigations into why this administration did these precise actions.

Mr. SIMPSON. Mr. Speaker, how much time do we have on either side?

The SPEAKER pro tempore. The gentleman from Florida has 10 minutes remaining. The gentleman from Idaho has 6¾ minutes remaining.

Mr. MORAN. I yield 1½ minutes to the very distinguished gentlewoman from New York (Mrs. LOWEY), the ranking member of the Appropriations Committee.

Mrs. LOWEY. Mr. Speaker, I rise in opposition to the Republican shutdown. Of course we support funding for our national parks. But the House has not had that opportunity because Republicans couldn't even advance their own Interior bill out of the committee.

Why is opening parks now more important than investments in job training centers that are dependent on their expected allotment of funds, or allowing all of our food inspectors to continue to protect the American food supply?

Today's bill doesn't even include funding for essential firefighting efforts for the Park Service. Funding one budget item at a time, while doing nothing about other critical services, is no way to fulfill our constitutional responsibility to keep the government running or to grow our economy.

The bill we are considering is nothing more than a Republican ploy. It would not be necessary if Republicans had not been so reckless throughout the budgetary process, forcing us into a shutdown.

We could end the Republican shutdown today if the majority will only allow a vote on the Senate-passed bill to keep the government running, which includes the funding levels Republicans support and would be signed by the President.

Pass the bill today, and the couple can get married at the Jefferson Memorial, and the 200 patients who would have been admitted to the NIH clinical trials each week will not be turned away.

The House majority apparently can't take the heat from the fire they lit, so now they have put forward this reckless political attempt to shift blame for the shutdown. End the shutdown now.

Mr. SIMPSON. Mr. Chairman, it is now my pleasure to yield 1½ minutes to the gentleman from Riverside, California (Mr. CALVERT), a valuable member of the Interior Subcommittee.

Mr. CALVERT. Mr. Speaker, today marks the second day of the government shutdown, a shutdown that I and my Republican colleagues absolutely oppose. The shutdown has been made necessary because our friends on the other side of the Capitol refused to negotiate or compromise. So, in an effort to find some common ground, House Republicans are introducing narrow funding bills for government services that are completely noncontroversial.

Americans who planned their vacations around a national park are severely disappointed this week. I was pleased that I was able to take constituents from my hometown on a tour of the Capitol this morning because all the other D.C. tours had been canceled.

Many Americans around the country have been simply forced to cancel their plans. Yesterday a group of World War II veterans that you heard about, American heroes, bypassed the barricades outside the World War II Memorial in order to see the memorial that was built in their honor.

Other World War II veterans scheduled to visit the memorial next week were told by the National Park Service that they would be arrested if they attempted to view their memorial. This is not right.

We have a chance to come together on a bipartisan basis, to alleviate some of the hardship of this shutdown.

The bill before us, H.J. Res. 70, would fund the operation of the National Park Service, the Smithsonian Institution, the Holocaust Museum, the National Gallery of Art.

I urge my colleagues to support the bill, reopen our parks, honor our veterans, show the American people we can work together.

Mr. President, tear down these barricades.

The SPEAKER pro tempore. Members are reminded to address all remarks to the Chair.

Mr. MORAN. Mr. Speaker, I'm honored to yield 1½ minutes to the gentleman from Maryland (Mr. HOYER), the very distinguished Democratic whip of the House.

Mr. HOYER. Mr. Speaker, I thank the gentleman for yielding.

My friends on this side say they want to keep the government open. We say we want to keep the government open.

My friends on this side sent a bill over to the Senate that had $986 billion in funding. We agreed to $986 billion in funding.

What's the problem?

We need to open all of the government, as the gentleman from Virginia said.

□ 1730

We have a responsibility to reopen all of our government, not just a little here and a little there. House Republicans shut the government down, and now they're worried about having to answer for it.

These piecemeal bills are on this floor because Republicans are realizing, yes, there are real-world consequences to a shutdown. Now they're engaged in a gimmick to fund only those pieces of government that the media or their constituents notice immediately. But by picking winners and losers, Republicans are ignoring critical agencies and functions across our Nation.

We need a full reopening of government in order to provide Head Start for our children. Are Head Start children less important than somebody visiting our parks? Perhaps those are your priorities. Nutrition assistance to women and families, training for law enforcement agents who keep us safe. Seventy percent of the CIA are on furlough today—now—right now.

We need to put people back to work to ensure that our food is safe and small businesses can get the loans they need.

The SPEAKER pro tempore. The time of the gentleman has expired.

Mr. MORAN. I yield the gentleman an additional 30 seconds.

Mr. HOYER. Mr. Speaker, put the Senate's clean compromise bill that gets our government open—the government of the people of the United States—and then let's go to conference on the budget, as Democrats have long called for, to resolve our differences and achieve a long-term solution.

A shutdown is not a political strategy; it is a failure for our country. We need a government that is open and that works for all of our people. Let us have a vote on the Senate's bill to reopen our government—at the number you put in your bill and that you sent to the Senate, on which we will now agree.

Mr. SIMPSON. Mr. Speaker, it is now my pleasure to yield 2½ minutes to the gentlelady from Michigan (Mrs. MILLER).

Mrs. MILLER of Michigan. I thank the gentleman for yielding.

Mr. Speaker, it seems that every time there's any sort of disagreement with Congress, President Obama does everything he can to make it hurt the American people as much as possible.

Earlier this year, when the sequester took effect, the White House immediately slammed the door on the American people and ended public tours at the White House. And yesterday, the Obama administration even tried to slam the door on the World War II Memorial to the heroes who stormed the beaches of Normandy and Iwo Jima; but just as the Japanese and Germans found out, these men would not be denied, and they pushed past those barriers. What great patriots they are.

It's interesting to note that the World War II Memorial is open 24 hours a day, but it's only staffed part of that time. So instead of actually leaving the memorial open, the Obama administration actually spent extra money to build the barricades to keep our heroes out, and then paid the Park Police to enforce that.

We are, Mr. Speaker, about to vote to fix that problem by passing legislation to open up our parks, to open up our memorials, and to open up the Smithsonian Institution.

Now, I know our Democratic friends are saying that they will vote against this bill because they want an entire clean CR or nothing at all, and yet they are accusing us of being the absolutists. I would just ask this, Mr. Speaker: Who are the absolutists? Really? Is it those of us who want to open the Grand Canyon or Yellowstone Park today, or those of us who want to keep those closed until they get everything they want?

Who are the absolutists? Is it those of us who want to have the Statue of Liberty's light shine bright or those that want to keep that light snuffed out until they get everything that they want?

I would hope that the Senate will join us in allowing those who drove through the barricades put up by the German Army at Normandy the opportunity to visit the World War II Memorial without having to drive through the barricades that have been put in place by the Obama administration.

I hope my friends on the other side of the aisle, Mr. Speaker, put aside their absolutist demands and put the American people at the head of the line. Open up their parks and open up their memorials and let them celebrate this great, great Nation of ours.

Mr. MORAN. It is my great pleasure to yield 1½ minutes to the distinguished gentlelady from Minnesota (Ms. MCCOLLUM) on the Interior Appropriations Committee.

Ms. MCCOLLUM. Mr. Speaker, last night, this Congress rejected this Republican piecemeal approach. But here we go again.

It's clear that the GOP doesn't have a coherent solution to the shutdown crisis they've created. With this bill, they are proposing funding for our national parks and certain museums, but not the Bureau of Land Management or the Fish and Wildlife Service.

Invasive species efforts have been halted, including research to stop the spread of Asian carp. Families hoping to visit the Minnesota Valley National Wildlife Refuge this fall are being met with a ''closed'' sign. Nothing in this bill will change that.

I'm confident that every Member here wants our national parks open, and I applaud the Tea Party commitment for funding the National Gallery of Art.

But I have a better idea: the House should pass a clean CR to fund the entire Federal Government for all of America. We can do that today with the support of commonsense Republicans and Democrats to end this GOP—Grand Old Party—shutdown.

Mr. SIMPSON. Mr. Speaker, I am now pleased to yield 1 minute to the

gentleman from California (Mr. MCCLINTOCK), who represents what may be one of the most beautiful places in this country, Yosemite National Park.

Mr. MCCLINTOCK. I thank the gentleman for yielding.

Last night, Mr. Speaker, the House attempted to reopen our National Parks, and 22 Democrats defied their party leaders and joined with the majority to provide for this vital relief.

The little towns around Yosemite National Park depend on tourism for their economy. They're still reeling from the Yosemite Rim fire that brought tourism to a near standstill last month.

When tourists are needlessly barred from our national parks, all of the vendors, all of the concessionaires, the lodgekeepers and shopkeepers in all of the surrounding communities are devastated. They have to lay off employees and often have to close. And unlike government employees, these taxpaying, job-generating private sector working people never get paid back when it's all over.

Having already agreed to spare our military from the effect of this impasse, why would anybody object to funding other critical functions while we wait for the larger issues to be resolved?

Mr. MORAN. Mr. Speaker, how much time do we have remaining on this side?

The SPEAKER pro tempore. The gentleman from Virginia has 5½ minutes remaining. The gentleman from Idaho has 2 minutes remaining.

Mr. MORAN. At this point I yield 1½ minutes to the gentleman from Oregon (Mr. DEFAZIO), the ranking member of the National Resources Committee.

Mr. DEFAZIO. I thank the gentleman.

So when the Republicans passed their shutdown bill, did they not know it was going to close down the national parks? No, they knew that. But in their little bizarre echo chamber they thought the American people would rise and applaud their move to shut down everything that relates to the government. Instead, they've gotten a big raspberry, if not an invitation to read between the lines. They're a little bit surprised and shocked.

Now, what did they leave out of this bill? Yeah, we'll reopen some national parks and other iconic places. They left out 155 national forests, 20 national Grasslands, seven national monuments, and 28 Job Corps Civilian Conservation Centers shut down. That's thousands of kids working hard to get an education, get skills, and not get thrown out in the street. Have you ever visited one? I've been there. I can't believe you guys would shut that down.

There's 440 Wilderness Areas, 560 National Wildlife Refuge units, including locking out hunters and fishermen. Come on, guys—all BLM-managed campgrounds.

There's only one reason this bill is on the floor, and it's because their constituents love iconic national parks and monuments, as the Republicans just learned, much to their chagrin.

They can't take the heat from the government shutdown they're responsible for. What's next? This is whack-a-mole. What is tomorrow? CDC preparations for flu season. That's kind of important. Still shut down.

How about our Capitol Hill Police keeping us alive and guarding us every day, who are having their leave canceled and they're not getting paid, and they're still standing out there. Are you going to put them on the list? When are you going to take care of them?

Put the whole government back to work now.

The SPEAKER pro tempore. Members are reminded that they are to address their remarks to the Chair.

Mr. SIMPSON. Mr. Speaker, I am now happy to yield 1 minute to the gentleman from Colorado (Mr. LAMBORN).

Mr. LAMBORN. I thank the gentleman.

Mr. Speaker, I rise today to speak in favor of reopening our national parks and museums.

This morning, I met with some of our great World War II veterans down at the World War II Memorial on our National Mall. One of these veterans, 97-year-old Eugene Morgan of West Memphis, Tennessee, came with his son, Jeff. When they arrived, they were met by ''Obamacades''—a series of rented barricades intended to keep our veterans from visiting the memorial—their own memorial.

The closure of this memorial is hard to comprehend. It is an open-air memorial that is normally accessible to the public 24 hours a day, all year long, with little or no staff. It was built using private money. Veterans have been planning for months to visit this memorial. This may be the last time they come back east to see it.

Other Americans are trying to visit national parks all around the country, including in my home State of Colorado, but it's unacceptable that we are closing parks, some of which don't even need staff.

For many of our elderly veterans, this might be their last opportunity.

Mr. President, these parks belong to us. Take down your barricades and let the people in.

I urge my colleagues to support this bill to open our national parks to the American people.

Mr. MORAN. It is my great pleasure to yield 1 minute to the gentleman from California (Mr. GEORGE MILLER), the ranking member on the Education and Workforce Committee and former chair of the Natural Resources Committee.

(Mr. GEORGE E. MILLER of California asked and was given permission to revise and extend his remarks.)

Mr. GEORGE MILLER of California. Mr. Speaker, Members of the House, the chairman of the committee says that we should think of the impact before we act; that we should think of the impact on the parks before we vote against this bill.

Did you think about the parks when you voted to shut down the government? Did you think about the impacts?

The gentleman from Montana yesterday came to the floor and said it's hurting the local economy. The gentleman from California came and said it's hurting the towns around Yosemite. Was he thinking about that when he voted originally to shut down the government? He was prepared to sacrifice the local economy. He was prepared to sacrifice the towns around Yosemite when he was on the jihad against American citizens getting access to health care. He was fully prepared to sacrifice the parks and the economy and fire recovery.

But you know what you found out in the last 24 hours? That millions of Americans went to find health care, to sign up for health care, to get access to health care. And millions of Americans decided that you're doing the wrong thing in shutting down their government.

So when you were on the jihad against Americans' access to health care, shutting down the parks wasn't a problem. Shutting down NIH wasn't a problem.

The SPEAKER pro tempore. The gentleman's time has expired.

Mr. GEORGE MILLER of California. I was telling them, Mr. Speaker, that they thought it was okay to shut down——

The SPEAKER pro tempore. The gentleman's time has expired. The gentleman is out of order. The gentleman is out of order. The gentleman is not recognized.

Mr. GEORGE MILLER of California. * * *

Mr. SIMPSON. Mr. Speaker, I am disgusted that the gentleman from California would actually use the word ''jihad'' on the floor of the House. We should all reject his comments and he should be censured, but I won't call for it.

I'm the last speaker, and I reserve the balance of my time.

Mr. MORAN. I yield 30 seconds to the gentleman from Ohio (Mr. RYAN) on the Appropriations Committee.

Mr. RYAN of Ohio. I thank the gentleman.

Mr. Speaker, we've heard in the last hour or two people worried about lab rats at NIH, the zoos closing down. They're worried about cancer patients at NIH. Just a few. But if we want to provide health care to all children so that no family has to worry about it, we don't hear anything but a defunding proposition from the other side.

You want kids to go to the zoo, but if we want to provide them health care, you guys are MIA.

Now you've been infighting. You've been called lemmings. You've been called wacko birds by your own party.

So it seems to me that there is one zoo open in the Nation's Capital—and that's the House Republican Conference.

Mr. MORAN. I yield 30 seconds to the gentleman from New York (Mr. MEEKS).

□ 1745

Mr. MEEKS. You know, many Americans were born at night, but they weren't born last night. You can't fool them. There is an old saying: You can run, but you can't hide.

We're here for one reason. The members of the majority party don't like the Affordable Care Act, and that's the whole reason we're here. They want to stop the Affordable Care Act. It has nothing to do with anything else. So all of America is held hostage because they do not like the Affordable Care Act.

But you can run, but you can't hide. You can't hide from the fact that you closed down the government. You can't hide from the fact that by just now suggesting you put a few up, that all of the government is not shut down. We need to open up the entire government.

You can run, but you can't hide.

Mr. MORAN. Mr. Speaker, I would now like to yield 30 seconds to the distinguished gentleman from New Jersey (Mr. HOLT).

Mr. HOLT. Mr. Speaker, I very much thank the ranking member of the subcommittee.

Now, why, the Republicans say, are we not eagerly endorsing their plan? Now suppose someone comes into your neighborhood, builds a barrier around your house, a fence, locks you and your family out, won't let you in. Two days later, they come to you magnanimously and say we've modified your house; we'll let you into one room. And they can't understand why we don't enthusiastically embrace that deal. That's what you're offering here.

Of course we should be funding the National Park Service. Of course we should be funding the CDC and food inspections. Bring up the clean CR and we will do it.

Mr. Speaker, today the Tea Party continues its reckless and damaging government shutdown. Yet in an effort to distract from their irresponsibility, they have offered what they claim is a compromise: to reopen only those agencies of government which they deem, for their own political reasons, to be necessary.

This notion—that the Tea Party can pick and choose which agencies of government to reopen—proceeds from a false premise. It is based on the idea that the Tea Party, which represents one faction of one party in one house of Congress, possesses the unilateral authority to choose which parts of government are worthy and which are unworthy.

This idea is wrong-headed, it is arrogant, and it is astonishingly irresponsible.

The members of the Tea Party are not dictators, nor are they inventing a new government from scratch. They are, rather, the latest in a centuries-long line of democratically elected representatives who have, with the people's mandate, established our entire government.

Yes, that government includes the functions that the Tea Party today has deemed worthwhile: the Department of Veterans Affairs, the National Institutes of Health, the National Parks Service, and so on.

But it also includes many other functions that the Tea Party has no right to unilaterally reject. Our government includes the Centers for Disease Control and Prevention. It includes loans for small businesses seeking to expand and for students seeking to attend college. It includes food safety inspections and public health research and Head Start. It includes grants to help towns build roads, bridges, and schools. It includes public servants who process applications for Social Security and visas and passports.

If the Tea Party truly believes that the functions they seek to defund today are unnecessary, there is a clear, democratic process by which they can dismantle them. They could introduce a bill to abolish, say, Head Start. That bill could be considered by this House, by the Senate, and by the President—and if it were to pass and were to be signed, it would become the law of the land. That outcome would be, to my mind, catastrophic, but it would at least be constitutional and democratic.

The Tea Party is right about one thing: this government shutdown—which they demanded, incited, and celebrated—is causing great pain. I hope that they are, as they claim to be, dismayed by the suffering they have created. And I hope they will act upon their dismay by finally bringing to the floor a bill to put the entire government back to work, which the Senate already has passed and the President has promised to sign into law.

Mr. MORAN. Mr. Speaker, I yield 30 seconds to the distinguished gentleman from New Mexico (Mr. BEN RAY LUJÁN).

Mr. BEN RAY LUJÁN of New Mexico. Mr. Speaker, the House Republicans are not fooling anyone. Right now is hunting season in New Mexico. The Republican bill does nothing to keep open access to hunting on Federal lands, on the BLM or Forest Service. The Republicans are keeping hunters stranded and turning a blind eye to the small business owners and guides that depend on hunting season.

Hunters across America, call the House Republicans and tell them to let us vote on the clean Senate CR.

Mr. MORAN. Mr. Speaker, I yield myself the balance of my time to share with the House the fact that the National Wildlife Federation, America's largest conservation organization, said it best. They just sent us a letter:

House Members from both sides of the aisle say the votes are there to pass a clean continuing resolution. Speaker BOEHNER should do the right thing and allow an up-or-down vote on that bill.

Now, the problem with these votes, Mr. Speaker, is that they shouldn't be necessary. If in fact we were going to open the government and not keep it shut for weeks on end, you wouldn't be doing this. This would all be moot. The reason you're doing this is to have some excuse to continue the shutdown. That's the problem with these votes.

The other problem is that you voted to shut down the national parks. You did it last week. You voted to shut down the National Institutes of Health. You did it last weekend. You voted to shut down the Veterans Administration, and now you want to reopen just them.

We voted against shutting down those agencies. We voted against shutting down the government. That's what you should be doing. Give us a clean vote. Let's get on about our business. Stop this nonsense.

I yield back the balance of my time.

HOUSE PLAN TO REOPEN ONLY NATIONAL PARKS FALLS SHORT

WASHINGTON, DC.—The House of Representatives is considering several bills that would provide continuing resolution funding for select parts of the federal government, including one that would re-open National Parks.

Larry Schweiger, president and CEO of the National Wildlife Federation, said today:

''This bill fails to address the concerns of sportsmen. While re-opening the National Parks is an element of our displeasure over the government shutdown, there are a wide range of public lands that this bill would leave shuttered, including National Forests, National Monuments and National Wildlife Refuges.

''House members from both sides of the aisle say the votes are there to pass a clean continuing resolution. Speaker Boehner should do the right thing and allow an up or down vote on that bill.''

The SPEAKER pro tempore. Members are reminded to address all remarks to the Chair.

Mr. SIMPSON. Mr. Speaker, may I inquire as to how much time I have remaining?

The SPEAKER pro tempore. The gentleman from Idaho has 1 minute remaining.

Mr. SIMPSON. Mr. Speaker, most people might not realize that Mr. MORAN from Virginia and I are pretty good friends and we share a lot relative to our Interior Subcommittee. But I will tell you, what it reminds me of, when I'm listening to my colleagues on the other side of the aisle, is if you say something long enough and often enough, maybe you will get the American people to believe it.

Nobody over here voted to shut down the government. In fact, every time we passed a bill and sent it to the Senate, it was to keep the government operating. Did it include more than that? Yes, it did. And it was rejected by the Senate. So we sent them another one with another offer. They rejected it. We keep sending them things.

Finally, what we said to them is: Let's go to conference and work out our differences. But no, they won't even sit and talk to us. So the distinguished minority whip from Maryland says: Let's do this; pass our idea, do it my way, and then we'll negotiate.

Well, that's just backwards. We need to go to conference and settle our differences and get a bill out here that keeps the government operating. That's what everyone here wants to do.

It is not a Republican shutdown. It is a Democratic ''my way or the highway.'' You agree with us or we will shut the government down. That's exactly what the minority party has done here.

I would encourage my Members to support this bill, and I yield back the balance of my time.

Ms. JACKSON LEE. Mr. Speaker, I rise to speak on the Continuing Resolutions to reopen our National Parks. Today, 368 national park sites were closed and we now see that the majority has noticed.

On August 25, 1916, President Woodrow Wilson signed a law that is a solemn promise to the public that our nation would ''conserve the scenery and the natural and historic objects and wildlife,'' for all of the people of this great nation for all generations to come.

The United States unlike many other nations does not allow our national monuments and natural wonders to be privatized—they belong to us all and should be treated with the utmost care and respect.

Over 22,000 Parks Service Personnel care for and manage the over 400 areas designated as under the management of the National Parks Service.

Here in our nation's capital we see the damage caused by the majority of the House with insisting on a Federal government shutdown when surviving veterans of World War II who came to see the memorial built in their name and were nearly prevented from doing so.

Our nation's parks range from unimaginably large and majestic manifestations of God's beauty on Earth to very small structures, but each is served by dedicated federal employees. The nation's laws regarding national parks do not treat some parks more special than others.

Around the nation people are not able to complete vacation plans because they will not be able to visit some of the nation's most beautiful areas, which include our nation's first national park Yellowstone National Park designated in 1872.

The National Parks Service's stewardship includes over 84 million acres of park lands, 4 million in land around oceans, lakes and reservoirs, 85,049 miles of rivers and streams, 68,561 miles of archeological sites, 43,162 miles of shoreline, 27,000 historic structures, which include presidential birthplaces, the preservation and protection of over 121 million objects in museum collections, 21,000 buildings, 12,250 miles of Trails and 8,500 miles of roads.

Mr. Speaker, Texas is graced with 20 Federal Parks that include Big Bend National Park, Alibates Flint Quarries National Monument, Amistad National Recreation Area, Big Thicket National Preserve; Chamizal National Memorial; Fort Davis National Historic Site; Guadalupe Mountains National Park; Lake Meredith National Recreation Area; Lyndon B Johnson National Historical Park; Padre Island National Seashore; Palo Alto Battlefield National Historic Site; Rio Grande Wild and Scenic River; and San Antonio Missions National Historical Park are all closed during the shutdown.

Texas also has national Forests and grasslands: Angelina National Forest; Davy Crockett National Forest; Sabine National Forest; Sam Houston National Forest; Caddo and Lyndon B. Johnson (LBJ) National Grasslands; Black Kettle and McClellan Creek Grasslands; Kiowa and Rita Blanca National Grasslands.

All of them are closed today because of the reckless behavior of the majority in the House of Representatives.

Perhaps over the last few days members of the majority of the House of Representatives received their first education directly from constituents about our nation's national parks and how much our parks and park lands are loved.

Federal parks also contribute to the local economies where they are found and create tens of thousands of tourist related jobs. Because they are closed today those jobs are at risk as well as the incomes of the Park Rangers who are stewards of our nation's most precious treasures.

It is not as simple as opening the gates and letting people enter—people while enjoying these treasures, can become lost, injured, or need assistance. The National Parks Service staff working at these sites are there to protect these them and to be a resource for visitors and more important to keep them safe while at Federal Parks.

The House should take up the clean Senate Continuing Resolution to fund the entire government. Today, the Department of Homeland Security, the Federal Bureau of Investigations, the ATF, the Office of the Director of National Security, Military Reservists, Centers for Disease Control, Health and Human Services, National Oceanographic Atmospheric Administration and hundreds of other small and large agencies are being impacted.

Mr. Speaker I have often heard members of the majority compare their state to the entire United States as if the comparison are equivalent. From what we have learned from the majority they will leave everyone else behind if they get their way. They do not see the nation as large, but as a small place with small minded people.

I represent a District in the State of Texas, one of our nation's largest states with diversity in land and people that is rivaled by only a few other states, but I would not say that everything done in Texas would be the right decision for the entire United States.

The United States is a very large place with large minded people with big hearts, who do not believe in leaving others behind.

Mr. Speaker, instead of exempting certain groups and persons from the harm caused by a government shutdown, we should instead be focused on reopening the government as soon as possible.

Texas is experiencing the impact of cutbacks in the $64.7 billion in federal spending that it receives annually, including the threat that the State may lose: $518 million in federal highway funds, $411 million for interstate highway maintenance, $130 million in home energy assistance for the poor, $71 million in Homeland Security grants, $55 million in coordinated border infrastructure and $97 million in federal adoption assistance.

For these reasons, we cannot wait for the majority to discover all of the reasons why we have a federal government or the importance and purpose of each agency.

We have to pass a clean CR now—we do not need to wait, just bring to the floor the bills sent to this body by the Senate.

Ms. LEE of California. Mr. Speaker, here we are day two of the hurtful Republican Government Shutdown.

We still don't have a viable solution to reopen the government.

The Republican refusal to back off their extreme, ideological demands has taken our country down a dangerous path with no solution in sight.

Mr. Speaker, while all of us believe it is important to keep the government functioning, hostage taking is no way to run federal departments and agencies.

Members of Congress are elected to make sure our government functions.

Yet, instead of working on a serious option to reopen the government, Republicans latest strategy is to exploit our National Parks and the staff who work to keep them open by voting on piecemeal bills that will not end impacts of a shut down that extend across our country.

Mr. Speaker, of course we want to keep our National Parks open. But let's not pretend this is not part of a strategy to score political points and advance an ideological agenda.

The Senate passed continuing resolution would fund the government for an additional six weeks and all this House has to do is pass that bill to end this manufactured crisis.

The SPEAKER pro tempore. All time for debate has expired.

Pursuant to House Resolution 370, the previous question is ordered.

The question is on the engrossment and third reading of the joint resolution.

The joint resolution was ordered to be engrossed and read a third time, and was read the third time.

MOTION TO RECOMMIT

Mr. VAN HOLLEN. Mr. Speaker, I have a motion to recommit at the desk.

The SPEAKER pro tempore. Is the gentleman opposed to the joint resolution?

Mr. VAN HOLLEN. Yes, I am in its current form.

The SPEAKER pro tempore. The Clerk will report the motion to recommit.

The Clerk read as follows:

Mr. VanHollen moves to recommit the joint resolution H.J. Res. 70 to the Committee on Appropriations with instructions to report the same back to the House forthwith with the following amendment:

Strike all after the resolving clause and insert the following:

That upon passage of this joint resolution by the House of Representatives, the joint resolution (H.J. Res. 59) making continuing appropriations for fiscal year 2014, and for other purposes, as amended by the Senate on September 27, 2013, shall be considered to have been taken from the Speaker's table and the House shall be considered to have (1) receded from its amendment; and (2) concurred in the Senate amendment.

Mr. VAN HOLLEN (during the reading). Mr. Speaker, I ask that further reading of the motion be dispensed with.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Maryland?

Mr. SIMPSON. I object.

The SPEAKER pro tempore. Objection is heard.

The Clerk will read.

The Clerk continued to read.

Mr. SIMPSON. Mr. Speaker, I reserve a point of order on the gentleman's motion.

The SPEAKER pro tempore. A point of order is reserved.

The gentleman from Maryland is recognized for 5 minutes.

Mr. VAN HOLLEN. Mr. Speaker, if we really want to keep the National Institutes of Health open, if we really

want to make sure we keep the national parks open, if we really want to help our veterans, there's a very easy way to do it right now; and that's for the Speaker of this House to allow the Members of this House to have a vote, to have a vote on the very simple proposition: Are we going to keep the entire Federal Government operating now? Because that would pass if in the people's House we were given that opportunity.

So we have a very simple question, Mr. Speaker: Why is the majority afraid of democracy? Why are they afraid of allowing this House to work its will? Because if we had a vote, we could make sure the entire government was kept open.

I mentioned earlier that I have the privilege of representing the congressional district that's home to the National Institutes of Health. These are scientists doing important work. They're not Republican scientists or Democratic scientists, but they're all smart people. I've heard from them and they've said: Are you kidding? We're not going to be fooled by this piecemeal approach.

They understand if you want to help NIH, you vote to send the bill to make sure the government stays open. And, by the way, they all have kids. They want to keep the Department of Education open as well. And they want to keep not just the National Institutes of Health open, but the Department of Health and Human Services and the Department of Veterans Affairs.

Why is the Speaker not allowing a vote in this House? I think we all know the answer. Here's what The Washington Post said just the other day: ''House Republicans Hope to Use Cruz's Plan B''—that's Senator CRUZ. Here's what it says:

> Adopting a strategy first suggested by Senator Ted Cruz, House Republicans are pushing a new approach that would break up the Federal spending bills.

Once again, Senator CRUZ is in charge of this House, and you have a reckless minority blocking a vote of the majority, a majority of Republicans and Democrats.

Now, earlier today we learned that the Republicans in this House went so far as to change the standing rules of the House to force this through in an undemocratic way. The rules of the House, when you have a situation like this, would allow any one of our Members to get up and move and ask the House to vote on the bill that would keep the whole government open. That's the standing rules. But our Republican colleagues changed the rules. It says only a Republican Member—in fact, only the majority leader can bring that up and allow us to vote. That's not a democracy.

This is the same approach we're hearing from our colleagues when it comes to paying our bills on time. They want to fund a little piece of government at one time. They don't want to pay all our bills. They say let's pay China first. Let's not pay Medicare doctors. Let's not pay our troops in the field. Let's not pay all our bills; let's just pay some of our bills. Let's pretend we're going to cherry-pick different pieces of government to keep open so the rest of it can shut down and die on the vine.

Well, my constituents are not fooled. My constituents who work at NIH are not fooled. They don't want to be used as pawns in this game. And they understand full well that we could get this done tonight, that we could keep the whole government open now, and all that needs to happen is the Speaker to let us vote.

If the Speaker and our Republican colleagues want to vote to keep the entire government shut down, go for it. Do it in the light of day. Let the American people see that that's what you want to do. But for goodness sakes, explain to the American people why you won't allow a vote to keep the government open right now. That's all we're asking for. That's all we're asking for, Republicans and Democrats to come together and have a vote.

The gentleman mentioned that, well, the House had voted on this, but they also indicated that they had added these attachments, like shutting down affordable care for all Americans. Let's have a clean, simple vote, just like we should also have a vote to pay our bills on time for goodness sakes.

We have stood by for months trying to have a negotiation on the budget. At every turn, we've been blocked. The Speaker didn't allow us to appoint budget conferees, budget negotiators. In the Senate, we were blocked. So what did we do? They ran out the clock, ran the country up against the wall and said: You know what? We want it our way or the highway. We want you to shut down the Affordable Care Act or we're going to shut down government. We want you to pay China first or not pay our troops, or guess what? We're going to collapse the economy.

Mr. Speaker, I just ask that we vote ''yes'' on this to keep the government funded now, and I yield back the balance of my time.

POINT OF ORDER

Mr. SIMPSON. Mr. Speaker, I insist on my point of order.

The SPEAKER pro tempore. The gentleman from Idaho may state his point of order.

Mr. SIMPSON. Mr. Speaker, I make a point of order against the motion to recommit. This motion is not germane and as such is a violation of rule XVI, clause 7, which states:

No motion or proposition on a subject different from that under consideration shall be admitted under color of amendment.

This motion deals with a proposition unrelated to the matter addressed by the joint resolution and brings in a matter under the jurisdiction of the Committee on Rules, which fails the committee of jurisdiction test, and therefore is a violation of rule XVI, clause 7.

I ask for a ruling from the Chair.

The SPEAKER pro tempore. Does any Member wish to be heard on the point of order?

Mr. VAN HOLLEN. Yes, Mr. Speaker, I'd like to be heard on the point of order.

The SPEAKER pro tempore. The gentleman from Maryland is recognized on the point of order.

Mr. VAN HOLLEN. I'm trying to understand why a motion to keep the entire government open is not in order on this measure. Why would the rules have been written in a way that a simple motion to keep the entire government funded now would not be in order in the people's House? Why would it be written in a way that this House cannot work its will on keeping the government open?

This is the people's House. Why would a rule be written in a way that we cannot have a vote to keep the entire government open now, tonight?

So we apparently have a rule in this House that says we're shutting down democracy tonight. We can't have the opportunity to have a vote to keep the government open. That's what's happening here. Let's not play any games, my colleagues. That is what's happening here. You know if we had a vote tonight, it would pass.

The SPEAKER pro tempore. The Chair is prepared to rule.

Mr. VAN HOLLEN. I want to be heard, Mr. Speaker. I asked a question related to the point of order.

The SPEAKER pro tempore. The Chair has heard argument and the Chair is prepared to rule.

Mr. VAN HOLLEN. Mr. Speaker, I would like to be further heard because, as I understand what the ruling was, it was because this measure before the House is limited to one little tiny sliver of the government, that a motion to keep the entire government open is not in order. Is that correct?

The SPEAKER pro tempore. The Chair is hearing argument on the point of order. There has been no ruling. Does the gentleman have an argument on the point of order?

Mr. VAN HOLLEN. Yes. My argument is that our government is a whole. And the question is: How can you say that it would be totally irrelevant to the purpose of funding government operations to offer a motion that would keep all the government operations open now? How can that be?

The SPEAKER pro tempore. The Chair is prepared to rule.

Mr. VAN HOLLEN. Mr. Speaker, I'm just trying to understand how it is that in this House there was a rule that was written that would deny the majority an opportunity to vote?

The SPEAKER pro tempore. The Chair will not entertain questions in advance of ruling.

The Chair is prepared to rule.

Mr. ANDREWS. Mr. Speaker, I would like to be heard on the point of order.

The SPEAKER pro tempore. The gentleman from New Jersey is recognized.

□ 1800

Mr. ANDREWS. Mr. Speaker, my understanding of the principle of germaneness is that the underlying subject matter of the bill has to be the subject matter of the motion to recommit.

We have heard repeatedly from the offerers of this bill that they believe it is necessary to fund what they view as vitally important services for the United States of America. We have a difference of opinion. We think everything in the budget in the Senate CR is vital for the United States of America. We think it all should be funded.

Now, our view, our concept of what is vital is different than theirs. But if the germane issue here is funding what is vital, then why isn't the motion to recommit germane?

The SPEAKER pro tempore. The gentleman from Idaho makes a point of order that the instructions proposed in the motion to recommit offered by the gentleman from Maryland are not germane.

The joint resolution extends a certain class of funding within a portion of fiscal year 2014—namely, funds for the operations of the National Park Service, the Smithsonian Institution, the National Gallery of Art, and the United States Holocaust Memorial Museum. The instructions in the motion propose an order of business of the House relating to funding for all other agencies and Departments subject to the annual appropriations process for the remainder of the fiscal year.

Among the fundamental principles of germaneness is that an amendment must confine itself to matters that fall within the jurisdiction of the committees with jurisdiction over the pending measure.

The joint resolution addresses the appropriation of certain funds. That subject matter falls within the legislative jurisdiction of the Committee on Appropriations, and accordingly, House Joint Resolution 70 was referred to that committee.

The instructions contained in the motion to recommit propose an order of business of the House. That subject matter falls within the legislative jurisdiction of the Committee on Rules. For example, the Chair would note the referral of House Resolution 424 of the 106th Congress, a measure that contained a similar order of business, to the Committee on Rules.

By addressing a matter within the jurisdiction of a committee not represented in the joint resolution, the instructions propose an amendment that is not germane. The point of order is sustained. The motion is not in order.

Mr. VAN HOLLEN. Mr. Speaker, I appeal the ruling of the Chair.

The SPEAKER pro tempore. The question is, Shall the ruling of the Chair stand as the decision of the House?

Mr. SIMPSON. Mr. Speaker, I move to lay the appeal on the table.

The SPEAKER pro tempore. The question is on the motion to table.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. VAN HOLLEN. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The SPEAKER pro tempore. Pursuant to clause 8 and clause 9 of rule XX, this 15-minute vote on the motion to table will be followed by 5-minute votes on passage of the joint resolution, if arising without further proceedings in recommittal, and passage of House Joint Resolution 73.

The vote was taken by electronic device, and there were—yeas 230, nays 194, not voting 7, as follows:

[Roll No. 512]

YEAS—230

Aderholt
Amash
Amodei
Bachmann
Bachus
Barletta
Barr
Barton
Benishek
Bentivolio
Bilirakis
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Calvert
Camp
Campbell
Cantor
Capito
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cotton
Cramer
Crawford
Crenshaw
Culberson
Daines
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Kelly (PA)
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Lankford
Latham
Latta
LoBiondo
Long
Lucas
Luetkemeyer
Lummis
Marchant
Marino
Massie
McCarthy (CA)
McCaul
McClintock
McHenry
McKeon
McKinley
McMorris Rodgers
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paulsen
Pearce
Perry
Petri
Pittenger
Pitts
Poe (TX)
Pompeo
Posey
Price (GA)
Radel
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Runyan
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (AK)
Young (FL)
Young (IN)

NAYS—194

Andrews
Barber
Barrow (GA)
Bass
Beatty
Becerra
Bera (CA)
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Braley (IA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clarke
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Lipinski
Loebsack
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Maloney, Sean
Matheson
Matsui
McCollum
McDermott
McGovern
McIntyre
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Murphy (FL)
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Perlmutter
Peters (CA)
Peters (MI)
Peterson
Pingree (ME)
Pocan
Polis
Price (NC)
Quigley
Rahall
Rangel
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Schakowsky
Schiff
Schneider
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Tierney
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Watt
Waxman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—7

Garcia
Herrera Beutler
Hinojosa
McCarthy (NY)
Pelosi
Rush
Sarbanes

□ 1828

Mr. CAPUANO, Ms. DEGETTE, Messrs. BRALEY of Iowa, COURTNEY, BARBER, Mrs. NAPOLITANO, Ms. LINDA T. SÁNCHEZ of California, and Mr. JOHNSON of Georgia changed their vote from ''yea'' to ''nay.''

Messrs. CRAWFORD, LATTA, and Ms. FOXX changed their vote from ''nay'' to ''yea.''

So the motion to table was agreed to.

The result of the vote was announced as above recorded.

Stated against:

Mr. GARCIA. Mr. Speaker, on rollcall No. 512, had I been present, I would have voted "no."

The SPEAKER pro tempore. The question is on the passage of the joint resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

RECORDED VOTE

Mr. VISCLOSKY. Mr. Speaker, I demand a recorded vote.

A recorded vote was ordered.

The SPEAKER pro tempore. This is a 5-minute vote.

The vote was taken by electronic device, and there were—ayes 252, noes 173, not voting 6, as follows:

[Roll No. 513]

AYES—252

Aderholt
Amash
Amodei
Bachmann
Bachus
Barber
Barletta
Barr
Barton
Benishek
Bentivolio
Bera (CA)
Bilirakis
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Braley (IA)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Bustos
Calvert
Camp
Campbell
Cantor
Capito
Carson (IN)
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cotton
Cramer
Crawford
Crenshaw
Culberson
Daines
Davis, Rodney
DelBene
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Franks (AZ)
Frelinghuysen
Gallego
Garamendi
Garcia
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Kelly (PA)
Kilmer
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Lankford
Latham
Latta
Lipinski
LoBiondo
Loebsack
Long
Lucas
Luetkemeyer
Lummis
Maloney, Sean
Marchant
Marino
Massie
Matheson
McCarthy (CA)
McCaul
McClintock
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paulsen
Pearce
Perry
Peters (CA)
Petri
Pittenger
Pitts
Poe (TX)
Polis
Pompeo
Posey
Price (GA)
Radel
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam
Ross
Rothfus
Royce
Ruiz
Runyan
Ryan (WI)
Salmon
Sanford
Scalise
Schneider
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Southerland
Stewart
Stivers
Stockman
Stutzman
Terry
Thompson (PA)
Thornberry
Tiberi
Tierney
Tipton
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walorski
Weber (TX)
Webster (FL)
Wenstrup
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Wolf
Womack
Woodall
Yoder
Yoho
Young (FL)
Young (IN)

NOES—173

Andrews
Barrow (GA)
Bass
Beatty
Becerra
Bishop (GA)
Bishop (NY)
Blumenauer
Bonamici
Brady (PA)
Brown (FL)
Brownley (CA)
Butterfield
Capps
Capuano
Cárdenas
Carney
Cartwright
Castor (FL)
Castro (TX)
Chu
Cicilline
Clarke
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Costa
Courtney
Crowley
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
Deutch
Dingell
Doggett
Doyle
Duckworth
Edwards
Ellison
Engel
Enyart
Eshoo
Esty
Farr
Fattah
Frankel (FL)
Fudge
Gabbard
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hanabusa
Hastings (FL)
Heck (WA)
Higgins
Himes
Holt
Honda
Horsford
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lee (CA)
Levin
Lewis
Lofgren
Lowenthal
Lowey
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Maffei
Maloney, Carolyn
Matsui
McCollum
McGovern
McNerney
Meeks
Meng
Michaud
Miller, George
Moore
Moran
Nadler
Napolitano
Neal
Negrete McLeod
Nolan
O'Rourke
Owens
Pallone
Pascrell
Pastor (AZ)
Payne
Perlmutter
Peters (MI)
Peterson
Pingree (ME)
Pocan
Price (NC)
Quigley
Rahall
Rangel
Richmond
Roybal-Allard
Ruppersberger
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Schwartz
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Shea-Porter
Sherman
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takano
Thompson (CA)
Thompson (MS)
Titus
Tonko
Tsongas
Van Hollen
Vargas
Veasey
Vela
Velázquez
Visclosky
Walz
Wasserman Schultz
Waters
Watt
Waxman
Welch
Wilson (FL)
Yarmuth
Young (AK)

NOT VOTING—6

Herrera Beutler
Hinojosa
McCarthy (NY)
McDermott
Pelosi
Rush

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore (during the vote). There are 2 minutes remaining.

□ 1834

So the joint resolution was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated against:

Mr. MCDERMOTT. Mr. Speaker, on rollcall No. 513 I was delayed in traffic and missed the vote. I would have voted "no." Had I been present, I would have voted "no."

## NATIONAL INSTITUTES OF HEALTH CONTINUING APPROPRIATIONS RESOLUTION, 2014

The SPEAKER pro tempore. The unfinished business is the vote on passage of the joint resolution (H.J. Res. 73) making continuing appropriations for the National Institutes of Health for fiscal year 2014, and for other purposes, on which the yeas and nays were ordered.

The Clerk read the title of the joint resolution.

The SPEAKER pro tempore. The question is on the joint resolution.

This is a 5-minute vote.

The vote was taken by electronic device, and there were—yeas 254, nays 171, not voting 6, as follows:

[Roll No. 514]

YEAS—254

Aderholt
Amash
Amodei
Bachmann
Bachus
Barber
Barletta
Barr
Barrow (GA)
Barton
Benishek
Bentivolio
Bera (CA)
Bilirakis
Bishop (UT)
Black
Blackburn
Boustany
Brady (TX)
Braley (IA)
Bridenstine
Brooks (AL)
Brooks (IN)
Broun (GA)
Buchanan
Bucshon
Burgess
Bustos
Calvert
Camp
Campbell
Cantor
Capito
Carson (IN)
Carter
Cassidy
Chabot
Chaffetz
Coble
Coffman
Cole
Collins (GA)
Collins (NY)
Conaway
Cook
Cotton
Cramer
Crawford
Crenshaw
Culberson
Daines
Davis, Rodney
DelBene
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Duffy
Duncan (SC)
Ellmers
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foster
Foxx
Franks (AZ)
Frelinghuysen
Gallego
Garamendi
Garcia
Gardner
Garrett
Gerlach
Gibbs
Gibson
Gingrey (GA)
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (MO)
Griffin (AR)
Griffith (VA)
Grimm
Guthrie
Hall
Hanna
Harper
Harris
Hartzler
Hastings (WA)
Heck (NV)
Hensarling
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurt
Issa
Jenkins
Johnson (OH)
Johnson, Sam
Jones
Jordan
Joyce
Keating
Kelly (PA)
King (IA)
King (NY)
Kingston
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Lankford
Latham
Latta
Lipinski
LoBiondo
Loebsack
Long
Lucas
Luetkemeyer
Lummis
Maloney, Sean
Marchant
Marino
Massie
Matheson
McCarthy (CA)
McCaul
McClintock
McHenry
McIntyre
McKeon
McKinley
McMorris Rodgers
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Miller, Gary
Mullin
Mulvaney
Murphy (FL)
Murphy (PA)
Neugebauer
Noem
Nugent
Nunes
Nunnelee
Olson
Palazzo
Paulsen
Pearce
Perry
Peters (CA)
Petri
Pittenger
Pitts
Poe (TX)
Polis
Pompeo
Posey
Price (GA)
Radel
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rogers (MI)
Rohrabacher
Rokita
Rooney
Ros-Lehtinen
Roskam

| | | |
|---|---|---|
| Ross | Smith (MO) | Walberg |
| Rothfus | Smith (NE) | Walden |
| Royce | Smith (NJ) | Walorski |
| Ruiz | Smith (TX) | Weber (TX) |
| Runyan | Southerland | Webster (FL) |
| Ryan (WI) | Stewart | Wenstrup |
| Salmon | Stivers | Westmoreland |
| Sanford | Stockman | Whitfield |
| Scalise | Stutzman | Williams |
| Schneider | Terry | Wilson (SC) |
| Schock | Thompson (PA) | Wittman |
| Schweikert | Thornberry | Wolf |
| Scott, Austin | Tiberi | Womack |
| Sensenbrenner | Tierney | Woodall |
| Sessions | Tipton | Yoder |
| Shimkus | Turner | Yoho |
| Shuster | Upton | Young (AK) |
| Simpson | Valadao | Young (FL) |
| Sinema | Wagner | Young (IN) |

NAYS—171

| | | |
|---|---|---|
| Andrews | Green, Gene | Owens |
| Bass | Grijalva | Pallone |
| Beatty | Gutiérrez | Pascrell |
| Becerra | Hahn | Pastor (AZ) |
| Bishop (GA) | Hanabusa | Payne |
| Bishop (NY) | Hastings (FL) | Perlmutter |
| Blumenauer | Heck (WA) | Peters (MI) |
| Bonamici | Higgins | Peterson |
| Brady (PA) | Himes | Pingree (ME) |
| Brown (FL) | Holt | Pocan |
| Brownley (CA) | Honda | Price (NC) |
| Butterfield | Horsford | Quigley |
| Capps | Hoyer | Rahall |
| Capuano | Huffman | Rangel |
| Cárdenas | Israel | Richmond |
| Carney | Jackson Lee | Roybal-Allard |
| Cartwright | Jeffries | Ruppersberger |
| Castor (FL) | Johnson (GA) | Ryan (OH) |
| Castro (TX) | Johnson, E. B. | Sánchez, Linda T. |
| Chu | Kelly (IL) | Sanchez, Loretta |
| Cicilline | Kennedy | Sarbanes |
| Clarke | Kildee | Schakowsky |
| Clay | Kilmer | Schiff |
| Cleaver | Kind | Schrader |
| Clyburn | Kirkpatrick | Schwartz |
| Cohen | Kuster | Scott (VA) |
| Connolly | Langevin | Scott, David |
| Conyers | Larsen (WA) | Serrano |
| Cooper | Larson (CT) | Sewell (AL) |
| Costa | Lee (CA) | Shea-Porter |
| Courtney | Levin | Sherman |
| Crowley | Lewis | Sires |
| Cuellar | Lofgren | Slaughter |
| Cummings | Lowenthal | Smith (WA) |
| Davis (CA) | Lowey | Speier |
| Davis, Danny | Lujan Grisham (NM) | Swalwell (CA) |
| DeFazio | Luján, Ben Ray (NM) | Takano |
| DeGette | Maffei | Thompson (CA) |
| Delaney | Maloney, Carolyn | Thompson (MS) |
| DeLauro | Matsui | Titus |
| Deutch | McCollum | Tonko |
| Dingell | McDermott | Tsongas |
| Doggett | McGovern | Van Hollen |
| Doyle | McNerney | Vargas |
| Duckworth | Meeks | Veasey |
| Duncan (TN) | Meng | Vela |
| Edwards | Michaud | Velázquez |
| Ellison | Miller, George | Visclosky |
| Engel | Moore | Walz |
| Enyart | Moran | Wasserman Schultz |
| Eshoo | Nadler | Waters |
| Esty | Napolitano | Watt |
| Farr | Neal | Waxman |
| Fattah | Negrete McLeod | Welch |
| Frankel (FL) | Nolan | Wilson (FL) |
| Fudge | O'Rourke | Yarmuth |
| Gabbard | | |
| Grayson | | |
| Green, Al | | |

NOT VOTING—6

| | | |
|---|---|---|
| Herrera Beutler | Kaptur | Pelosi |
| Hinojosa | McCarthy (NY) | Rush |

□ 1848

So the joint resolution was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

## SHORT-TERM EXTENSION OF SPECIAL IMMIGRANT PROGRAM

Mr. GOODLATTE. Mr. Speaker, I ask unanimous consent that the Committees on the Judiciary and Foreign Affairs be discharged from further consideration of the bill (H.R. 3233) to extend the period during which Iraqis who were employed by the United States Government in Iraq may be granted special immigrant status and to temporarily increase the fee or surcharge for processing machine-readable nonimmigrant visas, and ask for its immediate consideration in the House.

The Clerk read the title of the bill.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

Ms. JACKSON LEE. Reserving the right to object, and I am not going to pursue my objection. But I want to congratulate the chairman and our committee for what I think is an enormously important visa, helping people who have helped us, particularly in Iraq.

And with that, I thank the Judiciary Committee for its work, and I withdraw my objection.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Virginia?

There was no objection.

The text of the bill is as follows:

H.R. 3233

*Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,*

**SECTION 1. SHORT-TERM EXTENSION OF SPECIAL IMMIGRANT PROGRAM.**

Section 1244(c)(3) of the National Defense Authorization Act for Fiscal Year 2008 (8 U.S.C. 1157 note) is amended by adding at the end the following:

''(C) FISCAL YEAR 2014.—

''(i) IN GENERAL.—Except as provided in clauses (ii) and (iii), the total number of principal aliens who may be provided special immigrant status under this section during the first 3 months of fiscal year 2014 shall be the sum of—

''(I) the number of aliens described in subsection (b) whose application for special immigrant status under this section is pending on September 30, 2013; and

''(II) 2,000.

''(ii) EMPLOYMENT PERIOD.—The 1-year period during which the principal alien is required to have been employed by or on behalf of the United States Government in Iraq under subsection (b)(1)(B) shall begin on or after March 20, 2003, and end on or before September 30, 2013.

''(iii) APPLICATION DEADLINE.—The principal alien seeking special immigrant status under this subparagraph shall apply to the Chief of Mission in accordance with subsection (b)(4) not later than December 31, 2013.''.

**SEC. 2. TEMPORARY FEE INCREASE FOR CERTAIN CONSULAR SERVICES.**

(a) IN GENERAL.—Notwithstanding any other provision of law, the Secretary of State, not later than January 1, 2014, shall increase the fee or surcharge authorized under section 140(a) of the Foreign Relations Authorization Act, Fiscal Years 1994 and 1995 (Public Law 103–236; 8 U.S.C. 1351 note) by $1 for processing machine-readable nonimmigrant visas and machine-readable combined border crossing identification cards and nonimmigrant visas.

(b) DEPOSIT OF AMOUNTS.—Notwithstanding section 140(a)(2) of the Foreign Relations Authorization Act, Fiscal Years 1994 and 1995 (Public Law 103-236; 8 U.S.C. 1351 note), the additional amount collected pursuant the fee increase authorized under subsection (a) shall be deposited in the general fund of the Treasury.

(c) SUNSET PROVISION.—The fee increase authorized under subsection (a) shall terminate on the date that is 2 years after the first date on which such increased fee is collected.

The bill was ordered to be engrossed and read a third time, was read the third time, and passed, and a motion to reconsider was laid on the table.

GENERAL LEAVE

Mr. GOODLATTE. Mr. Speaker, I ask unanimous consent that Members may have 5 legislative days to revise and extend their remarks and insert extraneous materials on H.R. 3233.

The SPEAKER pro tempore (Mr. DAINES). Is there objection to the request of the gentleman from Virginia?

There was no objection.

## MITOCHONDRIAL DISEASE CAUCUS

(Ms. ROS-LEHTINEN asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. ROS-LEHTINEN. Mr. Speaker, I first heard about mitochondrial diseases, which are fatal, from my chief of staff, Art Estopinan, who, together with his lovely wife Olgita, have been caring for their baby after he was diagnosed with TK2 mitochondrial DNA depletion syndrome, which has left Arturito, Jr., unable to move his fingers and toes, as you see in this poster, putting him in constant need of mechanical support to breathe and receive nutrition.

They were informed that their baby son, Art, Jr., would live only a few months, as there were no known medications. But thanks to the experimental treatments that Arturito is receiving from Columbia University Medical Center, medical care at Johns Hopkins Pediatric Hospital, and at the Kennedy Krieger Institute, the doctors have established a discharge date for mid-October, an unimaginable expectation just a year ago.

I pray for Arturito, Jr., and babies like him every night. I urge all Members to contact our office to make sure that they can learn more about these diseases by becoming a part of the Congressional Mitochondrial Disease Caucus. Let's look at Arturito, Jr., and let's save him and the countless others.

## SIGNING UP FOR OBAMACARE

(Mr. CLYBURN asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. CLYBURN. Mr. Speaker, we all know that for a full day now we've been hearing all kinds of anecdotes about what may or may not have taken place on yesterday as people were signing up for the first time for the Affordable Care Act.

Now, Mr. Speaker, I want to share with you a little bit of information

that comes from Los Angeles, California:

''It took 3 hours, but Andrew Stryker managed to be among the first people to purchase health insurance through ObamaCare's new insurance markets. Stryker is 34 years old and lives in Los Angeles, where he now does freelance work.'' He pays premiums of $600 to keep his COBRA plan that he had on his job, which he left 4 years ago. He is diabetic and has been denied insurance because of a preexisting condition. Mr. Stryker says, although it took him 3 hours, this plan is now saving him over $6,000 a year. And in his words, ''For that, I would have waited all day.''

A lot of us would.

## EXCHANGE LAUNCH

(Mrs. BROOKS of Indiana asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Mrs. BROOKS of Indiana. Mr. Speaker, I rise today to remind the American people why we are here. We are here because the President and the Senate Democrats have refused to negotiate.

We learned yesterday and even today about the challenges of signing up for ObamaCare. Information technology, I believe, will be ObamaCare's Achilles' heel. Many people went on healthcare.gov. They were greeted with messages, ''Please wait here until we send you to the login page,'' or, ''The system is down at the moment.''

Yes, glitches can be expected whenever a new system is started, but ObamaCare is simply not ready. Americans aren't ready. They weren't ready for the employer mandates. They are not ready for the individual mandate. We are not ready for IPAB. We are not ready for the medical device tax. We are not ready for the cuts to Medicare or to our providers. It will harm the economy. It already has.

What we are ready for is for the Senate and the President to negotiate, and we are ready to reopen our government when they do.

## OBAMACARE

(Mr. FLEMING asked and was given permission to address the House for 1 minute.)

Mr. FLEMING. Mr. Speaker, ObamaCare, on its first day, is emblematic of what we can expect from ObamaCare in the future, already proving to be a logistical as well as an economic disaster.

Businesses are cutting back on full-time employees. Some people are losing their jobs. Many are losing their hours as well. For businesses with less than 50 employees, ObamaCare has become a massive disincentive for growth.

The cost of health insurance premiums are skyrocketing. One report says people in Louisiana who don't get Federal subsidies will see dramatically higher rates for average coverage. In fact, they will now be paying more for health insurance than the cost in most other States.

The implementation of ObamaCare is proving to be the train wreck that even Democrats have come to expect. And that is leaving our economy on edge, with job creators wondering how they will make it through more taxes, more mandates and regulations.

ObamaCare is a devastating threat to our economy, and it needs to be stopped now.

□ 1900

## OBAMACARE DISCRIMINATES

(Mr. POE of Texas asked and was given permission to address the House for 1 minute.)

Mr. POE of Texas. Mr. Speaker, ObamaCare discriminates. It gives special treatment to special friends of the administration—1,200 waivers of special folks, but not waivers for everybody.

It also treats Big Business better than it does individual Americans. It delays ObamaCare 1 year for Big Business, but not individuals. That is discrimination.

Treat everybody the same. Waivers for all or no waivers for anyone. You've delayed implementation for 1 year for Big Business; delay it for individuals as well.

It's interesting. If ObamaCare is good for everybody, why isn't Obama under ObamaCare, and his staff, and the Cabinet?

Put everybody in ObamaCare. That is why we have this fight, because ObamaCare discriminates, and it's a fight worth having.

Defund it until everybody is treated fair. No discrimination.

And that's just the way it is.

## THIS BODY MUST DO BETTER

(Mr. LAMALFA asked and was given permission to address the House for 1 minute and to revise and extend his remarks.)

Mr. LAMALFA Mr. Speaker, it shouldn't come as a surprise that we have different ideas on the different sides of the aisle here.

Republicans believe in a smaller government, a less intrusive government, and so it shouldn't be a surprise when we step forward with ideas on budgeting, on spending, that we would want to pick and choose things that we think are appropriate for the government to do, and not fund the things that are inappropriate.

That's the situation, as we view it, with the Obama health care takeover. We see that it doesn't work. We see it's going to be horrendously more expensive.

What really disappoints me though, observing the last few days, as a newer Member here, is the decorum on this House floor, the yelling, the name-calling, the pointing, even the way the desk was addressed here earlier today.

I mean, I think the American people expect a discourse that is a little more honorable than all the yelling and the name-calling.

So if we want to have a discussion, which Republicans do, with our colleagues on the other side of the aisle, with the Senate, with the White House, we need to do it in a way that actually makes it attractive to talk to each other.

I like to watch motor sports. And if everybody on the racetrack was bashing each other off the track, you wouldn't have a race anymore. There'd be nothing to watch. You wouldn't have a sport. You wouldn't have a game.

This is much bigger than those types of games here, yet we don't have a discussion, we don't even have a way to have a discourse with all the name-calling.

So I'd ask for this body to do better.

## OBAMACARE IS A CIVIL RIGHT

(Ms. JACKSON LEE asked and was given permission to address the House for 1 minute and to revise and extend her remarks.)

Ms. JACKSON LEE. Mr. Speaker, yesterday, I heard the story of a mother who had lost her son, who had a preexisting condition and was not able to get insurance—only when a benevolent hospital took him in and determined, at the time, that he had Stage 3 cancer, because he had no insurance, because he had needed a colonoscopy.

If he had had ObamaCare, he would have had the ability, at least, to get insurance without worrying about the preexisting condition.

Emotions are high, but for the right reason. There is no reason that eliminating ObamaCare, as is being discussed on this floor, should be tied to opening the government back up. All the Republicans have to do is to pass, with the Democrats, a clean CR so that people might live.

Their story is like taking away the civil rights laws that President Johnson helped pass because they did not like it. They would hold up the government and close the government.

For me, this is civil rights for all Americans—to have the right to live, to have the right to have health insurance. It is not a budget issue. It is an issue to be done down the road. Vote for a clean CR.

Mr. Speaker, there are a lot of emotions because this is about life and death.

## IMPLEMENTATION OF OBAMACARE

The SPEAKER pro tempore. Under the Speaker's announced policy of January 3, 2013, the gentlewoman from Kansas (Ms. JENKINS) is recognized for 60 minutes as the designee of the majority leader.

Ms. JENKINS. Mr. Speaker, I am proud to be here this evening with my colleagues to host the Republican leadership hour. We are going to talk to

the American people about the damaging taxes levied against them by the President's health care law, the cost to consumers, the IRS' role in enforcement of these tax provisions, and the rocky implementation of the law.

The President's health care law contained 21 new taxes, many of which will impact low and middle-income earners. Together, these taxes represent a $1 trillion tax hike at a time when American families certainly cannot afford it.

And although it became law in 2010, the two linchpins of the law, the employer mandate and the individual mandate, were not scheduled to be implemented until 2014. My colleagues and I have consistently expressed our concerns to the President and our Democrat colleagues that these two taxes would present both an undue economic burden on our constituents, and a logistical nightmare for the administration to implement.

On July 2, the administration announced in a Treasury blog post that it would delay enforcement of the employer mandate by a year, until 2015. One administration official said that the President justified this decision to delay this tax on business because it began, and I quote, ''listening to businesses about the health care law.''

I've been hearing from businesses about this tax for 3 years, and I'm sure the President has as well. I'm glad that he saw the light. I'm also pleased that the House came together, in a bipartisan manner yesterday, to pass a bill reaffirming the decision to delay the employer mandate tax for a year.

However, a delay of the employer mandate will not give any relief to individuals who do not have employer-sponsored health care, nor will it give any relief to employees who have already been converted to part-time status by their employers in anticipation of the employer mandate.

These American families will still face this excise tax, even though the President is giving Big Business an escape hatch. We believe the administration has set up a double standard for compliance with this unpopular law, and that is why the House is working to delay the individual mandate as well until 2015.

As things stand now, on Day 2 of open enrollment, the health care exchanges, in many cases, have simply not been ready. A report issued this summer by the Government Accountability Office found that many of the State health care exchanges will not be operational and will complicate individuals' efforts to comply with the law.

I know that many of the Members speaking today will share stories they've gathered so far, and my State of Kansas has been a good example of the confusion that these delays are causing. Officials are already counseling my constituents to wait to purchase benefits for a few weeks until the exchange's kinks are worked out. I find this unacceptable.

Additionally, the administration has announced that the subsidies available to individuals, when purchasing insurance, will not be verified by the Federal Government, and that individuals will have to self-report information regarding their income. This paves the way for fraud and abuse of taxpayer dollars.

Finally, at the heart of this law is the IRS' role in enforcement of the President's health care law. This is an agency we all agree is mired in scandal, or maybe even worse, a culture of incompetence. We do not think this is the appropriate time to be increasing the IRS' workload with enforcement of these new taxes, and questions abound about the security of taxpayers' information in the Federal data hub.

I look forward to spending time with my colleagues this evening discussing these issues.

At this point, I yield to my friend and colleague from Oklahoma (Mr. MULLIN).

Mr. MULLIN. Thank you for this opportunity to stand up and, not just represent our side of the aisle, but represent the business owners that are having to go through this struggle of the shifting sands constantly underneath their feet, and take time to maybe take a different approach that this House, this body, those that are sent up here to represent the American people, maybe we can look at a little bit different and take a business approach to it.

You see, I've been sitting, literally, at negotiating tables since I was 20 years old. Because of some family circumstances that came in, it forced me to, in a sense, grow up quick. I took over a very small plumbing company and at that time I had to immediately start going for work.

And when I started going to work, I'd show up at a table, a bid table, and I'd be going across other contractors, and we would be negotiating. The only problem is, I didn't know how to negotiate.

See, I'd sit down with my proposal and I'd say, this is what I'm going to do. And they'd said, okay, but we've got to talk about it. I'd say no, I'm not going to talk about it. This is what I'm going to do. You can take it or you can leave it.

And I started leaving. And I started realizing, as I was leaving, I was going broke. Literally, I was going broke because I wasn't getting the jobs. Somebody else was getting the jobs.

And then I started figuring out, you know, I've got to figure out how to negotiate. There's a technique to negotiating, and that means you've got to know two things when you're going to a table to negotiate. You've got to know, one, what is it that you want. That's vitally important. But what's more important is, 2, what is it you can accept. And that's called negotiating.

Of course, we always want everything. But we've also got to know what we can accept. And if I never figured out how to accept that certain amount, I would have went flat broke.

And what's going on with this country?

Let's think about the comparison between the two. This body of elected officials has forgotten how to negotiate. We are sitting there pointing fingers at each other while our country is literally going flat broke, because we all want something. But what is it that we can accept?

We've been so blinded by party politics that we forgot how to sit at a table and negotiate. I'm literally sitting back, as a business owner, thinking, are you serious?

Are we really putting our company, are we really putting America's best interests, at mind?

Here's what the Republican Party wanted. We wanted to repeal ObamaCare. We came to the table and we said, we don't want it. Take it back.

Sent it over to the Senate. The Senate says no. They say, we want a clean CR or nothing.

So we came back to the table, and we negotiated among ourselves and said, okay, let's delay it for 1 year. We know it's not ready for prime time. We know this thing's going to be disastrous. Let's delay this thing for 1 year. That's it.

Sent it over to the Senate and the Senate said no. We want a clean CR, or that's it.

Then we decided, okay, let's at least delay the individual mandate, the penalty to the individual. That's the heart of this. Let's not penalize those individuals that can't afford it. Let's not penalize those individuals that this administration is constantly saying he's trying to protect.

Let's not, at least let's not penalize them. If they don't want it, let's believe in the American freedoms that we have and not force it upon them, and delay it and make sure we get it right.

What did the Senate say?

No. It's my way or the highway.

At the same time, our country is going flat broke.

We have three legs of government. We have the House, we have the Senate, and we have the executive branch. But, unfortunately, the executive branch is leading the Senate, and they're giving them their marching orders. And they won't even come to the table with us to negotiate, even though they're constitutionally bound by that.

It says that if the House and the Senate can't come together, they're supposed to go to conference and talk it out. And the Senate says, no.

Who's losing here?

Who's losing is the American people. That's who's losing, while both sides are trying to figure out who's going to win.

And we're playing with real people's lives. We're playing with individuals' lives, and we think it's just politics.

It's not just politics. We have to drop the labels, and we have got to figure out what is best for this country.

If I never figured that out, I wouldn't be the largest plumbing service company in the State of Oklahoma today. I wouldn't employ over 120 people with just that one company. I wouldn't be that entrepreneur that is the backbone of this country. Instead, I would have been flat broke.

There are lessons to be learned, and we're not. We're going backwards. It's time we stand up and do what's right for this country.

It's time for the Senate to come to the table. Don't just tell us what you want; tell us what you will accept, and let's start a conversation, and let's negotiate.

Thank you so much for yielding the time to me. It's such an honor to represent the great State of Oklahoma.

□ 1915

Ms. JENKINS. Thank you for your words.

At this point I yield to Congresswoman RENEE ELLMERS from North Carolina.

Mrs. ELLMERS. Thank you to my distinguished colleague from Kansas, vice chair of our Republican Conference. Thank you for yielding time to discuss this situation that's at hand right now.

Right now, we're faced with this government shutdown. Right now, millions of Americans are thinking to themselves, What on Earth is happening in Washington? There's a shutdown. There's the implementation of ObamaCare exchanges that took place starting yesterday.

The interesting thing is that 47 States are receiving frequent error messages on the Web site. In my home State of North Carolina, the Obama navigators were grounded as the exchanges and the computer system was shut down. Americans across this country are faced with error messages on both exchanges run by the State and those run by the Federal Government.

Day one. Day two. Failure of ObamaCare.

So despite 3 years of time, countless dollars, countless administration officials testifying in hearing after hearing after hearing in the Energy and Commerce Committee and in the Ways and Means Committee that everything would be ready to go on October 1, for sure, right on track—those were the things we were told, We are moving right on track; consistently, we were told—and this is what the people of the country are seeing.

This is what we're seeing in North Carolina. This is day two of ObamaCare exchanges. They changed up a little bit from day one. They added some cute little icons here. It says:

We have a lot of visitors on this site right now. Please stay on this page.

As if you have nothing else to do. Just hang out. Just stay here.

We checked this site throughout the day just about every hour to just check and see if it would be up and running.

And it goes on. It says:

We're working to make the experience better.

We don't want you to lose your place in line.

We'll send you to the login page as soon as we can.

Thank you for your patience.

Well, yes, America is going to need a lot of patience with ObamaCare. Because if this terrible law—and, yes, it is law, but there are bad laws that get passed—if this law is fully implemented, health care will be changed forever. You will have to have a lot of patience because you are going to be waiting at the doctor—if you can even find a doctor to go to. You will be waiting at the hospital, in the emergency room, or wherever you seek care, because the care will not be available. And the care that you will receive will be diminished.

Yes, we're all going to have to have a lot of patience.

One of the things that I've been doing in my office is trying to get firsthand accounts of what my constituents are experiencing as they're learning about their health care coverage; if they have health care coverage right now, what's happening to them. And I'd like to share a few of those with you.

A nice lady by the name of Judy emailed me saying she received a letter from Blue Cross & Blue Shield stating that the plan she currently has would no longer be available.

Now, if you can flash back a couple of years ago, our President—President Obama—said repeatedly, You will be able to keep the health care you have. You will be able to keep the doctor that you have.

Well, our worst fears are once again realized. Judy has had a change, and she didn't choose it—someone else did.

And she goes on to say that a new plan was chosen for her where her premiums will go up from $151 a month to $589 a month. My question is, Chosen by whom? It certainly wasn't Judy who chose that. It was someone else. It was Blue Cross & Blue Shield. Somewhere along the way, someone else dictated to Judy what she would be able to have.

The reason she was given—and this actually was stated in the letter:

While rates often change due to rising costs of health care, the new rules and regulations of the ACA, effective January 1, 2014, contributed to the majority of the increase.

It literally stated in the letter that the reason her premiums were going up so significantly was because of the implementation of the Affordable Care Act.

Another constituent wrote:

Our self-employed son's insurance went up from $430 a month to $900 a month.

That's almost double. That's almost a 100 percent increase.

We were promised lower costs and more competition. President Obama said our premiums would be decreased by $2,500. Yet I am hearing the opposite from my constituents.

One of the other issues that's happening in North Carolina right now has to do, again, with the exchanges. One of the things that we found out about a week ago was that the number of insurance companies that were going to be offering plans on the exchange is two—two insurance companies are offering plans.

There are 100 counties in North Carolina. One insurance company has a monopoly, essentially. They can offer plans throughout North Carolina; and in 61 of those counties, they have a monopoly. They're the only plan being offered. They're the only insurance company being offered.

To that, they counter by saying, We're offering multiple plans. But that's not competition. Competition is amongst the insurance companies that should be provided. We were promised lower rates. You receive lower rates with competition. It's very simple.

So only two insurance companies are providing health care coverage on the exchanges in North Carolina. One has a monopoly throughout. The other covers 39 counties. So you can see 61 counties having a monopoly. That's not fair. How is that fair?

As my colleagues and I have been saying over and over again, this law is not ready for prime time, And it never will be. That's the sad part. It is never going to measure up to what we were promised. Even as changes have been made to it, it still is lacking. It's filled with tax increases. It's filled with mandates. This isn't the plan that we should be following for health care.

I'm a nurse. I dedicated my life to health care. I came here to Washington to fight ObamaCare. I never wanted to run for office before; but in the summer of 2009, the President was on the road telling us all about the health care plan that he wanted for America. My husband is a general surgeon. We practice in our small town. We said we've got to go out, and we've got to speak on this.

One of the things that the President also said was that, overwhelmingly, doctors and nurses were in favor of this plan. We said, No, Mr. President, this is not true. And we started speaking out against it.

The same issues that I was raising with the people of North Carolina that I was speaking about back then are the fears and the realities that we're faced with now. The cost, the overreach, the inefficiency, all affecting health care, all affecting our economy.

The workforce alone, as we know, is going to be changed from a 40-hour work week to a 30-hour work week. We're going to become a part-time America. That's not what our country was built on. And yet that's what we're faced with with the implementation of ObamaCare.

That's why we've asked for a delay. That's why we believe that every individual, every American should be receiving the same options that Big Business has gotten with the 1,500-plus waivers given. Every American should be able to say, I think it's a good idea

and I'll take it; or, No, I don't. Why should we not have that choice? Why should every American not have that choice?

We need to delay it; but more importantly, we need to put a better system in place. And the system that I support, at least at this point, is the Republican Study Committee's plan for health care reform. It's an alternative plan. It's the American Health Care Reform Act that we rolled out a couple of weeks ago. It puts in place all of the pieces that we know, one, that the American people want, that the American people feel they need; but at the same time, it puts forward flexibility, affordability. It's patient-centered. It's not government-run.

They're the reforms that have been necessary, complete with tort reform, liability reform that is such an essential piece, health care savings plans, tax credits for individuals who are buying health care insurance.

It is the answer to health care reform. You should be able to purchase insurance across State lines. You shouldn't have to be told that there are only two insurance companies that you can choose from.

These are the solutions in health care that we really should be looking for—not given something, not told you have to have something, not told that you will be penalized if you do not participate.

The whole point of an online marketplace was to provide options; but as we are seeing, this couldn't be further from the truth.

And I thank my colleague from Kansas for allowing me to speak my mind on this issue. It's so important to America, so important to these times, with this government shutdown.

Ms. JENKINS. Thank you, Congresswoman ELLMERS.

At this point I yield to my good friend from the great State of Kansas, Representative POMPEO.

Mr. POMPEO. Thank you for yielding. I appreciate the time.

I imagine, Ms. JENKINS, you're hearing some of the same things as I am as you return to Kansas and talk to our constituents.

This is serious business. We're standing here tonight with a partial government shutdown, and I don't think anybody thinks that's the best outcome for America. I think we all want America's essential vital services and systems to be functioning and up and running, but what we're dealing with in the Affordable Care Act is also a very serious matter. It's very real. It's not a game.

I've heard some across the aisle suggest that by trying our best to fund the pieces of the government that matter and not fund the Affordable Care Act, we're taking hostages. I find that language, in one sense, offensive. But most importantly, I find it inaccurate. It doesn't represent what we're trying to do. We're not taking hostages. What we're trying to do is take account of what our constituents are telling us, and I want to talk about that just a little bit.

I tried to get online yesterday myself to enroll in the Affordable Care Act. I was met with a bit of a blank screen and a long pause. I did manage to get through to the 1–800 phone number that was provided on the screen. I was told if I stayed on the line, 20 minutes later I'd get a live voice. Some hour and 40 minutes later, I did manage to get a live voice. There was great music in the interim.

And I got a live voice. It was a young lady who told me she was from Louisiana. She said, Why did you call? I said, I'm calling to comply with the Federal law. She said, I'm not going to be able to help you with that today. My system is down, too.

She was a government contractor working out of Louisiana. I asked her how long she'd been working on this. She said, Quite a while.

In fact, yesterday wasn't the first day of the Affordable Care Act. We're now some 3 years into it. It's not the case that the bill was passed and there wasn't enough time to have this system ready. I imagine some of the kinks will get worked out. The President calls them hiccups. I hope the hiccups are the worst medical ailment that comes from the Affordable Care Act, but I fear that they won't be the worst ailment.

In fact, I've already heard countless stories. I'll recount just three of them.

Just today, I received an email from a small employer with about 60 folks throughout Kansas. He indicated to me that he just received this week a letter indicating that his health insurance premiums for his business—he's the number two guy in the company—were going to be up somewhere between 30 and 40 percent. He reminded that his health care premiums had gone up before, but he said he'd never seen anything like this.

□ 1930

A real impact, there will be a real impact. He's trying to figure out, what do you do? How much of that cost gets passed on in copays and deductibles to the employees? How much of that cost does the company eat, making them less competitive in the global environment in which they're trying to compete. A real story from a real Kansas business impacting real lives.

I spoke 3 weeks ago, when I was last back in Kansas, with a number of folks from some smaller hospitals in the rural part of south central Kansas. Those are called critical access care hospitals. They serve vital functions for less densely populated parts of our country.

I was talking about the impact of the Affordable Care Act and they said, you know, things have been tough at some of these hospitals before. There are times when it's difficult to make ends meet and to provide all the services that people need. Docs come in from Wichita and from Kansas City and from other places to help part-time to provide these services in rural parts of the State. They said that after the Affordable Care Act it would be even more difficult, almost impossible, to keep these hospitals open and functioning and providing these valuable services. Real lives, real Kansans, real people with a real impact from the Affordable Care Act.

Finally, I met with a young couple during that same trip home. Both of them work. They work at jobs where they were working for 40 hours a week and have now been told it's likely that they won't. They were still working 40 hours a week at the time. Their employer had just put them on notice and had suggested then that they begin to look for second jobs, or that maybe one spouse should leave that company and go work someplace else. Of course the rationale that had been provided by these people's employer was that if they continue to have full-time employees—what America has always had, full-time employees, 40-hour workweeks—that there would be an enormous cost that would flow to that employer where they simply couldn't keep the business running with a full-time work staff.

So here's two folks that had pretty good health benefits, great jobs, 40-hour-a-week jobs, jobs they were very happy with, jobs that permitted them to take care of their families, and their life is going to be changed. Real Kansans, real lives affected by the Affordable Care Act.

We've seen this kind of thing all too often. I suspect that some of these glitches at the beginning will probably get worked out, but you can't fix provisions like that without fundamental changes to the Affordable Care Act. I think that's pretty evident.

The President had seen this all coming. The President chose to provide waivers for lots and lots of groups. Lots of folks who have come and said: This is harsh; this is penal; this is not working; and the President said: Here's a waiver. Here, you can have a change.

That's just not the American way. It's not the way that we operate here, where we try to provide health care systems that are the same and fair and equal for all American citizens and all American employers and everyone who is trying to make their way and take care of their own families. These are very real issues.

I have seen this fight over these last few weeks. It's no different than the same discussions that have been taking place for 3 years. I've been here almost that long in Congress where we've been talking about what we thought would happen when this day came, when, for the first time, people would have to begin to think about what real costs were, what it was really going to look like.

And I wish, I truly wish that we had overblown the risk, we had overdramatized what was really going to happen,

that we had falsely alerted the American people that the Affordable Care Act was going to be a train wreck or a disaster; but, sadly, I think the evidence, as it mounts, as it comes in, demonstrates that we may have underestimated the risk. We may have underestimated how badly this is going to impact the American economy. We may have underestimated how many primary care physicians are going to just say ''I can't make a go of this anymore'' and leave the practice. After all, right, it's not about insurance; it's not about having a piece of paper or a card that says you're entitled to health care. It's about receiving health care. It's about being fixed when you've got something broken. It's about being cured when you've got something that's made you sick.

This isn't about paper. This isn't about politics. This is about real lives and kids who need treatment. It's not enough to say: It's wonderful. I have this thing called ObamaCare, but I can't find a physician who will treat me.

These are the kind of things that we need to work on and need to try and fix.

I will say this lastly. There has been some suggestion that this is partisan, this is about Democrats versus Republicans. For me, this is not it at all. The President made a statement yesterday. He said this bill was popular; this is why the system was overcrowded and you couldn't get on. It's not popular; it's a law. These people didn't go on this health care system because they like it. They did so because they were required to do so on pain of penalty by the Federal Government.

I saw today someone who had been told that if they didn't comply, they might end up with a tax lien because they didn't pay a penalty. This is not the American way. This is not a health care system that's going to work.

I hope my colleagues will help us. I hope they will come to see that all we're asking for at this point in time is not what we'd really like—we've compromised already. What we would like to see at this point is we are happy to compromise and settle just for a short time, just for a delay, to try and make it better, to try and impact those real people, those real Kansans who are going to be really impacted by a law which won't do what it is the President promised it would do.

Ms. JENKINS, thank you for yielding the time.

Ms. JENKINS. Thank you, Congressman.

Speaking of Kansans, when President Obama originally touted this health care law, he promised that Americans would see their health care costs go down. With the rollout of the health care exchanges on Tuesday, Kansans in my congressional district have finally been able to see that their worst fears have been confirmed and this promise simply isn't true.

Healthcare.gov has a county by county breakdown of health insurance premiums offered by the two insurance carriers who agreed to participate in the federally run exchanges. For a 27-year-old seeking the least expensive insurance option in Crawford County or Cherokee County in southeast Kansas, they will see over a 100 percent increase in their insurance premiums over the State average for this past year.

Things don't get much better in other parts of my district. The same person who lives in Topeka or Lawrence or Leavenworth will see a 62 percent premium increase over the State average for that same insurance plan for this past year.

These are examples that are happening all over Kansas and all over the country, and it makes it clear that the President's health care law will continue to fail to control out-of-control health care costs.

With that, I would be happy to yield to my esteemed colleague from Michigan (Mr. WALBERG).

Mr. WALBERG. I thank the gentlelady for yielding time and for leading this discussion of a way forward.

I appreciate the fact that we are now in a shutdown of government that I fear has been intentionally perpetrated in order to force something further on the American people.

I remember between my first term in office, after being defeated in 2008 to come back here and spending time for the next 2 years back in my district, and in watching my colleagues—my former colleagues and now my present colleagues—battle and debate on the floor of this great Chamber, in this great House, this great Capitol, in the people's House, the issue of what then was called the Affordable Care Act. I remember reading about it and listening and speaking with colleagues and asking what their impression was, and then ultimately hearing the Speaker of the House say: Let's pass this, let's pass it and then we can find out what's in it; and reading the comments of fellow legislators who had not even read this full bill and understanding that there was much in it, much that ultimately would be found out later on to be an extreme problem, not just to carry out, not just to regulate, not just to implement, as we've seen in the last couple of days—and we can certainly assume that there will be break-in problems to get something this massive, this intrusive, this complicated up and working—but more so the problem of looking at a takeover of one-sixth of our Nation's economy, the problem of challenging people with something so complicated that even experts and consultants wouldn't be able to tell them for sure what this would mean to them, but more importantly, the impact upon liberty, freedom, the American ideal.

In the last 2 days, as we've debated the issue of a continuing resolution, because of the unwillingness of the Congress of the United States to ultimately get a budget in place to move ourselves forward—we come to continuing resolutions to just move it forward a little bit longer. That's not the way we should be doing it. That's not the way this side of the aisle has requested and fought to make it happen. But when there is an unwillingness to come in alongside and negotiate, come to a table and work something forward, to put through appropriations bills that implement the programs and pay for them, we have a problem.

So now here we are in a shutdown, a shutdown in the making of an unwillingness of the Senate, yes, but I think more so the unwillingness of leaders to listen to their people.

We've read the reports in the polls. We've heard before we went into this battle the last few days that the American people want this government to fund its basic services and not to shut down. We've also read in those polls the same people, a majority, have said we want to delay or defund or repeal the Affordable Care Act. So we have that as our task and, at the very least, to delay to a point that we can see what's in it and take action to amend, to repeal, or to completely go to a plan that will work.

So we have veterans of the Second World War being locked out of going to their war memorial, except for the fact that Members of Congress have gone and opened up those gates.

I just got a call from a constituent of mine who is here in the Capital today and wanted to go over and see the 9/11 Memorial at the Pentagon. We assumed that that was open; it always is. There's no guard. You can walk into that memorial. But that's closed. Why? Is it because we want to make this problem harder for our citizens than it should be in order for them to get over the idea of reading the bill, knowing what's in it, and then asking for redress from their Members of Congress who represent them?

I went to the E-Verify site yesterday and I saw E-Verify, a computer program that's in place. It doesn't take a person to run it. It's operating. It's a system. It's connected to all sorts of data systems. Yesterday and today it says:

> Alert. E-Verify is unavailable due to the Federal Government shutdown. For more information, please click here.

This is what is being done to the citizens of the United States to produce the pain through the shutdown experience in order to ultimately say: Uncle, I will give in to a law. Yes, it is a law, but a law can always be redressed and changed. And they're asking for us to take the time to look at the Affordable Care Act, now known as ObamaCare.

A lady in Jackson, Michigan, in the heart of my district, called in to our office, our local office and, in tears, said: Here's my problem. This morning, my employer, a local provider of home health care who I have worked for for a number of years for 35 hours, and then I make up the difference of my 40 hours that I need and beyond by working in a restaurant on the weekends,

this employer of mine told me today that they're moving me now to 25 hours instead of 35. And why? Because of the Affordable Care Act. She said: It's not affordable to me because now I will have less income, less hours. How do I pay my mortgage, and how do I buy health insurance?

Or it's the autoworker in Monroe, Michigan, on Lake Erie in my district, a hardworking guy who said to me at a town hall meeting just a week and a half ago: Mr. Congressman, I want you to know that times are tough. I have some great concerns. My wife is sick and I have a $900 a month health care bill that I have to pay. But I want you to stand firm. And I said: Sir, what do you mean by ''stand firm''? He said: Shut down ObamaCare. Give us back our choice, our freedom.

The 54-employee business in Adrian, Michigan, who told me last week that—and they're beyond the level of being able to just simply toss off the insurance to the employees. They're not wanting to cut from their 54 employees down to below 50. But they received a notice from their insurance company that they were being canceled, and when approached, they were told it was in preparation for the uncertainties of the Affordable Care Act.

□ 1945

That shouldn't be the experience in the State of Michigan or any other place in this great country. That shouldn't be the experience—that employers are encouraged to downsize as opposed to continue to expand. I could go through testimony after testimony similar of the challenges that have come from the Affordable Care Act that has become unaffordable and unmanageable.

All we are asking for is the opportunity to work together to negotiate toward a compromise on the way forward, Mr. Speaker. That's possible.

We passed a bill the other day unanimously to fund our military. The Senate passed that. That shows that if we want to, it can get done.

This summer, 35 Democrats voted with Republicans to delay the employer mandate and 22 voted to delay the individual mandate. Seventeen voted to repeal the medical device tax last week, as recently as last week.

We can get things to work if we are willing to sit down and negotiate toward a compromise that speaks to the concerns of our constituents. Seven of the more than 40 bills the House has approved to repeal all or part of the ObamaCare have been signed into law.

We could go on and on, Mr. Speaker.

But I get to a final point of concern for me. With the Affordable Care Act, otherwise known as ObamaCare, we also have crossed the line into the areas of our personal freedoms and our rights of conscience. Yes, I was a minister by training and background before going into politics. I understand there are religious beliefs, there are denominational beliefs, and there are a lot of differences. But the beauty of this great country, Mr. Speaker, is that we have always espoused the opportunity for freedom of religion and rights of conscience regardless. We have truly had plurality in our country.

Yet this one act is tromping down on the individual rights of conscience and religious liberties, our First Amendment in the U.S. Constitution. A former Prime Minister of the Netherlands back in the 1900s by the name of Abraham Kuyper really made this point of where I am going, Mr. Speaker, when he said:

> When principles that run against your deepest convictions begin to win the day, then battle is your calling and peace has become sin. You must at the price of dearest peace lay your convictions bare before friend and enemy with all the fire of your faith.

When we hear of the little Sisters of Mercy being told that they are not religious enough to carry on their rights of conscience in relationship to the Affordable Care Act, Mr. Speaker, we have a problem. When we have a devout Catholic business owner who employs several hundred employees in the west part of Michigan who, because of his rights of conscience, has chosen to say we will provide insurance for our employees under the Affordable Care Act or any act, but we cannot provide insurance that violates our long-standing, strong-held rights of conscience, and courts say, because of this act, no, you can't do that.

Mr. Speaker, it is time to identify the challenges here, to read what is in the bill, to implement the changes necessary or go back, I believe, to the first and foremost principle of this great country, and that is liberty and justice for all, and develop a program that expands choice, opportunity, responsibility, variety, competition, and ultimately the ability for our citizens, our constituents, the people we serve, to care for their lives, their health in the best way possible with their government standing on their side, not in their way.

I appreciate the opportunity to speak to this issue. It needs to be spoken to over and over and over again until ultimately we win the day and give back that liberty and opportunity to our American citizens.

Ms. JENKINS. Thank you, Congressman WALBERG.

Mr. Speaker, I would like to thank you for allowing my colleagues and I to speak to the American people about the destructive provisions of the President's health care law, the constant stream of delays that have come from the President's administration, the costly effect it will have on folks all over the country, and the rocky implementation it has experienced so far.

I believe we have made it clear that this law is simply not ready to meet the needs of the American people. It is unfair to punish regular folks while giving preferential treatment to big businesses, unions, and Members of Congress. We hope our Democrat colleagues will work with us to provide fairness for all and say ''no'' to special treatment.

I yield back the balance of my time.

## CONGRESSIONAL PROGRESSIVE CAUCUS

The SPEAKER pro tempore. Under the Speaker's announced policy of January 3, 2013, the gentleman from Wisconsin (Mr. POCAN) is recognized for 60 minutes as the designee of the minority leader.

Mr. POCAN. Mr. Speaker, I am here on behalf of the Congressional Progressive Caucus in our Special Order hour to talk specifically about what is happening this week, or better yet what is not happening this week, in Congress.

Mr. Speaker, it has been almost exactly 48 hours since the GOP government shutdown in this country; 48 hours since 800,000 Federal employees have been furloughed; 48 hours since our national parks have been closed; 48 hours since the Small Business Administration is no longer issuing new loans; 48 hours since the Centers for Disease Control won't be able to monitor the influenza season coming up; 48 hours since the National Institutes of Health has essentially shut down; and 48 hours since we are costing the U.S. economy $300 million a day.

This isn't a number that the congressional Democrats or the Progressive Caucus has come up with. This is coming right from an article from Bloomberg News.

According to Bloomberg News:

> A partial shutdown of the Federal Government will cost the U.S. at least $300 million a day in lost economic output at the start.

They go on further:

> Government spending touches every aspect of the economy and disruption of spending more than the direct loss of income threatens to damage investor and business confidence in ways that can seriously harm economic growth.

It goes on to explain two major reasons why we are going to have this impact of $300 million a day. The first is the fact that we have the furloughed workers:

> Each day the shutdown drags on, the more Federal employees will discount the possibility that they will go back to work soon and they will pull back on their spending.

Specifically, one Federal employee is quoted saying:

> The shutdown affects me greatly. I have a mortgage, and I'm the sole provider for my two daughters, one of whom is in college.

That is what we are doing right now to the U.S. economy by strangling our Federal employees who serve this Nation so well. But also, consumer confidence is directly impacted by this GOP shutdown of the government.

Again, from the article:

> If a shutdown drags on, it would start to shake consumer and business confidence more broadly, economists said.
>
> Household spending accounts for 70 percent of the economy.

Further it says:

A shutdown will probably add to the budget deficit because it is costly to stop and start programs.

Adding to our deficit, costing us $300 million a day, shutting down essential services that people expect from our Federal Government.

We are 48 hours since we have entered this manufactured crisis over the GOP having a tantrum over the Affordable Care Act and taking us all hostage. But right now at this very moment we could stop this with one single vote in the House of Representatives. One single vote can stop the damage to our economy and the shutdown of the Federal Government.

There is a clean continuing resolution that has passed the Senate. Does it have everything that I or the Congressional Progressive Caucus wants? Absolutely not. In fact, they are still keeping in the number that is being proposed by the Senate, the indiscriminate sequester cuts between now and November 15.

But we are willing to compromise and accept something that many of us have voted against in the past in order to bring our economy back in this country. In fact, I think one thing hasn't been told very much. When you look at the various budgets, once again, this Congress has not passed a budget. This House has passed a budget, the Senate has passed a budget, the President has introduced a budget, but this House leadership has refused to appoint conferees for over 6 months to have a national budget.

But what was the budget line that the House Republicans passed in this House last spring—$967 billion? What did the President have in his proposal—$1.2 billion? What did the Senate Democrats have—about $1.06 billion?

What does this continuing resolution propose for a figure—$986 billion? That is over 90 percent of the way from the President's budget to what the House Republicans wanted—only 2 percent from the number they were looking at. Yet the House Republicans refused to budge and pass a resolution that can end the government shutdown and fix this economy.

So why do we have these reckless, irresponsible demands from the tantrum-throwing, breath-holding, hostage-taking, Tea Partying wing of the Republican Party? Well, they think it is a bad idea that millions and millions more Americans should now have access to health care through the Affordable Care Act.

We have voted not just once or twice to try to get rid of the Affordable Care Act, but we have voted 46 times in this body—46 times that they have held their breath and tried to remove the Affordable Care Act. But the bottom line is this Congress voted for the law, the President signed it into law, and the Supreme Court has upheld the law.

It is the law of the land no matter how much some people may not like it, no matter how many times they have held their breath over this and brought this Congress to a vote. It is the law of the land. But because of that, they are willing and have shut down the U.S. Government—a completely unacceptable answer to their issue.

There is the compromise solution I have talked about. A clean continuing resolution has already passed the Senate. With a simple vote of this body, Mr. Speaker, a simple vote of this body, it would go directly to the President and be signed into law. No other delays. Not the delay tactics we have seen for the last 2 days with a bunch of votes that meant nothing in this body. With one vote we end the government shutdown.

Mr. Speaker, take ''yes'' for an answer. We are willing to compromise and do this. We demand a vote. We demand a vote and an opportunity in this House to end the government shutdown. But for some reason Speaker BOEHNER will not bring this bill to a vote. We tried today, and through parliamentary procedures they blocked us from having the ability to take that vote.

Well, do you know why they won't schedule this for a vote? Because they know if they brought it to the body it would pass, and the Tea Party wing of the Republican Party, as small as sometimes it is, would lose.

Here is the bottom line. I know that people as they watch this whole debate—and you hear from everyone—are confused. Who is saying what and what is the real truth on this? The bottom line is the facts don't change. The Affordable Care Act is the law of the land. Despite 46 times to repeal it, it is still the law of the land. With a government shutdown, it is still being continued today as the law of the land.

All we are doing in this hostage-taking is hurting our economy and hurting the people of this country through a government shutdown.

□ 2000

So, when people are confused, I have to admit that I'm confused. I'm one of the new people around here. When I look at this, as I've told people recently, I feel like I serve in the Nation's largest kindergarten, only this kindergarten has control of the checkbook and our nuclear arsenal.

It's scary to think that this body refuses to end the government shutdown through a simple vote on a clean continuing resolution; but what's even more confusing, Mr. Speaker, is the fact that it's not just the Democrats who are willing to compromise, but there are now 18 Republicans who have said they are willing to vote for a clean continuing resolution, that they are willing to end the government shutdown. There is a 17-vote margin on the Republican side, and more than enough people have said they will vote for a continuing resolution should they be able to. Let me just go through each and every one of these.

Representative SCOTT RIGELL tweeted out from the State of Virginia twice on this subject. First, he tweeted out:

We fought the good fight. Time for a clean continuing resolution.

That was on October 1. On October 2:

Pain to our military and economy is real. A shutdown doesn't advance our goals.

This is from a Republican Member who serves on the Budget Committee, which I serve on, who knows the real impact that we are having on the economy. So that is one Republican saying, Mr. Speaker, we demand a vote.

Then there is Florida Representative BILL YOUNG, who serves on the Appropriations Committee, a very important committee that understands government funding. He told the Tampa Bay Times that he is ready to vote for a clean funding bill:

The politics should be over. It's time to legislate.

Mr. Speaker, that's two Republicans willing to pass a clean continuing resolution.

Then there is Representative CHARLIE DENT from the State of Pennsylvania, who also serves on that all important Appropriations Committee. Back on September 29, in the Huffington Post, he said:

I am prepared to vote for a clean continuing resolution. The hourglass is nearly empty, and it's time to get on with the business of funding the government and come back to fight another day.

Mr. Speaker, that is three Republicans who disagree with being held hostage by the Tea Party wing of your party.

Then, from California, there is Representative NUNES, who serves on the Ways and Means Committee, another committee that deals directly with our country's finances. This is coming from a Twitter from a reporter from the Huffington Post:

Representative Devin Nunes says he'll vote for the latest GOP plan, but will support a clean continuing resolution if it comes down to it.

This is four Republican Members, Mr. Speaker, who disagree with the GOP's hostage-taking by the Tea Party wing of your party.

Then, from the State of Minnesota, there is Representative ERIK PAULSEN, who also serves on the Ways and Means Committee, who had told a local TV reporter in Minnesota, FROM KARE-TV, channel 11, and they tweeted out, saying:

Representative Erik Paulsen tells me he's willing to break with GOP leadership and vote for a clean resolution if given the chance.

That's five Republicans, Mr. Speaker, who are going back home and telling people that they would vote for a clean resolution if you would give them a chance.

Then, from the State of Virginia, there is Representative FRANK WOLF, who serves on the Appropriations Committee. His aide told the Hill newspaper that he would support a clean continuing resolution. In a statement

on the House floor on Tuesday, WOLF said:

This is bad for America. It is bad for America. Enough is enough. It's time to be leaders. It's time to govern. Open up the government.

Six people. Those aren't the words of the members of the Congressional Progressive Caucus. These are Members of the Republican Party. If you give them a chance and demand a vote, we will be able to pass that. That's six Members.

What about Representative JIM GERLACH from Pennsylvania? Again, he serves on the Ways and Means Committee. He put out a press release, and this is directly from the press release:

Jim Gerlach said Wednesday that he would vote in favor of a so-called ''clean budget bill'' that funds the Federal Government at current spending levels.

That's seven, Mr. Speaker.

Then Representative LOU BARLETTA, from the State of Pennsylvania, according to the Bethlehem Morning Call, said he would:

. . . absolutely vote for a clean bill to avert a government shutdown.

I think that's eight Members, Mr. Speaker, on your side who are willing to join the Democrats and be adults and get our job done.

The ninth adult is Representative LEONARD LANCE from New Jersey. His chief of staff told the Huffington Post:

. . . that he had told a constituent on Wednesday that Lance has voted for clean government funding bills in the past ''and would not oppose doing so again should one be brought to the floor.''

Eight. Let me make sure I'm right. Let me count through these, Mr. Speaker. That's one, two, three, four, five, six, seven, eight. I'm sorry. That's nine Members.

Here is No. 10. He is Representative JOHN RUNYAN from New Jersey. He joined with other moderate Republicans in calling for the House to vote on a clean, short-term funding bill that would reopen the government, which is according to the Burlington County Times.

Ten of your Members are telling reporters in their districts that they want the opportunity. Don't make them not be able to tell the truth in their districts if they want to vote for a clean resolution. We can end this government shutdown. That's 10.

Here is No. 11, Representative FRANK LOBIONDO from New Jersey. He called the situation ''unacceptable''—his word. He told The Press of Atlantic City:

. . . that he was in favor of ''whatever gets a successful conclusion to this'' and a ''clean'' continuing resolution, which does not include the postponement of the Affordable Care Act ''as one of those options.''

That was No. 11. Let's get you a 12th vote, Mr. Speaker. It's a 12th vote from Representative MIKE FITZPATRICK from Bucks County in the State of Pennsylvania. He issued a statement to the Philadelphia Inquirer, saying:

He supports a spending bill at current funding levels, and aides said that he would back that approach if it were presented for a vote.

No. 12, Mr. Speaker. I believe that's No. 12.

No. 13. We'll call it ''lucky 13'' in this case. Representative MIKE SIMPSON from Idaho—again, serving on the Appropriations Committee—told a Roll Call reporter Tuesday night:

I'd vote for a clean continuing resolution because I don't think this is a strategy that works.

Mr. Speaker, 13 Members of the Republican Party disagree with the Republican Party on the strategy to hold our country hostage and ruin our economy.

No. 14, Representative PAT MEEHAN from Pennsylvania, according to a press release he put out, said:

At this point, I believe it's time for the House to vote for a clean, short-term funding bill to bring the Senate to the table and negotiate a responsible compromise.

No. 14, Mr. Speaker. This is No. 14, who wants to cooperate and give us 6 weeks to work out a compromise between the two Houses so that we can have what should be a budget in this country.

No. 15 is Representative MICHAEL GRIMM of New York. In a statement released by his office on Monday, the New York Republican argued that demanding ideological purity is ''not looking at the big picture.'' An aide of his told the Huffington Post that he supports a clean continuing resolution.

I am sorry to do this again, but I'm going to have to make sure I've got the count right, Mr. Speaker. One, two, three, four, five, six, seven, eight, nine, 10, 11, 12, 13, 14, 15 Members of your party.

No. 16 is Representative PETER KING. I think he was one of the first Members to do this. He said he thinks that House Republicans would prefer to avoid a shutdown, and he said he will only vote for a clean continuing resolution to fund the government, according to the National Review Online. He is No. 16.

No. 17 is Representative RANDY FORBES out of the State of Virginia, who told the Virginian-Pilot that he supports the 6-week clean funding bill that passed in the Senate:

Unfortunately, for us, this is not a game. This is real lives of people.

That's No. 17.

Finally, No. 18 that is officially out there, Mr. Speaker, is Representative ROB WITTMAN of Virginia:

I voted to avoid a government shutdown at every opportunity, to continue government funding, and although I have not had an opportunity to do so to this point, I would support a clean continuing resolution to get our government back up and running.

He put that in an email that he shared with Post Politics.

That's 18. You have a 17-seat margin on the Republican side, Mr. Speaker, and 18 people on your side of the aisle will join the responsible adults on this side of the aisle. Call us back tonight, and tomorrow we will end this crisis and not cost our economy $300 million.

Mr. Speaker, I have a bonus for you. I think there is a 19th person who is on the cusp of saying the same thing—from my own State, Representative REID RIBBLE. He is someone I am working with. He and I have a bill together right now to try to get a budget process every 2 years because we think it might be a better way to actually get this country back on track.

According to the Pierce Herald County paper in Wisconsin, here is what he said:

Two wrongs don't make a right.

Then this is a quote from WHBY radio 1150 AM in Wisconsin:

A Republican from northeast Wisconsin says it's harmful and embarrassing that lawmakers couldn't reach a deal to avoid a government shutdown. Congressman Reid Ribble of Sherwood says he is encouraging his colleagues to send short-term spending proposals to a conference committee so Members of the House and Senate can work out a compromise. Ribble says he is meeting with the House Speaker today to discuss their strategy and what they're going to offer. He says he is optimistic that the shutdown won't last long and that they can at least agree to a short-term solution.

Mr. Speaker, in the coming hours, more of your Members are going to stand up and get the keys back from the Tea Party wing of your party. Before you have to call a tow truck to pull this country out of a ditch, get the keys back. Demand a vote. Give us a vote on a clean continuing resolution, and we can end this right now.

I am joined by another member of our Progressive Caucus, another freshman member who brings good common sense and a good educational sense as a former teacher to this body. It is my opportunity to yield some time to my colleague, Representative MARK TAKANO from the great State of California.

Mr. TAKANO. I thank the gentleman from Wisconsin.

I rise today to object to this government shutdown that has been orchestrated and carried out by the House Republicans and the Tea Party.

Before I came to Congress, yes, as the gentleman has said, I worked for over 20 years as a high school teacher; and I have to say, during these last few days, I've begun to wonder if my students in Riverside County had a better understanding of how our government works and how it should function than the House Republicans.

It is 46 times that the House Republicans have voted to repeal or to defund the Affordable Care Act. They are doing this as if they believe the majority in the Senate, which fought to create the Affordable Care Act, would vote for its repeal. They are doing this as if they believe the President would actually sign legislation reversing his crowning achievement. That's not how our government works. There are three branches of government in this country, and any high school senior can tell you that the only way a bill can become a law is if it is passed by the House, passed by the Senate, and signed into law by the President.

So now the Republican Party has resorted to hurting everyday Americans by forcing the government to shut down and furloughing hundreds of thousands of workers so they can get what they want. It is 18 times the Senate attempted to send negotiators to the House to get an agreement on a budget; and now, because of the House Republican delay tactics, we have run out of time and have passed the date to keep the government open. They have taken this moment of crisis to exercise political leverage in the most irresponsible manner.

I can appreciate my Republican colleagues' passions and their world views on government, but their passions are misplaced, ill-timed, and inappropriate. They want to display those passions and undo a law at a time when Americans will be harmed by their tactics. What makes Americans so angry is when they see Members of Congress so eager to hurt our country to achieve their political ends.

Let's say that our positions were flipped, that the Republicans had the Senate and the Presidency and the Democrats had the House. What if the Democrats said, Well, we don't want a government shutdown, but unless the Senate passes and the President signs immigration reform into law, that's what we will do? Or how about if we were to say, We are against furloughing hundreds of thousands of workers, but unless the Senate passes and the President signs an assault weapons ban, we will do just that?

□ 2015

You know, we could say unless the Senate passes and the President signs into law, the option will be to shut down the government.

I know our friends on the other side of the aisle would never allow such tactics to stand. Now the House Republicans are trying a piecemeal approach, attempting to fund the government one agency at a time. This is no way to run a government either. This is just legislative public relations. This is Speaker BOEHNER and the House Republicans reacting to the bad headlines they've received in the last few days. The press has been criticizing this shutdown for how it's harmed our veterans.

What's the answer for the Republicans? Introduce a bill that funds only veterans programs. The press has exposed the tragedy of this shutdown, ending clinical trials for kids with cancer. What's their solution? Introduce a bill that funds only clinical trials.

The press has shown how insulting it is to our Greatest Generation when they have been locked out of the Washington, D.C., World War II Memorial. What do Republicans do? Introduce a bill that funds only parks and monuments. This is not governing. This is damage control.

The actions by the House Republicans are absurd and reprehensible. The House Republicans are pitting American against American for political gain. Do they think that a veteran would want his benefits at the expense of his grandchild's education? Do they think that poor children should go to sleep hungry so the national park in their district can open?

One-half of one House of Congress of one branch of government should not get to make such outrageous demands. To make things worse, there are reasonable Republicans, as the gentleman from Wisconsin has just demonstrated, Republicans who know this is wrong, Republicans that have stopped me in the hall and told me how TED CRUZ has put them into a political conundrum. Even Grover Norquist has said TED CRUZ has ''pushed House Republicans into traffic and wandered away.''

Eighteen House Republicans have publicly stated they would support a clean CR. Let's end the GOP shutdown. Let's bring sanity back to Congress and pass a clean CR that will put Americans back to work and restore funding to the countless programs that they rely on.

Mr. POCAN. If I could ask a question of the gentleman. You mentioned that the Senate 18 times has tried to find a resolution to having a budget in this country. There are a number of us who serve on the Budget Committee, including Representative JEFFRIES from New York State, who is going to speak in a little bit, who for 6 months have been asking for the Republican leadership to appoint conferees so that we could actually do exactly that. Do you remember when the Republicans finally proposed a conference committee?

Mr. TAKANO. The gentleman is going to have to help me. I'm not aware of when this happened.

Mr. POCAN. I believe it was between 11:40 and 15 minutes to midnight on the deadline before we had to shut down government.

Mr. TAKANO. Was that literally the 11th hour, 59th minute before they—that's right. I do remember this now because I was here that time of night. I do remember that because we were wondering what the Republican Caucus was going to do next, and the last thing of the evening on Saturday was to propose a conference.

Look, the Senate Democrats passed a budget after much complaining by the House Republicans that the Senate had not passed a budget, and I believe this was way back in the spring.

Mr. POCAN. March 23.

Mr. TAKANO. We had plenty of time to try and hash all of this out, but let's remember the original pretext for this shutdown. What I kept hearing from our Republican colleagues was they wanted to delay the implementation of the Affordable Care Act. That seemed to be the crux of their objectives.

Mr. POCAN. In the last 48 hours, how many votes have we had on the Affordable Care Act?

Mr. TAKANO. The last 48 hours, we've voted on a lot of things since then. As I pointed out in my remarks, every headline that looks bad for them, they come up with a bill, and they try to fund that headline away.

Again, they're embarrassing votes for many people on our side, having to answer, Why are you voting against the National Institutes of Health? Why are you voting against veterans? Of course we're not voting against them. We're saying that you can't pit one group of Americans against another group of Americans, and that there are literally many Americans who depend on many of the programs. When people really understand what our government does for them and when it's taken away, then it comes home.

Mr. POCAN. Thank you so much, Representative TAKANO. You did a great job pointing out every time a press release came out and they realized one of the impacts of shutting down the government, they tried to put a little chewing gum in the crack in the dam rather than actually addressing the problem. They've done that multiple times. They have done it through what we call around here ''gotcha votes'' to try to make a point, but they have not provide the solution we need, which is what we're demanding and 18 Members on the other side are demanding, which is a vote on a clean continuing resolution so that government can continue.

Mr. TAKANO. I don't know if you spoke about this earlier, but in just this past series of votes, there was what is called in technical language here in the House, a motion to recommit, otherwise known as an MTR. The Democrats used that opportunity to propose a motion to recommit, which was essentially that motion. We were trying to bring to the floor a clean CR, the exact Senate language for the continuing resolution.

The number that we would have funded the government at would have been at the Republican's own number. It's a number that many of us feel is too low. I bet you most of our caucuses would've supported it. But what happened? There was a motion on the Republican side to table our motion. Why table it? Why were they scared? They were scared to bring it to the floor. Instead of a procedural motion that the Republicans could have voted ''no'' on, they would have been faced with voting up or down and those 18 Members would have had to make a decision to go against what they publicly stated. They could have done that today. They had an opportunity today, and let it be said right now that we missed an opportunity to fund this government and to move on. It passed away today. All I can say is this motion to table was nothing less than, I think, a motion out of fear. Fear of what? That there would be a reasonable majority that would come together.

I asked earlier today a question that was rhetorical. I asked as a point of information, Who is the Speaker of this House? Is it JOHN BOEHNER or is it TED CRUZ? In order to get to this vote, we

have to take this Congress back from a phantom Speaker because I can't believe that—you read out the names of 18 people who are willing to go on record publicly. How many do you and I suspect of Republicans that privately feel these things, but are too afraid to move forward because of this phantom Speaker?

Mr. POCAN. Absolutely. Thank you again for your leadership, Representative TAKANO. I appreciate it.

Completely from the other coast, we have another freshman Member who is a strong member of our Progressive Caucus and a former legislator from the State of New York and now a Representative in Congress in the State of New York. It's my pleasure to yield some time to Representative HAKEEM JEFFRIES.

Mr. JEFFRIES. I thank the distinguished gentleman from Wisconsin, the badger State, for yielding me some time, for your tremendous leadership in anchoring this Progressive Caucus Special Order week after week after week, carrying forward in such a powerful and compelling way the Progressive message to the Americans out there who we represent. It's such a powerful vehicle to use the House floor, to speak in such eloquent, genuine ways about the challenges that we confront here in the United States Congress.

Over the last few weeks, what we've witnessed, I think, can be characterized as both the theater of the absurd and a Shakespearean tragedy. Let me deal with the Shakespearean tragedy aspect of this.

We are in the midst of a government shutdown right now that is unnecessarily forcing pain on the American people. It's a shutdown that was manufactured by the House GOP that has resulted in a situation where Americans all across this country have now been put in jeopardy. That's a tragedy of epic proportions. Children have been put in jeopardy. Tens of thousands of them have been shut out from the Head Start program. Families have been put in jeopardy. More than 800,000 individuals were kicked out of work unnecessarily. As time marches on, faced with the uncertainty as it relates to how they pay their bills, put food on their table, clothing on their backs, pay off the mortgage, more than 800,000 hardworking Americans are collateral damage as a result of a reckless, irresponsible, mean-spirited behavior.

Veterans have been unnecessarily put into harm's way. Children looking for hope and dealing with the cancer that has afflicted them are unable to participate in clinical trials at the National Institutes of Health. Seniors, who otherwise would benefit from the Meals on Wheels program—it's insult to injury. It's bad enough you're trying to cut $39 billion from the SNAP program, but then you've got to inflict additional pain, as a result of the government shutdown, on seniors who rely on the Meals on Wheels program to eat and deal with their nutritional needs.

The other problem that's amazing to me is that you've put in jeopardy expectant mothers who are now unable to receive the nutritional assistance that would be available to them in the absence of a government shutdown. This is a Shakespearean tragedy inflicted upon us by an out-of-control House majority.

Let me deal for a moment or so with the theater-of-the-absurd aspect of this. I asked on the floor of the House of Representatives today, Who's in charge? My distinguished freshman colleague from California just referenced this point. Who is in charge of the House of Representatives? Is it the Speaker who's in charge at this moment? Is it the Heritage Foundation? Is it Tea Party extremists? Is it the junior Senator from Texas, who for the last week, before he disappeared, was barking out orders over on the other side of the Capitol and then Members in the House of Representatives were following those orders in lockstep, executing this extreme agenda that has led us to a shutdown of the United States Government?

The other side of the aisle, my good friends, they're going to say, Well, what are you talking about an extreme agenda? We just have a disagreement as it relates to the Affordable Care Act, and you guys on the other side of the aisle, the President at 1600 Pennsylvania Avenue, he doesn't want to compromise. Compromise on what? The Affordable Care Act is the law of the land. It was passed by a duly elected Congress in 2010. The Supreme Court of the United States of America declared it constitutional in 2012 in an opinion written by Chief Justice John Roberts, someone who was nominated to the bench by George W. Bush.

□ 2030

And then a few months later, in November, the President of the United States was reelected in an electoral college landslide with a difference of more than 5 million votes, reaffirming the Affordable Care Act, which was his signature legislative achievement.

What exactly do you want us to compromise on when October 1 was the day that enrollment first began? You claim it to be a train wreck. The train hasn't even left the station yet. But in advance of this government shutdown, you sent a series of ransom notes over to this side of the aisle. I mean, this really is shocking behavior. It was a series of ransom notes. If you don't do what we want to you do, we're going to shut down the government.

Let's go through the ransom notes that were sent over. First you said, Defund the Affordable Care Act; and then that didn't work. And then you said, We want to delay the Affordable Care Act for a year; and that didn't work. And then you said, We are going to deny the ability for contraception coverage; and that didn't work. And then you said, We're going to repeal the medical device tax; and that didn't work. And then you said, Well, let's delay the individual mandate for a year; and that didn't work. And then finally, out of desperation, you said, Well, we're going to jam up our own congressional employees in what effectively amounts to a misrepresentation, because you weren't trying to take away a subsidy. You were trying to take away an employer contribution that is available to the overwhelming majority of Americans whose employers provide health care. A series of ransom notes that were summarily rejected by a courageous Senate majority.

And when you finally realized the futility of those demands included in each of those legislative ransom notes that you sent over to the other side, at the 11th hour, in the height of hypocrisy, you said, Let's go to conference.

Go to conference? As my good friend, the distinguished Congressman from Wisconsin (Mr. POCAN) pointed out, we've been asking for regular order since the spring of this year.

Now, regular order involves the following process:

The House passes a budget, the Senate passes a budget, both of which occurred earlier this year. And then at that point, the two sides appoint conferees to sit down at the negotiating table and try to work out the differences. That's the regular order that you've been screaming about for the last 4 years. And earlier this spring, you finally had an opportunity to bring it about. Senator HARRY REID was prepared to move forward. Even MITCH MCCONNELL seemed like he was ready to move forward. And individual Republican Senators said that it was absurdity for the House Republicans to have been demanding conference committees over the last several years, and finally they get an opportunity to do it, and nothing's forthcoming from the other side of the aisle here in the United States House.

Why is that the case? Well, I think we've now figured it out. Because you knew that the demands that you would make—because you are following the script from the junior Senator from Texas and others—would have been so extreme at a conference committee that it would have just been a futile legislative exercise, and you did not want that to be exposed to the American people. I think that's one of the only conclusions that we can draw at this moment, with the benefit of hindsight, as to why in the world a conference committee was never appointed, even though that's something that you had been demanding, my good friends on the other side of the aisle, for the previous few years. So the American people aren't going to be fooled by these 11th-hour gimmicks—conference committee.

What we need to do at this point is just pass a clean continuing resolution that, if it were to come to the floor of the United States House of Representatives, would have bipartisan support

from Democrats and from Republicans, many of whom were mentioned earlier today by the distinguished Congressman from the Badger State (Mr. POCAN), and we could get beyond this shutdown, this Shakespearean tragedy, which is very painful for hardworking Americans, and go off and do the business of the American people. That's what needs to happen.

I hope reasonable minds can come together. You can stop following the marching orders of outside agitators—who've got no interest in governing and are only concerned about 2016 and other ambitions that these individuals may harbor—and do the responsible thing so we can move this country forward.

Mr. POCAN. Thank you so much, Representative JEFFRIES, for very clearly explaining to the country the situation and what's unfolded in these final days and final hours before the government shut down.

You know, there is no question that people on this side of the aisle are willing to compromise. We're compromising to a number that is nearly identical to what the Republicans have proposed so that we can, for the next 6 weeks, figure out our finances.

You and I both serve on the Budget Committee. You know we've been trying for—how long was it, Representative, again? How long were we fighting for this?

Mr. JEFFRIES. Since March or April of this year.

And, Congressman, you raise an interesting point. I think this is important to clarify for the American people. Our friends on the other side of the aisle have said, Well, we want a changed set of law. We want to defund, destroy, or delay the Affordable Care Act. Inherently outrageous. Well, let's just put that aside for the moment.

The Senate majority and those on our side of the aisle in the House of Representatives as well as the President, have already compromised, as you pointed out. The number that we feel is appropriate to fund the government and do what's right for the American people is $1.058 trillion. That's the number that we feel is appropriate. The number that our friends on the other side of the aisle would like to see the government funded at is $986 billion. That's a significant difference.

However, in order to move the country forward, the Senate majority, the Democrats in the House of Representatives, and the President of the United States have all agreed to move forward with a continuing resolution, not at our number, $1.058 trillion, but at the House majority number, which is substantially less, $986 billion. Our good friends on the other side of the aisle don't know when to take ''yes'' for an answer.

As the Democratic whip pointed out earlier this week, we've already compromised and accepted the sequestration cuts for the purpose of keeping the government open and negotiating over the next 6 weeks as to what the appropriate number is. So that is political spin that you hear, those who sent over the ransom notes, accusing others of an unwillingness to compromise when we've already compromised on the number in the continuing resolution.

Mr. POCAN. Well, again, thank you, Representative JEFFRIES, so much for explaining to the American people exactly what has happened and transpired in the last few days and why it's so important that we demand a vote and get a vote on a clean continuing resolution.

I would like to close with a letter that I received from a constituent in my district, and I just want to read the parts of the letter I think that are especially relevant. This is from a woman who has a business in the Baraboo, Wisconsin, area. This is a quote from what she wrote:

> I'm the owner of a small business environmental laboratory which provides jobs to 29 people in the Baraboo area. Approximately 60 percent of our work is under direct contract or is a subcontract on EPA—Environmental Protection Agency—Department of Defense, and USGS, Forest Service, and NOAA projects.
>
> This shutdown means that, one, many of our upcoming projects may be canceled or delayed in a month that was going to finally make a financial success of my business, and two, we don't know when we will receive payment on approximately $300,000 of outstanding invoices, meaning, I don't know how we'll make our payroll or pay our vendors.
>
> We may be small, but my company brings in close to $2 million a year into Wisconsin from across the country and have just added three new employees. If an agreement on the budget isn't reached right away, my little contribution to the economic recovery will be reversed, or even worse. Please help find a way out of this mess.

Mr. Speaker, please, for the sake of this small business owner in Baraboo, Wisconsin, for the sake of the pregnant low-income woman in Madison, Wisconsin, for the sake of the Federal employees and the civilian employees on our military bases, for the sake of all the people who are affected by this government shutdown that the Republicans have forced upon this country, listen to your own Members. You don't have to listen to the Democrats. Listen to the 18 Members and growing on your side who have said this strategy is a failure. It's time to pass a clean continuing resolution.

If you listen to your Members, a majority of this House—you are not the speaker of the Tea Party. You are not the speaker from the Office of Senator TED CRUZ. You are the Speaker of the entire House of Representatives. And now a majority of this House is demanding a vote, that we pass a clean continuing resolution at your numbers. You won. Let's get this country opened, and let's help the economy bounce back to where it needs to be.

Mr. Speaker, with that, from the Progressive Caucus of Congress, I yield back the balance of my time.

## REGULAR ORDER

The SPEAKER pro tempore (Mr. RODNEY DAVIS of Illinois). Under the Speaker's announced policy of January 3, 2013, the Chair recognizes the gentleman from Iowa (Mr. KING) for 30 minutes.

Mr. KING of Iowa. Mr. Speaker, it's a privilege and honor to be recognized to address you here on the floor of the United States House of Representatives.

I have been listening to the debate first on television in my office and then here from the floor. I would like to first, Mr. Speaker, address this idea of ''regular order.'' I heard a description of regular order that doesn't fit the regular order that I understand from my time here in this Congress. Parts of it, yes, I agree with, but it's not an objective description of what regular order is.

The argument we heard from the gentleman continually was: Go to conference on the budget. Go to conference on the budget. Does the gentleman forget that his party in the other Chamber had refused to even pass a budget for over 1,000 days and that, finally, we had to pass legislation here in the House of Representatives to force it on the Senate to require them to pass a budget in order for them to get their pay, and the political pressure got high enough that they went ahead and passed that? Then in order to comply, so the Senators could get paid, they passed a sham budget, and now we've got a sham argument that says: Go to conference on the budget.

This isn't about the budget, Mr. Speaker. This debate is not about the budget. This is about appropriations. Regular order first for a budget, if you have one. And this is a new experience for the Members that are here on the floor. They have never served in this Congress actually when there was a budget in the Senate before.

But if you have a budget, you do concur with the House and the Senate, and you live by that as a guideline for the authorizations and the appropriations so that we all come together and we live within the means that we've agreed to here.

□ 2045

But that doesn't happen very often in history. It generally happens when Republicans are in control of the House, the Senate and the White House. I can think of no other time that's happened.

But take this budget discussion off the table, Mr. Speaker, because it's not relevant to what's going on here. We're in a government slowdown, and we're in a partial shutdown. And resolving and conferencing a budget isn't going to do a thing to solve this situation that we're in now.

It's irrelevant to any functionality of this Congress that can address this government partial shutdown. It's only a straw man, a red herring to drag out here to divert the attention that needs to be focused on this situation we have

that has to do with, not the budget, but the appropriations process.

The appropriations process, the regular order that I thought I was going to hear the gentleman describe for the benefit of you, Mr. Speaker, and anybody that might be listening in, is what really happens when a Congress functions right, and that is, our 12 appropriations subcommittees each pass their appropriation bill under the guidelines of the authorization that comes from the authorizing committees.

Those appropriation bills come to the floor, one at a time, 12 of them, and then perhaps a supplemental that add up to 13. We bring them to the floor under regular order. We allow the gentleman that was describing this doodah description of regular order to us an opportunity to bring as many amendments as he would like. Any Member can do so.

Fatigue sets in. Sometimes a unanimous consent agreement comes along. But every Member has an opportunity to weigh in on each of the components of the 12 different appropriations subcommittees, and then perhaps, as I said, a supplemental.

The wisdom of the American people has, through this republican form of government which, by the way, is guaranteed to us in the United States Constitution, a republican form of government, which means a representative form of government.

And our obligation, Mr. Speaker, to the constituents within our district, is our best effort and our best judgment. And part of that is to turn our ear and listen to our constituents and the people across this country, because, among the 316 million Americans, we have the best answers to everything.

Sometimes we get some not-so-good answers to some things, but it's our job to sort those things out, generate some ideas of our own that are stimulated by those of our constituents and others, and each other, and produce the best product possible to direct the destiny of the United States of America in a trajectory that would make our Founding Fathers proud. That's the legitimate process.

But the gentleman has forgotten, or maybe hasn't been confronted with or experienced a real regular order appropriations process, even though we've done five or six appropriations bills here on the floor of this House in this Congress.

So when we talk about regular order, the regular order would already be, if the appropriations bills were received on the Senate side and acted upon, they would all be done in this House side by now. We've done them multiple times in the past.

And here's what happens, Mr. Speaker. The appropriations bills, the 12, maybe the 13, pass the floor of this House. They get sent over to the Senate, messaged according, as envisioned by the Constitution. They arrive on the majority leader's desk in the United States Senate, HARRY REID.

This is just figuratively speaking, Mr. Speaker. Then they get put in his bottom desk drawer and they stack up in his bottom desk drawer. And this goes on from June, July, even part of August, September.

We get down into September, they're usually all over there, and then HARRY REID will have them stacked up in his desk. And when you get to the end of the fiscal year—they don't move a thing. No appropriation bill comes back here. There's no opportunity for conference on a single one.

They just simply go, they stack up in HARRY REID's desk drawer, Mr. Speaker. And a week or two, or less, between the time that the government would automatically shut down, because on September 30, at midnight, we know, most everybody in America by now, that our fiscal year runs out, and the spending authority expires on the discretionary spending.

HARRY REID pulls those bills out of his desk drawer, a stack like that, sets them up, figuratively speaking again, Mr. Speaker, gets out his black marker and draws a line through any spending he doesn't like, which isn't much, and then he adds on all the spending he does like, which is plenty, and they pass it in the Senate in a stack of—as called now, this little word, Mr. Speaker—a continuing resolution, a continuing resolution, which is the stack of all the appropriation bills the Senate refused to do all year.

They send it back over here to the House of Representatives, and they say, take it or leave it. Take it or leave it. We're not going to talk. We're not going to debate. We're not going to go into conference with you. We are not going to negotiate on the future and the destiny of America. It's take it or leave it, my way or the highway. That's what's been happening.

But in a real process, each appropriations bill would either come back to us with the Senate's objections and amendments, we would have an opportunity to accept it as it is or reject it, and go to conference. We've found ways to solve that in a legitimate way many times in the past.

But under this configuration where we have no—what built the leverage that got us to this point with this continuing resolution that we passed out of this House multiple times, by the way. Republicans in the majority in the House of Representatives have, multiple times, passed all of the appropriations in the form even of a continuing resolution that's necessary to fund the legitimate functions of government, at sequestration levels, minus the money to implement or enforce ObamaCare, which reflects the will of the people of the United States of America.

That is our constitutional responsibility to do that, Mr. Speaker.

I carry this Constitution around in my pocket, and I pull it out and I read it, sometimes several times a day. But this document is, when you read it carefully and you understand and put your mind in the thought process of our Founding Fathers and the folks that put this constitution together and ratified it, you'll understand that these negotiations between the two branches of government, article I, the legislative, and article II, the executive branch of government, these negotiations are expected to take place.

There is an expectation that—first of all, it says here in article I that we shall, that Congress, and the House of Representatives, shall move legislation through the House, through the Senate, concur on that legislation, message it to the President.

If he should disagree, he has an obligation then to veto that legislation and return it to the Congress—this is important, Mr. Speaker—with his objections.

The President is constitutionally obligated to return any legislation that he vetoes to the Congress with his objections. Our Founding Fathers decided you can't have a President making you play pin the tail on the donkey. He's going to have to write down the reasons he objects to legislation, so if the Congress is considering concurring with the President, we can accept his recommendations. And if we disagree, we'll be able to identify our disagreements. That is the very constitutional definition of negotiations themselves, Mr. Speaker.

When there is an offer made, and then the other side of the equation produces a counteroffer, those who made the first offer can either accept the counteroffer, or they can produce another offer and move a little closer to the middle. This can happen one time, two, three, four, an infinite number of times if you had the time. That's between the House and the Senate, but also the Congress and the President of the United States.

And what do we have with the President of the United States, Mr. Speaker?

A President who, as far as I know, the first time in history, a President who's refused to negotiate with the United States Congress. This Constitution directs him to do so, at least when confronted with legislation that he has to choose whether he's going to veto it or whether he's going to sign it or he's going to allow it to be pocket-vetoed after 10 legislative days.

The Constitution directs the President to do so. And the President has said, I'm not negotiating with Congress. Unbelievable to me, Mr. Speaker, that he could take such a position that he'd refuse to negotiate with Congress.

He's negotiating with the Syrians through the Russians. The President has opened up negotiations with the Iranians, whom we've not had dealings with since 1979. I don't know who on the planet the President will not negotiate with except the American people serving here in the United States Congress.

Now, think how difficult it is to do business with somebody that won't talk to you. And I know they had a meeting today, Mr. Speaker. And the report that came out of that was they sat down, they talked, but they didn't negotiate. That's kind of what I expected, to tell you the truth, Mr. Speaker.

So we have a dysfunction. We have a lot of demagoguery. We have a lot of hypocrisy. And I'm hearing it on the other side, and I heard a lot of it here tonight as they rolled out some of their practice buzz phrases.

They said a series of ransom notes, Mr. Speaker. Ransom notes?

Pull your Constitutions out and read it, guys. Excuse me, Mr. Speaker. That's my advice to them, should they be listening, that they should pull their Constitution out and read it. And they should understand that it's not a ransom note when you're working within your constitutional authority, in fact, constitutional directive.

When you stepped down on the floor of this Congress at the beginning of the 113th Congress and you took an oath to uphold this Constitution, it wasn't to vacate your constitutional responsibilities or hand over your vote card to somebody else, or accept some kind of an idea that, because you disagree with the President, you should capitulate to his demands.

How do you capitulate to a man's demands who won't talk to you?

He talks to you through the press and sends out a message that says I'm not going to negotiate with Republicans. I'm not going to negotiate with people in Congress. I refuse to negotiate, and I'm not going to negotiate on the debt ceiling either.

Well, we have this bill called ObamaCare, and ObamaCare is a piece of legislation that was pushed through here by hook, crook and legislative shenanigan. And there are those who say it's the law of the land; you must accept it, and you're obligated to fund it.

Show me where in this Constitution you're obligated to fund something because a previous Congress, on a very partisan, narrow margin, passed the largest piece of socialized legislation in the history of the United States, a Federal takeover of our skin and everything inside it, the government and Federal takeover of our ability to make our decisions, as American people, on our future, on our health decisions, to dictate insurance policies, to dictate that people shall buy a product that the Federal Government either approves or produces. Never before in history has that happened.

It was a manufacture of new taxes that President Obama said were not taxes. And John Roberts and the Supreme Court said, well, you know, they weren't taxes for the purposes of hearing this case, but they are taxes for the purposes of deciding the case.

Then people will say, it's been found constitutional by the Supreme Court. Now you're obligated to fund it.

And I say, no previous Congress can obligate a subsequent Congress. And this Congress cannot obligate the 114th Congress. We're in the 113th, Mr. Speaker. This Congress cannot obligate the 114th Congress or any subsequent Congress.

All we can do is put statutory language in place that is our best judgment at the time, that likely will influence the people that come behind us and cause them to stop and think it over. But it doesn't mean they can't come in and repeal anything that's been passed in the past. And it certainly doesn't mean we're obligated to fund it.

And the House is here with a majority that was elected to repeal ObamaCare and a majority that was elected, I believe, to defund ObamaCare.

I brought the amendment to defund ObamaCare for the first time on February 15 of 2011. My amendment passed. It was detached in the Senate. I'd like to have had it be part of the bill as it came through. I didn't get that done in the Rules Committee this time.

But it happened here over the last week or two, the same thing I asked for then was approved by Rules this time and stuck with the bill when it went over to the Senate.

And so now where we sit is this: the House has said we don't want a government shutdown. We don't want a government slowdown. What we want is a government that's funded in every aspect legitimately, with the exception of the funding to implement or enforce ObamaCare.

That's our stand. If the American people reject that position, let them come to the polls and say so.

So where we sit today, Mr. Speaker, is we have Members of Congress and their staff that are receiving phone calls that are ginned up by the other side, by the stacked language that we're seeing come here. And people are calling in and they're saying, you can't shut something down as big as the government. It would be a disaster.

Well, it's HARRY REID and the President that have brought about this partial shutdown, a certain slowdown. It's HARRY REID and the President.

But it doesn't look to me like it's a disaster. If it was a disaster, they wouldn't have to manufacture a crisis and borrow money from the Chinese to rent barricades to haul them down with a forklift and bring people back who have been furloughed already because of this government partial shutdown and ask them to take the barricades and build barricades around our memorials to our veterans, in particular, the World War II Memorial.

They are borrowing money from China to rent barricades and bringing people off of furlough to put barricades up. And now, today, they're reinforcing barricades around the World War II Memorial and others, not just with yellow tape, caution tape and rented barricades, but now wiring them together, and they're bringing sandbags in and stacking sandbags up around the bases to better stabilize this, and bringing in welded wire mesh, wire that is another barrier for people.

Why?

These memorials have never been blockaded before. They're open 24/7, year-round. They're designed for people to come in, and they're designed for people to be able to go to the memorial at any time. They don't require guards. They don't require staffing. There's no money required to keep the memorials open.

Most of them were built with private money from donations from the American people who want to honor our veterans, especially the World War II Memorial.

To see those buses from Mississippi roll up, see those red-shirted veterans, between the age of 84 and 99, arrive and be able to look at that memorial from a distance but not be able to go into their memorial—

A manufactured crisis. It would save money if the President does nothing but, instead, what we have is a President who has decided to commit, I believe, the most spiteful act in the history of the Commander in Chief in the United States of America.

□ 2100

To manufacture something in order to try to extract the maximum amount of pain by borrowing money to rent barricades to put up barriers, to put more people on to guard—especially our World War II Memorial—and to deny access to the memorial that's built to honor the World War II veterans, many of whom who have never been to Washington, D.C., before and have not seen their memorial before, and to say to them this one chance in your lifetime, your 90-plus years into this lifetime and your chance to come back again is pretty slim, to say you're never going to get to go in and experience this memorial because I want to send a message that I disagree with the decisions of the United States Congress, that is a huge political tantrum and a spiteful act, Mr. Speaker.

I think the right thing is this: honor our veterans—those who fought in all wars, those who put uniforms on at all times. We must be there to open the gates for them every time that a bus pulls up.

I thank and congratulate my colleagues who have stepped up to do so, Mr. Speaker, and I yield back the balance of my time.

## TIMES THAT TRY MEN'S SOULS

The SPEAKER pro tempore. Under the Speaker's announced policy of January 3, 2013, the Chair recognizes the gentleman from Texas (Mr. GOHMERT) for 30 minutes.

Mr. GOHMERT. Mr. Speaker, these can be the times that try men's souls.

I heard my colleagues across the aisle talking earlier this hour about a

GOP tantrum over the Affordable Care Act. I'm not aware of the GOP throwing a tantrum over the so-called Affordable Care Act.

We've had word from many, many of our constituents that it is anything but affordable, that it is a disaster. We heard our colleagues across the aisle talk about ObamaCare being the law of the land. Yet these same people can't wait to come running in here and say, You've got to raise the debt ceiling. If you ask them why we have to raise the debt ceiling, they say, Because we've got to. We're spending too much money, and we've got to raise the debt ceiling.

I guess now we know the proper answer to our friends and to the President when they come running in, desperate to have the credit card limit continuously raised and raised and raised yet again, and that is that actually it's the law of the land. The debt ceiling is the law of the land. You just need to get over it because it's the law of the land.

And I recall hearing our President say in the past few days, talking about the law, saying that both Houses of Congress passed it, I signed it, it bears my name. It's the law. It's been upheld. Therefore, they just need to live by it. It can't be changed. It's got to stay the way it is.

So that sounds to me like if the President feels that strongly about it once a law is passed, then we need to force him to live within the debt ceiling without moving it one penny.

The Constitution, I think, is a great document to live under, but some find it much too taxing—those who do not want oversight and just want an unlimited budget and want to spend whatever they care to spend and on cronies and tax those they don't care for, refuse to allow those they don't care for to not have the same tax advantages or tax status so that they can engage in nonprofit activities like the Democratic groups. They find that rather enjoyable. But if we're going to live within the Constitution, it's important that people understand laws can be changed. The Affordable Care Act is the law right now. But it was passed against the will of the majority of the American people.

We've heard from Democrats at both the other end of the Hall, this end of the Hall, and down Pennsylvania Avenue, that there was an election in 2012 and everybody needs to understand that and that the elections have consequences.

And so I'm hoping that as the President, as the leader in the Senate, HARRY REID, continue to say those things, that hopefully they will hear themselves say those things, and they will realize that there was an election in 2012 that resulted in the most important part of Congress, the House of Representatives, when it comes to issues of raising revenue and setting budgets and appropriating money, and people need to understand setting budgets and appropriating money are two separate things. You can create a budget, pass it in the House and Senate; but it doesn't appropriate a single dime.

The Senate had gone years without ever passing a budget. And now, all of a sudden, the Senate finds its voice about budgets, saying, Hey, the House didn't send conferees to work out a budget. And actually we find that those who have glassy-eyed looks and don't really understand the Constitution or how things work here with the law, they accept what is said. Gee, there's the problem.

Well, that's not the problem. We're way past the issue of budget. That should have been done many months ago. We're grateful that the President now, in the fall, recognizes the importance of doing a budget on time. But the President actually waited so long beyond his deadline, not caring about the deadline, just completely being oblivious to it, that it was beyond the time when the House was doing its own budget. So the President did his in such a way that it was so incredibly late, it was of no consequence, no help.

So it's kind of tough to hear lectures about the budget from anyone who completely failed and refused to participate properly in the lawful activity of preparing a budget. Then, to come forward this fall, months later, after the massive abuses with regard to the budget, and start lecturing about the budget, again, hoping that the American people would not understand that the budget does not appropriate a dime.

When you come to September 30 at midnight, when you come to October 1, it doesn't matter whether you had a budget at that point or not because the budget was going to lead to appropriations. The House did appropriations. The Senate did none. We had four important appropriations bills that are still sitting down at the Senate without any activity whatsoever.

So once we got to August, it was too late. Even July is too late for a budget. It's now time we've got to appropriate money. We're coming up against the hard end of the fiscal year, September 30, and we've got to get appropriations done.

They can talk about budget conferees, but what the House here did, for those who are confused and don't understand the process we use here, we passed a resolution appointing conferees. That's appointing negotiators. The House passed a resolution appointing negotiators. I felt like we should have had a counterproposal of some kind that showed some adult was acting at the other end of the Hall by producing something that indicated that people in the Senate majority understood that there were massive amounts of waste, fraud, and abuse in our Federal money appropriations; that we've seen the abuses—the Solyndras, the massive amounts of money just thrown here, there, and yon.

And so I would have hoped that someone in the majority in the Senate would have noted, you know what, there's no such thing as a clean CR—a clean continuing resolution—because there are projects that have ended and finished being paid in the last fiscal year. Those certainly don't need the same funding anymore. So why should we continue with the same amount that we spent last year when we don't know what other projects there may be?

Well, the answer is they don't want a magnifying glass looking at the waste, fraud, and abuse. Down on Pennsylvania Avenue, they just want these massive sacks, metaphorically speaking. For those in the liberal media who do not understand metaphors, then go back to English school. But they just want the sacks of cash.

Just give us the money. Forget the Constitution. Forget the requirement that you actually appropriate the money and tell us what it shall be spent on. Just send us the cash. We've got a lot more Solyndras to waste it on.

That's not how it's supposed to work. We're supposed to actually go through and deal with the problems, cut out as much as we can in the way of waste, fraud, and abuse so that we don't have to keep borrowing over forty cents of every dollar. We can live within our means.

So I hope people in the future will understand a clean CR should provoke in your mind the most filthy, nasty, larded-up appropriations that someone can create. Because we are not going to look at the waste, fraud, and abuse that's contained therein.

There are a lot of looks that should be taken at where all our money goes, how it's being spent. Because if we really bear down and look at that, you would begin to wonder about a department that is shut down, we're told, yet finds money to go rent barricades to take out to a farm, though it is called a Federal property. It's the Claude Moore Colonial Farm. The story was reported by PJ Media.

This story says today:

> It's a perfect fall day, and yet we can't do anything, Managing Director Anna Eberly told me in a phone interview. Eberly has managed the Claude Moore Colonial Farm for 32 years. Before managing the farm, she worked for the National Park Service. Visitors unaware of how the farm is run are apt to conclude that the government shutdown, now 2 days old, is directly responsible for the farm's closing. But Eberly sent a note Wednesday morning to the park's email list. In the email, Eberly says, For the first time in 40 years, the National Park Service has finally succeeded in closing the farm down to the public. In previous budget dramas, the farm has always been exempted, since the NPS—the National Park Service—provides no staff or resources to operate the farm.

□ 2115

Eberly says:

> The Claude Moore Colonial Farm has thrived even as the Federal Government has treated it with ''benign neglect'' for decades.

That ''benign neglect'' would serve it better than the barricades now surrounding it.

Eberly writes that the National Park Service has already gone out of its way to disrupt an event at the farm.

The first casualty of this arbitrary action was the McLean Chamber of Commerce, who were having a large annual event at the Pavilion on Tuesday evening. The National Park Service sent the Park Police—

Why couldn't they have been furloughed? Oh, here came the Park Police.

over to remove the Pavilion staff and chamber volunteers from the property while they were trying to set up for the event.

Fortunately, the chamber has friends, and they were able to move to another location and salvage what was left of their party. You do have to wonder about the wisdom of an organization that would use staff they don't have the money to pay to evict visitors from a park site that operates without costing them any money.

It should be noted that the farm has not used Federal funds since 1980, yet they found money to print a sign that said: ''Because of the Federal Government shutdown, this National Park Service facility is closed.'' It's as if somebody is sitting around saying, regardless of whether it cost any Federal money or not, let's find things that will hurt people and upset people, stick a sign on it, and blame the shutdown so that we can get all of the money with the waste, fraud, and abuse we want to keep spending.

One other note: our former Speaker, Newt Gingrich, sent out a photograph of barricades that have been put out by Mount Vernon. Now, most people hopefully know Mount Vernon is not run by Federal money, so what difference does it make if the Federal Government would put barricades up somewhere around Mount Vernon? Well, there is a little part of the road where buses can turn around to make it convenient as they drop people off out at Mount Vernon. By closing that, even though it doesn't need to be patrolled—it's just a turnaround area for big vehicles and buses—they can make as much chaos as possible for those coming out to Mount Vernon, to this historical site of our Founding Father, George Washington, and create some chaos. So they spent money, took time to go create as much trouble for American tourists as they possibly could.

You want to talk about fairness? There isn't any in what this administration and the Democrats at the other end of the hall are doing to the American people and blaming the so-called shutdown.

I see my friend Mr. LAMALFA here, and I would yield to him.

Mr. LAMALFA I appreciate my colleague from Texas (Mr. GOHMERT) and your heartfelt opinions and ideas you're holding up here tonight. And hearing you speak of what's going on, just this microcosm of the Park Service here and what's happened the last couple of days, it seems that as the negotiations—if there is any that have actually broken down—the Federal Government, this administration has been poised to exact the kind of pain that we're seeing just in this area of our national parks.

You mentioned Mount Vernon, arbitrarily closed down. Mount Vernon is a private enterprise, done with their own funds, done with support of private people, the public. So they find a toehold to use the parking lot as a way to exact a little meanness on the tourists there at a time where this place can't come to an agreement on some basic issues with a continuing resolution, as well as the very outrageous act with our open air monuments we have right here in town.

The Lincoln Memorial, of course what we're seeing with the Honor Flights that have been coming in the last couple of days and will continue to come in for a while, World War II vets, Korean vets, Mr. GOHMERT and I both had the opportunity and the pleasure and the honor of being able to join with some of those vets today as Members of Congress and others pulled back the gate and allowed them to enjoy their memorial, the country's memorial. These are areas that are not normally even staffed, at least to this extent. They had to bring in more staff than what is normally on hand.

These are 24-hour memorials and exhibits, open-air, you can see any time of the day or night, sometimes without staff at all. Yet they did have to go to the trouble, as was mentioned, to rent barriers, bring them in, put them up, and, boom, they were up there first thing in the morning on Monday morning. They were poised and ready to go, taking political advantage of the difficulties we're having here.

It reminds me a lot of the grievances that were brought originally with the Declaration of Independence. The people and Colonies, having had enough of the King's edicts and unfairness, listed a whole bunch of grievances that they thought were outrageous and caused them to actually break away from that long-held bond they had with England. Let me just recount a little bit of that from the Declaration:

We hold these truths to be self-evident, that all Men are created equal, that they are endowed by their Creator with certain unalienable rights, that among these are Life, Liberty, and the pursuit of Happiness—That to secure these Rights, Governments are instituted among Men, deriving their just Powers from the Consent of the Governed.

Do you think what we see going on here is the consent of the governed? Leading into what a lot of this battle is about here, the implementation of the Affordable Care Act, as it's called, that's been a line in the sand for Republicans I think for good reason. If you recount the history of how it was passed, it was done during a window of time when the majority party was the Democrats in the House and the Senate, as well as holding the White House, during the period of late 2009 and early 2010. A little window of time when, after all these years when they were looking for socialized health care, they had that window. They also had, I guess, the daring to do so.

You might recall HillaryCare back in the early nineties, when it was called that. There wasn't the political will—certainly ever by the Republicans, but the Democrats at the time. We saw then that elections have consequences. The consequence of HillaryCare back then was a big portion of what scared, I think, the country into putting a revolutionary Republican majority into the House in that '94 election.

We keep hearing from the other side of the aisle, 2012 had consequences in the Presidential. Well, let's just go back one election, 2010, following on the heels of what is called ObamaCare, the Affordable Care Act. That sent a giant red flag amongst a lot of freedom-loving Americans to look at how this takeover of their health care system by a government that can't even run the Veterans Administration and getting the claims processed for veterans who languish for years just trying to get simple claims done, we want to take that blueprint of the government running things and expand that to everyone? It shouldn't be that way for the people that are subject to the VA, and we want to make this an example for the entire country. I shutter to think what that would be like. So many people feel like they're being herded into this program without any choice. That's really the case.

So let's talk about liberties for a minute here. Let's talk about those founding principles outlined in the Declaration and then later carried out in our Constitution that we all come here and are sworn to uphold. Let me list just one of the grievances you find in the Declaration talking about the King of England:

He has erected a multitude of new Offices, and sent hither Swarms of Officers to harass our people, and eat out their Substance.

This doesn't just apply to the Affordable Care Act. You can name this with a lot of government agencies that are coming out there—swarms—to harass people and eat out their substance. Whether they are a small business or farming or timber or any one of many different endeavors in this country, the harassment people are feeling by a runaway government is huge and it's not right.

So why do Republicans dig in? Because we feel like this is a critical moment in time for our liberties, but for a program that is doomed to fail and become so entrenched that we never have the opportunity to come back from it because it becomes an entitlement or, as a lot of people are saying around here now, a right.

To me, the rights as laid down by the Founders are life, liberty, and the pursuit of happiness, just as outlined in the Declaration. Anything beyond that probably came from the force of legislation—which is enforced by a badge, a

court, or a gun; not one of the basic inalienable rights sent down by God, natural law.

So we have a lot to do around here. Republicans dig in for a reason because this is a solid belief system. It's not even politics. Yeah, not politics. This is an important cornerstone principle we're fighting for here—the basic liberties, the freedom of choice. And these are not being laid down 230-something years ago either by the King or by this mandate now.

My friend, I appreciate the time that you are giving me here tonight. We have a lot more to do on this effort, and we are going to continue to fight the battle because it's for the right thing on the founding principles of this Nation.

Thank you, Mr. GOHMERT.

Mr. GOHMERT. Reclaiming my time, one of the things that I greatly appreciate is the in-depth analysis, the careful cogitation and contemplation about the role we are supposed to play. I have greatly appreciated that.

Another new Member of Congress is here with us. We have about 4 minutes, and I would yield to my friend from Oklahoma (Mr. BRIDENSTINE).

Mr. BRIDENSTINE. I thank the gentleman from Texas. Thank you for your leadership here in the House of Representatives, and also thank you to my friend from California.

I would just like to maybe have a brief dialogue with the gentleman from Texas if that's okay.

It wasn't too long ago we passed a bill to fund the entire government. That was something that was hard for a lot of us to swallow because there's a whole lot of things in a continuing resolution that we're not, frankly, interested in funding, but we swallowed that pill because it defunded ObamaCare. We sent it to the Senate. HARRY REID stripped out the defunding, and he sent it right back to the House of Representatives.

So we said, Okay, let's just take 1 year. The President has already delayed major provisions of ObamaCare. He saw the jobs report. People were shifting from full-time work to part-time work. Some people were losing their jobs. People were losing their health insurance. Health insurance premiums were spiking. Companies were trying to get down below 49 employees. So we said, Okay, the President wants to delay major provisions of ObamaCare, let's give him a year. We'll delay it for a year and fund the entire government. Again, I voted for that.

I would just like to ask the gentleman from Texas, I'm new here. I've been here for 9 months now. We passed that at about 1 o'clock in the morning on a Saturday night—I guess it was a Sunday morning—and the next day the Democrats didn't show up. The next day after that, they didn't even come in until 2 in the afternoon.

I would just, with your vast wisdom and experience, sir, maybe you could clarify for the American people what was going on. I mean, we're on the brink of a government shutdown and they just didn't show up. Was it maybe that they were looking for a shutdown?

Mr. GOHMERT. There doesn't seem to be much question at all. Having tried many cases as a lawyer, judge, and chief justice, the evidence is clear. We sent four things, the last of which was saying, Okay, we're appointing negotiators. You don't agree with any of the compromises we've sent, all you have to do now is appoint negotiators, conferees, and we'll work it out this evening and it will all be done. They refused to even appoint people to negotiate and get it worked out during the night. That tells you pretty clearly they wanted a shutdown for 3 years now, since the Republicans won the House back in November of 2010.

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We have heard them talking about, gee, if there is a shutdown they always blame the Republicans and we can get the majority back.

But I would ask the gentleman the question that was asked to the Senate Democratic leader today, when a CNN reporter, Dana Bash, said: ''But if you can help one child who has cancer, why wouldn't you do it?'' And Mr. REID said: ''Why would we want to do that? I have 1,100 people at Nellis Air Force Base that are sitting home. They have a few problems of their own. This is—to have someone of your intelligence to suggest such a thing maybe means you're irresponsible and reckless.'' She said: ''I'm just asking a question.''

Just asking the original question: ''You all talked about children with cancer unable to go to clinical trials. The House is presumably going to pass a bill that funds at least the NIH. Given what you've said, will you at least pass that? And if not, aren't you playing the same political games that Republicans are?''

He talked around it and wouldn't answer it. But the ultimate answer is: Why would we want to do that if we could save even one child?

Mr. BRIDENSTINE. When you think about what we did last night, we talk about common ground a lot in the House of Representatives. It is a couple of words I hear all the time: common ground, common ground, common ground.

Here we had an opportunity last night in the midst of a government shutdown knowing that we have warriors coming back from the battlefield—I am one of them myself; I flew combat in Iraq and Afghanistan—and we wanted to pass a bill where there is strong common ground, we want to fund the Veterans Administration, we want to make sure that our veterans get the care they need.

Yesterday, on the floor of the House, the Democrats in this body killed that. Maybe you could shed some light on why they would want to do that?

Mr. GOHMERT. It sounds like the gentleman is basically asking a question like Dana Bash. Well, that would have helped veterans who are sick and need help and are seeking medical care and need their checks to finish getting the medication and things that they need.

The question that Senator REID asked keeps resonating back as the Democratic answer: Why would we want to do that?

Mr. BRIDENSTINE. The only thing—and I have thought about this a lot—the only thing I can possibly think of why they would not want to fund the veterans is that they want to hold the veterans hostage for something else, namely ObamaCare. That is the only thing I can think of.

Mr. GOHMERT. I thank my friend, Dr. LAMALFA, and my friend the combat veteran, Mr. BRIDENSTINE.

Mr. Speaker, we are still wondering why they would not want to help these people?

I yield back the balance of my time.

## ADJOURNMENT

Mr. BRIDENSTINE. Mr. Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 9 o'clock and 33 minutes p.m.), under its previous order, the House adjourned until tomorrow, Thursday, October 3, 2013, at 10 a.m. for morning-hour debate.

## EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

3184. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-125, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3185. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-121, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3186. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-122, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3187. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-089, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3188. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-079, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3189. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No.

DDTC 13-098, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3190. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-130, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3191. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-111, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3192. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-112, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3193. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-113, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3194. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-142, pursuant to the reporting requirements of Section 40(g)(2) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3195. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-092, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3196. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-096, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3197. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-147, pursuant to the reporting requirements of Section 40(g)(2) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3198. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-107, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3199. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-115, pursuant to the reporting requirements of Section 36(c) and 36(d) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3200. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-101, pursuant to the reporting requirements of Section 36(d) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3201. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-117, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3202. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-118, pursuant to the reporting requirements of Section 36(d) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3203. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-120, pursuant to the reporting requirements of Section 36(c) and 36(d) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3204. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-100, pursuant to the reporting requirements of Section 36(c) and 36(d) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3205. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-123, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3206. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting a determination pursuant to Section 451 of the Foreign Assistance Act; to the Committee on Foreign Affairs.

3207. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting a determination pursuant to Section 451 of the Foreign Assistance Act; to the Committee on Foreign Affairs.

3208. A letter from the Acting Assistant Secretary, Legislative Affairs, Department of State, transmitting Transmittal No. DDTC 13-078, pursuant to the reporting requirements of Section 36(c) of the Arms Export Control Act; to the Committee on Foreign Affairs.

3209. A letter from the Attorney Advisor, Department of Homeland Security, transmitting the Department's final rule — Nontank Vessel Response Plans and Other Response Plan Requirements [Docket No.: USCG-2008-1070] (RIN: 1625-AB27) received September 19, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

3210. A letter from the Paralegal Specialist, Department of Transportation, transmitting the Department's final rule — Airworthiness Directives; the Boeing Company Airplanes [Docket No.: FAA-2013-0628; Directorate Identifier 2013-NM-132-AD; Amendment 39-17523; AD 2013-15-07] (RIN: 2120-AA64) received September 9, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

3211. A letter from the Paralegal Specialist, Department of Transportation, transmitting the Department's final rule — Amendment of Class E Airspace; Tri-Cities, TN [Docket No.: FAA-2013-0609; Airspace Docket No.: 13-ASO-15] received September 9, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

3212. A letter from the Paralegal Specialist, Department of Transportation, transmitting the Department's final rule — Amendment of Class E Airspace; Gustavus, AK [Docket No.: FAA-2013-0282; Airspace Docket No.: 13-AAL-3] received September 9, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

3213. A letter from the Paralegal Specialist, Department of Transportation, transmitting the Department's final rule — Amendment of Class E Airspace; Salt Lake City, UT [Docket No.: FAA-2012-1303; Airspace Docket No.: 12-ANM-29] received September 9, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

3214. A letter from the Paralegal Specialist, Department of Transportation, transmitting the Department's final rule — IFR Altitudes; Miscellaneous Amendments [Docket No.: 30913; Amdt. No. 508] received September 9, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

3215. A letter from the Paralegal Specialist, Department of Transportation, transmitting the Department's final rule — Modification of Class B Airspace; Las Vegas, NV [Docket No.: FAA-2012-0966; Airspace Docket No.: 12-AWA-5] (RIN: 2120-AA66) received September 9, 2013, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Transportation and Infrastructure.

## REPORTS OF COMMITTEES ON PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XIII, reports of committees were delivered to the Clerk for printing and reference to the proper calendar, as follows:

Mr. WOODALL: House Committee on Rules. House Resolution 370. Resolution providing for consideration of the joint resolution (H.J. Res. 70) making continuing appropriations for National Park Service operations, the Smithsonian Institution, the National Gallery of Art, and the United States Holocaust Memorial Museum for fiscal year 2014, and for other purposes; providing for consideration of the joint resolution (H.J. Res. 71) making continuing appropriations of local funds of the District of Columbia for fiscal year 2014; providing for consideration of the joint resolution (H.J. Res. 72) making continuing appropriations for veterans benefits for fiscal year 2014, and for other purposes; providing for consideration of the joint resolution (H.J. Res. 73) making continuing appropriations for the National Institutes of Health for fiscal year 2014, and for other purposes; providing for consideration of the bill (H.R. 3230) making continuing appropriations during a Government shutdown to provide pay and allowances to members of the reserve components of the Armed Forced who perform inactive-duty training during such period; and providing for consideration of motions to suspend the rules (Rept. 113–241). Referred to the House Calendar.

## PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. GARCIA (for himself, Ms. CHU, Mr. HORSFORD, Mr. POLIS, Ms. DELBENE, Ms. PELOSI, Mr. HOYER, Mr. CLYBURN, Mr. BECERRA, Mr. CROWLEY, Mr. VAN HOLLEN, Mr. ISRAEL, Ms. DUCKWORTH, Mr. GENE GREEN of Texas, Ms. SPEIER, Ms. TITUS, Ms. LINDA T. SÁNCHEZ of California, Mr. DAVID SCOTT of Georgia, Mr. DELANEY, Mr. LARSEN of Washington, Mr. O'ROURKE, Ms. JACKSON LEE, Mr. PETERS of California, Mr. GALLEGO, Ms. MICHELLE LUJAN GRISHAM of New Mexico, Mr. HINOJOSA, Mr. CONNOLLY, Mr. HIMES, Ms. BROWNLEY of California, Mr. ENGEL, Mr. PERLMUTTER, Mr. SHERMAN, Ms. WASSERMAN SCHULTZ, Mr. VARGAS, Mr. CÁRDENAS, Mr. KILDEE, Mrs. NAPOLITANO, Mr.

SWALWELL of California, Mr. RUIZ, Mr. LOWENTHAL, Mr. TAKANO, Mr. DOGGETT, Mr. QUIGLEY, Mr. BARBER, Mr. CASTRO of Texas, Mr. BEN RAY LUJÁN of New Mexico, Mr. FOSTER, Ms. ROYBAL-ALLARD, Ms. KUSTER, Ms. WILSON of Florida, Mr. SABLAN, Mr. SIRES, Mrs. MCCARTHY of New York, Ms. LORETTA SANCHEZ of California, Ms. SCHWARTZ, Mr. DEUTCH, Mr. MAFFEI, Mr. HUFFMAN, Mr. SCHRADER, Mr. MORAN, Mr. SCHIFF, Mr. MURPHY of Florida, Mrs. NEGRETE MCLEOD, Mr. HECK of Washington, Mr. POCAN, Mr. SMITH of Washington, Ms. KELLY of Illinois, Ms. HANABUSA, Mr. SERRANO, Mr. OWENS, Ms. ESTY, Ms. FRANKEL of Florida, Mr. KIND, Mr. SEAN PATRICK MALONEY of New York, Mr. PIERLUISI, Mr. KILMER, Mr. HONDA, Mr. THOMPSON of California, Ms. ESHOO, Mr. SCHNEIDER, Mr. CUELLAR, Mr. FALEOMAVAEGA, Ms. MCCOLLUM, Ms. MENG, Mr. RANGEL, Ms. MATSUI, Mrs. CAROLYN B. MALONEY of New York, Ms. HAHN, Ms. CASTOR of Florida, Mr. NADLER, Mr. VEASEY, Mrs. KIRKPATRICK, Ms. MOORE, Mr. CICILLINE, Mr. CARTWRIGHT, Mr. MEEKS, Ms. DEGETTE, Mr. HASTINGS of Florida, Mr. COHEN, Mr. CLAY, Mr. CONYERS, Ms. SCHAKOWSKY, Mr. MCDERMOTT, Mr. ANDREWS, Mr. BLUMENAUER, Mr. DINGELL, Mr. GARAMENDI, Mr. LANGEVIN, Mr. TONKO, Mr. PASTOR of Arizona, Ms. VELÁZQUEZ, Mr. FARR, Mr. COSTA, Mr. PRICE of North Carolina, Ms. BONAMICI, Mr. LARSON of Connecticut, Ms. SINEMA, Mr. COURTNEY, Mr. PALLONE, Mr. LEWIS, and Mr. GRAYSON):

H.R. 15. A bill to provide for comprehensive immigration reform and for other purposes; to the Committee on the Judiciary, and in addition to the Committees on Foreign Affairs, Homeland Security, Ways and Means, Armed Services, Natural Resources, Agriculture, Education and the Workforce, Energy and Commerce, Oversight and Government Reform, the Budget, Science, Space, and Technology, Financial Services, and Transportation and Infrastructure, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. ROGERS of Kentucky (for himself, Mr. LATHAM, and Mrs. WALORSKI):

H.R. 3230. A bill making continuing appropriations during a Government shutdown to provide pay and allowances to members of the reserve components of the Armed Forces who perform inactive-duty training during such period; to the Committee on Appropriations.

By Mr. POE of Texas:

H.R. 3231. A bill making automatic continuing appropriations for law enforcement, crime prevention, and victim services programs of the Department of Justice in the event of a Government shutdown; to the Committee on Appropriations.

By Mr. COOK (for himself, Mr. MCKEON, Mr. MILLER of Florida, Mr. TURNER, Mr. RUNYAN, Mr. GARY G. MILLER of California, Mr. CALVERT, Mr. MURPHY of Pennsylvania, Mr. NUNES, Mr. COLE, Mr. NUGENT, Mr. JONES, Mr. MCCARTHY of California, Mr. MULLIN, Mr. CONAWAY, Mr. ROE of Tennessee, Mr. WENSTRUP, Mr. YOUNG of Alaska, Mr. VALADAO, Mr. DENHAM, Mrs. WALORSKI, Mr. JOYCE, and Mr. STEWART):

H.R. 3232. A bill to amend the Pay Our Military Act to ensure that all civilian and contractor employees of the Department of Defense and the Coast Guard and all members of the reserve components of the Armed Forces are paid in the event of a Government shutdown; to the Committee on Appropriations.

By Mr. BLUMENAUER (for himself and Mr. KINZINGER of Illinois):

H.R. 3233. A bill to extend the period during which Iraqis who were employed by the United States Government in Iraq may be granted special immigrant status and to temporarily increase the fee or surcharge for processing machine-readable nonimmigrant visas; to the Committee on the Judiciary, and in addition to the Committee on Foreign Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned. considered and passed.

By Mr. HALL:

H.R. 3234. A bill to withhold the pay of Members of Congress, the President, and the Vice President if a Government shutdown is in effect or the Government is unable to make payments or meet obligations because the public debt limit has been reached, and for other purposes; to the Committee on Oversight and Government Reform, and in addition to the Committee on House Administration, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GRIFFIN of Arkansas:

H.R. 3235. A bill to provide for the compensation of any Federal, State, or local employee furloughed due to a lapse in appropriations which began on or about October 1, 2013; to the Committee on Oversight and Government Reform.

By Mr. SCHRADER (for himself and Ms. GABBARD):

H.R. 3236. A bill to reduce the annual rate of pay of Members of Congress if a Government shutdown occurs during a year, and for other purposes; to the Committee on House Administration, and in addition to the Committee on Oversight and Government Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. STUTZMAN:

H.R. 3237. A bill to amend the Pay Our Military Act to provide funds for the operations of the National Guard; to the Committee on Appropriations.

By Mr. KINGSTON:

H.J. Res. 73. A joint resolution making continuing appropriations for the National Institutes of Health for fiscal year 2014, and for other purposes; to the Committee on Appropriations; considered and passed.

By Mr. COTTON:

H.J. Res. 74. A joint resolution making continuing appropriations for the Special Supplemental Nutrition Program for Women, Infants, and Children (WIC) for fiscal year 2014, and for other purposes; to the Committee on Appropriations.

## PRIVATE BILLS AND RESOLUTIONS

Under clause 3 of rule XII,

Mr. GUTIÉRREZ introduced a bill (H.R. 3238) for the relief of Simeon Simeonov, Stela Simeonova, Stoyan Simeonov, and Vania Simeonova; which was referred to the Committee on the Judiciary.

## CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. GARCIA:

H.R. 15.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8. The Congress shall have Power to establish an uniform Rule of Naturalization.

By Mr. ROGERS of Kentucky:

H.R. 3230.

Congress has the power to enact this legislation pursuant to the following:

The principal constitutional authority for this legislation is clause 7 of section 9 of article I of the Constitution of the United States (the appropriation power), which states: ''No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law. . . .'' In addition, clause 1 of section 8 of article I of the Constitution (the spending power) provides: ''The Congress shall have the Power . . . to pay the Debts and provide for the common Defence and general Welfare of the United States. . . .'' Together, these specific constitutional provisions establish the congressional power of the purse, granting Congress the authority to appropriate funds, to determine their purpose, amount, and period of availability, and to set forth terms and conditions governing their use.

By Mr. POE of Texas:

H.R. 3231.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8 Clause 1

By Mr. COOK:

H.R. 3232.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

By Mr. BLUMENAUER:

H.R. 3233.

Congress has the power to enact this legislation pursuant to the following:

Article I of the U.S. Constitution.

By Mr. HALL:

H.R. 3234.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 6, of the United States Constitution.

By Mr. GRIFFIN of Arkansas:

H.R. 3235.

Congress has the power to enact this legislation pursuant to the following:

The principal constitutional authority for this legislation is clause 7 of section 9 of article I of the Constitution of the United States (the appropriation power), which states:

''No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law . . .'' In addition, clause 1 of section 8 of article I of the Constitution (the spending power) provides: ''The Congress shall have the Power . . . to pay the Debts and provide for the common Defence and general Welfare of the United States. . . .'' Together, these specific constitutional provisions establish the congressional power of the purse, granting Congress the authority to appropriate funds, to determine their purpose, amount, and period of availability, and to set forth terms and conditions governing their use.

By Mr. SCHRADER:

H.R. 3236.

Congress has the power to enact this legislation pursuant to the following:

U.S. Const. art. 1, §1; and

U.S. Const. art. 1, §6

By Mr. STUTZMAN:

H.R. 3237.

Congress has the power to enact this legislation pursuant to the following:

The principal constitutional authority for this legislation is clause 7 of section 9 of article I of the Constitution of the United States (the appropriation power), which states:

''No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law . . .'' In addition, clause 1 of section 8 of article I of the Constitution (the spending power) provides: ''The Congress shall have the Power . . . to pay the Debts and provide for the common Defence and general Welfare of the United States. . . .'' Together, these specific constitutional provisions establish the congressional power of the purse, granting Congress the authority to appropriate funds, to determine their purpose, amount, and period of availability, and to set forth terms and conditions governing their use.

Mr. GUTIÉRREZ:

H.R. 3238.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 4 and Amendment I, Clause 3 of the Constitution.

By Mr. KINGSTON:

H.J. Res. 73.

Congress has the power to enact this legislation pursuant to the following:

The principal constitutional authority for this legislation is clause 7 of section 9 of article I of the Constitution of the United States (the appropriation power), which states: ''No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law. . . .'' In addition, clause 1 of section 8 of article I of the Constitution (the spending power) provides: ''The Congress shall have the Power . . . to pay the Debts and provide for the common Defence and general Welfare of the United States. . . .'' Together, these specific constitutional provisions establish the congressional power of the purse, granting Congress the authority to appropriate funds, to determine their purpose, amount, and period of availability, and to set forth terms and conditions governing their use.

By Mr. COTTON:

H.J. Res. 74.

Congress has the power to enact this legislation pursuant to the following:

Clause 1 of Section 8 of article I of the Constitution.

## ADDITIONAL SPONSORS

Under clause 7 of rule XII, sponsors were added to public bills and resolutions as follows:

H.R. 7: Mr. ROSKAM.
H.R. 127: Mr. BRIDENSTINE.
H.R. 366: Mr. VAN HOLLEN, Ms. MOORE, Mr. FOSTER, and Mr. CLEAVER.
H.R. 460: Mr. POE of Texas.
H.R. 494: Mr. PRICE of North Carolina, Mr. ROGERS of Michigan, Mr. RUPPERSBERGER, and Ms. BONAMICI.
H.R. 541: Mr. CICILLINE.
H.R. 609: Mr. COURTNEY.
H.R. 685: Mrs. ROBY, Mr. FRANKS of Arizona, Mr. MURPHY of Florida, and Ms. CHU.
H.R. 713: Mr. MCNERNEY.
H.R. 719: Mr. BRALEY of Iowa.
H.R. 721: Mr. JOHNSON of Georgia and Mr. BISHOP of Georgia.
H.R. 724: Ms. JENKINS.
H.R. 831: Mr. SESSIONS.
H.R. 1015: Mr. CASSIDY.
H.R. 1094: Ms. EDDIE BERNICE JOHNSON of Texas, Mr. CARSON of Indiana, Mr. FOSTER, and Ms. MOORE.
H.R. 1125: Ms. DUCKWORTH.
H.R. 1209: Mr. NEAL and Mr. POSEY.
H.R. 1263: Mr. LOWENTHAL.
H.R. 1318: Mr. RYAN of Ohio.
H.R. 1697: Ms. WILSON of Florida.
H.R. 1726: Mr. BILIRAKIS, Ms. LINDA T. SÁNCHEZ of California, Mr. O'ROURKE, and Mrs. ROBY.
H.R. 1731: Mr. FATTAH, Ms. VELÁZQUEZ, Mr. VAN HOLLEN, Mr. DOYLE, Mr. TAKANO, Mr. POCAN, and Mr. YARMUTH.
H.R. 1750: Mr. BOUSTANY, Mr. VEASEY, and Ms. KUSTER.
H.R. 1767: Ms. DUCKWORTH.
H.R. 1779: Mrs. ROBY.
H.R. 1891: Mr. MCGOVERN.
H.R. 1914: Mrs. NAPOLITANO, Mr. LOWENTHAL, Ms. SPEIER, and Mr. POCAN.
H.R. 1982: Mr. MURPHY of Florida.
H.R. 2037: Ms. MCCOLLUM and Mr. GRIJALVA.
H.R. 2066: Mr. VALADAO.
H.R. 2087: Mrs. ROBY.
H.R. 2134: Mr. PALLONE.
H.R. 2315: Mr. GUTHRIE.
H.R. 2430: Ms. JACKSON LEE, Mr. THOMPSON of Mississippi, and Mr. COHEN.
H.R. 2523: Ms. JACKSON LEE.
H.R. 2654: Mr. ISRAEL.
H.R. 2697: Mr. FARR.
H.R. 2734: Ms. JENKINS and Ms. SPEIER.
H.R. 2744: Mr. MCCAUL.
H.R. 2795: Mr. COTTON.
H.R. 2807: Mr. BUCHANAN.
H.R. 2839: Ms. CHU and Ms. MENG.
H.R. 2863: Mr. HASTINGS of Florida and Ms. WILSON of Florida.
H.R. 2874: Mr. VAN HOLLEN.
H.R. 2939: Mr. MICHAUD, Mr. CONYERS, Ms. HAHN, and Ms. WILSON of Florida.
H.R. 2962: Ms. TITUS and Mr. KENNEDY.
H.R. 2998: Ms. SHEA-PORTER.
H.R. 3024: Mr. RIBBLE.
H.R. 3043: Mr. MICHAUD.
H.R. 3077: Mr. OLSON.
H.R. 3091: Mr. BUCHANAN.
H.R. 3099: Mr. THOMPSON of California.
H.R. 3106: Mr. VISCLOSKY.
H.R. 3121: Mr. MULLIN, Mr. DUNCAN of South Carolina, Mr. FLEISCHMANN, Mr. MILLER of Florida, Mr. FINCHER, AND Mr. BRIDENSTINE.
H.R. 3160: Mr. SMITH of Texas, Mr. PERRY, Mr. COOK, and Mr. THOMPSON of Pennsylvania.
H.R. 3199: Mr. MILLER of Florida.
H.R. 3223: Mrs. BUSTOS, Mr. CLEAVER, Mr. WELCH, Mrs. CAROLYN B. MALONEY of New York, Mr. PAYNE, Mr. RYAN of Ohio, Mr. LEVIN, Mr. GRIJALVA, Mr. POCAN, Mr. VARGAS, Ms. LORETTA SANCHEZ of California, Mr. CROWLEY, Mr. BRADY of Pennsylvania, Mr. JOHNSON of Georgia, Mr. RANGEL, Ms. TITUS, Ms. JACKSON LEE, Mr. BISHOP of Utah, Ms. GABBARD, Mr. GENE GREEN of Texas, and Mr. HECK of Washington.
H.R. 3224: Mr. LOEBSACK, Mr. MURPHY of Florida, Mr. MICHAUD, Mr. TONKO, and Ms. PINGREE of Maine.
H. Res. 97: Mr. CARTWRIGHT.
H. Res. 153: Mr. NEUGEBAUER, Mr. STUTZMAN, Mr. BRIDENSTINE, Mr. HARRIS, Mr. KING of Iowa, Mr CONAWAY, Mr. BENTIVOLIO, Mr. ROKITA, Mr. WALBERG, Mr. HUELSKAMP, Mr. ROE of Tennessee, Mr WENSTRUP, and Mr. MEADOWS.
H. Res. 365: Mr. MURPHY of Florida, Mr. YARMUTH, Mr. PAYNE, Mr. HOLT, Mr. SWALWELL of California, Mr. GEORGE MILLER of California, Ms. SPEIER, and Mr. DINGELL.

## CONGRESSIONAL EARMARKS, LIMITED TAX BENEFITS, OR LIMITED TARIFF BENEFITS

Under clause 9 of rule XXI, lists or statements on congressional earmarks, limited tax benefits, or limited tariff benefits were submitted as follows:

OFFERED BY MR. ROGERS OF KENTUCKY

H.R. 3230, the Pat Our Guard and Reserve Act, does not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

OFFERED BY MR. ROGERS OF KENTUCKY

H.J. Res. 73, the National Institutes of Health Continuing Appropriations Resolution, 2014, does not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

United States
*of* America

# Congressional Record

PROCEEDINGS AND DEBATES OF THE 113th CONGRESS, FIRST SESSION

*Vol. 159* WASHINGTON, WEDNESDAY, OCTOBER 2, 2013 *No. 134*

# *Senate*

The Senate met at 10:30 a.m., and was called to order by the Honorable HEIDI HEITKAMP, a Senator from the State of North Dakota.

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

O God, who remains our shelter in the time of storms, we are helpless without Your power. Unless You empower our lawmakers, they can see the ideal but not reach it. They can know the right but not do it. They can comprehend their duty but not perform it. They can seek the truth but not fully find it.

Dear God, help our lawmakers. Enlighten their minds, purify their hearts, and strengthen their wills, enabling them to pass beyond guessing to knowing, beyond doubting to certainty, beyond resolving to doing, and beyond intention to action.

We pray in Your sacred Name. Amen.

## PLEDGE OF ALLEGIANCE

The Presiding Officer led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

## APPOINTMENT OF ACTING PRESIDENT PRO TEMPORE

The PRESIDING OFFICER. The clerk will please read a communication to the Senate from the President pro tempore (Mr. LEAHY).

The legislative clerk read the following letter:

U.S. SENATE,
PRESIDENT PRO TEMPORE,
*Washington, DC, October 2, 2013.*

*To the Senate:*

Under the provisions of rule I, paragraph 3, of the Standing Rules of the Senate, I hereby appoint the Honorable HEIDI HEITKAMP, a Senator from the State of North Dakota, to perform the duties of the Chair.

PATRICK J. LEAHY,
*President pro tempore.*

Ms. HEITKAMP thereupon assumed the chair as Acting President pro tempore.

## RECOGNITION OF THE MAJORITY LEADER

The ACTING PRESIDENT pro tempore. The majority leader is recognized.

## SCHEDULE

Mr. REID. Madam President, following my remarks and those of Senator MCCONNELL, the Senate will be in a period of morning business for debate until noon, with the time equally divided and controlled, with Senators permitted to speak for up to 10 minutes each.

## CONTINUING APPROPRIATIONS

Mr. REID. Madam President, it is obvious when you check the press that the Republicans have had a very, very bad week. On the same day that Democrats in Congress delivered quality affordable health insurance to tens of millions more Americans, the Republican Congress delivered this Nation a government shutdown.

Thanks to the Affordable Care Act, yesterday millions of Americans went on line to shop for affordable insurance policies in the new marketplace exchanges. Some compare that to when Google went on line and the many problems that Google had because they had no idea people were so interested in Google. There were some problems they had. Of course, now we know how people feel about Google.

The same is going to happen with this Affordable Care Act. People have until December to sign up. They are on again today as they were yesterday signing up. But thanks to the Republican government shutdown, hundreds of thousands of public servants were sent home without pay. Thanks to the Republican shutdown, tourists lined up outside Red Rock Canyon outside Las Vegas where more than 1 million people a year go. But they did not go there yesterday. There were gates. They could not get in.

Thanks to the Republican government shutdown, a group of World War II veterans who traveled from Iowa and Mississippi had to break down barricades to visit the Washington, DC, memorial in their honor, some of them in wheelchairs.

Thanks to the Republican government shutdown, 200 very sick patients, including 30 children, were turned away from the National Institutes of Health clinic that offers lifesaving—that is an understatement—lifesaving treatment. Most of the children turned away are suffering from some type of cancer.

I read that modern-day anarchists in the House have been celebrating the shutdown—celebrating the shutdown. They can barely contain their glee at having realized a 2010 campaign promise to halt the basic functions of government. Here is what the tea party spokesperson said. She is their spokesperson, MICHELE BACHMANN. Remember, she is the woman that ran for President and was the leading contender for about 4 hours or whatever it was. But anyway, she loves to talk. Here is what she said yesterday, ''It's exactly what we wanted, and we got it.'' You cannot make up stuff like that. Can you imagine anyone saying that when we have babies turned away who are coming for lifesaving treatment? ''It's exactly what we wanted, and we got it.''

It is time for my Republican colleagues to do a gut check. Republicans in the House have proposed one cockamamie, can't-pass idea after another the last few days: defund

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.



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ObamaCare, delay ObamaCare, deny preventive health. They tried that before. They tried it again. They were not satisfied until they said: Now, let's also go after women—things as basic as contraceptives—or else we will shut the government down. That is what they said.

They are obsessed with ObamaCare. Now they have gotten their way. They have shut down the government. As BACHMANN said, ''It's exactly what we wanted, and we got it.'' But none of their wacky ideas are any closer to becoming law. Instead of reading the writing on the wall, House Republicans have turned to a new bad idea, to cherry-pick a few parts of government that they like and reopen only those parts.

Credit for this idea goes, I am told, to the junior Senator from Texas. He goes over to the House and tells them what they should do. He, along with people like BACHMANN, are tea party, they are anarchists. They are happy. Listen, I have come here, and I have talked about how happy they are in hurting government. We now have them speaking out openly. ''It's exactly what we wanted, and we got it.''

But I do have a little bit of advice for my Republican colleagues in the House. When your latest brilliant idea came from the same person who proposed the ''dumbest idea ever'' according to one of his own Senate Republicans here, I would think it is a sign you are on the wrong track. It is time for Republicans to stop throwing one crazy idea after another at the wall in hopes that something sticks. Nothing has stuck.

There has been a sensible plan to reopen the government right in front of House Republicans all along: A clean 6-week resolution that opens government today. We passed it in the Senate last week. I believe reasonable Republicans—I hope—are desperately looking for a way out. That is what all of the newspapers said today, all of the news reports. Each day a couple more come forward. I do not blame them for looking for a way out.

These piecemeal bills are not a way out. The Obama administration already promised to veto them. So they obviously are not the answer. Reopening only parts of government that they like is not a responsible solution. The Senate already has a plan to reopen the government while we work out our budget differences—open the government based on the resolution we passed last week.

If Republicans really want to reopen the government, they should just go ahead and reopen the government. They have had that power all along. Once they do that, we will be happy to appoint conferees, work out long-term budget priorities with the House. Let's go to conference. We talked about it. PATTY MURRAY has been here 18 times to talk about it.

We should not be fighting over a 6-week stopgap budget bill. We should be working out our long-term fiscal issues. Americans are tired of this type of knockdown, drag-out debt fight, which costs our economy billions of dollars. The way to put our Nation on sound fiscal footing is to set sensible policies through regular order in the legislative process, not to extort concessions through dangerous hostage taking.

First, Republicans must reopen the government. The next move is to go to conference and set our minds on reaching a reasonable compromise. Right now, Republicans led by JOHN BOEHNER are the only thing standing between Congress and compromise. I would suggest he stop taking advice from BACHMANN and CRUZ.

Unfortunately, it seems that some in the Republican conference are simply too mad at me personally, too obsessed with getting me personally to back down from doing what most of America believes is right. The National Review said yesterday that I was ''the villain of villains.'' JOHN BOEHNER could reopen the government if he wanted to, but he is too obsessed with beating the villain of villains, and obviously too afraid of the tea party to do the right thing for the country.

When I read this yesterday, I said: Villain. Huh. Be careful of the words you choose. Gee, no one likes to be called a villain. So I looked it up in the dictionary. Uncouth person. Well, I acknowledge, I probably was not born in a place that most people would like to be born in. I was not raised the way most people like to be raised. But I would hope over the years that I am not uncouth. I have tried my best to become part of mainstream society.

The other definition is I am a scoundrel or a criminal. Well, I am not a criminal. I am not a scoundrel. So they better get a different definition for me. In spite of being the villain of villains, I have some advice and a suggestion. I really do believe there are reasonable Republicans in Congress. They have to, as I said, do a gut check and understand who they represent—understand that America is waiting for them to do the right thing. I know they believe in public service. But they have to understand why public service is important. I urge them to think about 30 babies—babies, little kids, who yesterday were brought by their parents to Washington, DC, for hope—hope that their little babies and children are not going to die, that they can get lifesaving treatment. They were turned away. So I urge them to do the right thing. I urge them to join us to reopen the Federal Government.

## RECOGNITION OF THE MINORITY LEADER.

The ACTING PRESIDENT pro tempore. The Republican leader is recognized.

## CONTINUING APPROPRIATIONS

Mr. MCCONNELL. Madam President, if it was not clear earlier this week why Republicans were asking to delay ObamaCare, it should be pretty clear to everybody this morning. The rollout of this thing made a trip to the DMV look like a good time. The word of the day was ''glitch.'' You could probably explain one or two of these glitches away, maybe three, but not glitches in Nebraska, Maryland, Florida, Wisconsin, Illinois, and in Kentucky—not glitches all across the country.

Kentuckians who tried to log in yesterday got a message that read ''server error.'' Let me translate that. It did not work. I mean, if the plural of anecdote is data, it seems to me the plural of glitch has to be systemic failure. This is the law that Washington Democrats were so adamant about unveiling yesterday, they were willing to shut down the government over it.

Instead of agreeing to a couple of commonsense proposals related to this law, they stuck to their absolutist position: 100 percent of ObamaCare when and how they want it, no matter what. This, of course, unless the President thinks you are one of the chosen few who deserve a special break.

So basically Washington Democrats shut down the government because they did not think middle-class Americans deserve the same kind of treatment as their employers, and because they did not think Congress should have to follow the same rules on ObamaCare exchanges as everybody else.

These were fair things to ask for. They were reasonable. If the Democrats who run Washington could have brought themselves to that sensible position, they would have voted to keep the government open. But in the end, they got their shutdown, which they apparently think will help them politically. They held on to their absolutist position on ObamaCare regardless of the consequences for American families.

Two days into this thing they still refuse to budge. The President reiterated again yesterday he is not interested in talking. The majority leader made it clear he is not interested in talking either. He shot down just about every attempt to engage in serious discussions with the House or with any one else for that matter.

Look, this week Washington Democrats had a choice: Defend basic principles of fairness when it comes to ObamaCare or shut down the government. They chose the latter. It was the wrong decision, in my view. It is time for them to start finding solutions, to start talking, and put the interests of their constituents ahead of the interests of their party.

## RESERVATION OF LEADER TIME

The ACTING PRESIDENT pro tempore. Under the previous order, the leadership time is reserved.

MORNING BUSINESS

The ACTING PRESIDENT pro tempore. Under the previous order, the Senate will be in a period of morning business for debate until 12 noon, with the time equally divided and controlled between the two leaders or their designees, with Senators permitted to speak therein for up to 10 minutes each.

CONTINUING APPROPRIATIONS

Mr. DURBIN. Madam President, there were two headlines in most of the major newspapers across the United States this morning. I saw it in Financial Times as well as the Wall Street Journal. The headlines noted: ''Americans flock to insurance exchanges.''

It was the first day when we had the rollout of the Web site where uninsured Americans had an opportunity to shop—real competition, a variety of plans. Illinois has 54 choices for uninsured people. This is a dream come true. Most of these people have lived their entire lives either without health insurance or with no choice, a take-it-or-leave-it policy that may be worthless when they need it. These are situations where many of them never once in their lives were able to be insured when it came to health insurance. There were a lot of reasons for it. Some of them had jobs that paid so little, offered no benefits, and they couldn't afford to buy health insurance. Some of them had preexisting conditions or perhaps a history of asthma in their family, diabetes, cancer survivors. They couldn't buy health insurance if they wanted to. It wasn't even offered.

Yesterday was different. October 1 was different as 2.8 million Americans came on the first day to this Web site to go shopping for health insurance. What a relief it must have been.

The Chicago papers told the story of a man who had just about given up hope because he had a child with a mental illness and because of that he could never buy health insurance. He was shopping yesterday. He was disappointed. He wanted to sign up yesterday, but so many people came to this Web site the first day that it wasn't able to meet all of the needs of the people who were shopping, or wanted to.

It will. There will be an opportunity. I am sure it will be soon.

I can't get over when I hear the Republican leader come to the floor and, with barely disguised glee, talk about the first day's problems with the Affordable Care Act. There is no question that many Republicans are not only praying for the Affordable Care Act to fail, they are betting on it.

None of them voted for it, not one. Not a single Republican voted for it. They are frightened—frightened at what is to come when the verdict of history comes down on this program. I think I know what the verdict will be. There will be some bumps in the road, glitches, maybe, some problems with the Web site. But in the end the American people understand the fundamental fairness of the Affordable Care Act; the fundamental fairness that said, yes, we have a right as Americans to health care protection. I believe we do and we should.

I have lived the life, a good one, but I had a moment in that life when I had no health insurance. I was a brandnew father with a brandnew baby with medical challenges and no health insurance. I have never felt more helpless in my life, praying that my little girl would get the best when I didn't have health insurance.

Multiply that times 40 million uninsured Americans and understand what is at stake. Those on the other side who are opposed to affordable care don't want to extend the helping hand of health insurance to those who have been denied for years. They don't have anything to replace it with. Stick with the current free market system.

Forty million Americans have been left behind with this current system. That is why I supported the Affordable Care Act. This is why the President is fighting for the Affordable Care Act. This is why we have to continue to fight every single day to make sure it is not defunded, as the Republicans tried to do only a few days ago, to make sure the coverage for individuals is not delayed as the Republicans tried to do only a few days ago.

No, we have to fight to make sure Americans have this chance. There is no turning back when it comes to offering health insurance to families who desperately need it.

What are the Republicans prepared to bet on this wager to end the Affordable Care Act and health care reform? They are willing to bet the Federal Government. They are willing to shut it down over the Affordable Care Act.

HARRY REID, our Democratic leader, told the story that was reported in the Wall Street Journal that the National Institutes of Health—not far from here, in the near suburbs of Maryland and which is a beacon of hope—this is where some of the most important medical research in the world is taking place. The head of NIH, Dr. Francis Collins, may be one of the most extraordinary people who has ever been involved in public service. He was head of the National Genome Project. They said it would probably take him 5, 6, or 8 years. He was so good and had so much talent that he did it in a very brief period of time—mapping the human genome. In doing so, he started opening doors to understanding, knowledge, and finding cures. He took that back to the NIH and they apply it every single day to save lives and find cures.

For the second day in a row, three-quarters of the scientists, doctors, and researchers at NIH sit at home, unable to engage in this critically important research, unable to find the new drugs, new surgeries, new medical devices, and the new procedures to save lives.

That is part of the Republican government shutdown. Oh, they may congratulate themselves on finally bringing this government to its knees, but they have to take responsibility for what they have done as well. They have shut down the National Institutes of Health. They have shut down medical research. It is worse because the toughest medical cases in America end up at the doorsteps of NIH. These are the most challenging medical conditions, families and people who have just about given up hope and think there is one last place to go, NIH, the very best.

Yesterday Dr. Francis Collins announced that 200 people who would have started clinical trials this week at the NIH were turned away because of the government shutdown. Within that population of 200, 30 were children, most of them cancer victims. Imagine for a moment that you are the mother or father of a child diagnosed with cancer and have one last hope, the National Institutes of Health. It may be a great personal sacrifice for you and your family to pick up and come out here, but you are going to do it. It is your baby. Then when you arrive at the door of the NIH there is a sign that says: This agency is closed.

Why is it closed? Some national emergency, some disaster, some crisis? No. It was a manufactured political temper tantrum coming from the tea party, Speaker BOEHNER, and those who believe this is the right way to go.

Excuse me if this example is so stark, but I haven't even begun to go into the details. I would invite any family who has been a victim of this government shutdown at NIH or any other medical facility, come to my Facebook page, my Twitter account. Send me a message and tell me your story. I wish to come to the floor and tell that story too.

People shouldn't disappear into the shadows as we make all this noise over this political debate. They ought to be front and center. Please share your story if you wish. I know it is a matter of privacy and confidentiality. If you don't want to, I certainly understand.

This is what it has come down to. Yesterday, for example, in the House they said: Oh, we are going to open the Veterans' Administration. Senator CRUZ has made a decision he is going to pick and choose the agencies to reopen. We will start with the Veterans' Administration. In other words, as former Speaker PELOSI said, they are going to release one hostage at a time when it comes to our Federal Government.

But what Senator CRUZ and the tea party Republicans failed to acknowledge is of the 800,000 Federal employees who have been furloughed, over 500,000 are veterans. They are out of work. If they care about the veterans, put this government back to work, put 500,000 of our veterans back to work. Incidentally, one out of four of them is disabled, disabled veterans put off the payroll and furloughed. There is no

promise they will ever be paid because of this tea party government shutdown.

We have serious challenges facing America, but we need to reopen this government now. Now. There are no excuses. Speaker BOEHNER sits there with a bill that he could bring before the House by 11 o'clock this morning. They could vote on it and the word would go out before noon that the government is reopened. That is how quickly he can act. It is there, but he won't call it for a vote.

What is he afraid of? Why won't he call this measure for a vote before the House? He knows it will pass because every Democrat will vote for it and moderate Republicans will step up and vote for it.

The only hope we have to end this tea party Republican crisis is if moderate Republicans will step forward now and say we are not part of this strategy. We want this government open. We are prepared to face all the challenges that follow, but we are not going to move forward at the expense of patients coming to the National Institutes of Health.

This is only one example. There are many more just like it.

I would say this in closing. Once again the Republican leaders come to the floor and mention the fact that Members of Congress will be in the insurance exchanges, the same insurance changes that were advertised yesterday for the first time. To give a moment of reflection in history, we are in the insurance exchanges because of an amendment offered by a Republican Senator, Senator GRASSLEY. This is an amendment which was part of the Affordable Care Act, which passed. We will be buying insurance, the same kinds of policies, exactly the same kinds of policies offered to all Americans on the exchanges. There are no special favors for Members of Congress.

Now we hear an objection from Senator MCCONNELL to the employer's contribution for our staff and for Members of Congress. Over half of the American people get their health insurance through their place of employment. Virtually all of them have employer contributions that help them pay their monthly premiums. The same thing is true for Federal employees. The same thing is true for Members of Congress. The same thing will be true when it comes to the insurance exchanges. There is no special treatment of Members of Congress. The notion that we can't have an employer's contribution when it comes to the insurance exchanges is flatout wrong. A business with fewer than 50 employees, for example, can send their employees to the exchanges and continue to contribute to their premiums. It is already accepted under law so there is no special treatment in this. It is only another diversion.

Trying to find ways to create chaos and uncertainty when it comes to the Affordable Care Act is the message of the Republican Party. Unfortunately, it is being delivered at the expense of 800,000 furloughed Federal employees, the services this government offers, and 200 people turned away this week for clinical trials at the National Institutes of Health.

I yield the floor.

The ACTING PRESIDENT pro tempore. The Republican whip.

Mr. CORNYN. Madam President, I listened with great interest to the comments of the distinguished deputy Democratic majority leader.

I was reminded of a radio commentator, who perhaps is not remembered as frequently now, but when I grew up, he had radio show where when he started out he would say: And now for the rest of the story.

I wish to offer the rest of the story. I listened as Senator DURBIN spoke about the fact that the National Institutes of Health is not open for business. The good news is that Republicans and Democrats both agree that we should reopen the National Institutes of Health. In fact, it is my understanding that the House of Representatives will pass a bill perhaps as early as today and send it over to the Senate.

I hope Senator REID, unlike over the last few days where he has killed every reasonable offer by the House of Representatives, will reconsider and he will not kill that funding for the National Institutes of Health during this partial government shutdown.

There are some other areas where I think we could work together. Senator REID knew that Republicans were going to come to the floor and try to make sure that our uniformed military continued to get their full pay on time during this impasse of Congress. Like the good politician he is, he actually beat us to the punch. He came down here first and made the same offer. The good news is there was bipartisan support for funding our troops in full, our uniformed military, on a timely basis during this impasse.

This has been sort of a surreal experience in so many ways because my friends on the other side of the aisle have been making what I consider to be some very strange arguments. The argument they have been making is that President Obama's health care law, the Affordable Care Act, otherwise known as ObamaCare, is untouchable, and that our efforts to modify it in any way are illegitimate. Their favorite word is ''extreme'' or the product of some effort by the tea party Republicans or some other disparaging connotation.

I am not sure exactly how to respond except to say this: If ObamaCare is untouchable, if the Obama administration is perfect, if we can't change one word and one sentence about ObamaCare, then you need to tell the Obama administration. Since 2010, the administration has granted more than 1,000 different waivers to its friends and political allies. It suspended all work on a large portion of ObamaCare known as the CLASS Act. It has delayed ObamaCare's basic health program and delayed the employer mandate. When we tried to delay the individual mandate so average Americans get the same sort of consideration from this administration that employers get, that businesses get, we were told this is an unreasonable request. Senator REID tabled that, in essence killing that provision rather than taking it up and embracing it and saying: You know what. If employers get a break for 1 year, then let's give average Americans a break.

The Obama administration has likewise delayed the eligibility verification for the exchanges. It started yesterday. In other words, you can apply for one of these insurance exchanges, but you don't have to prove what your income is. If there is a bigger open invitation for fraud, I am not aware of what it might be. But that is what the Obama administration has done, delayed the eligibility verification for the Obama exchanges, and they have delayed the cap on out-of-pocket expenses.

In short, the Obama administration has, by its very actions, demonstrated that ObamaCare is not perfect. The administration itself, by its own actions, has acknowledged ObamaCare is not ready for prime time.

This became painfully obvious to millions of Americans yesterday when the ObamaCare exchanges encountered widespread problems on its first day of operation. The President calls these glitches—glitches, a nice poll-tested, fairly benign-sounding word. But these were systemic failures of the ObamaCare exchanges yesterday when they came online—obviously, not ready for prime time.

Meanwhile, there have been other changes in this perfect, inviolable, can't-change-a-word ObamaCare. While the Supreme Court, we certainly acknowledge, has upheld major portions of ObamaCare, it is important to remember it declared a major piece of the law—the compulsory expansion of Medicaid—as unconstitutional. Unconstitutional: incompatible with our fundamental law of the land. Does that sound like a law that is perfect, can't be changed?

Let me give another example. During the ObamaCare debate, Democrats voted on a party-line vote to impose a medical device tax on medical device manufacturers. It is not based on their income, it is based on their gross receipts or how much money comes in the door, before they even deduct their cost of doing business and their overhead. So they would actually have to pay taxes without it generating any net income because of the nature of this tax. This is a job-killing tax.

I have had constituents come into my office and say: We have operations in Costa Rica, so we are going to have to move jobs we would create in Dallas to Costa Rica because of this job-killing medical device tax. You know what. Medical devices are some of the

most innovative parts of our health care system. How better to discourage medical innovation and lifesaving discoveries and manufacturing than to impose this gross receipts tax on medical devices.

That is not just my opinion. The last time we had a debate on the budget resolution, 79 Senators voted against the medical device tax because they realized it was a terrible mistake in this law we are told today, yesterday, and the day before is perfect in every way, wouldn't change a thing. But Senate Democrats are now lining up to repeal the medical device tax. Somehow, in a schizophrenia I don't quite understand, other Democrats are saying an attempt to do that would represent partisan extremism. Which is it? I think the American people know.

I am not sure exactly how our friends on the other side of the aisle define extremism, but I would submit that very few extreme ideas gain the support of 79 Senators in the Senate on a bipartisan basis. How is it extreme to delay ObamaCare's individual mandate when the administration has unilaterally done the same thing for businesses? How is it extreme to ask Members of Congress to live by the same laws that apply to everyone else?

The majority leader, Senator REID, tabled two amendments to the continuing resolution that would change this special carve-out for Congress that would provide a delay of the individual mandate for average Americans, such as the administration has already done for businesses, and we are told that is extreme; that somehow we are the ones who caused the government shutdown.

I am absolutely convinced President Obama and HARRY REID think this shutdown is the best thing that ever happened to them politically in recent memory. So rather than come out and tell sympathetic stories about what is happening at NIH, let's work together to mitigate some of the hardship and inconvenience. Let's talk about working through this impasse. Why can't we get the President to do what he reportedly intended to do in the first place, which is to convene a meeting at the White House with Republicans and Democrats to work through this? They are not just refusing to negotiate big compromises, they are refusing any compromise. It is my way or the highway.

They will not even agree to keep the war memorials open for our Honor Flights coming to Washington, DC. I would urge the majority leader and President Obama to join with us in passing a bill today that would keep our war memorials open.

My father was a World War II veteran. He is dead now, but he was a B–17 pilot in World War II. On his 26th bombing mission, he was shot down and captured as a prisoner of war. My father-in-law landed on Utah Beach the second day of the Normandy invasion. He is 95 years old now. His mind is still sharp, his body not quite what it used to be. He would love nothing better than to come to Washington, DC, on one of these Honor Flights. Unfortunately, his health will not allow him to do it.

The chairman of the Honor Flight Network, James McLaughlin, has said:

> It is beyond belief that those deserving men and women who have waited decades to see their memorial and were selected for this trip of a lifetime, to discover they may not be able to see their memorial.

For many of them, this may be the last time they get during their lifetime. I would ask that the President cancel his trip to Asia—he is leaving on Saturday—to overrule Senator REID and convene that meeting at the White House and come together to try and work through some of these differences.

We can fund NIH. We could do it today if Senator REID and President Obama would allow it. But, no, instead, we are told it is my way or the highway. We actually like this shutdown, they are saying to themselves, because they think they are winning politically. But they are not winning politically when the American people are the net losers.

The ACTING PRESIDENT pro tempore. The Senator from New York.

Mr. SCHUMER. My good friend, whom I saw in the gym this morning, sometimes stretches credulity. Who shut down the government? Was it HARRY REID? No. He kept passing messages to keep the government going. Was it Barack Obama? No. We all know who it was. It was the small band of tea party people in the House. It was his junior colleague in the Senate, TED CRUZ, who had the idea of shutting down the government.

As Leader REID said yesterday, we are not in 1984. Truth has some degree of credulity. For my colleague from Texas to get up and say: HARRY REID and Barack Obama open the government, when his junior colleague led the charge to shut it down, when the cries of the tea party are ''shut it down,'' and we are desperately trying to keep it open makes no sense and it is not going to wash.

One of the amazing things about our politics is how rhetoric has become so detached from reality, and then we have talk radio and some of the networks, FOX News, that repeat it. I saw a cartoon in the New York Post yesterday saying that Senators and Congressmen are exempt from ObamaCare. That is just not true. We are part of ObamaCare, and we will join the exchange—I will and so will my colleagues—because that is what they have to do.

But that doesn't even matter. The hard right is so angry at ObamaCare and, frankly, at President Obama and the fact he just trounced them in 2012 in an election that was run on their issues. They are so angry and white hot that their rhetoric just becomes totally detached from reality and totally detached from the truth.

I feel badly for the veterans who couldn't get to the memorial. But why was the government shut down? Because Speaker BOEHNER and the House wouldn't keep it open. Senator CORNYN and many other Republicans paved the way for us to open the government with a vote to allow us to go forward. That got 25 Republicans, even though TED CRUZ, his junior colleague, was urging him not to vote that way. That was the right vote. We know that. He knew, Senator CORNYN did, to his credit, that shutting down the government was bad. So on the one procedural vote that mattered, where he could have had the Senate say shut down the government, he voted the other way.

The real onus here is on Speaker BOEHNER. The entire focus of this debate should be on Speaker BOEHNER. Some might say it should be on Mr. CRUZ, the Senator from Texas. Some might say it should be on the 30 or 40 hard-line tea party people in the House. But in my view it is the Speaker of the House who has the responsibility not to listen to a small faction of his party when so much is at stake. Instead, Speaker BOEHNER seems to be listening to the junior Senator from Texas. The junior Senator from Texas has become the de facto Speaker of the House. If he says jump, the House jumps.

The junior Senator wanted the House to embark on a crusade to defund ObamaCare, so the Speaker, Speaker BOEHNER, did it. The junior Senator from Texas told the House to delay ObamaCare for 1 year, so the Speaker, Speaker BOEHNER, did it. Now this junior Senator from Texas is telling the House to pass piecemeal bills in a cynical attempt to pit important programs against each other, and now the Speaker is trying to do just that.

Senator CRUZ has driven Speaker BOEHNER to pit kids who should be enrolled in Head Start against kids who should be enrolled in cancer trials. He has driven the Speaker to pick families who want to visit the Statue of Liberty against families who own a small business and need help from the SBA. He has pitted research and cancer against health care for our veterans.

It is a cynical strategy. Similar to all the others they have sent us and that have failed, as these will fail today, it has one purpose: not to get anything done but to try and wiggle out of this view that they have shut down the government. Senator CORNYN's rhetoric will not work. It is too far detached from reality.

So Speaker BOEHNER tries to come up with these gizmos, these gimmicks, these legislative ploys to say: Hey, I am trying to do something. At the same time he is in the vice grip of the tea party members of the House who are taking their orders from the junior Senator from Texas.

There is a simple way to open the government, I would say to my friend—and he is my friend, Senator CORNYN of Texas—and my other colleagues on the Republican side in the House.

There is a bill sitting there waiting for a vote. It will open NIH, it will open the Veterans' Administration, it will open the World War II memorial, it will open the Statue of Liberty so the guy with the little sandwich shop right by the Statue of Liberty can get some business back. Make no mistake about it: This crisis doesn't just hurt the Federal Government. It doesn't even just hurt 800,000 families who aren't getting the paychecks on which they depend. This is not abstract. It hurts lots of private sector people as well, whether they be construction workers building a road using Federal dollars or the veteran waiting for that disability claim to come through or the guy with the sandwich shop next to the closed Statue of Liberty who is making those sandwiches. It is not abstract. I get a little resentful when I hear my colleagues talk about the Federal Government as if it is some big ogre; shut it down.

If you watched Rachel Maddow the other night, she had a variety of tea party congressmen who were running for the Congress in 2010 who said they were going to shut the government down. I think it was Congressman MULVANEY of South Carolina who said: When I get to Congress, I am going to shut the government down. And the tea party audience cheered and said ''shut it down'' before they even had a plan because they hate the Federal Government so much. That is the goal, to shut it down. ObamaCare is an excuse.

Mainstream Republicans know that shutting the government down is a bad thing and know that they are indeed paying a political price. So Speaker BOEHNER should follow the majority and stop being scared of the tea party. He will face them down easily in a challenge for Speaker. Speaker BOEHNER knows, as the ''National Review'' said this morning, that more than 100 House Republicans would vote for our bill to reopen the government if he put it on the floor. Instead, Republicans are wasting time on political stunts in asking to go to conference on a short-term CR.

The Republicans have this exactly backward. They say: Let's talk, and then maybe we will open the government. They ought to say: We will open the government, and then we can talk. If Republicans would simply switch all the lights back on, allow hundreds of thousands of furloughed Federal employees to go back to work, allow cancer research to continue, veterans to get their disability claims, kids to go back into Head Start, we could have a discussion about the budget, which they rejected 18 times.

Madam President, I yield the floor.

The ACTING PRESIDENT pro tempore. The Senator from Washington.

Mrs. MURRAY. Madam President, I woke up this morning feeling like I think most Americans feel today—pretty disappointed in the antics of Washington, DC.

As my colleague from New York just pointed out, we all know why we are here: Speaker BOEHNER and the Republicans in the House demanded a ransom in order to keep our government open, and their ransom was to repeal a law they do not support—ObamaCare. They made it very clear that the government was going to shut down. My constituents in Washington State who were supposed to go to work today—thousands of them—aren't going to get their paychecks because of that ransom. They made it very clear that they were not going to open the government over a policy about which they care passionately.

I have to say that I started my morning this morning talking to a number of businesspeople involved in the construction industry in the State of Washington. They told me that this uncertainty, this crisis, this shutdown of government is impacting their small businesses at home in the State of Washington because who is going to sign a contract to build something new when it is so unclear where our economy is going to be as a result of this shutdown and the looming debt ceiling crisis. So they are seeing a real retraction of their own businesses right now—not because of the government funding of a program or anything else that is ongoing or in dispute but because of this shutdown today.

Just a few minutes ago, on the other end of a spectrum, I talked to some moms and dads in Head Start from my home State of Washington. A young mom from Bremerton, WA, who has a 2-year-old daughter, told us that a few years ago she was on the streets, homeless, a victim of an abusive partner, and because of Head Start and the wraparound services they provide, they found her a place to stay and got her and her child involved in early childhood education. Because of that support and an early Head Start program, now 2 years later she is back at school working on her degree, her daughter is doing well, and she is back on track.

Thousands of moms and dads such as her exist across the country today, with a helping hand at the right moment from the right program. But because of sequestration and now because of the government shutdown, we are telling moms and dads such as her: Sorry, we are not going to be there for you.

I happen to be a very passionate advocate for early childhood education. I was a former preschool teacher. I am using my skills as a preschool teacher right now. I think all of our colleagues could learn a lot from those kinds of skills. No bullying; it is my turn to talk; be reasonable; teach our children to play well in the sandbox. Those are lessons we teach in preschool. I think we could all learn from that.

I think about that, and I think about those Head Start kids and the children whom I taught before and who are not being taught now because of the sequestration. What lesson are we giving them—that if I don't get my way right now about a bill I fought against and voted against and an election was run and won on, but I lost, and I am so mad that I am not going to let you have anything else because I am just so entrenched in that. That is not a lesson we should teach our kids.

Let's look at the other side of that argument. What if I came out here and said: I am so passionate about funding early childhood education because I know the research and what a difference it makes and I know what that investment will do for our country not just for today but for 10 or 20 years, and if I don't get my way to make sure every child in this country has that start, this government is going to shut down. That is not the way we run a country. I adamantly and passionately fight for any cause I believe in. Any legislator here can. But the way you get your way isn't to hold the country hostage.

We have a country that is counting on us to be responsible adults and to come to the table and work out our disagreements between each other. And they are large, there is no doubt about that, but you don't do it by hurting every family, every neighborhood, every community, every part of this country by holding this country hostage.

We have a responsibility. It is to pass a clean continuing resolution. It is to get our government working again. It is to tell people they are going to get their paychecks. We are going to responsibly do that, and then we, as Members of Congress, are going to take our differences to a negotiating table and hammer them out. I may want $1 million for something. My House counterparts may say no. We may meet in the middle. I may say: I didn't get my way; OK, you got yours. That is what you do in a conference committee. You don't do it by holding your country hostage.

So we say to Speaker BOEHNER today: Open the government. Let everybody go back to work. Don't hold our economy hostage. And we will then sit down with you and work out our disagreements, as the Presiding Officer knows we have asked 18 times now to do and have been told, no, we are not going to let you go to that negotiating table, we are not going to let you talk—by the same people who want this government shutdown.

I find myself in a very odd place where we have a country that is closed for business. We are sending a very bad message and lesson to the children of this country that we can't work and play well together, that we can't even disagree together in an admirable way. And we are doing it while people are getting hurt.

Speaker BOEHNER, open the country again, open our economy again and agree to work out our differences the way responsible adults should do.

My understanding is, after trying all kinds of different ways to appease some of his Members with all kinds of different proposals, the latest proposal is

to send us over piecemeal pieces of legislation. Well, OK. We feel bad about the veterans—and we all do. I am the biggest veterans advocate in here. We will take care of them now. And, oh gosh, some of our constituents are mad because they have flown out here and the national museums aren't open, so we will open those, and on and on, whatever the cause of the day is. I guarantee that if we began to pass those piecemeal pieces of legislation, my moms and dads in Head Start would be at the end of the line and would never get funded. I am standing up for them today and saying: You are first in line too.

We are all in this together. We need the government open—all of our agencies. Everybody gets a chance and an opportunity in this country. And we are going to stick together and say to Speaker BOEHNER: Pass a clean CR, and then allow this country and this government and the American way of life to function as our forefathers said—by sitting down at a negotiating table and working out our differences. That is what I have asked for as chair of the Budget Committee 18 times now. It is what we need to say we are going to do again but not while our country is shut down, not while my families in Head Start are held hostage, not while our small businesses are held hostage, not while everybody in this country is looking at us, wondering how we ever got to this.

Open the government, and let's be responsible legislators. That is what I came here to do. I certainly know it is what the Presiding Officer came to do. And let's tell the kids in this country who are watching us today that this country can function, we can work as adults, and we have a responsibility to do that—here and abroad.

Madam President, I yield the floor, and I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. DURBIN. Madam President, I ask unanimous consent the order for the quorum call be rescinded.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

## EXTENSION OF MORNING BUSINESS

Mr. DURBIN. Madam President, I ask unanimous consent there be a period of morning business for debate only until 2 p.m., with the time equally divided and controlled between the two leaders or their designees, with Senators permitted to speak therein for up to 10 minutes each, and the majority leader will be recognized at 2 p.m.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

Mr. DURBIN. Madam President, I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. DURBIN. Madam President, I ask unanimous consent the order for the quorum call be rescinded.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

Mr. DURBIN. I ask the time used in quorum calls during this period of morning business be equally divided between Democrats and Republicans.

The ACTING PRESIDENT pro tempore. Without objection, it is so ordered.

Mr. DURBIN. Madam President, I suggest the absence of a quorum.

The ACTING PRESIDENT pro tempore. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

Mr. CORKER. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

## CONTINUING APPROPRIATIONS

Mr. CORKER. Madam President, we find ourselves in a very predictable situation, and what is unpredictable is what our response to this situation is going to be. For some time I have talked about the box canyon that we were taking ourselves into, and I think it has now become very apparent to folks on both sides of the aisle that to overturn a central piece of legislation, it takes more than one-third of government to do so. When we have the presiding President over that piece of legislation, it actually takes two-thirds of each of the bodies to make that happen. I think people have realized that. It gives me no joy, but this is something I have obviously talked about for some time. Now we find ourselves in this box canyon.

What was also very predictable was that my friend TOM COBURN, the great Senator from Oklahoma, laid out very clearly on the Senate floor that even if there was a government shutdown, the health care bill would continue. I think what Americans are waking up to and seeing—even though Republicans have strongly opposed the health care bill at every turn—that even with government being shut down, the health care bill is continuing on and people around the country are signing up for what people call ObamaCare. So both of these were very predictable outcomes.

What is now unpredictable is what our response to that is going to be. I am speaking mostly to my friends on this side of the aisle. There has also been a number of people on the other side of the aisle who have spent a great deal of time over the last 2 or 3 years trying to focus on ways to reduce spending in the government and making our country stronger in the process.

I think to a person over here—as well as many on the other side of the aisle—we understand that our inability to deal with the fiscal situation in which we find ourselves in this country has hurt us economically. People have not been willing to invest in capital investments within their companies and around the world in many cases because they don't know what is going to happen in our country.

I know first hand as the ranking member on Foreign Relations—and as I have traveled the world—there is no doubt it has affected us around the world. People really do not understand whether we are going to be able to meet the obligations we have made from a security standpoint.

Again, where we are today is very predictable, and I don't want to be crass. Obviously, I know this is creating a hardship for some people who have been furloughed, and it is certainly affecting people around our country, and that is obviously not good. On the other hand, if there is some way for some good policy outcome that strengthens our country over the longer haul, which is why we are all here, then that is a good tradeoff. We will see what happens.

Here is my concern: While the situation we are in is very predictable—and many people in this body predicted we would end up exactly where we are today in this box canyon—we knew people would still sign up for the new health care law, which some have tried to defund, in spite of the fact that government has shut down.

What I am concerned about is this: We have made great strides as a nation, and in this body, to reduce government outlays we have control over. This has not happened in this Nation since 1955 and 1956. Two years ago we were at $1.43 trillion in annual outlays from a discretionary standpoint, and that is what we deal with in a CR. Last year we were at $988 billion, and this year—if we continue to uphold the law we put in place—we will be at $967 billion.

That is a phenomenal result for us to have achieved in this body and for our country—to have achieved to strengthen our Nation. While there may be ways of changing the way those outlays are done—and maybe there is mandatory spending that is substituted for discretionary spending. Maybe there are ways of doing it to make it more sensible to people in this body. It is truly remarkable that Washington figured out a way to reduce the amount of spending that was taking place. I know we can figure out a way to do that even smarter.

Let me get to the unpredictable point. Sometimes when people find themselves in a box canyon or in a place that is difficult, they begin doing things that are not in the interest of themselves, and certainly not in the interest of the body that they represent. What I am worried about is that while so many people have been focused on this shiny thing over here and so much of the Nation's focus has been on this shiny thing over here, what people

have not been focused on, in the way I would hope, is the gains we have made in controlling spending as a nation. What I worry about—as it looks like we are now beginning to combine the continuing resolution process with the debt ceiling—is that people forget about the tremendous gains we have made in strengthening this Nation. While I am saying this to an empty Chamber, like most of us do when we speak on the Senate floor—and I know people are busy and have other things to do—my talk today is really focused on people in the other Chamber.

I know there is a lot that is happening over there. What I am worried about is that as the leadership over there tries to cobble together 218 votes to maybe do something relevant to the continuing resolution, and at the same time do something to the debt ceiling, that somehow or other—because we are in this boxed canyon that was very predictable—they deal away what we have gained.

What I hope we will do on this side—and to all of those—and there are many—on the other side who have fought so hard to try to get the momentum going so we will save our country from huge deficits down the road and do what we can to make sure we leave this country a better place for young people like these interns and pages here on the floor—of the aisle is keep our focus on the fact that whenever negotiations take place around a debt ceiling, they traditionally and always have been about making sure we are trying to do those things to keep us from having more debt down the road. We need to keep our eyes focused on the reforms that are necessary to keep that process going.

To be candid—and this is the first time I have said this publicly—to look at a continuing resolution at $988 billion—I'm sorry. As it now is, the law says we would be spending—beginning a couple of days ago in this new year—at $967 billion. I know the discussions here on the floor have been: Well, in 6 weeks the sequester—by the way, the sequester is that mechanism that was put in place during the Budget Control Act to continue to put downward pressure on spending—will kick in according to all of the discussions that have taken place.

I think most of us who have fought hard to try to save our Nation from these mounting deficits down the road were a little disappointed that we would be looking at extending last year's spending for 6 weeks, and really not taking ourselves down to $967 billion. I realize what has happened. But here is my point to the other side of the building, the House: Whatever you have to do to cobble together 218 votes to pass a bill over there relative to maybe the CR and the debt ceiling, please do not negotiate away the hard-won gains we were able to put in place to reduce spending and help make our country stronger for the young people like those sitting in front of me. That is my message.

We are in a place that is very predictable. The outcome is unpredictable, but what I hope the outcome will be is an outcome that causes us not only not to deal away the gains that have been put in place, but to maybe put in place mandatory reforms that we all know need to occur to make this country stronger. There is tremendous bipartisan support.

In April the President laid out a budget that had a number of mandatory reforms that he was in agreement with. So what I hope will happen is we will keep the discretionary levels at levels we have already agreed to and we will take up some of those mandatory reforms that the President has already said he thinks are in the interest of our Nation and use those to help us raise the debt ceiling. As a result, we will have an outcome that causes this country to be stronger, causes this economy to grow, and over time causes us to continue to be able to honor the commitments we have made around the world.

With that I note absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The assistant legislative clerk proceeded to call the roll.

The PRESIDING OFFICER (Ms. BALDWIN). The Senator from Kansas.

Mr. MORAN. Madam President, I ask unanimous consent the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MORAN. Madam President, I had a great honor this morning, and it will change the nature of the remarks I intended to make on the Senate floor.

I just returned from the World War II Memorial. We had a group of 90 World War II veterans who flew here on an Honor Air flight. Honor Air is a national program. The funds for it are raised by friends, neighbors, and community individuals to help bring their World War II veterans to the Nation's Capital.

I have probably visited the World War II Memorial dozens of times—maybe 40 or 50. I visit it every time there is an Honor Air flight from my home State and I am in Washington, DC, I like to be there to say: Welcome and thank you. It is an honor to have you at the memorial that was built for you.

I visited the World War II Memorial. It is especially meaningful to me personally. My dad is a World War II veteran. My dad has been on the Honor Air flight. My dad will be 98 in November.

A few days before the World War II Memorial opened, I walked down there—I was a House Member then, not a Senator—and got a glimpse of what it was going to be like. It is a wonderful place and it reminds us of many things. That day, I stepped away from the memorial and used my cell phone to call my dad at home in Plainville, KS. I was fortunate I got the answering machine, because these are difficult things to tell your parents. So I said: Dad, I am at the World War II Memorial. Thank you for your service to our country. I respect you and I love you. It was great to be able to say that to an answering machine instead of to your own parent.

My dad actually one-upped me. A few moments later my cell phone rang and he said: Gerald, I couldn't understand what you said.

So I repeated it in person.

The great thing about the memorial is it causes us to reflect and say things and express ourselves in ways that we otherwise would never do. So that memorial, as do others that honor our service men and women, is one that calls us to say we thank you for your service, we respect you, we love you. That was my experience again this morning.

Again, I try to be there every time a group of veterans comes from Kansas, and I was hoping today wouldn't be any different. With the shutdown of our government, with the funding on hold for the National Parks, there was some concern about whether these veterans would be able to actually get to the memorial. It all worked fine. I appreciate the way the morning's events transpired and there was no confrontation and no one wanted to deny those veterans their chance to visit their memorial for the first time.

In addition to those sentiments about these individual veterans, I think what may be of value as we approach today and tomorrow and try to find the solutions that are necessary to solve the circumstance we find ourselves in is a recognition that our veterans—I have had this thought every time I have walked to the Vietnam Wall or to the Korean War Memorial and now to this newer memorial, the World War II Memorial—not a single person represented on that wall or memorialized in the World War II Memorial or the Korean War Memorial, not one of them—I cannot imagine that a single one of them—volunteered or was drafted for purposes of a fight between Republicans and Democrats. No one went to serve our country, no one volunteered to serve our country because they believed in Republicans or they believed in Democrats. Knowing veterans as I do, my view is they answered the call to duty. They were willing to serve because they believed in America. They believed in the United States and our principles and the freedoms and liberties it provides, and they knew their service would make a difference in the lives of their kids and grandkids. They knew their service would help make America a better place for everyone, but certainly for people they knew—their family members.

I hope I can portray to my colleagues here in the Senate and here in this Capitol building and down Pennsylvania Avenue that the battles we engage in need to be a lot less about Republicans and Democrats and much

more about what is good for the country. We ought to use the veterans we met with this morning and those who are memorialized on the National Mall in every circumstance to remind ourselves that there is a higher calling to what we do in our Nation's Capital. There is something more important than political skirmishes.

I don't say this in any Pollyanna way. I don't say it in a way that doesn't acknowledge partisan differences. I always assumed and believed that America sent a variety of people to Washington, DC, to represent their interests and my State of Kansas will probably send somebody different than some other State. We all come here with a philosophy, a background of the way we grew up, the way we think about things, the instructions our constituents have given us, and all of that is reflected in the way we vote, the issues we pursue, the priorities we have. So it is not that we are all supposed to agree, but surely there ought to be a recognition that when there is disagreement, as there often is, there is a desire, just as our service men and women had to serve the country, much more important than the desire to serve our political party.

Today's trip to the World War II Memorial, while it is a common experience for me, was especially useful and meaningful because it happened at a time when these veterans came not knowing whether they would be able to gain entry to the memorial. Being there to encourage them and seeing them welcomed and greeted was important but, perhaps equally as important, it served as a reminder to me that what we do in the Senate is motivated by the best of intentions and the greatest of goals; the idea that America is a special place and we who serve here have a special responsibility. We have a chance to try to do something good for the country.

One of the things that has always inspired and pleased me about Kansans—and I assume it is true elsewhere—most of the conversations I have with folks back home are a lot less about what they want me to do for them but more about what decisions they want me to make, to make certain their kids and grandkids have a better life. There is something very great about how we have an interest—as human beings, as parents—in the well-being of the next generation and not just the well-being of ourselves. So my efforts in trying to find resolution to the circumstance we find ourselves in is strengthened, the resolve I have to try to work with others here in the Senate is one that is highlighted by my experience this morning at the National Mall.

I think about where we are and where we need to go. Again, having decried the high partisanship nature of this place, I don't want to detract from that, but we need to be able to have leaders who are willing to have discussions, conversations, and a coming together. It is true of Republicans and it is true of Democrats and it is certainly true of whoever is the President of the United States. We need to make certain we have the ability to recognize that not all of us agree on everything, but with the efforts we make to find a solution to a problem, there is a coming together. It seems to me we have now gotten ourselves in this entrenched position. And while I was pleased moments ago to learn that our President has called congressional leaders to the White House, it is disturbing to me that the message is: But we are not negotiating. I am not certain what the purpose of the White House visit will be. I hope it results in movement, in success.

It is my understanding my colleagues on the Democratic side of the aisle have agreed this morning to ''not negotiate.'' All I know about that is what I have read in the press. I don't—again, in an attempt to make certain this doesn't sound partisan and detract from what I was attempting to convey moments ago, we need to make certain Republicans understand we can make progress in the positions we hold even without getting everything we want.

So this experience I described of being a Senator—a Member of this great deliberative body—hasn't been my experience in the short time I have been a Member of the Senate. The idea that we can't negotiate seems to me to be contrary to the purpose of this historic body.

I hope the attitude and approach changes and every Senator recognizes it is not an all-or-nothing proposition. It is an opportunity for us to resolve differences and each find some satisfaction in moving in a direction or preserving the status quo, if that is one's position; that because America is a diverse place and that people care differently about different issues and have different opinions, we certainly have a responsibility to represent those views of the folks back home, but recognizing that the country doesn't always agree with us. Surely, there is that common ground, that opportunity to find solutions.

My call is for leadership—and by leadership I mean broadly all 100 of us; not leadership in the sense of someone who occupies a position of leadership beyond being a Member of the Senate but all of us—to find the leadership to find the necessary resolve to solve our country's problems.

The Affordable Care Act is a very controversial piece of legislation. It has been said here on the Senate floor: It is the law, it is not negotiable. That position doesn't make sense to me. In fact, the President has delayed, excluded, found exemptions for what is the law. So, surely, if the President can, for example, delay the implementation of the employer mandate, it is not outside of the realm—in fact, I would say it is the constitutional responsibility of Congress—to have the debate, discussion, and consideration of whether to delay the individual mandate. It is the law of the land, but if the President can make changes to the law of the land, surely the body created by article I, the legislative branch, has that opportunity to do so as well. So it ought not be nonnegotiable.

It is time for the Senate to function. It is time for us as individual Senators to provide the leadership to resolve our problems.

In my view, we desperately need leadership from the President. While I have serious policy and philosophical disagreements with President Obama, my greatest complaint about his Presidency is his lack of leadership. We need somebody to rally us, to come together and find solutions to those problems, to better resolve our differences. Again, I don't want to detract from the observations about how partisan this place has become by talking about President Obama. In this case, he is a Democrat and I am a Republican, but regardless of who is the occupant of the White House, in order for the Congress to resolve difficult issues, it takes the leadership of a President.

My call is, as it was earlier to my colleagues in the Senate to provide leadership—I hope the President, in his meeting with the leadership of the Senate and House today, will provide the leadership necessary to help us move in the right direction and step back from the statement that while we are meeting, nothing is negotiable.

I appreciate the opportunity to address the Senate and I yield the floor.

The PRESIDING OFFICER. The Senator from West Virginia.

Mr. MANCHIN. First, I wish to apologize to the people of West Virginia. I am embarrassed and ashamed as a Senator and Member of Congress by how we are acting. I have been answering phones in my office. They are upset. I said: Well, you are not as upset as I am. I have a front-row seat, and it is not pretty.

This is not what we were sent here to do. It is not what I signed up for. It is not why I asked the people in West Virginia to allow me to represent what I consider to be the greatest State in the Nation, and I am sure each Senator feels the same way about their State and its wonderful people. I have always looked at public service as an opportunity to fix problems, to make life better, to be able to use the wisdom and skills we have obtained through our experiences in life and watching people and the compassion we have for people to try to make it better.

Shutting down government is simply unacceptable. I don't care what way a person looks at this, it is unacceptable.

This is the first time in 17 years that our government is not open for business—the first time in 17 years we are not open. This is self-inflicted. This did not happen by any outside forces. This has all been self-inflicted. It not only hurts the people of West Virginia deeply, it hurts people all over this country, and they are feeling the effects. This is only the second day, but it is 2 days too long.

Most of you know I am pretty moderate. I am very conservative on fiscal issues. This is how we were raised. We were expected to pay our bills, to take care of our debts, and take care of ourselves and our families. So I have watched that very carefully.

When I became Governor, the first thing I did was I tried to put our financial house in order in West Virginia so that basically we could take care of our values. That was our priority, based on what we wanted—our children to have opportunities. We never cut any services during the recession. We took care of our seniors with the dignity and respect and pride they should have. We took care of our veterans. We could not be everything to everybody, but we really watched our dollars and got our financial house in order. So I look at it from that standpoint, where I come from, as a proud West Virginia Democrat, but I am also very compassionate on social issues. Watching my grandparents and watching my family in the little town of Farmington, WV, where I grew up, people expected you to do things. They expected you to really chip in and help people, but they expected you to help yourself also, and they expected you to take care of those who could not, the less fortunate. I have always taken that with me in every aspect of public service.

I think I am reasonable and willing to compromise and work with anybody on any issue. I have always put my State's interests ahead of my party politics. I do not make any excuses. I really believe I am an absolutely privileged person to be living in the greatest country on Earth and to be a member of a great family in the great State of West Virginia. But I am an American, I am a West Virginian, and then I am a Democrat in West Virginia, and I have dear friends who are Republicans from West Virginia and from all over the country.

So when I looked at the cause of this problem we have right now, it is about finances, strictly about finances. Can we continue to pay? I also looked at the way I felt Democrats truly looked at this. They said: Fine, we will agree to the $986 billion number—$986 billion. That was the Republicans' request, to keep that spending level. The Democrats would have loved to have $1.058 trillion. They reduced it $90 billion. To me, that was a good compromise. We can live with that $986 billion number. We have to tighten our belts a little bit, but we are good at that in West Virginia. And we did it.

Then, all of a sudden, the Affordable Care Act—or ObamaCare, as people have referred to it—becomes the issue. There are a lot of things in that piece of legislation that I do not agree with. I do not know how I would have voted if I had been here. I would have tried to make what I would have thought were constructive changes. But do you know what. It is the law. And I said: I am in a mode that I would call for a reform, repair, and then repeal parts of it we cannot fix. I do not know that yet. We have to get in there and do it.

I am probably part of the problem and caused some of this because I made a statement. We were talking to some people, and they asked me: What do you think is going to happen?

I said: Well, for my colleagues and friends on the other side of the aisle—my Republican friends—I would think they would look, and if they really want to talk about health care, can it be extended for 1 year before it takes effect as the law.

I did not mean to postpone it. I did not mean to stop and don't start it until next year. I meant the fines and the penalties.

Think about this. I am very much opposed to the individual mandate, but I understand it is part of the process. But I would have thought, why wouldn't we have a transition year?

So the law took effect as of yesterday. It has. We have people trying to find the best opportunity they have. In my little State, we do not have a lot of options, so I want to make sure the people who have good insurance are somehow able to keep that. There has to be a way we can work through that. I want to make sure the people who have no insurance and have never been able to buy insurance can now be able to afford it. I want to make sure of that. I want to make sure people who had a preexisting condition or had a child who was born with a condition are able to keep the insurance they now have that they could not have before. I want to make sure that basically the senior citizens in West Virginia, who basically are filling the doughnut hole out of their pockets, which they cannot afford, are taken care of. They can go get an exam on an annual basis and not have to pay a copayment from their Medicare. Those are all good things, and I know my good friends on the Republican side feel the same way about some of this. Why would you want to throw the baby out with the bathwater when all you have to do is maybe change the water every now and then and we have a little clean water we can bathe the baby in again? These are sensible solutions, like how I was raised, looking at how do you fix it?

I can assure you this: I have never fixed a problem by calling somebody else a name. I have never chastised somebody for their beliefs. I really have not. I have tried to think, OK, if I were in their shoes, how could we fix this?

When I was Governor, I used to sit down with people on the opposite side and think, OK, in the profession we are in—public service—how do I allow them to go home to save face? How do I allow them to have some comfort that they are going to be able to bring constructive ideas to the table that basically make it better? I have always thought of that.

So you are not going to hear me saying that we are right and they are wrong. In this case here, I will say: Please, don't have this self-inflicted pain on the people of my State of West Virginia or your State or this country. There could be a time when we might not be able to stop what might be happening. The market forces might push us in a direction that we cannot control. This is something we can control, and all we are asking for—please, let government continue. If you want to talk about a big, grand plan, which I hope we do, which is fixing the financial condition, getting our financial house in order, I have been a big supporter of Bowles-Simpson. It is the only bipartisan package that has been on the table since I have been here. There are an awful lot of things of which people say: Well, I don't like this, I don't like that. None of them have said it is not what needs to be done. It is a three-pronged approach. That is the big fix we have talked about. But we are not talking about any of that. We are talking about things we do not like. We are talking about people we do not like. We are calling people names. And it just does not fix things. It does not make it right. So you will hear me continue to talk about the grand bargain. This is the time, between now and the debt ceiling.

I will say this about the debt ceiling: Raising the debt does not fix the debt. We need to have a path to fix it. We should not be going through this political fight every 3, 6 months. This is the fifth time I have been in a debt ceiling debate. How many times have we voted on the so-called ObamaCare? It is ridiculous to continue to fight the same fight over and over.

I hope we are in a reform or repair, and then repeal when you cannot fix it. When you have given it your all for the betterment of your country and it is just not fixable or doable, then you change. We have not gotten there yet. We have all naysayers and people basically who just do not want change. I have too many people who need the services of government. I have too many people who depend on it—not that I believe people should be dependent. I hope people would be independent. But government is so intertwined in all of our lives, and to just say you want to stop it all is wrong.

So I would ask my dear friends and my colleagues on the Republican side to please think about a continuing resolution. Please. We have come to the agreement on the number that you wanted of $986 billion. Health care—if you wanted to bring up the Keystone Pipeline, I am a total supporter of the Keystone Pipeline for energy independence. I am an ''all energy'' person—use whatever we have. It is not the place for it. As much as I would like to see it, it is not the place for me to draw the line to inflict so much pain on so many Americans, so many West Virginians, just because of one issue I like or do not like. There is a time for that. There will be a time for this health

care bill, ObamaCare. It will either succeed or fail on its own. But we ought to try to make it better if we can. If we cannot, then come to the conclusion we cannot, but do not shut down government because you do not think it will work—or maybe you are afraid it will work. That could be it too.

With all that being said, I say to my friends, you will never hear me say anything derogatory about you. You can always reach across the aisle to me. I am always going to sit down and talk to you. I am willing to compromise and work on any issue that betters the position we have, that betters the quality of life, that creates opportunities, that makes us the strongest and most powerful Nation on Earth. I will continue to fight for that. But I am asking you for this time, do not allow this self-inflicted pain to continue. This is not fair to my State, it is not fair to the people of West Virginia, it is not fair to the Presiding Officer's State of Wisconsin or to anybody in this great country of ours.

With that, Madam President, I say thank you for allowing me to say what has been on my mind. I am a proud American, and it is about this country first, and it is always going to be about this country first. If the United States of America does well, I will guarantee you the great State of West Virginia is going to be just great, we are going to do fine. But we have to work together and put our priorities in place.

I yield the floor.

The PRESIDING OFFICER. The Senator from Pennsylvania.

Mr. CASEY. Madam President, first of all, I want to commend the words of my colleague from West Virginia about, first of all, the frustration that so many Americans feel that we share and also his words about trying to come to a resolution. I think it bears repeating.

The main purpose of my remarks today will be focused, really, on one central theme; that is, in the House right now Speaker BOEHNER could put a bill on the floor that would open the government after a House vote. I am holding in my hand the bill that would do that. This is the bill that passed on Friday. It is amendment No. 1974 to H.J. Res. 59. This is the bill that, if the Speaker were to put it on the floor, would pass overwhelmingly. But you would get not just one side of the aisle, it would be a bipartisan vote to pass that bill, and upon passage, then, of course, getting the bill to the President for signature. So within however long it takes for the House to complete a vote—a rule and maybe two votes—and then getting it to the President, this could be over. And it should be over.

We should open the government. This is the way to do it—a bill that does not have anything attached to it. It just funds the government. I would hope the Speaker at long last would put that bill on the floor. We are hearing voices that are bipartisan today asking for the Speaker to do just that. We have also heard a lot of talk about negotiation and compromise, and it is good that people are talking about that. But I hope some of our Republican friends talk about it with a degree of faithfulness to the facts or add adherence to the facts about what has happened over the last couple of months.

In an effort to reach an agreement that would avoid the shutdown—going back now a number of weeks and even months—Democrats here in the Senate and in the House as well accepted some of the very difficult so-called sequestration cuts. What do I mean by that? I mean the across-the-board indiscriminate cuts that went into effect in 2013 and were, unfortunately, a carryover from a battle and a fight in the summer of 2011. So we have accepted those difficult cuts in this budget negotiation in the so-called continuing resolution—meaning the bill that would keep the government operating, the one I just held up—as a compromise. This happened a while back.

I mentioned that last Friday, September 27, the Senate passed the so-called clean continuing resolution, which is just a fancy way of saying a budget bill without add-ons—nothing about any other issue, just a bill to fund the government. That bill—the one I referred to earlier that passed the Senate on the 27th and is sitting over in the House—would open the government and continue funding for the government until the middle of November so we get past this crisis, we do not have this as a problem in the next debate about paying our bills, and we can have a big debate in November about making sure we can pay for government operations.

What we should do as well, as we are debating in November—I hope we can get there, but as we are debating that, we should figure out a way—this is a bipartisan concern—to shut off, to turn off at least for 2 years the across-the-board cuts with which I think both parties have real disagreement. But the key is passing this in the House, this measure that will end the crisis, open the government.

When we passed it here in the Senate, we accepted those levels of spending, which are significantly less than Democrats would have hoped for, would have wanted. We accepted those despite the fact that we reversed the sequester in the budget we passed this spring. So we had a long budget debate here and, some might remember, last spring voted well into the early morning hours. I think our last vote was at 4 or 5 in the morning.

That was a higher number than we have agreed to already. So Democrats have compromised substantially already on the spending level. That does not seem to get reported very often. The bill that passed the Senate last Friday is a $70 billion cut from the last fiscal year, 2013, the levels that were enacted spending levels—enacted fiscal year 2013 before the across-the-board cuts went into effect.

To restate, this legislation which is in the House right now and they could pass with overwhelming bipartisan support, and it would open the government and end this crisis—they could do it this afternoon. They could do it this evening. They could do it without a lot of trouble if they put this bill on the floor. It does not mean all Republicans have to vote for it. The Speaker himself could vote against it. But putting it on the floor and having an up-or-down vote I think would be good for everyone.

It would end this crisis, open the government, and then we could begin to work on what I think the American people want us working on. They expect us to keep the government open. That is fundamental. But I think they expect us as well to work on strategies to create jobs or at least put into effect strategies that will lead to job creation.

I will say it again: This bill that is sitting in the House is not just a bill that will open the government, it will have overwhelming bipartisan support there. The bill is $70 billion less than what we wanted. To say that is a compromise is an understatement. On the main issue before us, how do you fund the government, how much in terms of dollars do you direct toward the operations of the government, we have already compromised a long time ago to reduce that number by $70 billion.

So when our friends are saying Democrats are not negotiating or compromising, my goodness, we compromised on day 1. They prevailed in that debate. We decided it is better to compromise in that number and keep the government operating and move the process along in terms of the budget, rather than shutting the government down to get our way.

Some Democrats may have said to us: You know what. You should have taken this part and not accepted those cuts, and maybe even take it as far as some Republicans want to take the debate on health care and shut the government down. We said: That does not make any sense. It is bad for the economy. It is bad for vulnerable people. It is bad for national security and a whole host of other reasons which I will mention in a minute, to shut down the government.

So from the beginning, we were not only willing to compromise and negotiate, we have already done it in a very substantial way on the core issue, which is the budget and the number. For them to say: Well, we are not going to insist that the government stay open, and then they want to have some negotiation about that does not make a lot of sense, does it, when you consider the compromises we have already made?

I think the fundamental thing the American people want us to do is open the government. The key to opening the government is not only sitting in

the House, the key is already in the lock. All the Speaker has to do is turn it ever so slightly—turn that key. The turning of the key is this bill. If this bill goes on the floor of the House of Representatives today, tomorrow morning, tomorrow afternoon, tonight, whenever, it will pass with overwhelming bipartisan support.

I will come back to that in a moment. But I think the question of compromise is, frankly, weighted to our side. I think we have already made a substantial and significant compromise in the negotiation, and that was done a long time ago. I think at this point, when it comes to the question, some Members of the House have tried to do, to bring us to this point where there is a shutdown, I think their actions are, in a word, irresponsible. I think a lot of Americans expect they would act in a more responsible manner. By pushing an agenda that has now led to a government shutdown, in addition to being irresponsible or a dereliction of their duty, is also reckless.

This is a reckless step to take just to make a point about health care, about anything else. There are a lot of us who would like to have our arguments litigated or debated in a way that gets a lot of attention paid to it. But to take it this far, where you are literally willing to take an action which leads, as this has done, to a government shutdown, is both irresponsible and reckless.

I think we are just beginning now, in these hours—and now unfortunately we are into the second day—we are now just beginning to understand the impact this is having on Americans. But in the case of Pennsylvania, we are just beginning to hear the impact on individual Pennsylvanians.

This morning I learned that Bushkill Outreach, a food pantry located in the Delaware Water Gap Recreational Area, is closed because it is on Federal land operated by the National Park Service.

When you close a national park area or a national park itself, you are not just impacting what happens there and the opportunity for people to tour a national park or to recreate, you are actually having an adverse impact, in this case on a food pantry. This particular food pantry, Bushkill Outreach, feeds 30 families per day, amounting to 120 people per day and 1,200 people per month. Imagine that. You have a group of Members of Congress in Washington who believe their ideological point of view on one issue is so compelling and so important to the country that they are willing to shut the government down and deny those 30 families the opportunity to have the benefit of a food pantry in a still tough economy.

We have had, fortunately, a lot of job growth over the last several years. We are happy about that. We are happy that the economy is moving in the right direction on job growth. But it is not moving fast enough for Pennsylvania. In this sense, we have hovered around half a million people for too long. It was well above 500,000 people. Fortunately, it came down below half a million. But it has begun to creep up again. Once again, Pennsylvania has an unemployment number which is just at about 501,000 people.

In my home area, northeastern Pennsylvania, we saw data today—unfortunately in my home county, Lackawanna County, and the county next door, Luzerne County, at least one, maybe two more, in that region of the State, including the region where Bushkill Outreach is—the unemployment rate in several of those counties is more than 9 percent.

So there a food pantry is not just a place for people who are particularly vulnerable; those are people who have been vulnerable, because of job loss, because of the economy. The shutdown has two adverse impacts on those families. It has a direct impact on their ability to access food every day. That is horrific enough. Talk about direct and substantial pain, physical pain on an individual or family. But it also has another impact when they shut the government down, certainly over a long period of time for sure—and this is irrefutable—you injure the national economy. When you injure the national economy, you make it less likely that those people who have to access food banks can actually get a job in northeastern Pennsylvania or anywhere else in the country.

This is about real life. This is not some Washington theoretical debate. There are thousands of reasons to open up the government. I say to the Speaker of the House: Get this bill on the floor, and the food pantry will no longer be adversely impacted. Our national security will no longer be adversely impacted if we can open the government up again. A lot of the folks who access this food bank are on fixed incomes, so it has a detrimental effect on them.

How about national security? The shutdown is having a direct and substantial impact on national security. Our colleague Senator FEINSTEIN was on the floor yesterday and spoke of the critical impact the shutdown is having on the intelligence community. As many Americans know, intelligence gathering is not just the CIA, it is a whole range of agencies that gather intelligence which arms us with information to protect ourselves and to be able to protect ourselves from terrorist threats.

In the intelligence community, meaning all of the Federal agencies that gather intelligence to protect us, 72 percent of the civilian work force is furloughed. It is hard to comprehend the adverse impact of that. This means the bulk of Federal employees who gather critical intelligence and work with law enforcement agencies are not working during the shutdown.

You have to ask yourself at this point—if you are a Member of the House or the Senate who believes that the point you want to make on health care or anything else that has led to this shutdown—do you really want to maintain that position, that your point is so important and so compelling that you are willing to allow a shutdown to take place and to continue and allow the number I read, 72 percent of the civilian workforce in the intelligence community, to be furloughed? It puts at risk our soldiers, the fighting men and women on battlefields around the world or in danger zones, it puts at risk our diplomatic personnel, and at some level at some point in time puts Americans at risk because you cannot stop terrorism. You cannot arm yourself against terrorist attacks unless you have information. You do not get the information unless you have the full means of intelligence gathering. So I hope folks would ask themselves: Is my ideological point of view on this or that issue important enough that we should have a government shutdown in place which injures our ability in gathering intelligence for national security? I hope people would ask themselves that question and see what the answer would be.

I have also heard, when you tell people about the furloughs, I have heard some Republicans—not all, a few—make the argument that somehow the President is making the decision about furloughs that adversely impact national security and he is making a mistake when he does that, he or his administration, or that maybe Members of Congress are somehow part of the decision on furloughs that would adversely impact national security.

Look, every Member of Congress is exposed to intelligence. Every Member of Congress has an opportunity to take action on national security and intelligence. Every Member of Congress has an opportunity to say things about decisions that impact national security. But I would say this to my Republican friends: If the charge is the President and his administration are making decisions about furloughs that somehow compromise our national security, if you are going to assert that—you are free to do it; it is a free country—but if you are going to assert that, you should have proof. If you are going to make a charge like that against any President, or, frankly, any Member of Congress, Democrat or Republican, you have got to have proof there. So I would hope the media—when someone makes that charge against the Commander in Chief, I would hope that Member of Congress would have in their hand the proof, a document, a statement, something they can put on the table and say that is the proof. Because if you are going make a charge which is that serious, in such a grave matter of national security, you have got to prove it. If you cannot prove it, you should keep your mouth shut and not make that charge. So I hope when people say somehow this furlough number—I have heard people say: That is support personnel in the intel community; you really do not need those

folks. If you are going to contest the number and say our national security is okay during the furlough, during a shutdown, you have got to prove it.

A lot of things people say in Washington are part of the political debate, but if one is going to accuse someone of taking an action that would undermine national security, one should have to prove it.

Why do I say that? I spent 6½ years on the Foreign Relations Committee. I have traveled to the Middle East several times, to Pakistan three times, to Afghanistan three times, and to Iraq twice. In regions of the world where our national security interests are directly at stake, we have personnel—either uniformed or diplomatic personnel. I have seen directly how much people can be at risk at those postings in embassies, consulates, and how dependent they are on having marines or literally soldiers to protect the embassy or a consulate, but how dependent they are on good intelligence.

There are a lot of reasons to open the government. There are a lot of reasons for the House to vote on this today and open the government, but there are few as compelling as national security and intelligence.

I wish to go through a list of impacts that the shutdown is having.

We know that the shutdown has an impact on small businesses. Why do we know that? Well, the SBA on a weekly basis provides help to many small businesses across the country. We know that more than 1,000 businesses a week could see their critical financial support deferred until the government opens again. It is bad for small business for the government to be shut down.

A shutdown would end nutrition support for pregnant women and children, the Women, Infants and Children Program, WIC. WIC is the acronym we frequently hear. It is a great program. In the event of a shutdown such as we are living through now, WIC will only be able to continue serving participants for 1 week. We are in day 2 of the shutdown. After 1 week, they would have to stop serving participants.

What are the numbers here? The basic numbers from fiscal year 2012 are that the average monthly participation totaled more than 8.9 million people. Of that 8.9 million, 4.7 million are children and 2.1 million are infants. This is another good reason to pass this bill in the House today with a quick vote. It would be overwhelmingly bipartisan. In addition to national security and intelligence, this would make sure that the WIC Program will serve people who need it.

A government shutdown would compromise public health. Why do I say that? In the shutdown, 70 percent of NIH employees would be furloughed. This is the National Institutes of Health which does research on all kinds of diseases and ailments. It is the envy of the world. No other country in the world has anything equivalent to the National Institutes of Health, but a shutdown will lead to the furlough of 70 percent of their employees. That is another reason.

As we heard on the news this morning, there is a lot of reporting about the Centers for Disease Control. It is also adversely affected in the shutdown.

A shutdown also compromises school readiness for young children. A government shutdown delays funding for 22 Head Start providers across the country, jeopardizing early childhood education care for the 18,000 children and families those programs serve. We are speaking about 22 providers for Head Start not being able to provide services for 18,000 children and families.

Finally, a shutdown endangers benefits owed to our veterans. The Veterans' Administration will run out of money to pay mandatory benefits for existing beneficiaries by the end of this month. I know we have heard people saying: Well, this check or that check will not be stopped. Ultimately, there is going to be a direct impact if the shutdown is continuous.

I would say to our friends in the House they can take action right now to prevent this from happening. How may they do that? It is very simple. All they need to do is take the bill sitting there and put it on floor. A lot of people can vote against it, but the vote for it would be overwhelming.

If Speaker BOEHNER puts that on the floor today, tonight or tomorrow—he should do it tonight—we can be beyond this. According to a new report in the National Review there are potentially more than 100 House Republicans who would be open to a so-called clean CR. When we hear that, this is a clean bill to fund the government. It doesn't have anything attached to it. It includes the $70 billion compromise Democrats have already agreed to by reducing the overall cost of the funding of the government.

I hope we could end the shutdown today by having the House adopt this legislation. I urge the Speaker to put the bill on floor for a vote in the House today.

I wish to conclude with some separate remarks related to the shutdown, but they are also related, unfortunately, to a lot of other budget items. I wanted to do this the other day and want to put it on the record.

In addition to everything else I have spoken about, during the shutdown over 30,000 correctional officers in our Federal prisons report to work not knowing when they will receive their next paycheck. These are officers who put their lives at risk every day and deserve to know when they will be paid. During the last shutdown in the midnineties, some guards went well over a month without being paid. These men and women are literally putting their lives on the line every day. Yesterday, I was scheduled to be at an event with a number of families who have been directly impacted by the violence that is perpetrated against corrections officers, but I couldn't be there because it was at the same time as our 9:30 vote on the budget trying to reverse the shutdown.

I was supposed to meet with Don and Jean Williams, the parents of Eric Williams, who lost his life as a corrections officer. Officer Williams lost his life performing his duties at a U.S. penitentiary in northeastern Pennsylvania, my home area. I was able to meet his parents briefly at his viewing. That is real life for the Williams family.

Unfortunately, they were not the only family represented at the event yesterday. There were several other families who had lost loved ones in that way.

I am not sure I had a full appreciation for this before I was elected to the Senate. We have corrections officers in Pennsylvania in our State system. I had some exposure to their work, but it wasn't until I spent a lot of time talking to corrections officers at the Federal level that I learned the gravity of this problem. It is a problem with multiple elements.

One, of course, is an erosion of support for corrections officers over time, so that over time the ratio of one corrections officer to inmates has grown. To say they have grown to dangerous proportions is an understatement.

One of the reasons Officer Williams lost his life is because often these officers are in situations where they are outnumbered, sometimes by hundreds of inmates. They, of course, can't carry a weapon. The tragedy officer Eric Williams suffered, and the tragedy others have suffered, serves as a stark reminder of the risks that corrections officers and staff face every day.

Budget cuts over time, with across-the-board-cuts from sequestration, plus a shutdown leads to a very dangerous situation for corrections officers. We need to address their concerns and these issues as part of this overall debate about the budget.

In conclusion, I reiterate that I hope the House will take up the bill that can end this crisis and open the government.

I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. THUNE. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. THUNE. Madam President, today we continue to find ourselves in the unfortunate position of a partial government shutdown. Following a veto threat from the President, last night Democrats in the House of Representatives killed three spending bills that would have funded parks and monuments, veterans programs, and the DC government. Senate Democrats have already rejected four House-passed proposals that would have provided Americans with relief from ObamaCare while

ensuring that government operations continued. Senate Democrats even rejected one proposal that would have sent the two Chambers to conference—the House and Senate—to work out some sort of a solution to this standoff we find ourselves in, but they haven't even been willing to talk. In fact, when that request from the House came to the Senate to create a conference that would allow the House and Senate to come together to try to find a solution, it was tabled. It was soundly rejected—tabled—by the Democrats here in the Senate.

So we are continuing in this holding pattern as the House continues to send proposals over and they continue to be rejected by the Senate, with Senate Democrats not even wanting to sit down and talk with the House about how we might resolve this.

I am happy to hear the President has, after a week of essentially ignoring congressional Republicans, called the leaders to the White House tonight. I am a little confused, however, about the purpose of the meeting, as the White House continues to say they are not going to negotiate. I hope the President does change his mind on that, that he is evolving on it, and that he will at this meeting express a willingness to work with Republicans because it really is important for the President to be engaged in this process.

I can't imagine a scenario where we have consequences such as these, with a continuing funding resolution still not approved, a partial government shutdown, a debt limit coming up in the middle of the month, and the President essentially saying: I am not going to negotiate. I am not going to negotiate on any of this.

I think that is a position that is completely unreasonable, and I think the American people find it to be completely unreasonable as well.

In the meantime, we have an opportunity now to address some of the concerns that have been raised by people about various parts of our government that as a result of this unnecessary shutdown are not open. So Republicans continue to try to work to open government and at the same time to provide ObamaCare fairness for all.

I have said this before, but I get the sense some of our colleagues on the Democratic side and the President seem to be content with shutting down the government. Well, we Republicans are not. We are consistently trying to come up with solutions.

The House of Representatives will be meeting today, and they are going to be voting again on some of the same proposals that were voted down last night by House Democrats. They are commonsense spending bills that would ensure that important functions of government can resume. These bills would ensure that benefits for our Nation's veterans continue uninterrupted, they would allow our members of the National Guard and Reserve to be paid, and they would provide funding for the National Institutes of Health to ensure this senseless shutdown does not prevent patients from receiving lifesaving treatments.

I will explain briefly what some of these bills would do that are going to be coming over later today from the House of Representatives to the Senate, where, at least to date, none of the proposals that have been advanced by the House of Representatives have been accepted here in the Senate. They have been tabled by the majority leader. That is unfortunate because it is the essence of what the American people believe we ought to be doing, which is working together, coming together to find a solution to some of these big problems. Unfortunately, as I said before, when the request came over to go to conference with the House, that was tabled as well. So there has been no discussion, no willingness to talk, no willingness to think and cooperate in a way that would help us get the fundamental operations of government up and running again.

Anyway, these bills are going to come over from the House today, and they follow, as I said, the same track they tried to get approved last night. One deals with the availability through the annual appropriations process of the Department of Veterans Affairs to continue to serve veterans—namely, veterans' disability payments, the GI bill, education and training, and VA home loans—under the same conditions that were in effect at the end of the just-completed fiscal year. In other words, it would take all those programs that benefit veterans and make sure they continue uninterrupted and are funded just as they were at the end of the fiscal year until such time as Congress can come up with a longer term solution. That might be an appropriations bill—which, frankly, should have been passed much earlier this year and wasn't because none of the appropriations bills were moved here in the Senate—or another temporary funding measure, such as a continuing resolution, that is put forward. A similar proposal was introduced by a number of Senate Democrats. So when it comes over from the House of Representatives today, I hope we will have broad bipartisan support in the Senate for making sure veterans programs are continued and are funded.

There is also going to be a bill coming over that deals with national parks and museums, and it would provide immediate funding for National Park Service operations, the Smithsonian, the National Gallery of Art, and the U.S. Holocaust Museum at the same rate and under the same conditions as were in effect at the end of the just-completed fiscal year. So the same thing I mentioned with regard to the veterans programs—these functions of government would be funded at the same level they were at the end of the year we just completed until such time as an appropriations bill is passed or a temporary funding measure is put in place.

That was something the House voted on yesterday, and it was defeated. I shouldn't say Democrats universally defeated it, but almost so when that measure was brought up yesterday. Hopefully, today they will get a different outcome in the House. I think they will, and it will come over to the Senate.

Another bill the House will move today will provide for the immediate availability of local funds—which are subject to the control of Congress through the annual appropriations process—for the District of Columbia, again under the same conditions as were in effect at the end of the just-completed fiscal year.

Finally, there will be a bill that comes over from the House that provides funding for the pay and allowances of military personnel in the reserve component who are in active status. So it will fund the Guard and Reserve. Those funds would be made available at the same level as the just completed fiscal year until such time as Congress takes more formal action.

Finally, there will be a fifth bill coming from the House that will provide immediate funding for the National Institutes of Health at the same rate and under the same conditions as in effect at the end of the just completed fiscal year. So the important work done by the National Institutes of Health will continue—if the bill is enacted here in the Senate—and go on even in the midst of a partial shutdown.

What I am saying is Republicans are trying to address all of these concerns that we have about various elements of our government that are not functioning today because of this partial shutdown. Last night they were met with resistance in the House of Representatives and they were voted down by Democrats. We are hoping for and I think we will have a different outcome today in the House of Representatives, at which point those bills will come here to the Senate.

So if the Senate is interested in going on the record and making sure there is funding available for veterans programs, for the museums and our monuments, for our Guard and Reserve, for the National Institutes of Health, and for the District of Columbia—which is under the jurisdiction of the Congress when it comes to funding—the Senate should vote affirmatively and actually ensure that those important functions of our government are addressed and funded.

What I am simply saying is that time and time again the House of Representatives has sent to the Senate legislation—measures—that would continue to fund the government, and in earlier cases when they came over here addressed what I think the American people have said they want to see addressed in ObamaCare.

The President of the United States has granted a 1-year delay to employers in this country from the employer mandate. So essentially he gave a

delay—a waiver—to big business. The House of Representatives in one of the bills they sent to the Senate said we ought to in fairness give the same break to individuals. There is an individual mandate in the ObamaCare law that kicks in, and we ought to be able to give individuals in this country the same treatment that we give to big businesses. So as a matter of fairness that was proposed by the House of Representatives.

When that bill came over, it also included a provision that would ensure that Members of Congress and their staffs and the staffs at the President's office and in the executive branch of the government are all subject to the same law and to the same provisions—that the ObamaCare law is applied in the same way as to other Americans. So we had a 1-year delay—a temporary relief from the individual mandate—included in that, and a provision that ensured that those of us here and our staffs and members of the executive branch are treated the same way as are other Americans. That too was tabled in the Senate.

It strikes me that as we think about the impact of this law, we ought to ensure that middle-class Americans deserve the same relief that the President and Democrats here in the Senate have already given to Members of Congress and to their staffs, as well as to big businesses in this country.

We had an opportunity to do that the other night. That was rejected by the Senate. I think the question that every American ought to be asking is, Why wouldn't Democratic Senators give the same break to the American people that big businesses have received? I would again argue this is an issue of basic fairness. We think it ought to be delayed for all Americans, not just for the favored few.

There is bipartisan support for this. I mentioned before that we have a Democratic Senator in the Senate who has said a delay in the individual mandate is a very reasonable and sensible approach. I hope at some point that view will start to spread to others, and we will be able to actually provide some relief to the American people from the harmful effects of ObamaCare.

But at least while we are in this period, as this continues to be discussed and hopefully, eventually a solution reached, we ought to be protecting those Americans who are being hit by the shutdown.

When these bills come over from the House of Representatives today, I hope the Senate will pick them up quickly and act on them.

We had an example or incident yesterday where a number of World War II veterans came here to Washington, DC, as Honor Flight guests. This is an organization that brings World War II veterans here to see their monument—the World War II monument—here in Washington, and they couldn't get access to it because of the shutdown. That should be unacceptable to every American. We need to ensure that never happens again.

There was even reporting that they had made a request of the administration to be able to go there and they were turned down. I can't imagine turning down a group of World War II veterans who simply wanted to see and have access to the very memorial for which they fought and defended our country.

So those are the types of things that action taken by the Senate here could prevent, if in fact when these bills come over from the House of Representatives the Senate will act in an expeditious way, pick up those bills and pass them, so we can ensure that people have access to those types of monuments and memorials. We can ensure that veterans programs continue to be funded and operational. We can ensure the National Institutes of Health and the important work that it does continues, and we can ensure that our National Guard and Reserve also are funded through this time. It strikes me that is a very commonsense way to approach the situation in which we find ourselves today.

I hope that at the end of the day we can come to some resolution that would allow the government to be funded on a more sustainable basis. I think when we continue to do these things on a short-term basis, it is not a good way to govern a country as large as ours. We can do better. The American people deserve better. But at least, at a minimum, until we get that broader issue resolved, we ought to work and ensure that veterans and members of the Guard and Reserve, people who are visiting our country wanting to see the memorials and museums and that sort of thing have the opportunity to do that. We can do that today by picking up and passing the bills coming over from the House of Representatives.

Madam President, I yield the floor.

The PRESIDING OFFICER. The Senator from Maryland.

Mr. CARDIN. Madam President, let me review where we are.

Listening to my colleagues on both sides of the aisle talk about the effects of a government shutdown, I will admit I am pretty sensitive about this. My State of Maryland that I have the honor of representing is home to 286,000 Federal workers—124,000 furloughed today. We have 172,000 Federal workers who work in the State of Maryland. So I am very much aware of what the consequences of this government shutdown have been to our local economy. But let me review where we are, because I am one who wants to get together and get government open as quickly as possible. I hope we can reach agreements and move forward, pay our bills, get rid of sequestration, and get a budget that makes sense. But let me just review how we got to this point, because it has been 6 months since the Senate passed a budget. That is the blueprint for our committees to work.

The House passed a budget, which was different than the Senate budget. Then it was important for both sides to negotiate well before October 1 to get a budget we could agree on so we could pass the appropriations bills. But one party—and one party alone—refused to meet. That was the Republican Party. They refused to meet.

Then we got to October 1. This is not the first time in American history that Congress hasn't been able to pass appropriations bills by October 1. It happens too frequently. But what we do if we can't reach agreement is that we keep government open while we continue at last year's funding level. That is called a continuing resolution. That is what this body did. We passed a continuing resolution so the government would stay open at the funding level the Republicans wanted. We didn't want to get into that fight because of the importance of keeping government open.

Then we had the votes to pass that. We passed it here. We had the votes in the other body. But for one person—the Speaker of the House—not bringing that up for a vote in the House of Representatives where we could have had a bipartisan majority—the government shut down at midnight on September 30.

I know people say it is a Democrat speaking or a Republican speaking. So let me read from the Baltimore Sun today and what they said about the negotiations.

> It would be tempting, of course, to write that this impasse—the inability to agree on a continuing resolution to fund government past the end of the fiscal year—was the fault of Democrats and Republicans alike. But that would be like blaming the hostages for causing the perpetrator to put a gun to their heads. As President Barack Obama noted, he and Congressional Democrats put forward no agenda other than keeping the government operating temporarily at current levels.
>
> House Republicans set conditions, not Senate Democrats. It's not even clear how many in the GOP truly wanted this to happen. Conventional wisdom is that a so-called ''clean'' resolution funding government would have passed on a bipartisan vote if it had been allowed on the floor by House Speaker John Boehner—

The editorial goes on and I continue to quote.

> Do House leaders think they can push the blame on President Obama? Some have already tried, but it sounds suspiciously like shoplifters blaming store owners for having so much tempting merchandise lying about. National polls show the public isn't buying it—most Americans didn't want the government to shutter over ObamaCare, and Congressional Republicans have a double-digit lead over the White House when it comes to the public's choice for who most deserves the most blame.
>
> Even the unusual anti-government crowd can't find much comfort in this, as sending federal workers home isn't saving anybody any money. The last time the federal government had an extended shutdown—for 21 days in late 1995 to early 1996—it cost something on the order of $2 billion. What an extraordinary waste of money, particularly at a time when conservatives claim to be worried about the deficit.

So it is hard to negotiate when one side has put on the table where we should be—allowing government to stay open using last year's numbers—and the other side brings in issues that are totally unrelated to the continuation of government.

Having said that, we have got to find a way to get government open. I am pleased the President is meeting with the leaders this afternoon. I am pleased they are also talking about making sure we pay our bills, which is at jeopardy in just 2 weeks.

I mentioned earlier that I am a little sensitive about this because of the impact it has on the economy of my State. It has an impact on the entire country. In my State, it is $15 million a day in revenue that we lose directly as a result of the government shutdown. It has been estimated by Moody's Brian Kessler that if the shutdown went 3–4 weeks, it would cost our economy $55 billion. This is no small impact on our economy. It is a major impact on our economy.

It is not just Federal workers who aren't going to get paychecks. It is the shop owners who depend on business that is going to be cut back. It is contractors who depend on the contracts being honored by the Federal Government, and the list goes on and on of the impact it has on our economy. As I quoted from the Sun paper, it is the taxpayers who will pick up the tab. They are not going to save any money. It is going to cost them money—not a few bucks. It is going to cost a lot of money. And every day we wait, it costs the taxpayers of this country more money. So we are interested in dealing with the deficit and keeping government operating. It is a huge waste of resources to shut down the government.

We are going to lose some vital services. Earlier today I held a conference with Senator MIKULSKI, Senator WARREN, and Senator BOXER where we went over some of the real impacts that occur, and we were joined by Federal workers that wanted to be at work, doing service to this country, but because of the government shutdown they were furloughed.

This is not the first attack against Federal workers we have seen. We have seen freezes on their budgets in the last couple of years. We have seen them furloughed as a result of sequestration. We have seen freezes on hiring so they are asked to do more with less. We have the fewest workers per capita in modern history, asked to do more work. Let me relate some of the stories, some of the accounts by people who came to Washington today so their stories can be told.

Marcelo Del Canto works for the Substance Abuse and Mental Health Services Administration. He works in Rockville. He lives in Poolesville, MD. He has been a Federal employee for 8 years. He does vital work to help prevent substance abuse. He has work on his desk that he could do today to help keep people healthier. Instead, he is furloughed, sitting at home—can't go in to work.

We heard from Amy Fritz, a meteorologist and physical oceanographer at the National Weather Service. She works in Silver Spring, MD. I have been there. This is the agency that tracks the storms. Thank goodness we had reliable information about Hurricane Sandy. That work was done not on the weather channel, it was done by Federal public servants. Amy has a double degree. She is a national expert in this area.

Do you know what she said today? ''How do I know we should not be tracking a storm right now, getting additional information to keep our country safe?'' That is what is at stake. We have seen incredible weather episodes of late. Every person should be on board, doing their work. NOAA had to furlough, same as a layoff, 55 percent of their workforce, 6,633 employees furloughed as a result of the government shutdown.

We heard from Carter Kimsey. She works for the National Science Foundation. She has been there since 1976. She works with young people, getting them involved with science, awarding grants for the basic research that is critically important for economic growth and this country's competitiveness. She tells us she has work on her desk that is critically important to young people continuing in science. She can't work today because of the government shutdown. That is going to affect America's competitiveness. We are going to lose scientists. We are going to lose a great deal as a result of government being shut down.

I heard from Steve Hopkins, Office of Pesticide Programs at the Environmental Protection Agency. EPA had to furlough 94 percent of their workers; 15,181 workers were furloughed at EPA. What is he not doing today that he could have been doing? Helping keep our environment safe from the overuse of pesticides, making it a little bit safer for our children as they breathe the air and drink the water of this country. That is what is at jeopardy here.

I could tell you about their individual stories. When I talked to Marcelo Del Canto, he told me he recently purchased a home in Poolesville, MD. We are happy about that. But he has a mortgage payment. He is married. I asked how is his spouse doing? She is also furloughed. How are they going to make their mortgage payment?

Carter Kimsey was telling us about the ethics they use in scientific experiments. She talked about how they treat the animals they use. She said: You know, we make sure they get the resources necessary. They are fed, they are taken care of. How about our Federal workers? Shouldn't they have their paycheck to pay their food bills?

This is outrageous as far as being wasteful, as far as being against economic growth in this country, but it is also wrong. It is wrong to the people who have been victimized by this, who do not know if they are going to get a paycheck. We have people working who do not know if they are going to get paid. We have people who are not working who do not know they are going to get the money to pay their bills. Where is the empathy here for what you are doing? This is outrageous.

My colleagues already talked about the National Institutes of Health located in Maryland; 73 percent of their employees are furloughed. Do you know what they do? Just the most incredible research in the world so we can stay healthy, we can find out the mysteries of incredible diseases. They are working on a vaccine now to deal with influenza to save millions of lives, and what do we do? Tell them to go home and not work? This is not a game. We are affecting people's lives by what we are doing here.

Two hundred patients will be denied care this week at NIH as a result of the shutdown. Who knows for one of those individuals whether it is a question of life or death? That is what is involved.

At the FDA, 45 percent of their employees are furloughed. They will not be able to conduct the inspections for the compliance and enforcement of our food laws, our food safety laws.

At the Department of Interior, 81 percent of their employees are furloughed. What an embarrassment.

I was talking to a reporter from another country.

What an embarrassment, the iconic national parks of America are closed, but it also affects the businesses all around those parks as well as inconveniencing the public.

At the Small Business Administration, two-thirds of their employees are furloughed. Suppose you are a small business person depending on a loan. You do not have the officer there to process that loan. What do you do?

The list goes on and on. I could go through every agency. There is only one answer to this: Keep government—not one agency, two agencies, three agencies—keep every agency open. That is the responsible thing for us to do. We should do that. We should make sure we pay our bills, and yes, we should negotiate a balanced way to move forward with a budget.

I have been talking on the floor many times about that. There is a give and take that we have to make on the budget moving forward. We have to balance our books. We need the revenues necessary to do it. We have to look at all spending, not just discretionary domestic spending. We have to look at all spending. We have to do that in a bipartisan manner because, guess what, the Republicans do not control the House, the Senate, and the White House, and the Democrats do not control the House.

The public expects us to work together on a budget. That is not what this debate is about. This debate is

about whether we are going to keep government open, whether we are going to pay our bills. We must do that for the sake of the people of this country.

I want to mention one other issue. I filed yesterday legislation with many of my colleagues to make it clear that those Federal workers who are furloughed, we are going to fight to do what we did in the 1990s when we went on government shutdown, and pay all Federal workers. They are innocent. They should be made whole. My legislation is cosponsored by many of my colleagues. We have bipartisan support in the House of Representatives. We have to make sure we get that bill passed so every Federal worker is made whole as a result of this shutdown that is not their fault.

I yield the floor. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

Mr. CARDIN. Madam President, I ask unanimous consent the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

## EXTENSION OF MORNING BUSINESS

Mr. CARDIN. Madam President, I ask unanimous consent that morning business be extended until 5 p.m., and that all provisions under the previous order remain in effect, and that Senator REID be recognized following morning business and that all time spent in quorum calls be equally divided.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. CARDIN. I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The bill clerk proceeded to call the roll.

The PRESIDING OFFICER. The Senator from Maryland.

Ms. MIKULSKI. Madam President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

## CONTINUING APPROPRIATIONS

Ms. MIKULSKI. Madam President, I wish to speak as if in morning business and consume as much time as is necessary.

The PRESIDING OFFICER. Without objection, it is so ordered.

Ms. MIKULSKI. Wow, I think we are growing weary. I think we are growing weary of the gridlock, deadlock, and hammer lock on our government. I think we are growing weary of the partisan posturing by one faction in one party in one House. The American people want us to reopen government so that the government can meet the national security needs of the United States, protect the safety of the people of the United States, meet compelling human needs, and do what we can to create jobs today, such as physical infrastructure, and to lay the groundwork for jobs tomorrow by investing in research and development.

The American people want a government that works as hard as they do, and so do I. Instead of working hard to serve our veterans or our elderly or promoting a growing economy, we are dealing with the shutdown of the government.

The House is sending us bills which on first blush seem attractive. I mean, who doesn't support our National Guard? Who doesn't want to fund NIH? I certainly do. NIH is located in my State. I am so proud of the men and women who work there. Funding also goes to great State universities doing research, such as the University of Wisconsin. They are out there doing it. We cannot cherry-pick. What they are doing now is a public relations ploy.

The House wants to send us cherry-picked solutions to the shutdown problem. It is contrived, and it is cynical. What I am asking the House of Representatives to do is take up the Senate bill we sent them that is a clean continued funding resolution. What does clean mean? It means it is stripped of politically motivated ideological riders.

The second thing is it would fund the government for 6 weeks. In that 6 weeks, it would give us the chance to work out what our funding should be for the rest of the year. I would hope we could find a way to cancel the sequester, which is to reduce public debt without reducing jobs or opportunity, and get us through the debt ceiling. Please—that bill is pending in the House now, and I ask that they do that instead of sending us these piecemeal solutions.

I remind my colleagues that the continuing funding resolution passed the Senate last Friday. It reopens the government, and it gives us the opportunity to renegotiate. I am willing to negotiate, but we can't capitulate to these partisan demands to defund ObamaCare and do other kinds of riders that work against us. To move forward, we need to pass the Senate continuing resolution.

I understand that later today the President is meeting with Speaker BOEHNER, NANCY PELOSI, Majority Leader REID, and Senator MCCONNELL. I hope that wiser heads will now prevail so we can get a path forward to reopen all of government, not just cherry-picked items—many of which are absolutely desirable—and open the entire Federal Government.

I know that the House wants to send something over to reopen NIH. Of course. That's what I just said. But what about the Centers for Disease Control? So we open NIH, but we don't open the Centers for Disease Control. It is an agency that is located in Atlanta, but it is part of our public health triad, which is the work at NIH, the work of the Food and Drug Administration, which stands sentry over the safety of our food supply and the safety and efficacy of our drugs and medical devices, and then there is the Centers for Disease Control, which is down in Atlanta.

Right this very minute in Atlanta, GA, at the Centers for Disease Control, close to 9,000 people have been furloughed. Furlough is just a nice word that means layoff. It also means that it not only affects the labs in Atlanta, but it also affects labs in Colorado, Ohio, Pennsylvania, and West Virginia.

The work of the CDC is also nationwide because they are our biosurveillance system on infectious diseases. That means that State health departments—all 50 States and the territories—depend on the Centers for Disease Control to track and give them information on what the trends are related to infectious diseases. They are the ones who alert clinicians and pediatricians if there is a new kind of ear infection that could infect children. But because of the government shutdown, there is no one there who can do this.

Earlier this year—to give an example—Hepatitis A sickened 162 people in 10 States. The CDC linked the outbreak to pomegranate seeds coming in from a foreign country in a frozen berry mix. We were able to go right to the private sector. They complied with us right away, and we were able to get that off the market and contain this so it wouldn't spread to other people. They worked with the private sector in order to protect the American people.

Don't we want to reopen CDC? I could go over disease after disease and infection after infection which will not monitored. Let's take the common one, flu. We have all had the sniffles, but the sniffles can also kill people. On average more 200,000 Americans will be hospitalized because of flu and 3,000 Americans die from flu. Vaccines can prevent the flu.

The CDC, the Centers for Disease Control, were out there making sure there was enough vaccine available, that it was being distributed fairly and equitably in the United States, but also watching the infection trends because if a trend was heading to one State or one locale, the public health people could work together in order to accelerate or expand our flu vaccine. This is what they do.

Did you also know that there are disease detectives? Many people don't know that there are disease detectives. So what does Senator BARB mean when she says this?

Sometimes there is an outbreak and people get sick. People even die. They wonder what it is. They dial 911, and there is a group of people who are like a disease identification SWAT team. They work with the best and brightest at that State level, use the best technology in science from our country, and even around the world, to identify what that is. That is how we found out about Legionnaires' disease, and the Hantavirus disease which affected Indian reservations. That is how we

jumped in on the pomegranate seed situation. They get right in there. But you know what. Those people were furloughed. What is this?

Do I want to reopen NIH? I absolutely do, but I am going to talk about the Centers for Disease Control. I could also talk about other Federal employees and what shutting down means. It obviously isn't just public health.

I believe in Social Security. I really do. It has meant so much to so many people. It is one of the great earned benefits in our country. I want to make sure there is no false alarm here: Social Security checks will go out. However, as of this week, the people who work at Social Security, those who oversee eligibility benefits for the elderly and disability benefits for those who are unable to work, have been furloughed. Over the entire United States of America, Social Security has furloughed—there are 18,000 people who work in Social Security offices in local communities that were furloughed.

Social Security is everywhere. They provide access for the American people to apply for their Social Security, to apply for disability benefits, and also to apply for their Medicare—18,000 people. Social Security is headquartered in Maryland. This isn't because it is in Maryland. I know these workers. I know the exams they take to qualify to work for Social Security—whether it is a claims representative or an actuary predicting the trends. Those 18,000 people were proud to work for Social Security and make sure that one of the greatest social insurance programs ever was administered efficiently, effectively, and that the people who were eligible got what they earned.

Did you know that the overhead for running Social Security is less than 2 percent? It is lower than any private insurance company in America. Gosh. So they do it well and they do it smartly. They have been stretched because of sequester, but they are there. Right now, because of what we have been doing, we are only going to further delay these other benefits. So I want to open the doors of Social Security. When people apply, they want to be sure help is there. When people dial, they want people to be there.

That is all, by the way, coming back to NIH and what they want to send over from the House. It is in the Labor-HHS appropriations. That is under my very able subcommittee chairman, Senator TOM HARKIN.

Senator HARKIN has worked very hard on his bill to make sure we meet the needs but we do it in a way that is cost-efficient. Did my colleagues know that because of parliamentary obstructionism, Senator HARKIN has not been able to bring his bill to the floor since 2007—2007, year after year, hearing after hearing. When he wanted to bring up the funding for the Department of HHS, which these agencies are in—Education, as well as the Department of Labor, which has things such as mining safety in it—he could not even bring it to the floor because they would not let him or it would be filibustered.

While everybody over there is strutting around saying we are going to fund NIH, after we shamed them into it yesterday, what they don't tell us is they can't move the Labor-HHS bill in the House. Do we know why? Because they fund it at $122 billion. Do we know what level that is? That is the 2003 level. It is not even the 2012 level or the 2010 level. They want to fund it back to George Bush and right around the funding level of 2003. They want to take us back a decade. They want to take us back to the Dark Ages. Well, not in the Senate.

Senator HARKIN wanted to come to the floor with funding at $164 billion, a slight increase from last year. There is a 42-percent difference between the House and the Senate Labor-HHS bill: $164 billion to $122 billion.

I want Senator HARKIN to be able to bring his bill to the floor and debate it. Do we want an NIH? Let's fund it. Do we want a Centers for Disease Control, which is in the State of Georgia, with two excellent Senators from Georgia. Then fund it. Let's debate. Let's discuss. Let's amend. Senator HARKIN cannot even get it to the floor. Over in the House, they can't move it either because the funding for Health and Human Services, Education, and the Department of Labor is at the 2003 level. So while they want to send us an individual bill for an individual agency—for HHS and so on—as desirable as it is, I want to reopen government. That is what the Senate bill is. I want to reopen negotiations. I would like to return to a regular order, where using the parliamentary tools, tactics, and even tricks cannot delay bringing a bill to the floor. Since 2007, Senator HARKIN has not been able to bring a bill to the floor for an open debate, unfettered by filibuster, to be able to discuss this.

So this is what this is all about. This isn't about numbers. This is about meeting compelling human needs. In the Labor-HHS subcommittee, we fund NIH, the Centers for Disease Control, the Social Security Administration, mining safety, Department of Education. This is what we should be working on. We should be working on education, money for the disabled, et cetera.

So I come to the floor again as the chair of the Appropriations Committee. I am proud of the work my subcommittee chairmen have done in getting bills ready to come to the floor for debate by following regular order. I so appreciate the cooperation we have received from the other side of the aisle in our committee. There has been a great sense of cooperation. We have had disputes and disagreements on funding levels and even matters of policy, but I had an open amendment process. Everybody had their say. Everybody had their day. We moved the bills forward. That is called regular order. That is called democracy. Everybody has their day and everybody has their say. But let's move the bill.

So let's reopen government. Let's have a true negotiation. I hope that out of the 5:30 meeting will come a path forward. But we have one now: Pass the Senate resolution in the House, come back, and let's let the work of the Senate and the U.S. Government get going again.

I yield the floor.

The PRESIDING OFFICER (Mr. HEINRICH). The Senator from Wyoming.

Mr. ENZI. Mr. President, I wish to thank the chairman of the Appropriations Committee for her comments and all of the effort she has made and the bipartisan cooperation there has been to get bills to the floor. But we are in kind of a pickle right now. We are talking about a continuing resolution. A continuing resolution means we didn't get our work done. If we had the appropriations bills passed through this body, we wouldn't need a continuing resolution. Every agency would understand what it can spend for the whole next year. Instead, we are quibbling over how long a continuing resolution we ought to have and what ought to be in it.

We haven't done total appropriations by the October 1 deadline for I am not even sure how many years. That would be the answer to what we are going through right now. If we got to debate each of those bills in a timely fashion, with an open amendment process—I appreciate there has been an open amendment process in the committee. I am always disturbed that we haven't had much of an open amendment process around here on the floor. Every time a bill comes to the floor—almost every time a bill comes to the floor—there are negotiations about how many amendments each side can have. I have seen those negotiations go on for 2 weeks. Do you know how many amendments we could vote on in 2 weeks? I think we could probably vote on 50, maybe 100 in 2 weeks. Instead, we don't vote on amendments, which gives everyone the impression, of course, that there isn't an open amendment process.

The longer the stopper is kept in the bottle, the more anger there is around here. I would say there is anger on both sides because both sides have amendments they would like to bring up.

We have to quit dealmaking and start legislating around here. This is the way this process was designed. They had legislation in the committee, but we need to have the ability to legislate on the floor—not allocating something to a few people on both sides of the aisle and both ends of the building to come back with some kind of a proposal by some kind of a fiscal falloff date, and that fiscal falloff date, of course, happens to be in statute that the year begins on October 1. That was yesterday. That is when every agency is supposed to know exactly how much they can spend.

How has that been affecting us? There was a sequester. The interesting thing about the sequester is it was 2.3 percent of the amount of money an

agency, program, department was to get. What did it actually turned out to be? It turned out to be 5.3 percent. Why did it turn out to be 5.3 percent? We were already eight-twelfths of the way through the year before they found out that there was going to be a sequester, that they found out for sure that there was going to be a limitation on their spending. They had already spent one-twelfth of what they spent the year before, each month, during that 8-month period and then found out that for the whole year's worth of revenue that they got—eight-twelfths of what they already spent—they have to take a 2.3-percent cut. That makes it a 5.3 cut. That makes it much more difficult.

Actually, CBO scored my penny plan—that is where we just do a 1-percent reduction in every dollar the U.S. Government spends, with flexibility—and if we add that to the sequester, which would bring it to 3.3 percent, they say the budget would balance in 2 years—2 years we could balance the budget. It hasn't happened for over a decade. It only happened four times, I think, in the last 50 years. But we could do it, and I am pretty sure the people would say if we had our appropriations done timely so the agencies knew what they were doing on October 1 and then had a sequester plus 1 percent, I think they could live with it. I think they could make effective cuts, if they wanted to.

One of our problems around here is that government doesn't usually like to make effective cuts. Government likes to make it hurt. When it hurts, people come back and are very upset at what has been taken away from them. But we have a lot of redundancy in government. We have a lot of waste. We have a lot of programs that are happening in a whole bunch of different agencies, none of which are effective, but we are still doing it everywhere. We could get rid of all that duplication or at least half of it. Half of it is all that could be totally effective and give them a little bit of a bonus for doing it. But we are now at a point where we are going to make it hurt.

There were World War II veterans in town yesterday. They were flown in here so they could see their memorial, a tribute to their tremendous efforts. What did they find? They found barricades. I have been to the World War II Memorial a lot of times. There haven't been any barricades there. I also didn't see another person there if I was there late at night. So what was the purpose of the barricades? We have the national parks. Did the national parks get shut down?

Here is the extreme this is being carried to: Over in Teton National Park they even have barricades at the turnouts. Turnouts can be used to fix a flat tire or get a rest if one is tired of driving. They can also be used to take pictures of gorgeous scenery such as the Tetons. That is what the turnouts are primarily designed for. But how much does it cost us if somebody pulls off and takes a picture of mountains? How much could that cost us? How much does it save us by putting up barricades so they can't pull off the road? How much did it cost us to put barricades out there so they can't pull off the road and take pictures of the Tetons?

Throughout government, we are trying to make it hurt. We are trying to emphasize to people that we did so poorly they need to suffer, and if they suffer enough, they will get hold of us and make us reverse what we have done. We should have been busy last April working on appropriations and working through that process.

The President is about to leave on a trip. I am not planning on leaving until everything has been cleared up here, and I would suggest that he not do that either.

I got an interesting letter from one of my constituents that says: How does the private sector see the Federal Government? The private sector sees the Federal Government as a wagon being pulled by the private sector, and the wagon is filled with people who work for the Federal Government, and there aren't enough people pulling the wagon and too many people riding in the wagon. He makes quite a point. He does admit that the people riding in the wagon pay taxes too, but he also points out that those taxes came from the private sector to pay the wages from which the taxes are taken. So, yes, there are people riding in the wagon, even though they are working as well, but he is pointing out how the private sector has this extra load and now they are getting a little bit more of a load. He makes the point that we need more people in the private sector and said that maybe the private sector ought to shut down.

What would happen if the private sector shut down? What would happen if trucks did not haul any more goods across this country? What happens if the filling stations do not open? What happens with the myriad of things, groceries, the things we count on every day that come from the private sector? He just wanted me to know he is tired of pulling the wagon with so many people in the wagon.

We have a chance to reduce the load in the wagon, and we ought to take advantage of that, but we are not. We need to take advantage of that in a timely manner, and we need to get this wrapped up and get the government under way so people are not suffering in the ''make it hurt atmosphere'' we have right now. There is another way to do it. There is a better way to do it. We should have done it. We should have been doing it much earlier.

I yield the floor.

The PRESIDING OFFICER. The majority leader.

Mr. REID. Mr. President, I have great affection for my friend from Wyoming. He is a fine man. I enjoy working with him. I am not going to nitpick what he said, but I am going to direct my attention to one thing he said: Why didn't we do our appropriations bills? Mr. President, please, I would not expect that coming from him. We have tried. We were filibustered. We tried one here. Remember Transportation appropriations? We got one Republican vote. SUSAN COLLINS. They killed that. So do not come and lecture us on why didn't we do the bills last April.

I have often said I sympathize with JOHN BOEHNER, and I do. He has a very difficult job. Even when the Speaker would prefer to be reasonable, when he would prefer to be the Speaker of the House of Representatives—the whole House, Democrats and Republicans, because that is what he is—instead of just Speaker of the Republicans in the House of Representatives and sometimes appearing to be the Speaker for a minority within his majority—he seems to be kowtowing to everything they ask. This is the tea party. These voices in his caucus push him further and further to the right and over the cliff.

It can be difficult to balance the responsibilities of remaining true to one's party's core beliefs and doing the right thing for the government as a whole.

I would like to give a personal example. I try not to do that often, but I will give one today.

The Presiding Officer was not here during the Iraq war. I did not just oppose it, I thought it was bad for our country. I will give you some reasons why I did not like it at all. I hated it as much as I am sure JOHN BOEHNER dislikes the Affordable Care Act. But even though I voted for the 2002 authorization to confront Saddam Hussein, I quickly was appalled at how that authority was used, and the information that got me to vote for it was absolutely false. There were no clear objectives, not a coherent strategy. No one even knew in the administration the difference between Shias and Sunnis. There was no international support for that.

I spent many, for lack of a better description, gut-wrenching nights and some days trying to figure out what I should do. I was disgusted and mad at President Bush and Republicans in Congress that even one more American would be killed or maimed. I was so angry that I said things I wish I had not. They are in the history books. They are there. Some of my friends on the other side of the aisle, especially JOHN MCCAIN, as he can do, told me how wrong I was in opposing the war.

I thought I would be willing to do anything to stop that war, but I faced a choice in 2007. The Commander in Chief, President George Bush, requested $93 billion for additional government funding to continue the war. Without that, no more war.

Congress sent President Bush a supplemental appropriations bill that ended his blank check in Iraq. He vetoed that bill. At this point, I could have taken the very same steps Speaker BOEHNER has taken this week. I

could have blocked funding for the Federal Government in order to block funding for that war. I faced immense pressure from the left—moveon.org. Oh, I got thousands and thousands and thousands of e-mails and letters from that organization, from my own base, to do just that.

It was a very difficult choice for me. I could put my own opposition to that senseless war and my fellow Democrats' opposition to the war before everything else. But as the leader of the Senate, I had an obligation to ensure the smooth operation of the Federal Government. I could not do both. I tried to figure out a way to do both. I could not figure out a way because there was no way. I could not do both.

It is a decision I took extremely seriously, as I know anyone else would. In the end, I actually defied the strident voices on the left urging me to stay true to my personal belief that the war in Iraq was an unjust war and that I should end that war at any cost, but I felt I had other responsibilities; one was to make sure our government was funded, that we did not lose face in front of the international community and resort to that kind of extremist legislative tactic. So we funded the government. We funded the war I did not like. My choice made a lot of Democrats very unhappy. It made people on my own staff upset with me, their boss. But looking back on that decision, I came to the right decision, in my own mind.

Today, the country finds itself perhaps in a similar situation. Republicans in Congress, for reasons we have discussed on the floor, are obsessed with ObamaCare. They do not like it. I have no reason to doubt their sincerity. I doubt their logic, but I do not doubt their sincerity when they say they believe the Affordable Care Act is damaging our country. They are wrong. They are wrong now, and time will show how truly wrong they are because millions of Americans, right now today, are already benefiting from this law, and millions more will benefit in the years to come. So when these history books are written that people will read, ObamaCare will be seen as one of the greatest single steps to help America. It is in the same league as Social Security and Medicare and it will provide quality affordable health care for America—all Americans. I understand why my Republican colleagues disagree with what I just said.

Unfortunately, though, when Speaker BOEHNER was faced with the same choice I was faced with in 2007, he made a very different decision. He put his own opposition to ObamaCare and his fellow Republicans' opposition to ObamaCare above all else, even above ensuring the strength of our economy and the smooth operation of this government we love. History will prove that to be shortsighted and wrong. But regardless of right or wrong, our responsibility as leaders is to find a path forward to reopen the government and protect our economy.

So earlier today, at a quarter to 11 or thereabouts—no, it was a quarter to 12 this morning—I offered JOHN BOEHNER, the Speaker of the House of Representatives, a reasonable compromise that respects both of our priorities.

Before the House is a Senate-passed legislative tool to reopen the government. The measure funds the government at the level chosen by not us but the House leaders, a level much lower than I would have chosen or Senator MURRAY would have chosen or the chairman of our Appropriations Committee Senator MIKULSKI would have chosen.

I propose that the Speaker allow this joint resolution to come for a vote before the full House of Representatives. Every Democrat will vote for that over there, and according to news reports, more than 100 House Republicans are prepared to vote for it as well.

In short, what it says is: Reopen the government. Then I, on behalf of the Democratic caucus, commit to name conferees to a budget conference, as the Speaker has requested. This conference can engage on the important fiscal issues facing our Nation. The Speaker has often cited these fiscal issues as the most important challenge to our generation.

A conference will be an appropriate place to have these discussions. In a letter that I wrote to the Speaker, we did not limit what we would talk about in the conference. In fact, I will read parts of this letter:

Now we find ourselves at loggerheads.

I say in the letter to JOHN BOEHNER:

There needs to be a path forward to reopen our Government and protect our economy. This is a communication to you offering a sensible, reasonable compromise.

Before the House you have the Senate-passed measure to reopen the Government, funded at the level that the House chose in its own legislation. I propose that you allow this joint resolution to pass, reopening the Government. And I commit to name conferees to a budget conference, as soon as the Government reopens. That conference can discuss the important fiscal issues facing our Nation. You and your Colleagues have repeatedly cited these fiscal issues as the things on which we need to work. This conference would be an appropriate place to have those discussions, where participants could raise whatever proposals—such as tax reform, health care, agriculture, and certainly discretionary spending like veterans, National Parks, and NIH—they felt appropriate.

That is pretty direct and to the point. These conferees could do whatever they wanted without the threat of a government shutdown and ensuing economic collapse hanging over their heads.

Together, we can end this government shutdown and work to address the important issues facing our Nation. Together, we can work to put our nation on sound fiscal footing by engaging in a responsible, long-term budget process—not 5 weeks like the CR that is now before us.

This morning on the Senate floor I warned of the effects of a Republican government shutdown that have already come to bear. My colleagues have done this all day about what has this done to Federal employees generally? What has it done to NIH? What has it done to transportation? What has it done to the Centers for Disease Control? And on and on with all these programs that are now stunningly stopped.

There are many unintended consequences of this irresponsible and shortsighted shutdown. It is reckless and irresponsible.

But Speaker BOEHNER can end this Republican government shutdown today. We have given him what he wants. They sent over from the House: Let's go to conference. We are saying: We will go to conference on anything you want to go to conference on.

Defy the strident voices on the right urging you to put your personal beliefs and the beliefs of your caucus before the strength of our economy and the needs of our country.

I ask unanimous consent that the letter to which I referred be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follow:

U.S. SENATE,
*Washington, DC, October 2, 2013.*

Hon. JOHN BOEHNER,
*Speaker, House of Representatives,*
*Washington, DC.*

DEAR MR. SPEAKER: I hated the Iraq war. I think I hated it as much as you hate the Affordable Care Act. Even though I voted in 2002 to give President Bush the authority to confront Saddam Hussein, I became appalled at how that authority was used—without clear objectives, a coherent strategy, or significant international support. There were many gut-wrenching nights when I struggled over what I needed to do to end the carnage. In those days, when President Bush was Commander in Chief, I could have taken the steps that you are taking now to block Government funding in order to gain leverage to end the war. I faced a lot of pressure from my own base to take that action. But I did not do that. I felt that it would have been devastating to America. Therefore, the Government was funded.

Now we find ourselves at loggerheads. There needs to be a path forward to reopen our Government and protect our economy. This is a communication to you offering a sensible, reasonable compromise.

Before the House you have the Senate-passed measure to reopen the Government, funded at the level that the House chose in its own legislation. I propose that you allow this joint resolution to pass, reopening the Government. And I commit to name conferees to a budget conference, as soon as the Government reopens. That conference can discuss the important fiscal issues facing our Nation. You and your Colleagues have repeatedly cited these fiscal issues as the things on which we need to work. This conference would be an appropriate place to have those discussions, where participants could raise whatever proposals—such as tax reform, health care, agriculture, and certainly discretionary spending like veterans, National Parks, and NIH—they felt appropriate.

I hope that we can work together in this fashion. Together, we can end this Government shutdown and work to address the important fiscal issues facing our Nation. I look forward to hearing from you.

Sincerely,

HARRY REID,
*United States Senator.*

The PRESIDING OFFICER. The Senator from Washington.

Mrs. MURRAY. Mr. President, Democrats and Republicans have some serious differences when it comes to our policies and our values and our priorities. But one thing we should be able to agree on—the bare minimum expected of us in Congress—is that we should not actively allow our constituents to be hurt.

That is why Senate Democrats will be here today with a clear message to Republicans: Open the government. End the shutdown. Allow the government to open, make sure our families and communities that we represent do not have to pay the price for the disagreements we have and then come back to the table and work with us on a long-term budget deal to avoid these constant crises.

Majority Leader REID has made it very clear to Speaker BOEHNER that he is willing to sit down and talk, and I truly hope House Republicans take him up on that.

On Monday night, as the government was shutting down, Speaker BOEHNER and the House Republicans lurched even deeper into the theater of the absurd. I was shocked. I could not believe my ears when I heard, with minutes to go before the shutdown began, Speaker BOEHNER was asking us for a conference on the spending bill. I thought: Is he serious? Is this some kind of joke?

Even by the standards of a party that shut down the government to stop the health care reform law that was going to come online yesterday, no matter what they did, that was bizarre.

I say to Speaker BOEHNER today: Yes, let's start a budget conference. It is a bit late. I have been fighting to start one for 6 months, but better late than never. Let's sit down, let's negotiate, let's work toward the balanced and bipartisan long-term budget deal that our constituents are expecting—a real budget conference, not like the photo op we saw in the House of Representatives yesterday; a budget conference where the two sides can sit at a table, offer some compromises and work toward a balanced and bipartisan long-term budget deal the American people expect.

But there is one condition. It is a reasonable one. It could not be more important. Speaker BOEHNER and the House Republicans should stop allowing our families and our communities to be hurt while we negotiate. They should pass our short-term bill, reopen the government, and then join us at the table for a budget conference where we can work together toward a long-term deal. This is common sense. It is the responsible thing to do. There is absolutely no reason why we should not get the government back open, right now, while all of us get in a room and work on a deal.

Given that Republicans spent the day yesterday talking about their newfound interest in a conference, I think it would be helpful to go back a bit to remind people who are following us here today how we got to this point.

For 4 years Republicans in the Senate and in the House said it was critical that the Senate pass a budget. They came here to the floor, they blasted out press releases, they made it part of every one of their campaigns across the country.

At the beginning of this year, it seemed that Democrats and Republicans agreed on at least one thing: The budget debate should proceed through regular order. The House was going to pass their budget, the Senate was going to pass ours, and then we were going to get together in a conference room and work out our differences.

Senator MCCONNELL said back then that once the Senate and House passed budgets, ''the work of conferencing must begin.'' Republicans said a conference was the ''best vehicle'' for the budget debate ''because we are doing it in plain sight.''

I absolutely agree. The Senate Budget Committee wrote our strong progrowth, pro-middle-class long-term budget. I am sure the hours that we spent debating this budget are not forgotten by anybody on this floor. We spent a week here in an open process debating and voting on amendment after amendment until the very wee hours of the morning. On March 23, the Senate passed our budget. We all remember that. The House, by the way, passed theirs earlier that day.

I thought the next step would be we would go to a conference as quickly as possible. I went to the House Budget Committee chairman, Chairman RYAN. I told him the American people were expecting all of us to get in a room and work it out. I thought it was a no-brainer. We had significant differences between our two budgets, but I was ready to go to work with my colleagues and make compromises.

With 6 months to go before the end of the fiscal year, we had plenty of time. But I was absolutely floored when I heard the House Republicans had changed their mind. They no longer wanted to go to conference. They no longer wanted to follow regular order.

I am sure the idea of debating their budget and having it compared in an open and public forum was pretty unpleasant to them. They knew how unpopular their plans were to end Medicare as we know it and to cut taxes to the rich. But they put it in their budget and now it was their job to negotiate with them.

I came here to the Senate floor and I asked for consent to go to a budget conference. I was joined by Senator REID and many others. We asked to begin bipartisan negotiations. But Senate Republicans said no. We tried again and again and again. On April 23, we were blocked—April 23, blocked by Senator TOOMEY; on May 6, Senator CRUZ stood up and objected; on May 7, May 8, May 9, May 14, and May 15, Senator MCCONNELL said no; on May 16, Senator LEE said no; on May 21, Senator PAUL blocked our negotiation; May 22, it was Senator RUBIO; May 23, Senator LEE; June 4, Senator RUBIO; June 12, Senator LEE; June 19, Senator TOOMEY; June 26, Senator CRUZ; July 11, Senator RUBIO; July 17, Senator LEE; on August 1, Senator RUBIO blocked us from starting a conference, right before the August recess.

We have come here 18 times. Every single time we tried to get in that room, every time we tried to start a conference and negotiate, Republicans stood and they blocked us.

By the way, it was not just Democrats either. Quite a few of our Senate Republicans joined us in pushing for a conference. My colleague Senator MCCAIN joined Democrats on the floor and said blocking a conference was ''incomprehensible'' and ''insane.''

Senator CORKER said to ''keep from appointing conferees is not consistent.''

Senator FLAKE said he ''would like to see a conference.''

Republicans offered one excuse after another. By the way, none of them add up. First, they said they wanted a preconference framework, even though that is exactly what a budget is, and was exactly what we were negotiating over.

Then they said they would not allow us to go to conference unless we guaranteed in our budget that the wealthiest Americans and biggest corporations would be protected from paying a penny more in taxes. Then they said they did not want a bipartisan conference to take away the leverage that they would have during a debt ceiling debate. Then they called for a ''do-over'' of the budget debate, including another 50 hours of debate here on the floor, and a whole new round of unlimited amendments, even after, I will remind all of us, many of them praised the open floor debate that we had during the Senate budget debate.

Their story kept changing. Senator MCCAIN said Republicans' preconditions and excuses were ''absolutely out of line and unprecedented.'' Senator COLLINS said that even though there is a lot we do not see eye to eye on, we should at least go to conference and make our best effort to make a deal.

The stalling from some Republicans was, to quote Senators MCCAIN and COLLINS, ''a little bit bizarre'' and ''ironic, to say the least.''

Republicans kept making excuses for stalling. But the bottom line was that after spending years saying the most important thing was for the Senate to pass a budget, once we did, they ran away as quickly as they could. You know, I told Republicans again and again, right here on the Senate floor

and when I talked to them in private, if you do not join us in a conference and give us the time we need to work out a deal, you are going to be pushing us into a completely avoidable crisis. They did not listen. They did not want to conference. They did not want to negotiate. They thought they would have more leverage in a crisis. They were doing everything they could to push us to one. Well, they were right; they pushed us into a crisis. Now families across our country are paying the price.

If Speaker BOEHNER truly wants to negotiate and end this lurching from crisis to crisis, he would let the House vote to keep the government open. It would pass, by the way, with a strong bipartisan vote. Then he would join us at the table in a conference that I have been trying to start for months.

I am going to ask unanimous consent for the 19th time to start a budget conference. To be very clear, this is not a replacement for an immediate end to this shutdown. It would build on a short-term bill to end this crisis. It is not to negotiate a short-term deal while our families and our communities are being hurt by a shutdown. It is to make sure the door is open for long-term negotiations that can start as soon as the threat of a shutdown is taken off the table.

I am hopeful our Republican colleagues on the other side of the aisle who have watched as our constituents look on in amazement at the Senate and House as they say: We were unable to do the job that we have been asked to do, which is to govern the country in a responsible way—I would hope they would take a moment to pause and to say: It is time to stand. It is time to be a leader. It is time to stop holding our country and our communities hostage. It is time to stop putting fear into the lives of so many people. It is time to say, yes, we are going to open the government, we are not going to hold this country hostage, we are going to do our job. That is simply what we are asking to do today, allow the Senate bill to come up for a vote in the House. It will pass. We know we have the votes, Republicans and Democrats together, who want to stop this crisis.

Then we will sit down and do what we have been asked to do by the Republicans for a number of years now, to write a budget, to have the House write a budget and sit down and work out our differences.

I see Senator DURBIN here on the floor. Senator DURBIN worked on the Simpson-Bowles Commission for many years to try and resolve our differences. I think he would agree with me, it is time to get this done.

I see Senator WARNER on the floor right now. He has spent a great deal of time working to get us to a point where we can solve this crisis and have a way to go forward and a path that our country can rely on.

I think many of our colleagues are ready to get past this crisis, are ready to open the government, and begin the responsible thing of working in the way we are supposed to. I hope they listen to Senator REID and what he offered them today. I hope they do the right thing so families across our country do not have to continue bearing the burden of the Republican Party's dysfunction and division.

With that, I ask unanimous consent that when the Senate receives a message from the House that they have passed H.J. Res. 59, as amended by the Senate, the Senate then proceed to the consideration of Calendar No. 33, H. Con. Res. 25; that the amendment at the desk, which is the text of S. Con. Res. 8, the budget resolution passed by the Senate, be inserted in lieu thereof; that H. Con. Res. 25, as amended, be agreed to, the motion to reconsider be considered made and laid upon the table; that the Senate proceed to a vote on a motion to insist on its amendment, request a conference with the House on the disagreeing votes of the two Houses, and authorize the Chair to appoint conferees on the part of the Senate, with all of the above occurring with no intervening action or debate.

The PRESIDING OFFICER. Is there objection?

Mr. REID. Mr. President, in a second I am going to ask we go into a quorum call so the Republicans can give this due consideration. I do not want to try to rush into this, so we are going to go into a quorum call, giving the Republicans the opportunity to look at and study this consent agreement.

We have done what we thought the Speaker would want, what the Republican leader would want. We have said we will discuss whatever you want to talk about in the conference. We hope this is something they will accept.

I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. REID. I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

Is there objection to the request of the Senator from Washington?

The Senator from Pennsylvania.

Mr. TOOMEY. Reserving the right to object, I would point out a couple of things I didn't hear in the discussion of the Senator from Washington.

One is the fact that the House has passed three different measures to fund the government. That has already happened. They were sent over here, and each one was rejected by the Senate Democrats, one after another, so that we are now in a government shutdown.

I would also point out that after the Senate Democrats rejected every measure the Republicans sent over to fund the government, the Republican House sent over a measure to go to conference so that we could resolve this problem. I find it a little bit ironic, to say the least, that our Democratic colleagues are saying: We need to go to conference on the budget resolution. Now, I know the terminology here can get confusing for people, but that is a vehicle that has nothing to do with the immediate problem we have right now, which is the funding of the government, because we don't have a continuing resolution to actually fund the discretionary spending of the government, and that having expired and our Democratic friends having voted down every attempt by the Republicans to fund the government, we are in this bind.

Now we have the unanimous consent request, if I have this right, that says that if the Republicans agree to every demand the Democrats have made beforehand, initially, then and only then would our Democratic friends like to have a conference on the budget. This is what I am hearing.

What I would ask is whether the Senator from Washington would consider a modification to the unanimous consent request, and this would be two things. One would be that they also would agree to go to conference on the CR so we can work out the problem that is preventing us from reopening the government. The other would be that when we go to conference——

Mr. SCHUMER. Would the Senator yield for a clarification?

Mr. TOOMEY. I yield to the Senator.

Mr. SCHUMER. Your request that we go to conference would be while the government is shut down. It doesn't matter in your request whether the government is shut down or not; is that correct?

Mr. TOOMEY. My request is that we try to find a resolution to the shutdown. Go to conference——

Mr. SCHUMER. While the government is shut down?

Mr. TOOMEY. Go immediately, right now. The government is shut down. Let's go right now to conference as the House has requested so that we can reopen the government and can work out an agreement rather than have this impasse. Let's try to break the impasse by trying to go to conference. That would be one condition.

Then I would go back to what our concern has been about the budget conference all along. I have asked unanimous consent to go to conference on the budget. I am a member of the Finance Committee. I would like us to do that. What I have objected to and what many of us have objected to is using it as an opportunity to break the Senate rules and airdrop in a debt ceiling increase without the opportunity to have the 60-vote threshold we ought to have in the Senate if we are going to consider increasing the debt burden on the American people.

I would ask unanimous consent that the Senator from Washington agree to those two modifications.

The PRESIDING OFFICER. Does the Senator so modify her request?

Mrs. MURRAY. Mr. President, reserving the right to object, let me

make it very clear that what the Senator from Pennsylvania is asking is that we continue to hold our country, our communities, and our families hostage while they try to get something out of a conference. Mainly, the Senator is talking about saying ObamaCare will be repealed unless we pass a very short-term—a few weeks—continuing resolution. That is completely unacceptable not only to this Senator but to the vast majority of Americans.

The Senator is also saying we can talk while everyone is not at work while the government is shut down. We have been asking to talk for a long time, but the American people deserve to be able to go to work, get their paychecks, and to have our communities and our country running without the threat of this over their heads.

I object to the Senator's request.

I repeat my request that we allow the House to vote on the bill that was sent over to them, that they have the votes on, open the government, and then do as we have asked 19 times, do what the American people expect us to do, which is to go to conference and work out our disagreements.

I renew my original request.

The PRESIDING OFFICER. Is there objection to the request of the Senator from Washington?

Mr. TOOMEY. The Senator from Washington objects to my request that we go to conference so we can resolve the impasse of the shutdown of government and instead wishes to go to conference on something else, which is the budget resolution, in the event it does not reopen the government.

I object.

Mrs. MURRAY. I object.

The PRESIDING OFFICER. Objection is heard.

Mrs. MURRAY. Let me make it clear. The Senator from Washington does not believe we should be negotiating in the dark of night. The government should be open, public, and people should be able to see what we are doing. That is why our unanimous request was so important. I am so disappointed the Republicans are saying: Hold the country hostage. That is the place we are left in.

The PRESIDING OFFICER. The Senator from New York.

Mr. SCHUMER. I know my colleague from Pennsylvania has gone. Let's clarify a few things because obfuscation is the rule of the day when you are not holding many cards.

First, the Senator from Pennsylvania said they have asked to open the government—they have asked, rather, to go to conference three times and open the government. Yes, they have—if ObamaCare is repealed, if ObamaCare is delayed for 1 year, and if the individual mandate is delayed for 1 year. That is not a request to go to conference. That is saying: Unless I get my way on ObamaCare—which has been voted on by these Chambers, which has been litigated in the election—I am going to shut the government down. Their position hasn't changed. The bottom line is very simple. The bottom line now is very simple. The bottom line now is, oh, let's go to conference. All of a sudden—sure. Let's go to conference while cancer treatments are being refused. The more we delay, the worse that is. Let's go to conference while veterans' benefits can't be processed, and the more we delay, the more veterans will be hurt. Let's go to conference before 800,000 people get their paychecks, which they need to feed their families. Let's go to conference while the Statue of Liberty is closed and my little sandwich shop nearby is not making any revenue.

Please, I say to my colleague, what the Senator wants to do is use a bludgeon since a small group of tea party fanatics, as they are called, has Speaker BOEHNER in the palm of their hand and they have the power not to fund the government. They say: Until you do what we want, we won't fund the government. So nothing has changed, and there is no concession or willingness to negotiate on a fair basis by the other side—no.

Let me repeat to my colleague from Pennsylvania, you have it backward. You are saying: Let's negotiate, and then we might open the government. The right way to do it is by the resolution offered by the chairwoman of the Budget Committee. Let's open the government, and then we will be happy to sit down and negotiate. That is the fundamental difference here.

On whose side are the American people? Ours—70 to 22. On whose side is every Democrat at each end of Pennsylvania Avenue? Ours, of course. If you look at the quotations in the House and Senate, a large number of votes from the other side of the aisle are on our side too. But because a small number of irresponsible members of the tea party have Speaker BOEHNER in their control right now, we can't succeed. So the tea party shutdown, the shutdown, originated, engineered, and put into place by the tea party with Speaker BOEHNER's fearful acquiescence, is still the law of the day. It will not be for much longer. The pressure from the public, on the economy, and the pressure from Members on the other side of the aisle will increase, and I believe in a short while—in a short while—the other side will have to say: OK, we will fund the government; now let's sit down and talk. That is what Leader REID and Chairwoman MURRAY have simply asked for today. It will just take a few days more, but it will happen.

I wish the other side would acquiesce now because so many innocent millions are being held hostage and being hurt.

I yield the floor.

The PRESIDING OFFICER. The assistant majority leader.

Mr. DURBIN. Mr. President, the unanimous consent request made by the Senator from the State of Washington is eminently sensible. It basically says: Why hold 800,000 Federal employees hostage while we go about the negotiation of our future budget? The majority leader has made this offer. He has said we are going to go forward. He has offered to Speaker BOEHNER the opportunity—the opportunity—for us to open the government and then get into meaningful negotiations on all of the major issues.

So what do we hear from the Senator from Pennsylvania, Senator TOOMEY? His objection. He wants to continue to keep the government shut down while we are supposed to initiate negotiations. Who pays the price for that? Well, it wouldn't be any Senator. The people who pay a price for it are those 800,000 furloughed employees and all of the people in America who count on their services every single day.

I have said it before, but it bears repeating. Two hundred people were turned away from the National Institutes of Health this week who wanted to enter clinical trials because of a serious life-threatening illness, including 30 children—cancer patients coming to the NIH with their parents for one last hopeful move to save their lives. So the Senator from Pennsylvania says: Sorry, we can't take care of those children. We can't take care of those seriously ill Americans. We have to sit down and negotiate.

It is easy for him, and perhaps easy for others to say it is all about us, but it isn't. It is all about America. It is all about the people we were sent here to represent. It is all about the reputation of this Nation.

What it will take to get beyond this current crisis is very obvious. We have unity on the Democratic side to open the government. We have sent a continuing resolution to the House to do the same. What has to happen now is for moderate Republicans to step forward.

It is interesting to me in the last 48 hours how few have come to the Senate Floor to talk about this issue. Privately they tell me they are torn and worried over what this is doing to our country and what it is doing to their party. But some moderate Republicans in the House of Representatives have spoken. I would like to, if I can, at this point, recount what has been said by some of those who have spoken.

Representative PAT MEEHAN, Republican of Pennsylvania, said:

> At this point, I believe it's time for the House to vote for a clean, short-term funding bill to bring the Senate to the table and negotiate a responsible compromise.

A clean short-term funding bill. That has already passed the Senate. It is sitting in the House waiting for the Speaker to call it up.

Representative MIKE FITZPATRICK, another Republican from Pennsylvania. A Fitzpatrick aide tells the Philadelphia Inquirer the Congressman would support a clean funding bill if it came up for a vote.

Representative LOU BARLETTA, Republican of Pennsylvania. Barletta said

he would ''absolutely'' vote for a clean bill in order to avert a shutdown of the government.

Representative CHARLIE DENT, Republican of Pennsylvania said: ''I'm prepared to vote for a clean continuing resolution,'' he told the Huffington Post.

In addition to that, Representative JIM GERLACH, another Republican from Pennsylvania, issued a statement saying he would ''vote in favor of a so-called clean budget bill.''

The list goes on—and I have mentioned a few on this list: Representative PAT MEEHAN, Republican of Pennsylvania; Representative SCOTT RIGELL—I am sorry if I mispronounced that—Republican of Virginia; Representative JON RUNYAN, Republican of New Jersey; Representative MIKE FITZPATRICK, Republican of Pennsylvania; Representative LOU BARLETTA, Republican of Pennsylvania; Representative PETER KING, Republican of New York; Representative DEVIN NUNES, Republican of California; Representative CHARLIE DENT, Republican of Pennsylvania; Representative FRANK WOLF, Republican of Virginia; Representative MICHAEL GRIMM, Republican of New York; Representative ERIK PAULSEN, Republican of Minnesota; Representative ROB WITTMAN, Republican of Virginia; Representative FRANK LOBIONDO, Republican of New Jersey; Representative RANDY FORBES, Republican of Virginia; Representative JIM GERLACH, Republican of Pennsylvania; Representative LEONARD LANCE, Republican of New Jersey, and Representative MIKE SIMPSON, Republican of Idaho.

Seventeen. Why is that number significant? It takes only two or three more Republican Congressmen—Republican Congressmen—to step up and say they will vote for the CR we sent over from the Senate to reopen the government of the United States of America.

There are six Republican Congressmen in my State of Illinois. I challenge all of them to join this group of their fellow colleagues and Democrats in the House who don't want to punish America and 800,000 Federal workers.

What is at stake here? It isn't just bragging rights about how this crisis ends. What is at stake is much more. It even goes beyond the life-and-death situation faced by hundreds at the National Institutes of Health. I am still stunned by what I was told yesterday by Senator FEINSTEIN. It is public knowledge. She announced it on the floor. Seventy-two percent—72 percent—of the civilian workforce in America's intelligence agencies have been furloughed. What do they do? Well, I will tell you what they do. They listen closely to places and people all around the world to see a threat coming against the United States. They are sent to work each day with the most serious mission of almost anyone working for our government. They are sent there with the mission to avoid the next 9/11, to spare innocent people across America the possibility of a terrorist attack.

I am not over-dramatizing it. That is what the intelligence agencies are all about every day. Today, almost three out of four of the professional men and women on the civilian side of intelligence are home. They are not listening. They are not watching. They have been sent home by this tea party Republican shutdown. It will only take about 3 more Republican Congressmen to step forward and say: This has to come to an end for the good of our Nation, for the safety of our Nation, and for the future of our economy. That is what we are up against.

What we are trying to do is get the conversation underway to resolve some major issues. I hope we are successful. But in the meantime, let us protect America. Let us serve the people who sent us here. Let us reopen this government as quickly as possible. It has gone on now for a day and a half. It should end this afternoon.

Speaker JOHN BOEHNER has it within his power to end this government shutdown in a matter of minutes—minutes—and then we can start a conversation about the important issues facing us. I think the President is right. We have to do this in a responsible manner and to say once and for all we are not going to hold the American people, the American taxpayers or America's security, hostage to a political temper tantrum. We have to face our responsibilities honestly and directly.

I yield the floor.

The PRESIDING OFFICER (Mr. COONS). The Senator from Virginia.

Mr. WARNER. Mr. President, I want to thank my colleague, the Senator from Illinois for his comments on this issue. I will comment as well, but I also want to thank the chair of the Budget Committee for asking one more time and saying: Let's negotiate this.

I think it is important to note, as the Senator from Illinois mentioned, some of the folks who say this is not just about the 800,000 Federal workers who are going on without pay, it is about national security. Seventy-two percent of the folks who work in the intelligence community, who are civilians, are furloughed today. It means our troops in harm's way are in greater danger. Our embassies are in greater danger, and our country is in greater danger.

I also have heard some remarkable comments from some of our colleagues on the other side about the free enterprise system. I have to say I have spent longer in the free enterprise system than I have in elective office. I can never imagine two businesses that were negotiating saying: We are going to shut down our business rather than negotiate. I mean this really has entered into a new realm of the theater of the absurd.

We think about why so many of those Congressmen from Virginia have stepped up, and it is because this is not just about the Federal workforce. I point out that today, at NASA Langley, one of our premier research institutions in America, where there are normally 3,500 employees, there are only six working today. But this doesn't just affect NASA Langley. It affects the gas station nearby, where the folks who go to work at NASA Langley buy gas. It affects the shops and restaurants around there, where people go to eat.

I wonder what the folks who talk about the free enterprise system will say to that motel owner along Skyline Drive in Virginia or outside Yosemite who has a cancellation this weekend. That is not a government worker. That is part of the free enterprise system. No business leader in America, regardless of political stripe, thinks shutting down the Federal Government makes good business sense.

Earlier today, along with my colleagues from Maryland—Senator KING couldn't be there, but he was very supportive—we brought in some—not faceless budgets but real folks who were directly affected by this shutdown. We had a woman who had worked for the National Science Foundation for close to 40 years, saying she had gone through a $2,500 hit from furloughs already and was unsure. She hadn't bought a car last week because this was hanging over her head. She felt she was going to be fine in some way, but she wondered what young scientist would come work in public service today. Again, in a free enterprise system—this is a competitive world—the rest of the world is not going to stop their science, their innovation, their creativity because America can't get its act together and keep its government operating.

I have been occasionally called by some of my colleagues on this side of the aisle too reflexively bipartisan. There is always both sides of an argument. But on this argument, with these facts, there is no lack of clarity in my mind that holding not just our Federal workforce but the economy of America hostage, and saying that until we get our way we are not going to reopen the largest enterprise in the world—the Federal Government of the United States—is more irresponsible than anything I have seen, not only in my political life but in my business life.

I have had some of the same conversations my colleagues have had, and I know there is a great deal of uneasiness on the other side. I actually don't believe this is Democrats versus Republicans. We have our bill over on the House side, and I believe, candidly, we will see the majority of the House Republicans join in reopening the government. Then let's have this kind of very real debate about health care, about tax reform, about getting our country's balance sheet right.

The notion that we are basically going to affect the lives of 800,000 folks who are furloughed, and countless millions of others who depend on those

services, or countless millions others in the free enterprise system who depend upon our workforce as their customers, is stunningly irresponsible. All of us here say we want our economy to recover. Well, let's get our balance sheet right. But in the meantime, let's open the government. Let these folks get back to their job, and let's have this conference that has been called for 18 different times.

I will close, and I know other folks have mentioned this. No matter what happens going forward, we are going to ask our Federal workforce to do more with less resources. Again, I have spent more time in the private sector than in the public sector. I have built companies. The last thing you do to your workforce, when you are asking them to do more with less, is disrespect them continuously the way we have done to the Federal workforce over the last 3 years—3 years without a pay increase, furloughs, being told that somehow they are riding in the wagon not driving the wagon.

Let me say, as somebody who got here because of a good public school, because of a student loan program, because I had a free enterprise system that allowed me to fail, but then succeed because there was a support system put forward by a Federal Government, I think those folks are pulling that wagon every bit as much as every other American.

I hope we will be able to get not only those folks in the House but others to be willing to say it is time to get this government bill, it is time to have a long overdue conversation about our balance sheet. I appeal to all of my colleagues, let's get this behind us. Please, don't bring somebody down here and say that under the free enterprise system somehow it is rational, logical, or makes good business sense to keep this government shuttered.

Mr. President, I yield the floor.

The PRESIDING OFFICER. The Senator from Iowa.

Mr. HARKIN. Mr. President, first of all, in all this mess there is some good news. The Affordable Care Act is up and running, and the people of America are responding in remarkable numbers.

Remember how the Republicans said this is bad, it is a failure? They kept saying it was a failure even though it had not even started. In the first 24 hours of healthcare.gov being up, the national marketplace, 4.7 million people visited. In California, which has its own State-run marketplace, 5 million people visited that site yesterday. I noted that I heard the Republican leader out here earlier today. In his home state of Kentucky, with 78,000 visitors, they started nearly 4,700 applications and completed more than 2,900 yesterday in the first day.

I think what this all indicates is the American people is hungry to get covered with health insurance. With 30 million people out there without health insurance, with a preexisting condition, or maybe they are ill right now, maybe they have had other things happen or are out of work—now they can go on the marketplace and get health insurance coverage. And they are flocking to it, because it has been sorely needed for decades.

The Republicans still want to hold the government hostage and defund the Affordable Care Act. I would like to know what the Republican leader might say to those 4,700 people who applied in Kentucky yesterday. And we know it is going to be more as the weeks and months go by. We have 6 months to sign up. But think about those figures just in the first day.

Fifty-five thousand people went to Colorado's exchange and 1,450 created accounts to allow them to start shopping. I mentioned New York. There were 10 million attempts to reach their Web site.

We had some glitches. Yes, some Web sites froze because they didn't expect that many people to come on the first day.

Andrew Stryker was among the first people to purchase health care through the marketplace. Mr. Stryker is 34 years old and lives in Los Angeles where he is a freelancer. He has a preexisting condition—high blood pressure—and says health insurance companies had denied him coverage on the individual market. He said signing up for coverage through the marketplace will save him over $6,000 per year when compared with his monthly premium for his COBRA plan. For that, he said, I would have waited all day.

So the Affordable Care Act is up and running, and people all over this country are flocking to it to get the good news that they can get affordable coverage for themselves and their family.

The same is happening in my own State of Iowa, where the plans have come in as some of the lowest in the country.

So that is the good news. The bad news is Republicans here are still trying to stop it before too many people get health insurance because then they know they won't be able to turn it back. The people of America have waited too long to have health insurance coverage for themselves and their families. Now everyone can get health insurance at a price they can afford. So we are going to have health coverage not just for the healthy and the wealthy but for everyone in this country. That is the good news.

We are now in day 2 of the Federal shutdown. If we listen to some Members across the aisle and in the other body, one might get the sense that it is no big deal. The Congressman from my own State said, the sky hasn't fallen. We have had government shutdowns and the sky hasn't fallen, the roof hasn't caved in. No big deal. I may have paraphrased a little bit, but that is basically what he said. They seem to think you can simply turn off the Federal Government for a few days or a month or two and it won't matter. I don't understand this attitude, but it is what we hear from Members of the other party.

Let me explain what a government shutdown means in the areas I am most familiar with as the chair of the Health, Education, Labor, and Pensions Committee and as chair of the Appropriations Committee that funds those programs.

As of yesterday, the National Institutes of Health stopped enrolling new patients in 497 ongoing clinical research trials. Of those trials, 255 are studying treatments for cancer and 50 involve children with cancer. These are ongoing clinical research trials right now—stopped—50 involving children with cancer. What do you say to those families? Clinical trials can't be completed if they don't have enough patients. But as long as there is a shutdown, the process stops.

I remind everyone, when I am talking about NIH I am not just talking about Bethesda, MD. I am talking about all over this country. NIH funds research and clinical trials in every State in this country. As of yesterday, the NIH began turning away people from its clinical research center. Each week of a shutdown, NIH estimates it will close its doors to 200 new patients who need help. Also yesterday the NIH stopped processing applications for new research grants. These applications are submitted by scientists all over the country, from universities and other places in our States, not just from Bethesda and not just from Washington, DC.

We might say OK, so they have stopped processing new research grants. So what. The sky hasn't fallen, the roof hasn't caved in, according to the Congressman from Iowa. We have no idea which of those grant applications might lead to the next cure for cancer or Alzheimer's or diabetes or might be that one bit of research that fits into that slot where other people can build on it to find cures. But so long as there is a shutdown, none of them will be considered. That is the effect on NIH.

I understand the House is proceeding to some kind of a measure to pass an appropriations measure just for NIH and maybe a couple other things, and they are going to send it over here. Do you know what they are missing if they want to talk about health? They are missing the Centers for Disease Control and Prevention.

The CDC is the premier public health agency—not just in America but in the world. The people who work there protect America from threats to our health and safety like infectious diseases, chronic diseases, outbreaks of foodborne disease. As of yesterday, the CDC—the premier public health agency in the world—is shut down. All of their labs are closed. The scientists are furloughed. The expert hotlines that physicians and the public call for information are turned off. The emergency operations center is on a skeleton crew for outbreak response. Maybe that

should give us some comfort. But the CDC is not doing any disease monitoring. So who is going to sound the alert if they are not doing the monitoring? I have to add, viruses don't just break out when the government is open.

I will never forget what our former chairman of the Appropriations Committee, and under whom I served some years ago, Mark Hatfield, the great Senator from Oregon, said when he gave his final speech here on the Senate floor. I remember it well. I remember him saying it is not the Russians are coming, the Russians are coming; it is the viruses are coming, the viruses are coming.

Senator Hatfield was looking ahead because he knew what was happening. We know for a fact that the viruses are coming because October is the beginning of flu season. And yet because the government is shut down, there is no one at CDC monitoring influenza.

Why is that important? For most of us, I suppose flu is an inconvenience. For most of us, we can go down here to the doctor's office and get our flu shot. But for many people, flu can be a matter of life and death. More than 200,000 Americans are hospitalized from flu every year. In a mild year, 3,000 Americans who get the flu will die. In a severe year, that toll can rise to almost 50,000.

So right now is precisely when the Center for Disease Control should begin monitoring which strains are circulating across the country, which communities are being hit hardest, so they can isolate it, find out what is happening, and keep it from spreading. As long as there is a shutdown, the CDC is not doing this.

This past April, a new strain of flu, H7N9, appeared in China during their flu season. It is very deadly. Twenty percent of the people who got it died. Thank goodness, we haven't had that outbreak in America; but as long as the CDC is shut down, no one is watching for it. No one is monitoring to see if that strain of flu might cause an outbreak someplace in this country.

I say that to tell people we may think everything is just fine and dandy. My fellow Congressman from Iowa may say, well, the sky hasn't fallen, the roof hasn't caved in. And I hope and pray we don't have an influenza outbreak. I hope and pray we don't have any serious virus outbreaks in the next few days. But viruses don't just wait around for the government to be open.

The PRESIDING OFFICER. The Senator has used 10 minutes of his time.

Mr. HARKIN. Under what order are we proceeding?

The PRESIDING OFFICER. There is a unanimous consent agreement that Senators will speak for 10 minutes.

Mr. HARKIN. I have more to say about the Centers for Disease Control, but I guess I will have to seek my 10 minutes later on in the day.

I thank the Chair.

The PRESIDING OFFICER. The Senator from New Hampshire.

Ms. AYOTTE. Mr. President, if the Senator from Iowa needs a couple of minutes to wrap up, I don't think I will take my whole 10 minutes so I would be happy to cede to him a couple of minutes.

Mr. HARKIN. I thank the Senator. She is very kind. I have at least another 5 to 7 minutes to go. I have some data from CDC that I want to put in. So I thank her very much.

I have been talking about the Centers for Disease Control and what the shutdown means in terms of monitoring outbreaks, food-borne outbreaks, illnesses, virus outbreaks—and that is not happening now.

I want to turn to another thing; that is, what CDC is and how CDC keeps Americans safe every day, and that is in food safety.

The Centers for Disease Control has stopped its epidemiological work to identify potential outbreaks and link the outbreak to a food source. I can't tell you what might be missed while the CDC is shut down. I can give a few examples where recently the CDC has sounded the alarm and kept Americans safe.

Only 12 days ago, 162 people in 10 States became ill with hepatitis A as a result of eating contaminated frozen berries—the kinds of mixed berries you get in the grocery store freezer department. The States are as far apart as Arizona, California, New Jersey, Hawaii, and Wisconsin, but because of the expertise of the Centers for Disease Control and Prevention, they were able to go out, get this secured, recall the food, and trace it down. They traced it, believe it or not, to some pomegranate seeds that came from Turkey—not America but Turkey. This is another way in which the Centers for Disease Control protects the safety of Americans.

In August cyclospora infected 643 people who ate a particular salad mix in 25 States. A lot of people may remember that. The outbreak was first identified in my home State of Iowa. They immediately called the Centers for Disease Control, and then the CDC got a hold of other States. The next place it popped up was Texas—Iowa, then Texas. They traced it. CDC put its detectives, as I call them, to work. They isolated this salad mix, and it was traced to a place in Mexico. It was recalled. Yes, 643 people got sick, but we stopped it before it spread any further and before anybody died. That is what the CDC did.

Now, because of the government shutdown, CDC has stopped.

I hope there is not another outbreak like this, but one never knows. But the detectives on the CDC epidemiology team are now furloughed. What does that mean for the safety of Americans?

When the Congressman from Iowa on the other side said: Well, you know, the sky hasn't fallen and the roof hasn't caved in because the government has shut down, implying that it is no big deal, I hope and pray we don't have a virus outbreak, a bacteria outbreak, or a food-borne outbreak such as I just mentioned. Well, will food contamination happen tomorrow? Will a flu outbreak happen this weekend?

I have heard people say: We shouldn't be too concerned about the shutdown. It might last only a few days.

To those I ask, how many days can we afford to lose when a virus emerges? In those few days, how many people will buy and eat a contaminated product? How many more people will catch the flu, West Nile virus, hepatitis or E. coli? I could go on and on. How long can we afford to put a blindfold on the Centers for Disease Control and Prevention?

I am not trying to unduly frighten anybody, but I am telling the facts. What I said here happened recently. This is not mythological. This is not maybe. These things actually happened within the last few weeks in America. People got sick. People lost work.

Again, we have to be concerned. Yes, maybe the sky hasn't fallen or the roof hasn't caved in. Is that what we have to have happen before we reopen the government? I say to that Congressman from Iowa, is that what has to happen—must a lot of people have to get sick, or do lot of people have to die? Then maybe we will say: Oh, I guess now we have to reopen the government. What a terrible way to run a government.

In another area—and again I am talking about things under my jurisdiction as the chair of this committee—the Social Security Administration furloughed 18,000 Federal employees and Social Security officers across the country—29 percent of the agency's workforce.

I suppose some would say: Well, so what. They are just bureaucrats.

Let's take a look at them. Checks will still go out, Social Security checks will still go out, disability and retirement claims will still come in, but that is it. What that will mean is delays in basic services for the 180,000 people who visit a Social Security office every day in America or the 445,000 people who call Social Security offices every day who have a problem, who have a question, maybe a lost card. Need I mention what it means when you have a lost Social Security card, don't have that ID, trying to get some health care services or something else and you don't have your Social Security card? Some 22,000 Americans a day file for retirement benefits. Twelve thousand a day apply for disability benefits.

As I said, Social Security will continue to accept those, but nothing will happen. That means the backlog piles up and piles up and piles up every day. Twenty-two thousand a day file for retirement benefits. They can file it, but nothing happens. So that just builds up day after day after day, and the backlog gets worse.

It already takes about 13 months, on average, to get a decision on an appeal for disability benefits. With this shutdown, it is going to be longer. It is going to be 14 months, 15 months and 18 months, and on and on. If you need a new Social Security card, sorry. As long as there is a shutdown, you can't get one. You cannot get a new Social Security card. If you need to replace your Medicare card, tough luck, you are going to have to wait a long time.

The Department of Labor staff, who investigate worker violations such as wage theft, will be at home instead of on the job. Some worker protection staff are still on the job but they are only looking at the highest risk facilities or responding after an accident has occurred. This isn't acceptable.

Take, for example, MSHA, the Mine Safety Health Administration. It is unable to conduct all of its required inspections because of the shutdown. How many safety and health violations won't be identified and corrected? How many miners are at risk of lifelong injuries and illnesses because of this shutdown?

As someone remarked the other day: You know, these mine operators, they can smell a mine inspector 2 miles away. Well, now, what are these mine operators going to do, when we know what their track record has been in the past, violating safety precautions? When they know they are not going to get inspected, will they ramp up production? They will get as much out of their miners as they can and they won't worry about the safety because the inspectors aren't coming around. How many miners will have their health affected or will be injured? I certainly hope not die, but you never know. That is just at the Department of Labor.

The PRESIDING OFFICER (Mr. BLUMENTHAL). The Senator has used 10 minutes. I apologize for interrupting him.

Mr. HARKIN. I ask unanimous consent to speak for 10 more minutes.

Mr. President, it is not just our current workforce that is impacted by this stalemate. The government shutdown is also threatening to shut the door at Head Start classrooms. This month, grants for 22 Head Start providers are scheduled to be renewed. These are simply continuations of existing grants. The providers have already enrolled children. But after a shutdown, this funding will be cut off. As a result, 18,000 children and families that those programs serve are going to be losing access to early childhood education services this month—this month—this month.

As I said, I could go on and on, but I just wanted to point out how people are being affected by this shutdown. It may not be visible to all, but it is there, and it is hurtful to them and their families and to our country. This shutdown needs to stop. It is time for cooler heads to prevail. It is time to end this mindless, damaging, preventable shutdown.

There is one simple way to do it. All the Speaker of the House has to do is bring up a clean continuing resolution which is sitting over there right now—bring it to the floor of the House. The votes are there to pass it, and the government will be back in business tomorrow. If he did that, the shutdown would be over, and Americans would know their safety and health—everything from food to illnesses to viruses to bacteria and food safety—will again be protected by the Centers for Disease Control and Prevention. We would know the research and the operations of the National Institutes of Health will continue. We would know our workers will be safe once again on the job because of the Department of Labor. We would know our Social Security offices will be open and running and will be able to process claims and issue new Social Security cards and Medicare cards.

I just want to make it very clear there are a lot of people being hurt by this. They may not be on the front lines or highly visible, but they are out there and they are being hurt today. It is a shameful, shameful comment on a great nation like ours that we continue this government shutdown, hurting so many people in this country.

With that I yield the floor.

Ms. AYOTTE. Mr. President, as I said before—and I said certainly as I came to this floor last week—governing by crisis is no way to run a government. We simply have to get our act together and work together to get the government funded again, to not lose the forest for the trees in terms of addressing the fiscal challenges our country faces, to come up with a fiscally responsible plan that puts our Nation first and puts us on a path to economic security. And, frankly, we have wasted too much time and energy on political brinkmanship and self-inflicted fiscal crises that also keep us from focusing on the real challenges we face, including our $17 trillion in debt, an economy that could be much stronger than it is right now to create the best climate for jobs in this country.

As I came to this floor last week, I reiterated my strongly held opposition to ObamaCare because I have seen the impact, hearing from businesses and individuals in New Hampshire concerned about rising health care costs. In New Hampshire, we only have one insurer that will be on the exchange, and 10 of our 26 hospitals will be excluded from the exchange.

But I also said last week that shutting down the government in an attempt to defund ObamaCare was not a winning strategy for success. Why? We have already seen exhibit A why it was not a winning strategy for success—because the government shut down yesterday and the ObamaCare exchanges opened and continued anyway. Why is that? We knew in advance that the Congressional Research Service had told us that the mandatory funding piece that was put in ObamaCare would continue even if the government were to shut down. We have seen that happen.

While I continue to believe this law is wrong for America because it is causing rising health care costs, because of the notion—in fact, I think it was well said recently by the chairman of the board of trustees of the Frisbie Memorial Hospital, who originally supported the Affordable Care Act but recently came to say: I supported it because we were told we could keep our doctor, and that has turned out to be a lie.

I certainly want to work with my colleagues to do whatever I can to come up with ways that we can repeal ObamaCare, replace it with reforms that are actually going to drive down health care costs, allow people to keep their physicians, and foster more competition in the insurance sector to give people more choice, but we need to end where we are right now. We need to come to a resolution to keep this government funded in a fiscally responsible way.

I am glad congressional leaders are going to speak to the President tonight. We do not need another photo op. What we need is results. We need both sides of the aisle working together to negotiate, to come up with a plan to fund the government, to move forward, to find common ground.

I know there is some common ground in areas of ObamaCare that both sides of the aisle are concerned about—for example, the medical device tax. When we had the budget votes earlier this year, the vote was 79 to 20 to repeal the medical device tax. Members on both sides of the aisle decided that tax was not good for innovation, for jobs, and that it drives up health care costs. That is an area where we have had some common ground in how we can affect this health care law—a health care law I still deeply oppose, but it is time for us to make sure we can get the government funded again.

Why? In my home State of New Hampshire right now, at the Portsmouth Naval Shipyard—one of our Nation's four public shipyards—the skilled workers there are being put in jeopardy. They have a very important function to defend our Nation, to maintain our Virginia-class submarines. Yet, due to the government shutdown, more than 1,700 workers at the Portsmouth Naval Shipyard are being furloughed. Instead of maintaining our submarine fleet and defending our Nation, they are worried about their paychecks. It is wrong.

For our National Guard, more than 330 of our New Hampshire National Guard military technicians are being furloughed. These individuals lost 25 to 30 percent of their pay this summer when they were furloughed because of sequestration. This is no way to treat Americans who are helping defend our country. They play a critical role in the operations of our Guard. Yet we are also being told that the New Hampshire Air National Guard—if they do

not receive more furlough exceptions, they may have to shut down their air-refueling and air-bridge operations to Europe and the Middle East. This is about the defense of our Nation. Many of them canceled their civilian job days at work to come to their drill weekend this weekend, which is now being canceled, so they are losing those days of pay as well.

Yesterday I was answering my phones. I had a constituent call me saying that his family had saved for years for a vacation, that it was going to cost them $25,000 to $30,000, and they were at the Grand Canyon. They said: Senator AYOTTE, what is going on? We took our kids out of school for 2 weeks, we saved for years for this vacation, and we cannot go down into the canyon.

We must get this resolved, and we must look for common ground on both sides of the aisle to negotiate this, to get a responsible fiscal plan for the Nation.

By the way, we are fighting about 6 weeks of a continuing resolution right now. Give me a break. We should be looking at long-term funding for this Nation, not 6 weeks. To have this kind of impasse over 6 weeks? I can understand why the American people are frustrated and angry.

All I can say is that tonight, as congressional leaders on both sides of the aisle meet with the President of the United States, we do not need any more posturing. Let's give up the blame game on both sides. No more photo ops. You have all seen enough photo ops at this point. Come out of that meeting with results. Yes, results means that both sides are going to have to negotiate. Both sides are not going to get everything they want, but that is what people do in their daily lives. That is what I know people in New Hampshire do to resolve their differences. That is what the American people expect of us.

I hope this ends soon so we can move forward on behalf of this great Nation.

The PRESIDING OFFICER. The Senator from Vermont.

Mr. LEAHY. On Tuesday at midnight, the Federal Government shut its doors, closed for all but the most essential business concerning national security and the safety of the American people.

Mr. President, you know Vermonters, like Americans in every State and town of this country, are frustrated. They are angry and confused. They have seen Congress's inability to do its job and keep the government running. They have seen us pass a budget—we passed a continuing resolution here in the Senate—and a small group in the House of Representatives, a small group of Republicans said: No, we have to have everything we want or nothing.

Visual consequences of the shutdown can be found around Washington, where museums and national monuments are barricaded. But it is more than just that. It is more than that.

In the States, national parks and national refuges have closed their gates and thousands of Federal offices are shuttered. We heard this morning in the Senate Judiciary Committee from the Director of the National Security Agency, Keith Alexander, that as ''each day goes by, the impact and the jeopardy [of a shutdown] to the safety and security of this country will increase.'' That is true, but the toll of this needless exercise is just beginning to be felt.

While some decry Federal spending as though it were some kind of communicable disease, millions of American families—Republicans, Democrats, Independents—rely on government-supported programs that provide the very lifeline keeping them afloat. Key nutrition programs like the Supplemental Nutrition Assistance Program support 100,000 Vermonters. Another 1,600 children and families benefit from Head Start. They are the ones who are going to create and run our jobs in the next generation. More than 117,000 seniors are enrolled in Medicare, and close to 200,000 Vermonters are enrolled in Medicaid. These Vermonters will continue to receive assistance through the shutdown, but at what pace, when and for how long is uncertain. They do not know how long this is going to continue.

The shutdown is hurting in other areas, too. Buyers hoping to purchase a home with a loan from the Federal Housing Administration will be turned away. Can you imagine that ripple effect, when real estate has finally started to pick back up?

What they are saying is: oh, the economy; we worry about the economy. They are trying to kill the economy by not letting the Federal Housing Administration work.

Our Nation's readiness to respond is threatened. In Vermont alone, 450 technicians in the National Guard were furloughed yesterday, and another 100 were released from active orders. That has a financial effect, of course, but the national security effects are amazing.

In Vermont we have a lot of agriculture. For farmers in Vermont requiring assistance from the Department of Agriculture, there is no one in the field and no one in the office; over 200 USDA workers—who, especially at this time of the year, are there to help Vermonters—have been forced to close up shop as a result of the shutdown.

WIC, the supplemental food program for pregnant women and young children is 100 percent federally funded; there is only two weeks of funding available in Vermont for the nearly 16,000 participants in the State.

We will say in two weeks, sorry, child, or sorry, pregnant woman, we cannot feed you. Can you just wait until we get our act together? We are eating very well, but could you go without food for a few weeks because we have a few more press conferences and a few more photo ops?

What will happen to them? Our Republican colleagues in the House will not say. They apparently do not care.

Just yesterday, my office heard from one Vermont organization, Rural Edge. With the assistance of the USDA Rural Rental Housing Loan Program, Rural Edge is building much needed affordable rental housing in St. Johnsbury, VT. The time has come for Rural Edge to pay their contractor. They have the money, but nobody is home at USDA's Rural Development office to authorize the payment, and the work is likely to stop. People are apt to be laid off. Winter is going to come, and the time to construct this affordable housing will be lost. This is just one of countless examples of how this needless shutdown has already started to impact my State. Every Senator could tell similar stories.

Many Americans think a government shutdown is a Washington, D.C. problem, and that the hundreds of thousands of Federal workers furloughed live in or near the Nation's capital. Nothing could be further from the truth. Federal agencies operate in all 50 States. We know that. More than 40 Federal agencies operate in Vermont, from the Department of Homeland Security, to the U.S. Postal Service, the Veterans Administration to the Department of Defense, the Department of Agriculture to the Department of Justice.

These agencies employ over over 7,000 people in my little State alone. Nearly 1,000 of these employees reported to work on Tuesday only to receive a furlough notice. These workers and their families are facing an unnecessary financial hardship, all because a handful of ideologues in Washington have elected to shut the government down rather than come to the table to find an acceptable way to pay our bills and respond to the needs of the American people.

These people have families. They have mortgages. They have payments. They have medical expenses. Suddenly, we said: Oh, I am sorry, people; Republicans in the House of Representatives—a small segment of them—are saying, we are making points for our supporters, so tough for you. You are not going to find an acceptable way to pay your bills. We want you to pay your bills; we are just not going to pay ours.

Failing to fund the government does not simply mean Federal workers are furloughed and government programs are suspended. No. Revenue streams for the Federal Government also dry up.

The Department of Education? Nobody is there to collect on defaulted student loans.

The Department of Justice? Civil fraud investigations and litigation, including False Claims Act and fraud cases that bring a lot of money back to the government, are on hold.

They are on hold.

The Internal Revenue Service? Audits that recoup millions in owed taxes

are suspended. Billions of American taxpayers' dollars invested across the country and around the world. A shutdown means no one is home monitoring those investments.

After ping-ponging a continuing resolution back and forth, the House of Representatives has now adopted a piecemeal approach to reopening the government, agency by agency. Cherry-picking the parts of the government they want to fund is no way to fulfill our responsibilities to the American people. Come on.

If they really care about having the government going, they should pass the appropriations bills and go to conference. Let's do it without being filibustered here by some of their same supporters. Go to conference and vote them up or down.

If Republicans in the House were so concerned with staffing our National Parks, they should have passed an Interior appropriations bill which would have funded not only the National Park Service, but also the Environmental Protection Agency, the Forest Service, and other agencies.

They did not.

If Republicans in the House want to address funding for individual agencies, there is a clear path forward. Let's reopen the government and get to the business of passing and conferencing appropriations bills in regular order. Let's consider the spending bills that include funding for the National Parks and the Smithsonian, but which also include funding for wildfire prevention and clean drinking water.

Let's consider spending bills that fund the District of Columbia, along with the Treasury and Federal Judiciary.

The Democrats in the Senate have passed a continuing resolution to fund all Federal agencies and would provide us the time needed to consider a path forward over the next 6 weeks. This is a crisis driven by a handful of partisans in the House of Representatives who say: No, we can't do it.

Vote after vote, day after day, the Senate has rejected one flawed House proposal after another, and still the House has not voted on the clean continuing resolution passed by the Senate. For a handful of House members, there is no path to compromise to keep our government running.

We are elected officials sent here to make decisions—not slogans—on behalf of our constituents. We are sent here to make government work for the American people. This Vermonter, like so many others, is sick and tired of the politics-as-usual approach that has led to this shutdown.

Let's come to the table. Let's be grownups and do what we said we ran to do. Let's work together for the good of the American people, reopen the government, and find a responsible and reasonable way to get our fiscal house in order.

It's time for each of us to be a leader, not a sloganeer.

The PRESIDING OFFICER. The Senator from Indiana.

Mr. COATS. Mr. President, today is day 2 of the ongoing government shutdown, and negotiations to find a resolution to our differences remain at a stalemate. Actually, I don't think we can use the word ''negotiations'' because you really can't negotiate if there is only one side at the table. It takes two parties, and there is only one party there. Yesterday Majority Leader REID made it crystal clear when he blocked the House Republican proposal to sit down and talk. For months we have heard that Republicans need to sit down and talk—from the Senate. The House sent over a bill to do just that, and the majority leader blocked that.

To say that the people in my State are frustrated with this type of action is an understatement. Hoosiers and Americans are tired of the ongoing dysfunction in Washington and the inability of Congress and this administration to do our job. We can't do our jobs if we are not talking to each other and if the White House continues to be absent.

I recently learned that the President has called congressional leaders from both parties to come to the White House. I initially thought that was a positive step, but then I heard the news that the White House has already released a statement saying the President is doing this to reiterate he will not negotiate. So my question is: What is the point? Maybe it is a chance for a photo opportunity, but certainly no progress will be made on the stalemate we are addressing today, tomorrow, and perhaps for weeks ahead.

It is ironic that the President is willing to talk and negotiate with the President of Iran or the President of Russia but is unwilling to negotiate with Republicans or Democrats in the Congress. Sadly, this has been the model over at the White House—continued campaigning, ignoring governing, and assembling pseudo-campaign-like settings to blast Republicans. This is not a helpful strategy to achieve a resolution to this shutdown.

We have seen a series of attempts by House Republicans to send over legislation that would at least fund some of the more dysfunctional effects of a shutdown. Fortunately, we agreed we will fund our troops. They are in harm's way. They have families at home who are trying to pay the mortgage, keep things together, buy food for the kids, save money for their education. They do all of those things while their spouses are overseas defending our country. It would be unconscionable to stop their paychecks, and that is the positive step we have taken.

House Republicans have also offered a number of other initiatives—all of which has been deep-sixed by the majority leader. They are not even allowing debate—we can do that in this morning business time—under the bill. We simply have a motion to table which does not even allow us an up-or-down vote.

I wish to mention two things that the House is going to send over—and it may already be here—which is five more proposals and they also involve our uniformed soldiers. I am a U.S. Army veteran, but I think every American—whether you are a Democrat or Republican, veteran or not—would agree we have a duty to remember, honor, and support those who have sacrificed so much to protect and defend our country. When they complete their service and come home, those veterans deserve to receive the care and support they need.

The House has sent over an act called Honoring Our Promise to America's Veterans Act. It is a bill that would provide funding for disability payments, the GI bill, education, training, and VA home loans under the same conditions as in effect at the end of the just completed fiscal year.

This legislation needs to be brought before us. It needs to be debated, and it needs to be passed—hopefully unanimously. I am asking the majority leader not to deep-six this legislation. This is too important for our veterans, it is needed, and it should be funded. Any attempt to deny this, I believe, would be a great disservice to the men and women who dedicated so much and put themselves at so great a risk to serve in our military.

Another one of those proposals—and there are five, but I will just talk about two—is the Pay Our Guard and Reserve Act. The bill provides funding for the pay and allowances of military personnel in the Reserve component who are scheduled to report for duty—many as early as this weekend. In Indiana, we have over 20,000 reservists and guardsmen. It is the fourth largest Army National Guard in the country and the sixth largest National Guard Force out of all of the 54 States, provinces, and territories when it is combined with the Air National Guard.

Indiana is home to two Air National Guard wings: the 122nd Fighter Wing in Fort Wayne and the 181st Intelligence Wing in Terre Haute, as well as the 434th Air Refueling Wing at Grissom Air Reserve Base.

The Senate unanimously approved to pay our troops and remove them from the crossfire of the government shutdown debate. Let's do the same for our reservists and guardsmen who are doing their traditional duty of one weekend a month for, as Winston Churchill said, ''They are twice the citizen.''

Some things simply need to rise above politics. Let's join together, address this issue, and make sure the men and women who have served our country do not pay the price for Washington's failure to govern.

I yield the floor.

The PRESIDING OFFICER. The Senator from Georgia.

Mr. ISAKSON. Mr. President, I ask unanimous consent that immediately

following my remarks, the Senator from Vermont, Mr. SANDERS, be recognized.

The PRESIDING OFFICER. Without objection, so ordered.

## TRIBUTE TO CHRIS CARR

Mr. ISAKSON. Mr. President, I rise not to talk about ObamaCare, not to talk about a shutdown, not to talk about the debate we have been going through the last couple of days but, rather, I rise to talk about a man by the name of Chris Carr, who is my chief of staff and has been my chief of staff since I have been in the Senate.

Chris will be leaving my office on November 1 to become the commissioner of economic development in the State of Georgia. It is a tremendous opportunity for him and my State. While it is a loss for me personally, it is a continuation of economic development in my State, where my fingerprint still lies because he will be replacing my former State director, Chris Cummiskey, who has been the commissioner of economic development in the State of Georgia, which means I will still have that fingerprint there.

Chris is a very special person who deserves a tribute on the floor of the Senate for all he has done for me, not just as a Member of the Senate or as my chief of staff but as a deep and abiding personal friend.

Chris joined me in 2003 when I announced I was going to run to replace Zell Miller, who retired as a Senator from Georgia. Before that, Chris had been an attorney at Alston & Bird for what he always refers to as a 15-minute brief time of period. But he went on from there to be an adviser to the Georgia Public Policy Foundation, and a dear friend of ours by the name of T. Rogers Wade, who, by the way, was the executive director for Herman Talmadge and chief of staff years ago in the Senate.

Chris joined me in 2003 for a great adventure—my race for the Senate. He guided us through a primary a lot of people said I couldn't win and a lot of people said I would never win without a runoff. My two opponents were a former Congressmen from the State of Georgia and Herman Cain, who everybody knows later ran for President of the United States.

Georgia is a primary State that requires 50 percent plus 1 in terms of votes. So we had to get 50 percent plus 1 in a Republican primary. We did that without a runoff because of Chris's leadership, his dynamics, and his hard work in how he guided that campaign.

We won the general election by 58.8 percent. I brought Chris to Washington, DC, to be my chief of staff in my office, and he has done a phenomenal job. He has traveled with me to Africa—as the Presiding Officer knows because he has been with us on some of these trips. He has guided me through difficult times in my journey from the Foreign Relations Committee to the Finance Committee to the Commerce Committee. He has been a great guiding hand.

Most important, he brought together a staff that has been loyal, dedicated, and gotten the job done for the people of the State of Georgia.

Chris is a great Georgian. He is what we refer to in our State as a ''double dawg.'' He graduated with his undergraduate degree from the University of Georgia—which I might add beat LSU very handily last Saturday—and then went to law school at the University of Georgia to get his second degree, a bachelor of law degree from the University of Georgia.

After that he went on, as I said, to Austin & Bird, and then to the Public Policy Foundation, but he has been with me ever since—almost a decade. During that period of time, he has served me as chief of staff. My deputy chief of staff, Joan Kirchner, will be replacing him as chief of staff, so we will have a continuity of service in our office.

I know I would not be where I am today if it weren't for Chris Carr. I know the State of Georgia is going to go places it never thought it would go because of his guiding leadership as commissioner of economic development.

So for a brief minute on the floor of the Senate, I wish to pay tribute to a friend, a chief of staff, a leader, someone who has had a positive influence on my life but, most importantly has had a positive influence on his country, the United States America.

I am thankful to Chris Carr for his support and thankful for all he has done for my State, my country, and our office.

I yield back my time and defer to the Senator from Vermont.

Mr. SANDERS. I thank the Senator from Georgia for yielding, and I ask unanimous consent to address the Senate.

The PRESIDING OFFICER (Mr. BROWN). Without objection, it is so ordered.

The Senator from Vermont.

## CONTINUING APPROPRIATIONS

Mr. SANDERS. Mr. President, in Vermont and all across this country there is huge frustration with what is going on in Washington. It is clear to me that with the middle class of this country disappearing, with millions of Americans working longer hours for lower wages, with poverty today at an alltime high in terms of the number of people living in poverty, with young people graduating college deeply in debt and others not having the resources to go to college, with real unemployment at close to 14 percent, youth unemployment higher than that, minority unemployment very high, an infrastructure that is collapsing, with the IPCC, the scientists all over the world who are studying global warming and telling us we have a planetary crisis that must be addressed by cutting greenhouse gas emissions, what people are seeing is that we have all these problems affecting them, their kids, and the planet, and in the Congress we cannot even get a budget passed.

People are angry in Vermont and across the country and they are frustrated. I know many people are saying a plague on everybody; you people are all terrible.

I just hope we can go a little bit beyond that and try to understand, in fact, what is happening and what the cause of this terrible government shutdown is and why 800,000 decent people who happen to work for the Federal Government are not at work, are not earning a paycheck, and are scared to death about how they are going to provide for their families or take care of other basic needs.

How did it happen? I think, very simply, what we should understand is that the Senate passed a conservative budget—continuing resolution—until November 15. It was much lower than I had wanted. In fact, it is a Republican budget. It includes this terrible sequestration—something I strongly opposed—that was passed as a compromise gesture, and it was sent to the House.

Here is the most important point people need to understand in terms of what is going on in Congress: Right now, according to a very knowledgeable source, the House of Representatives has the votes to pass a clean continuing resolution, the bill that was passed in the Senate. They have the votes. It is not a question of the Speaker coming forward and saying: Gee, I just don't have the votes. They have the votes.

The political problem is that the Speaker of the House of Representatives has chosen to be the Speaker of the Republican Party, not of the whole House of Representatives. What is happening is he has 30 or 40 extreme right-wing people who are absolutely insistent that they want to repeal or defund the Affordable Care Act, or ObamaCare. The only way they will support any budget is if there is language in it that defunds ObamaCare.

The reason we cannot support that language is not just because ObamaCare was passed close to 4 years ago and signed by the President and it is the law of the land, it is not just because the U.S. Supreme Court ruled that it was constitutional, it is not just because there was an election held last year in November in which this was perhaps the major issue and the President won reelection by 5 million votes—and in the Senate the Republicans lost two seats and in the House they lost some seats—the real reason we cannot accept that language is that we would begin to accept a terrible precedent.

What the precedent would be is that it doesn't matter what happens in an election. It doesn't matter what happens in terms of the normal legislative

process of the Congress. What we would be saying is that a small group of people can blackmail the American people and hold the American people hostage unless they get their way.

If they are successful in succeeding in terms of what they want to do right now, I can absolutely guarantee that in 2 weeks, when this Congress and the White House are going to have to deal with the debt ceiling and the question of whether, for the first time in the history of the United States of America, we do not pay our bills, the money we owe, we could drive the American financial system and the world's financial system into what economists are describing as a catastrophic situation. Nobody knows what will happen. It has never occurred before, that the largest economy in the world would say, We are deadbeats; we are not paying our bills. But some economists believe this could have a huge impact all over the world: financial chaos, significant shrinkage of GDPs all over the world—gross domestic products—more and more unemployment, at a moment when the world's financial system is already fragile.

People don't have to believe BERNIE SANDERS in saying that. Ironically, we have all of these guys on Wall Street—no friends of mine. We have the Chamber of Commerce and all the multizillion-dollar businesses, saying to the Republicans: Don't do it. Don't take us over the edge; it will have a catastrophic impact on the economy.

When we talk about what is going on here, I don't want people to take my word for it. I have a political position and people know what that is. But I want you to hear what some responsible Republicans are saying about the reckless actions taking place in the House. I am not going to read them all, but let me read just a few. These statements are what Republicans are saying about the House Republican attempt to attach ObamaCare to the budget resolution and bring the U.S. Government to a shutdown.

SAXBY CHAMBLISS, Republican Senator from the State of Georgia, who is no friend of ObamaCare, says:

I'd love to defund ObamaCare too, but shutting down the government and playing into the hands of the President politically is not the right thing to do. Plus, it is going to do great harm on the American people if we pursue that course. We have been there; it didn't work.

DAN COATS, Republican from Indiana, on the floor a moment ago:

Here's the hard truth. President Obama will not overturn his signature legislation so long as he is President and the Democrats have control of the Senate. Along with these political realities, refusing to pass legislation to keep the government funded will not stop ObamaCare from going into effect.

Representative PETER KING, Republican from New York, in the House:

We should not be closing down the government under any circumstances. That doesn't work. It's wrong, and you know, ObamaCare care passed. We have to try to defund it. We have to try to find ways to repeal it, but the fact is we shouldn't be using it as a threat to shut down the government.

Many more Republicans are saying the same.

What we believe right now is that a significant majority in the House of Representatives today is prepared to end the shutdown if the Speaker will give them the opportunity.

Interestingly enough, while we have great discussions here about ObamaCare and many of my Republican friends come to the floor to say how terrible it is, the American people are today in a sense voicing their opinion on ObamaCare all over this country—in their homes and in their offices all across America. Nationally, more than 10 million Americans have gone onto the Web site healthcare.gov and other Web sites to look for affordable health insurance plans under ObamaCare or to receive more information—10 million Americans in a 2-day period.

The truth of the matter is 48 million Americans have no health insurance—something my Republican friends forget. Many of them are paying much more than they can afford for health insurance. So, yes, people want an opportunity to get insurance if they don't have it and they want an opportunity to get more affordable insurance if they can. So while these guys are talking about ending ObamaCare, millions and millions of people all across the country are trying to find out how they can get into the program, and these guys are saying, Well, we don't care what millions of people want; we are going to defund it.

I mentioned 10 million people have gone to the Federal Web site. In my small State of Vermont, more than 13,000 people have visited our Affordable Care Act Web site. California, if we can believe this—one State—has reported 5 million visits to its Affordable Care Act Web site. In Kentucky, more than 78,000 visitors have gone to its Affordable Care Act Web site. Importantly, Kentucky is the only State in the South that has chosen to participate fully in ObamaCare by both expanding Medicaid and operating a State-level health insurance exchange.

In New York State, almost 10 million people visited the Web site on the first day.

So, to nobody's surprise, if people don't have any health insurance, or if people today have health insurance they cannot afford, and they are given an opportunity to come into a program which provides them with some help, people are taking advantage of it.

As millions and millions of people are trying to figure out how they can get into the system, we have our Republican friends over in the House who are saying, No, we want to defund it; we don't want to give people that opportunity.

There is a Web site called nationofchange.org, a very good Web site. I wish to read some of the headlines they have assembled about how people are responding to the Affordable Care Act. In Connecticut: ''Health Care Plans Begin: 28,000-plus Go Online to State Marketplace.''

Georgia: ''Enrollment Sites Are Swamped On First Day,'' according to the Augusta Chronicle.

Idaho: ''Idaho Health Exchange Launches With Few Hiccups,'' Idaho Statesman.

Indiana: ''Insurance Marketplace Draws Strong Early Interest,'' from Journal and Courier.

Kentucky: ''Kynect Opens To High Demand,'' the Courier-Journal.

Maine: ''Insurance Marketplace Opens To Flood of Interest.''

Delaware: ''Off And Running In New Market: Website Overwhelmed On First Day Of Access.''

Michigan: ''Insurance Exchange Debut Draws Millions,'' the Detroit News.

New Mexico: ''ObamaCare: Plenty Of Interest, a Bevy Of Computer Snags.''

On and on and on.

Colorado: ''Heavy Traffic Slows Health Website On Debut Day.''

All across the country, to nobody's great surprise, people who have no health insurance are saying, Yes, we don't want to go throughout life worrying about whether we are going to go bankrupt or whether we are going to be able to go to a doctor, and they are trying to get more information about the Affordable Care Act, and they are signing up in huge numbers—higher than people had anticipated.

Our Republican friends in the House are saying, We don't care that on the first day 10 million people expressed interest in this legislation. We want to end it. We want to end it.

It passed. It is the law. Millions of people are signing up, gaining information. And they are saying, We will continue to shut down the U.S. Government, deny a paycheck to 800,000 American workers; we don't care what happens to them, unless we get our way. And right here in the Senate—and in the House—we have sensible Republicans who are saying what is obvious: You don't have to agree with ObamaCare. I don't agree with ObamaCare. I think it needs to be improved. I believe in a Medicare-for-all, single-payer program. But at least ObamaCare is providing health insurance to some 20 million Americans today who do not have it.

I think it is important to make a point that is not being made often enough in terms of putting what is going on today with this shutdown in a broader context. Of course we can have an argument over ObamaCare. I don't think it is perfect; I want to see it improved. But where our extreme right-wing friends in the House are coming from is a lot more than trying to end ObamaCare. Everybody needs to understand this, and I think there is too little discussion on this issue. What we are looking at is a small group of people—these are tea party folks, right-wing extremist people—people who are

funded by billionaires such as the Koch brothers who are worth some $71 billion, and I want to tell my colleagues what their vision is for America, because this is not just about ObamaCare. It is a vision for America and what these guys want to accomplish. For them, I should say—and some of them have been quite public about it—shutting down the government is great. It is great because they don't believe in the concept of government.

I think one of the good sources we can use to get a clue as to where these rightwing extremists are coming from is the Texas Republican Party platform of 2010. I want to use that. I could use other sources, but Texas is a very large State. Texas is today controlled by very conservative Republicans. And the truth is that the party platform of Texas, of one State, ends up being the—the ideas in it end up being adopted more or less by Republicans here in the Congress and all over the country. What they say is—this is not some small fringe group. I am not finding some whacko group out there. This is the State of Texas Republican Party platform of 2012.

I want to be very clear in telling my colleagues what this platform they have is about. These are the ideas by and large that our rightwing extremist friends believe in. It is about a lot more than ObamaCare. This is what the 2012 Republican Party platform states:

> We support an immediate and orderly transition to a system of private pensions based on the concept of individual retirement accounts, and gradually phasing out the Social Security tax.

Well, if we phase out the Social Security tax, we are ending Social Security. Goodbye, Social Security. In my view, Social Security is probably the most important program ever passed by this U.S. Government. Today, over 50 million people are in the Social Security system. Social Security has gone a very long way in lowering poverty for senior citizens. Before Social Security, it was close to 50 percent; now it is somewhere around 10 percent. We have a long way to go to get that number lower, but we have made real progress.

What they are saying is they want to eliminate Social Security funding, eliminate Social Security, and when they do that, I am not quite sure what happens to a working person when that person is 67, 68, 75 years of age. No Social Security. And for people who doubt me, go to the Texas Republican Party platform. I just read exactly their quote.

This is the other thing they want to do—and I speak now as the proud chairman of the Senate Committee on Veterans' Affairs. We have oversight over what the Veterans' Administration is doing. Within the Veterans' Administration right now, we have about 152 VA hospitals, we have some 900 community-based outreach clinics, we have hundreds of vet centers. In my view, they are providing not perfect but pretty good health care for the veterans of America, some 6 million of whom are now within the VA health care system. It is something I believe we should expand. I think we should make VA health care available to every veteran in this country.

This is what the Texas Republican Party platform says:

> We support the privatization of veteran's healthcare.

I am not quite sure what that means, but it means ending the VA system as we know it because the VA is a government-funded system. If you privatize it—you can do it in a million ways—but, most likely, it sounds to me as though you would give veterans a voucher, something similar to what the Republicans in the House wanted to do with Medicare. Give people a sum of money. Go out, find the doctor or hospital you need. I think that is a terrible idea for the veterans of this country. But, again, I quote the Texas Republican Party platform of 2012:

> We support the privatization of veteran's healthcare.

Another plank in terms of what they want:

> We support abolishing all federal agencies whose activities are not specifically enumerated in the Constitution; including the Departments of Education and Energy.

The PRESIDING OFFICER. The Senator's time has expired.

Mr. SANDERS. Did I have a time limit? I was not aware there was a time limit.

The PRESIDING OFFICER. The only time remaining is for Republicans.

Mr. SANDERS. I see. Let me conclude, if I may. I ask unanimous consent for 2 additional minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. SANDERS. Let me say this: This debate is a lot bigger than whether the Republicans are successful in shutting down the government because of their insistence that ObamaCare be defunded. This debate is about whether a minority of the people in the House of Representatives is able to blackmail and hold hostage the American people and the U.S. Congress and the President and say: If we do not get our way, we do not care what happens to 800,000 workers and the millions of people who depend on government services. We do not care. It is our way or the highway. And in 2 weeks, these same people, I assure you, will be saying: We do not care if there is an international financial collapse, maybe the loss of millions of jobs. We do not care unless we get our way.

To surrender to that approach would be a horrible precedent because I can guarantee you absolutely that if we move down that path of government, they will be back again and again, and maybe next year it is: We are going to shut down the government unless you abolish Social Security; we are going to shut down the government unless you end the concept of the minimum wage because we do not believe in the minimum wage.

I hope that Speaker BOEHNER becomes the Speaker of the U.S. House of Representatives and not just for the Republican Party. Let the Members of the House vote. And if they do, I believe this government will be reopened within hours.

With that, I yield the floor.

The PRESIDING OFFICER. The Senator's time has expired.

The Senator from Oklahoma is recognized.

Mr. COBURN. Mr. President, I will respond to a couple points my colleague from Vermont referred to. If one looks at the votes on everything that has come to the Senate thus far, I think the lowest vote total was 221, which is a majority of the House. A majority of the House spoke. What we do with it is our business here in the Senate. So it is not necessarily a minority of the minority. If it were, you would not have 221 votes. That is the first point I make.

The second: I do not know what the Texas Republican Party's platform is. But yours truly has thought that one of the things we ought to do for veterans is to give them real health care rather than promise them health care and then make them travel 200 miles to get it.

So part of privatization is giving veterans who have service-connected health care available to them a card that says you can go wherever you want so you do not have to travel—like in Oklahoma, if you are going to have a knee operation—145 miles to the VA center in Oklahoma City. You can actually get it done by an orthopedist who has a whole lot more experience than a local hospital, paid for at Medicare rates.

So the point is, there are options that will give our veterans better access than they have now. I do not know if that is what they are talking about. But that was part of the Patient's Choice Act that was never considered by the Senate.

I want to spend some time talking about where we are and why we are here, and then I want to talk about the continuing resolution, whether it has something attached to it or not.

As I look at the process, what I see us stuck on has to do with a principle that has been true throughout our Nation. When you do big things in government, the only way those things are successful is when they are done in a bipartisan manner. To quote Daniel Patrick Moynihan: Historic laws don't pass barely. They pass 70-to-30 or they fail. They either fail in implementation or they fail in acceptance by the American public.

I applaud the vigor of my friends in opposing the Affordable Care Act. As a practicing physician, I see what this is ultimately going to do. As the majority leader has spoken, the whole idea behind this—and I think my colleague from Vermont would concur—is for a

single-payer government system as a better solution.

Certainly what we had was not working well. I would not disagree with that. But not having a bipartisan health care bill, rather than a strictly partisan health care bill, has probably instigated a lot of the problems we have with this bill, besides the fact that over 62 percent of the American public do not favor this bill. They do not want the Government shutdown over it. That is obvious. But we are where we are.

One of the reasons we are where we are is failed leadership, both by Republicans and Democrats, and a polarization in our country that is not healthy.

So we have now said—with 800,000 employees on furlough, having a real but small negative effect on our economy—what has to happen when you have people far apart? What you have to have is leadership that says: I am going to try to solve this problem by brokering toward the middle. I do not know what that middle is. But what I have not seen yet in the leadership, including the President, is a willingness to find the common ground that will move us in a direction that puts us where we need to be.

The thing we forget too often in the Senate is that we are all Americans, every one of us. What we do up here matters. It has a profound effect on individual lives. The fact that we find ourselves unable to come to a consensus on this very difficult subject is what happens when you have an absence of leadership.

So it is great that the President is meeting or has met with the leaders of the House and the Senate. It would be great if they spent time working on a solution rather than giving press reports after the meeting. It would be good for all Americans if we were not in a government shutdown.

The very premise that you can get the President and those who have foisted the Affordable Care Act—which I think will be highly unaffordable for our children and us—to change this law at this time is probably not going to happen.

But there has to be a way for a continuation of dialog rather than to say: We will not consider anything. So the House today is going to offer up several bills that will actually take care of very great necessities of this country. It will be unfortunate if we do not consider them. We can vote them down. But not considering is not talking. It is not reaching across and trying to find a solution. It is hardening positions.

I would think the American people would want us to take a timeout and say: What are you doing? What is your job? I recently got a letter from the Liberty Foundation of America, from a man I greatly respect, Dr. David Brown, a renowned orthopedist in Oklahoma. What he is saying to people in America today is a recognition of the failure of our leadership.

I ask unanimous consent his letter be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

THE LIBERTY FOUNDATION OF AMERICA,
*Oklahoma City, OK, September 30, 2013.*

Subject: An Open Letter to the Leadership of the United States of America.

TO WHOM IT MAY CONCERN: The vast majority of the American people oppose the Affordable Care Act, many because the measure is proving to be quite unaffordable. We have a nation falling off the edge of the fiscal cliff, and the best our government can do is have our President assure the people that our deficit has decreased in its growth rate—meaning we are still going broke but luckily at a slower pace than before. We have an extremely dysfunctional federal government; the two legislative branches can't put aside differences to accomplish anything positive for the country, the executive is merely interested in popularity and amassing power, and the judiciary has forgotten how to read the Constitution. It has been stated, and surely was intended, that we have a representative form of democracy—one ''Of the People, For the People and By the People''—something for which many men and women greater than us made the ultimate sacrifice. Therefore, when the government reaches such a level of dysfunction and incompetence as present, it becomes imperative that the people take over responsibility and monitor that government with essential diligence. Today, our nation has reached a necessary impasse, with countless Washington-based solutions that solve little, if anything. Therefore, it behooves each and every state to monitor their representation in Washington—to the tune of each and every vote—and publicize this information, unedited, so the people can ensure their interests and that of their state are truly represented, as opposed to the vested Washington interests that currently enjoy splendor. The status of our country's ineffective leadership from all three branches and the unsatisfactory biased reporting needs to be bypassed for America to solve her problems.

To those elected officials in our nation's capital: Do not follow; lead or get the hell out of the way.

To my colleagues in each state-based organization: You are the closest to the grassroots—the people, the voters. Do your duty for the United States of America.

Respectfully,

DAVID R. BROWN, M.D.,
*Trustee; The Liberty Foundation of America, Chairman Emeritus; The Heritage Foundation, Chairman & Founder; The Oklahoma Council of Public Affairs.*

Mr. COBURN. He makes some profound observations about where we are and the lack of leadership. Here is a practicing orthopedist who loves his country, who wants us to solve the problems, who wants us to take back control of our government and do what is in the best long-term interests of the country, not what is in the best long-term interests of a politician or a political party. I think that is where we have gotten off. Everything is measured by the next election rather than by the next generation.

Although I do not always agree with my colleagues, as most of them know, I am willing to work and compromise and meet as long as we are attaining long-term good goals for our fellow countrymen and for our children.

The other issue I want to talk about is the CR itself, because lost in all of this battle is a CR that plays a lot of games on the American people. It is disappointing for me to see that we play games with mandatory spending by moving numbers from one year to the next year so we can actually spend more money in a present year.

I did not vote to have a sequester because I think it is an idiotic way to cut spending. But I do support trimming the spending of the Federal Government. As a matter of fact, nobody in the last 9 years has done more to offer amendments, to outline duplication, to outline fraud, to outline abuse than I have on the floor of the Senate.

So it is one thing to do it stupidly. It is wholly another to actually keep your commitments to the American people. The vast majority of my colleagues on the other side of the aisle voted for the Budget Control Act, as did most Republicans. So we have a commitment to keep our word.

I will outline to you that—first of all, I will make two points. One is that we are not keeping our word with the continuing resolution coming from the House. It actually will spend $38 billion more than what we promised the American people we would spend. I know in Washington $38 billion is not a large amount of money. But the way you get rid of trillion-dollar deficits is a billion dollars at a time—or $38 billion at a time.

I am disheartened we are playing the green-eyeshade and walnut-shell game on the American people with this bill.

To make my point, I would like to outline some of the spending and some of the false maneuvers that have been done in what is called CHIMPS, which are changes in mandatory program spending.

We have a program in the United States called the DOJ Assets Forfeiture Fund. These are funds that the Justice Department collects that are forfeited by criminals, by people breaking the law, whether it be a car in a drug bust or the money from a drug bust. So what we are going to do is take that money out of that fund, which goes toward things that actually enforce our law enforcement, and plus that down—in other words, steal that money—so we can spend more money somewhere else. That is just $723 million. It is almost $1 billion.

More concerning to me is the fact that there is a victims compensation fund in this country—and that is where criminals pay into a fund to compensate victims—there is $8.9 billion in that fund, supposedly. But last year the appropriators did exactly the same. They took that $8.9 billion and said they would pay it back next year—this year—and they were allowed to spend almost $9 billion more on other things, taking that money that should have been given to victims and spending it through the Federal Government.

Lo and behold, they did not add the $8.9 billion back this year. They counted the same thing again. So now we have $18 billion of not taxpayer money

but criminal money that should be going to victims that is now going to be spent on other things, and the victims will not receive the money that is due them through either court orders or judgments.

Finally, there is a lot of spending in the bill that most Americans would see as foolish. I thought I would outline just a little bit of it.

One other point I would make. The U.S. Patent and Trademark Office collects fees when you file a patent. For years they have been falling further and further behind. Thankfully, they got caught up. But the money that is paid for a patent application has been siphoned off, not for patent applications but for spending on other things. It is a user fee. Consequently, now it is over 8 months if you file a patent before someone ever even looks at that at the Patent Office. It is 27 months before you get a response. If we are going to get ahead and compete in this competitive world, we have to allow our Patent Office to work. They are taking hundreds of millions of dollars from the Patent and Trademark Office.

What does the CR spend money on that we really should not? Here are some examples for last year when we spent money that we should not have: funding for the National Science Foundation for the development of a Snooki, a robot bird that impersonates a female sage grouse; funding an NSF grant that studies American attitudes toward the filibuster in the Senate; an NSF grant, sitegrabber.com, a new Web site to rate the trustworthiness of other Web sites; an NSF grant funding ecoATM, a company commercializing an ATM to give out cash if you give them your old cell phone—that is totally a private separate sector venture, yet we are funding that, in an era when we have a $750 billion deficit this year and a $17 trillion debt—an NSF grant paying for participant expenses to attend an annual snowmobile competition in Michigan through 2015.

I do not think that is a priority when we are struggling to pay our bills.

I have a list of Department of Agriculture grants. I will put those in the RECORD.

We are still spending $30 billion a year for 47 job training programs, none of which have a metric on them. All but three, according to the Government Accountability Office, overlap one another, in other words, do the same thing.

There are 20 Federal programs across 12 different Federal agencies for the study of invasive species. I think we should study invasive species, but I do not think we should have 12 agencies studying them. I think we should have one agency study them. We ought to concentrate the dollars so we get good value out of that.

We are still sending unemployment checks to people who make more than $1 million a year.

We have 15 different financial literacy programs, a new one being created by the Consumer Financial Protection Bureau. This is across 15 different agencies. We are spending millions on that.

We are spending $1 million for NASA to test food that can be eaten on Mars 30 years from now. I would not think that is a priority.

We are spending $4 billion for 250 different grant programs at the Department of Justice which, as GAO says, has the worst record of any agency in terms of monitoring their grants and the veracity and the compliance of those grants.

We are spending $3 billion on 209 different programs for science, technology, engineering, and math across 13 different Federal agencies. I think it is fine if we want to incentivize that, but do we really need over 200 programs to do that? No, we do not. But we have not addressed any of that. It has been known.

We have the GAO out with a report, their third report this year, and they will come with another one next year, outlining at least $250 billion that could be saved by the Federal Government on duplicative services; in other words, multiple agencies doing the same thing, stepping on each other.

Not one bill has come before this body that addresses that $250 billion expenditure that could be saved every year, not one bill in this session of Congress. So we are having a fight over spending. Yet Congress is the very real problem we are having on spending. We need to look at what the real problem is. The real problem is the failure to do our job, the failure to look at programs and see if they are effective, the failure to look at programs and see if they are truly a role for the Federal Government as far as the Constitution and as far as common sense, a failure to offer substantive changes or have the ability to offer substantive changes to those bills.

I will conclude with one final remark. The Appropriations Committee did a good job this year, even though at higher levels above the Budget Control Act, of getting their bills in order. Only one of those bills was offered on the floor. It was withdrawn when Members of my caucus were not allowed to offer amendments, because it was not going anywhere if we were not allowed minority rights to offer amendments to change an appropriations bill. So we are doing a continuing resolution to fund the government and handicapping the very employees we are going to ask to make good decisions for our country, because we will not pass appropriation bills on time. We do not need a budget to pass appropriations bills, because we have the Budget Control Act that spells out where we are going to be on discretionary spending for the next 10 years. We know what the levels are.

Consequently, we end up at an impasse over a continuing resolution—over a continuing resolution that says we have not done our job anyway. I think what Dr. David Brown says in his letter is quite accurate. There is a total lack of leadership in this city, sitting at the executive branch, in the House and in the Senate. Only America can change that. I hope it does.

I yield the floor.

The PRESIDING OFFICER. The Senator from Delaware is recognized.

Mr. COONS. Mr. President, I come to the floor today to repeat a point that I think is worth repeating, which is that on this second day of the shutdown of our Federal Government, we need to focus more on manufacturing jobs than on manufacturing crises.

I have been here as a Senator now just 3 years. As the Presiding Officer knows, and many of my other colleagues know, the folks from home are calling us in record numbers to say they want us to listen to each other, to work together, and to try to help to get America back to work.

We all remember where we were 5 years ago at the depth of the fiscal crisis, our financial system in collapse and our economy on life support. Millions lost their jobs and millions more lost their savings. We have begun to recover and to heal. We have had 7½ million jobs created over the last 42 months, jobless claims are now at a 5-year low, and we have had 9 consecutive quarters of economic growth. I think we need to find ways to work together to continue to sustain that forward movement. The shutdown of this government does not help in any way.

One thing I want to highlight is some good news we have had. We just learned the manufacturing sector grew last month at its fastest pace in more than 2 years. We need to invest in that success and invest in that growth.

In the first decade of this century, we lost 6 million manufacturing jobs in this country, good-paying jobs, high-skilled jobs, jobs that come with benefits, jobs you can raise a family on. In the last 3 years, we have gained back half a million manufacturing jobs, but we are still way short of where we were in 2000.

There are a few items we could focus on that would help us grow this sector: skills training, opening markets abroad, expanding access to capital, and creating a national manufacturing strategy. I hope to come back to the floor and speak to these in much more detail in the days ahead.

Let me close by saying something that I think is simple. A shutdown is not the answer to this ongoing economic recovery. Defaulting on our debt is not the answer to what the folks from our home States are calling and asking us to do. The answer is for the Speaker of the House to allow the House to vote on a bill passed in this Chamber that, if adopted, would reopen the Federal Government and allow us to work together to revitalize our economy.

I yield the floor.

MORNING BUSINESS

The PRESIDING OFFICER. The majority leader.

Mr. REID. Mr. President, I ask unanimous consent that the Senate proceed to a period of morning business, with Senators permitted to speak for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

## ADDITIONAL STATEMENTS

### ABILITYONE PROGRAM

● Mr. PRYOR. Mr. President, today I wish to recognize an organization that has been providing opportunities for Arkansans that are blind or visually impaired since 1940. The Arkansas Lighthouse for the Blind started as a dream of a blind Methodist minister, the late Rev. Jeff Smith, and became a reality thanks to $100 in donations from friends. Since those humble beginnings, the Arkansas Lighthouse for the Blind has grown into a nationally recognized manufacturing business, now employing over 80 people in Little Rock.

The Arkansas Lighthouse for the Blind is a partner of the AbilityOne Program, a Federal purchasing program that enables over 47,000 Americans who are blind or severely disabled to work and provides products and services to Federal and commercial customers. This year marks the 75th anniversary of AbilityOne, and I am pleased to have such an important organization promoting the employment and advancement of people who are blind and visually impaired in my State.

Today in America, 70 percent of blind and visually impaired working-aged Americans are not employed. Through the AbilityOne Program, organizations like Arkansas Lighthouse for the Blind harnesses the purchasing power of the Federal government to provide quality products and services from participating community-based nonprofit agencies dedicated to training and employing individuals with disabilities. These workers proudly manufacture a wide range of paper, textile, and apparel products. From the small SKILCRAFT memo pads on our desks, to the shirts on the backs of our men and women in uniform, they are a part of our American manufacturing base that keeps our government moving each and every day.

I have visited the Arkansas Lighthouse for the Blind and had several opportunities to meet with their employees. During each interaction, I have been impressed by the opportunities this organization provides their associates, both personally and professionally. It is a place that truly lives up to its mission and expands opportunity for persons who are blind throughout the State. I am a proud AbilityOne Champion and appreciate this partnership which allows us to work together to expand opportunities for individuals with disabilities.

The month of October serves as National Disability Employment Awareness Month and I recognize the Arkansas Lighthouse for the Blind, as well as the AbilityOne program, for the opportunities they have provided for Americans with disabilities. Americans that have worked through this program over the years have acquired job skills and training, received good wages and benefits, as well as gained greater independence and quality of life. It is for this reason that I stand in support of the work they do each and every day to open doors of opportunity for Americans who are blind or visually impaired.●

## EXECUTIVE AND OTHER COMMUNICATIONS

The following communications were laid before the Senate, together with accompanying papers, reports, and documents, and were referred as indicated:

EC–3273. A communication from the Acting Assistant Secretary, Bureau of Political-Military Affairs, Department of State, transmitting, pursuant to law, an addendum to a certification, transmittal number: DDTC 2013–1595, of the proposed sale or export of defense articles and/or defense services to a Middle East country regarding any possible effects such a sale might have relating to Israel's Qualitative Military Edge over military threats to Israel; to the Committee on Foreign Relations.

EC–3274. A communication from the Under Secretary of Defense (Global Strategic Affairs), transmitting, pursuant to law, the Department of Defense's 2013 annual report to Congress entitled ''The Worldwide Nuclear, Biological, and Chemical Weapons and Ballistic and Cruise Missile Threat'' (DCN OSS 2013–1593); to the Committee on Armed Services.

EC–3275. A communication from the Director of Defense Procurement and Acquisition Policy, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Defense Federal Acquisition Regulation Supplement: Allowability of Legal Costs for Whistleblower Proceedings'' ((RIN0750–AI04) (DFARS Case 2013–D022)) received in the Office of the President of the Senate on September 27, 2013; to the Committee on Armed Services.

EC–3276. A communication from the Director of Defense Procurement and Acquisition Policy, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Defense Federal Acquisition Regulation Supplement: Acquisitions in Support Operations in Afghanistan'' ((RIN0750–AH98) (DFARS Case 2013–D009)) received in the Office of the President of the Senate on September 27, 2013; to the Committee on Armed Services.

EC–3277. A communication from the Director of Defense Procurement and Acquisition Policy, Department of Defense, transmitting, pursuant to law, the report of a rule entitled ''Defense Federal Acquisition Regulation Supplement: Enhancement of Contractor Employee Whistleblower Protections'' ((RIN0750–AH) (DFARS Case 2013–D010)) received in the Office of the President of the Senate on September 27, 2013; to the Committee on Armed Services.

EC–3278. A communication from the Secretary of the Securities and Exchange Commission, transmitting, pursuant to law, the report of a rule entitled ''Temporary Registration as a Municipal Advisor; Required Amendments; and Withdrawal from Temporary Registration'' (RIN3235–AK69) received in the Office of the President of the Senate on September 26, 2013; to the Committee on Banking, Housing, and Urban Affairs.

EC–3279. A communication from the Secretary of the Securities and Exchange Commission, transmitting, pursuant to law, the report of a rule entitled ''Registration of Municipal Advisors'' (RIN3235–AJ86) received in the Office of the President of the Senate on September 26, 2013; to the Committee on Banking, Housing, and Urban Affairs.

EC–3280. A communication from the Director of Congressional Affairs, Nuclear Regulatory Commission, transmitting, pursuant to law, the report of a rule entitled ''Maintenance, Testing, and Replacement of Vented Lead-Acid Storage Batteries for Nuclear Power Plants'' (Regulatory Guide 1.129, Revision 3) received in the Office of the President of the Senate on September 27, 2013; to the Committee on Environment and Public Works.

EC–3281. A communication from the Chief of the Trade and Commercial Regulations Branch, Customs and Border Protection, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''United States - Colombia Trade Promotion Agreement'' (RIN1515–AD88) received in the Office of the President of the Senate on September 27, 2013; to the Committee on Finance.

EC–3282. A communication from the Chief of the Trade and Commercial Regulations Branch, Customs and Border Protection, Department of Homeland Security, transmitting, pursuant to law, the report of a rule entitled ''United States - Panama Trade Promotion Agreement'' (RIN1515–AD93) received in the Office of the President of the Senate on September 27, 2013; to the Committee on Finance.

EC–3283. A communication from the Federal Register Certifying Officer, Financial Management Service, Department of the Treasury, transmitting, pursuant to law, the report of a rule entitled ''Regulatory Reorganization; Administrative Changes to Regulations Due to Consolidation of the Financial Management Service and the Bureau of the Public Debt into the Bureau of the Fiscal Service'' (RIN1510–AB31) received in the Office of the President of the Senate on September 27, 2011; to the Committee on Finance.

EC–3284. A communication from the Assistant Administrator, Bureau for Legislative and Public Affairs, U.S. Agency for International Development (USAID), transmitting, pursuant to law, a report responding to a GAO report entitled ''Haiti Reconstruction: USAID Infrastructure Projects Have Had Mixed Results and Face Sustainability Challenges''; to the Committee on Foreign Relations.

EC–3285. A communication from the Director of Regulations and Policy Management Staff, Food and Drug Administration, Department of Health and Human Services, transmitting, pursuant to law, the report of a rule entitled ''Unique Device Identification System'' (Docket No. FDA–2011–N–0090) received in the Office of the President of the Senate on September 27, 2013; to the Committee on Health, Education, Labor, and Pensions.

EC–3286. A communication from the Assistant General Counsel, Federal Retirement Thrift Investment Board, transmitting, pursuant to law, the report of a rule entitled ''Implementation of United States v. Windsor'' (5 CFR Parts 1651 and 1690) received in the Office of the President of the Senate on

September 27, 2013; to the Committee on Homeland Security and Governmental Affairs.

EC–3287. A communication from the Chief Judge, Superior Court of the District of Columbia, transmitting, pursuant to law, a report relative to modifications to the Jury Plan for the Superior Court of the District of Columbia; to the Committee on Homeland Security and Governmental Affairs.

EC–3288. A communication from the Executive Director, Commodity Futures Trading Commission, transmitting, pursuant to law, the Commission's fiscal year 2013 FAIR Act inventory; to the Committee on Homeland Security and Governmental Affairs.

## REPORTS OF COMMITTEES

The following reports of committees were submitted:

By Mr. MENENDEZ, from the Committee on Foreign Relations, with amendments:

S. 1545. A bill to extend authorities related to global HIV/AIDS and to promote oversight of United States programs (Rept. No. 113–112).

## INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. CRUZ:

S.J. Res. 23. A joint resolution making continuing appropriations for fiscal year 2014, and for other purposes; to the Committee on Appropriations.

## ADDITIONAL COSPONSORS

S. 468

At the request of Mr. ROCKEFELLER, the name of the Senator from Virginia (Mr. KAINE) was added as a cosponsor of S. 468, a bill to protect the health care and pension benefits of our nation's miners.

S. 813

At the request of Mrs. SHAHEEN, the name of the Senator from Maryland (Mr. CARDIN) was added as a cosponsor of S. 813, a bill to require that Peace Corps volunteers be subject to the same limitations regarding coverage of abortion services as employees of the Peace Corps with respect to coverage of such services, and for other purposes.

S. 897

At the request of Ms. WARREN, the name of the Senator from Massachusetts (Mr. MARKEY) was added as a cosponsor of S. 897, a bill to prevent the doubling of the interest rate for Federal subsidized student loans for the 2013–2014 academic year by providing funds for such loans through the Federal Reserve System, to ensure that such loans are available at interest rates that are equivalent to the interest rates at which the Federal Government provides loans to banks through the discount window operated by the Federal Reserve System, and for other purposes.

S. 1459

At the request of Mr. KIRK, the name of the Senator from Massachusetts (Mr. MARKEY) was added as a cosponsor of S. 1459, a bill to amend title 49, United States Code, to prohibit the transportation of horses in interstate transportation in a motor vehicle containing 2 or more levels stacked on top of one another.

S. 1467

At the request of Mr. BLUMENTHAL, the name of the Senator from Iowa (Mr. HARKIN) was added as a cosponsor of S. 1467, a bill to establish the Office of the Special Advocate to provide advocacy in cases before courts established by the Foreign Intelligence Surveillance Act of 1978 and for other purposes.

S. 1525

At the request of Mr. HATCH, the name of the Senator from South Carolina (Mr. GRAHAM) was added as a cosponsor of S. 1525, a bill to ensure that the personal and private information of Americans enrolling in Exchanges established under the Patient Protection and Affordable Care Act is secured with proper privacy and data security safeguards.

S. 1535

At the request of Mr. SCHUMER, the name of the Senator from Arizona (Mr. FLAKE) was added as a cosponsor of S. 1535, a bill to deter terrorism, provide justice for victims, and for other purposes.

S. 1551

At the request of Mr. WYDEN, the name of the Senator from Hawaii (Mr. SCHATZ) was added as a cosponsor of S. 1551, a bill to reform the authorities of the Federal Government to require the production of certain business records, conduct electronic surveillance, use pen registers and trap and trace devices, and use other forms of information gathering for foreign intelligence, counterterrorism, and criminal purposes, and for other purposes.

S. 1564

At the request of Mr. SANDERS, the name of the Senator from Nevada (Mr. HELLER) was added as a cosponsor of S. 1564, a bill making continuing appropriations for veterans benefits and services in the event of a Government shutdown.

S. 1567

At the request of Mr. CARDIN, the names of the Senator from Pennsylvania (Mr. CASEY) and the Senator from Montana (Mr. BAUCUS) were added as cosponsors of S. 1567, a bill to provide for the compensation of furloughed Federal employees.

S. RES. 75

At the request of Mr. GRASSLEY, his name was added as a cosponsor of S. Res. 75, a resolution condemning the Government of Iran for its state-sponsored persecution of its Baha'i minority and its continued violation of the International Covenants on Human Rights.

S. RES. 203

At the request of Mrs. FEINSTEIN, the name of the Senator from Massachusetts (Mr. MARKEY) was added as a cosponsor of S. Res. 203, a resolution expressing the sense of the Senate regarding efforts by the United States to resolve the Israeli-Palestinian conflict through a negotiated two-state solution.

## AUTHORITY FOR COMMITTEES TO MEET

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS

Mr. CASEY. Mr. President, I ask unanimous consent that the Committee on Health, Education, Labor, and Pensions be authorized to meet during the session of the Senate on October 2, 2013, at 10 a.m. in room SD–430 of the Dirksen Senate Office Building.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON HOMELAND SECURITY AND GOVERNMENTAL AFFAIRS

Mr. CASEY. Mr. President, I ask unanimous consent that the Committee on Homeland Security and Governmental Affairs be authorized to meet during the session of the Senate on October 2, 2013.

The PRESIDING OFFICER. Without objection, it is so ordered.

COMMITTEE ON THE JUDICIARY

Mr. CASEY. Mr. President, I ask unanimous consent that the Committee on the Judiciary be authorized to meet during the session of the Senate on October 2, 2013, at 10 a.m. in room SD–226 of the Dirksen Senate Office Building, to conduct a hearing entitled ''Continued Oversight of the Foreign Intelligence Surveillance Act.''

The PRESIDING OFFICER. Without objection, it is so ordered.

## UNANIMOUS CONSENT AGREEMENT—S. 1566

Mr. REID. Mr. President, I ask unanimous consent that if the Senate receives a bill from the House which is identical to S. 1566, a bill providing a short-term extension of Iraq special immigrant visas, as passed by the Senate, then the bill be read three times and passed and the motion to reconsider be laid on the table with no intervening action or debate.

The PRESIDING OFFICER. Without objection, it is so ordered.

## UNANIMOUS CONSENT AGREEMENT—H.J. RES. 70, H.J. RES. 71, H.J. RES. 72, H.J. RES. 73; AND H.R. 3230

Mr. REID. Mr. President, I ask unanimous consent that if the Senate receives from the House any of the following joint resolutions or bills by 11 a.m. on Thursday, October 3, those measures be considered to have received their second reading and objection to further proceedings considered to have been heard under the provisions of rule XIV during Thursday's session: H.J. Res. 70, H.J. Res. 71, H.J. Res. 72, H.J. Res. 73; and H.R. 3230.

The PRESIDING OFFICER. Without objection, it is so ordered.

## ORDERS FOR THURSDAY, OCTOBER 3, 2013

Mr. REID. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 10:30 a.m. Thursday, October 3; that following the prayer and pledge, the Journal of proceedings be approved to date, the time for the two leaders be reserved for their use later in the day; that following any leader remarks, the Senate be in a period of morning business for debate only until 2 p.m. with the first hour equally divided and controlled between the two leaders or their designees, with the Republicans controlling the first 30 minutes and the majority controlling the second 30 minutes, with Senators permitted to speak for up to 10 minutes each.

The PRESIDING OFFICER. Without objection, it is so ordered.

## ORDER FOR ADJOURNMENT

Mr. REID. Mr. President, if there is no further business to come before the Senate, I ask unanimous consent that it adjourn under the previous order following the remarks of Senator BARRASSO of Wyoming for up to 10 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

## HEALTH CARE EXCHANGES

Mr. BARRASSO. Mr. President, I come to the floor today, because Americans all across the country today are speaking out about their personal experiences with the ObamaCare exchanges yesterday. Instead of it being as easy as buying something from Amazon, which the President had promised, Americans ran into roadblocks and technical disasters State after State.

Instead of getting good coverage, their computers crashed. These were not just glitches, they were system failures to the point that in the Casper Star Tribune, on the front page today, it was talking about people spending time working their way just trying—on the computer—one little section had a little cartoon at the bottom. The one guy worked so hard trying to work the computer that he ended up getting carpal tunnel syndrome, while trying to get through the computer to find out more about the costs of the Obama health care law through the exchanges.

The Obama administration has had 3 years to prepare for the launch that occurred on October 1. Even if the technology finally gets fixed, the issue of health care will not. After people finally get a chance to examine what is being offered to them when they make a decision about enrolling or not under the mandates of the law, Americans are still going to find that the exchanges do not match the President's promise.

Let's think about what those promises were. Last week, the President was in New York with Bill Clinton. They had what seemed like an infomercial to me. What the President said is that: Most people will be able to shop and compare. For many people it is going to be cheaper than an average cell phone bill.

The people are not going to find that it is cheaper, even with government subsidies, than the average cell phone bill.

The President has also said: The process is going to be as easy as Amazon. Even if the administration is able to paper over the many problems with the exchanges, it is not going to be as easy as shopping on Amazon.

Remember, from the beginning the President said: If you like your doctor, you can keep your doctor. We are now seeing in State after State that the exchanges are such that, to try to get costs down, they are limiting the market in a way and the networks in a way that fewer doctors are included, fewer hospitals are included.

That is causing an uproar. Instead of doubling down on a broken system, the President should grant all Americans a 1-year delay—the exact same delay he gave their bosses.

The President talks a lot about a ''fair shake'' for all Americans. We heard it in his campaign speeches, and we hear it as he goes around and talks to groups. He uses the words quite frequently.

ObamaCare, unfortunately, delivers the exact opposite. What the President has done unilaterally is gone outside the law to grant special deals to almost everyone except to people who need it the most, which is the hard-working American public. He basically, I believe, shut down the Federal Government in order to continue his own policy of his health care law, picking winners and losers. This can't continue.

The good news is that today, after once again attempting to lead from behind in a crisis, the President is finally having congressional leaders down to the White House within the next hour to meet with him. This is an opportunity for the President to do the right thing, to open the government, and to finally deliver fairness for Americans under the health care law. After all, if we are going to give people's bosses a break from the mandates of the health care law, the President ought to give hard-working men and women of America the same break. The same for Members of Congress. If the President decides that his own administration, White House employees, and Members of Congress have special treatment under the health care law, that shouldn't be so. That should be eliminated.

I do want to talk for a minute specifically about the government shutdown. Over the past week Senate and House Republicans have voted overwhelmingly for legislation passed by the House of Representatives that keeps government operations running. It keeps parks open, and it keeps Americans working. Senate Democrats have overwhelmingly rejected these proposals and have allowed to have the government shut down, to have the gates closed at America's national parks, and to have critical services for America's veterans go unfunded through the Veterans' Administration.

Today or tomorrow the Senate will have the opportunity to pass legislation from the House that will immediately open our parks, fund services offered through the Department of Veterans Affairs, and provide time-sensitive funding for the National Institutes of Health. We should pass these bills. We should make sure Americans can use these essential government services right now.

I also would like to talk for a minute about another looming issue that is important to the American people, to our Nation, and one that the President has recently addressed. Later this month Congress will begin debate on the President's sixth debt limit increase, the sixth time he has come to increase the debt limit in his 5 years of office. The President has said he is refusing to negotiate on this issue. Instead, I believe the President should accept that our country can no longer avoid a bipartisan agreement to reform entitlements. The President can no longer avoid a bipartisan agreement to reform entitlements. It is the President's job, responsibility, obligation, and opportunity to lead the effort.

If the President is unwilling to seriously deal with our country's debt, Congress is left with little choice but to use the debt limit to force him into fiscal solutions. The debt ceiling is merely a symptom of a much larger illness, which is Washington's addiction to spending. On spending, the status quo is not sustainable.

It is interesting how the President has seemed to change his tune. The President gave a number of speeches in the Senate when he was a Senator. We can go back and see what he said about raising the debt ceiling. He said that adding to the debt—of course, this was when George W. Bush was President—his key word was ''irresponsible.'' President Obama as a Senator said it was unpatriotic—raising the debt ceiling—unpatriotic and unacceptable. This was Barack Obama in this body, in this Chamber, in 2006. President Obama—at the time a Senator—actually called raising the debt ceiling ''a failure of leadership.'' Isn't that what the President himself should be accused of right now as he tries to do what he so vehemently objected to when he was in the Senate?

How bad is the situation? Well, in September the Congressional Budget Office reported that in the long term defense, education, infrastructure, and all discretionary spending will be squeezed by entitlement programs as well as interest on the debt. Over the next 75 years discretionary spending

will increase by 39 percent. This makes the sequester cuts look like child's play. Medicaid and other health spending increases will be by 159 percent; interest on the debt increases 823 percent; Social Security spending rises by only 37 percent only because CBO assumes drastic benefit cuts in the year 2033.

The President recently spoke about making cuts, though, to discretionary spending. That number is underestimated. The President failed to mention that by refusing to make much needed changes to entitlement programs, he is guaranteeing that these investments, as he calls them, will continue to shrink.

Entitlement reform is needed not only to preserve other Federal spending but in order to slow our ever-expanding debt. President Obama has bragged that he is no longer setting up the record-setting deficits he did in his first 4 years. Those self-congratulatory statements will be short-lived, as the Congressional Budget Office has predicted that deficits will soon start to rise unless real reforms are made today. Without real reform, America's debt will continue to grow, and America's interest and entitlement payments are on course to overwhelm the entire Federal budget.

The American people deserve to hear the truth about the tough choices we must face together as a nation. They also deserve an open and honest discussion about how we are going to make those choices. The President and congressional Democrats ought to rethink their strategies of leadership via blame game and saving via spending.

The President and Democrats have an opportunity today at the White House to put the games aside and work with us on opening the government, on delivering fairness for all Americans, and on actually reducing our debt. I hope they use this meeting to finally do what is right and to help the American people.

I yield the floor, and I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. HARKIN. I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER. Without objection, it is so ordered.

## ADJOURNMENT UNTIL 10:30 A.M. TOMORROW

The PRESIDING OFFICER. Under the previous order, the Senate now stands in adjournment until tomorrow at 10:30 a.m.

Thereupon, the Senate, at 5:06 p.m., adjourned until Thursday, October 3, 2013, at 10:30 a.m.

# EXTENSIONS OF REMARKS

## TRIBUTE TO MAJOR GENERAL CARL M. SKINNER

### HON. MAC THORNBERRY

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Mr. THORNBERRY. Mr. Speaker, I rise today to honor Major General Carl M. Skinner on the occasion of his retirement from the Air Force after 33 years of dedicated service to our Nation. Major General Skinner began his career after graduation from the Air Force Academy in 1980. His service is marked with distinguished performance as an Instructor Pilot in the T–38 Talon, Chief, Standardization and Evaluation in the FB–111 Aardvark, and Mobilization Assistant to the Air Force Chief Information Officer, the Director of the Defense Information Systems Agency and the Commander of the Air Force's Air Education and Training Command. Major General Skinner's career followed his father's example during World War II and continues through his son, an Air Force physician stationed at Incirlik Air Base in Turkey. My colleagues join me in sincerely thanking Mike, his wife, Pam, and their children, Tom and Kelley Ann, for their service to the United States of America and a job well done.

## HONORING JOHN PARSONS

### HON. HENRY A. WAXMAN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Mr. WAXMAN. Mr. Speaker, I rise today to pay tribute to the life of John Parsons, a man who gave so much of himself to the community. He had served as a City Councilmember in Redondo Beach and most recently as the Planning Commissioner. John has been a pillar in the South Bay community and will be remembered for his dedicated service to the City of Redondo Beach.

I have had the great honor of working with John since I began representing the 33rd Congressional District. He helped me get to know the South Bay, its businesses and local Chambers of Commerce.

John had a long history of public service in the beach communities and beyond. He served as chairman of the City's Harbor Commission and Chamber of Commerce Board and was president of the Redondo Beach Rotary. Most recently, he worked as the business services and economic development manager for the South Bay Workforce Investment Board.

One of John's most important contributions to the community was as a founding member and original chairman of the Los Angeles Air Force Regional Alliance, which successfully protected the Los Angeles Air Force Base from the 2005 Base Realignment and Closure list. John's tireless work helped the Air Force Base remain in El Segundo and remain a central part of the defense community. It continues to support tens of thousands of local jobs and supports our national security around the globe.

John is survived by his wife, Mary Ann and two daughters, Nikki and Danielle; a sister, Lorraine Doolin of Virginia; and two brothers, Mike Parsons and Pat Parsons of Los Angeles. My thoughts and deepest sympathies go out to John's family and friends during this difficult time.

John will truly be remembered as a civic leader who always had the best interest of his community in mind. I ask that my colleagues join me in celebrating the remarkable life and tremendous contributions of John Parsons. Our community owes John a debt of gratitude for his service and he will not be forgotten.

## ON THE OCCASION OF MONA AND CANTOR SAMUEL L. GREENBAUM'S FORTIETH ANNIVERSARY OF SERVICE TO CONGREGRATION BETH SHALOM AND THE JEWISH COMMUNITY OF GREATER DETROIT

### HON. GARY C. PETERS

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Mr. PETERS of Michigan. Mr. Speaker, I rise today to recognize Cantor Samuel Greenbaum and his wife, Mona, on the occasion of their fortieth year of service to the members of Congregation Beth Shalom.

As a leader at Congregation Beth Shalom and in Greater Detroit's Jewish community, Cantor Greenbaum has been present for thousands of Jewish Michiganders at every stage in their lives. Throughout his decades of service, Cantor Greenbaum has been involved in every facet of Beth Shalom's community. From his mastery of the liturgy at religious services to his lessons as a teacher of Jewish education for members at all periods in their lives, Cantor Greenbaum has approached his work with a thoughtful balance of compassion, levity and pastoral care that have enabled him to effectively guide members of his congregation on their lifelong journey in establishing a deep and meaningful connection with their faith. One of his most important responsibilities is the commitment he makes to Jewish boys and girls as a Bar/Bat Mitzvah tutor—serving as a key advisor to the youth as they take on increased responsibilities in the Jewish community.

Furthermore, it is not surprising that Cantor Greenbaum's profound enthusiasm for his faith has led him to work that goes beyond the congregation of Beth Shalom and affects the broader Jewish community in Southeast Michigan. As one of just a few certified mohels in the Greater Detroit region, Cantor Greenbaum has been instrumental to thousands of newborn boys as they enter the covenant of Judaism and has taken part in the naming ceremony for thousands of newborn girls. He has been with families at moments of great joy, officiating countless weddings, and been of comfort to families while mourning the loss of loved ones. In recognition of his service to the Jewish community, Cantor Greenbaum was honored with an honorary Doctorate of Music degree from the Jewish Theological Seminary.

As is often the case for spiritual leaders, Cantor Greenbaum is joined in life by his dedicated partner Mona, who mirrors his compassion and commitment for the well-being others. Mona has supported Beth Shalom through her work as a teacher in Jewish Day School and in the public school system.

Mr. Speaker, I congratulate Mona and Cantor Samuel Greenbaum on this tremendous milestone in their service to Congregation Beth Shalom and the Jewish community of Greater Detroit. For forty years, the Greenbaums have practiced compassion and dedication to their congregation and community—a shining example of service above self for all of us that seek to make a difference in the lives of others.

## BISHOP D. RAYFORD BELL

### HON. DANNY K. DAVIS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Mr. DANNY K. DAVIS of Illinois. Mr. Speaker, born Dennis Raphael Bell, in Leflore County, Mississippi, on July 9, 1923; to sharecropper parents. Dennis was raised by his grandparents.

In spite of the absence of a dream of better conditions; something within him, at a very early age, rebelled against the status quo. He discovered in the South, if Black people refused to sink in despair and accept things as they were, then they had better have a ray of light from above. Bishop Bell is convinced it was that ray of light that brought him from the backwoods of Mississippi to the glorious heights of Pentecost; from a Mississippi plowboy to a Prince of the Church of God.

In 1938, after living briefly in Morley, Missouri; a fifteen-year-old Dennis returned to Mississippi to find a new girl had moved into the area; Darlene Griffin. On July 20th, 1942, Darlene and Dennis were married. To this union were born two sons, Harvey and Curtis, and nine grandchildren. Shortly after Harvey was born, Dennis was drafted into the U.S. Army. After training, he was sent to Europe, where he saw action in the campaign of Northern France, Ardennes, Rhineland, and Central Europe. He was honorably discharged December 9th, 1945.

Bishop Bell received the Holy Ghost on April 1, 1949. Since that day, God has continually perfected that which concerned Bishop Bell. It has not always been easy, but the ray of light has never gone out.

Bishop Bell has constantly sought to improve himself. After finishing his high school

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

education at LaSalle University in Chicago, one of his teachers told him ''if the elevator to success is not running, take the stairs.'' Bishop Bell was conferred his Bachelors degree with honors from Southwestern College in Oklahoma City, OK. As a straight ''A'' student at American Bible College, he was conferred a Masters of Theology. He continued onward and was conferred a Doctoral degree in Theology and Philosophy by Toledo Bible College and Seminary. Bishop Bell was the first person in that school's history to earn two doctorate degrees in one year.

In August of 1990, after 48 years of marriage and a lengthy illness, a grieving Bishop Bell buried his beloved Darlene. In God's timing, the Lord saw fit to send a ray of sunshine into Bishop Bell's life, in the form of Jacqueline Collins of Cincinnati, Ohio. They were married in April of 1991.

An Apostolic preacher for over 55 years, Bishop Bell has spent a great part of his life serving the people of God in many ways. In addition to serving his church, he also serves the community as a Chaplain for the Chicago Police Department. Bishop Bell came up through the ranks of Christ Temple Church, serving in such positions as Sunday School teacher, Assistant and then Superintendent; Vice and Chairman of the Youth Department; Trustee; Assistant Pastor; Pastor in 1958 and now Senior Pastor. He is the founder of the Christ Temple Apostolic Church in Joliet, as well as, the founder and President of Midwest Apostolic Bible College in Chicago. He also founded Samuel Barnes Christian Academy, a K–8th grade school named in memory of his pastor and he created the Mother Darlene Bell Scholarship Fund to assist the educational dreams of deserving students.

Dr. Bell served as the Assistant Presiding Bishop of the Pentecostal Churches of the Apostolic Faith, for 19 years, along side his best friend, the late Bishop Elzie W. Young. Thereafter, his tenure as the Presiding Prelate was from January 1990 to July 2000. He now holds the title of Senior Bishop.

Bishop Bell has preached the Gospel from the street corners of Chicago to 49 states in America, over 50 countries, on all five inhabited continents, and to the isles of the sea. His chief joy continues to be the opportunity to share the life of Jesus Christ with someone. The sentiments of his heart play almost like the lyrics of a song which says, ''if I can help somebody as I travel along, if I can cheer somebody with a word or song, if I can tell somebody that he is traveling wrong, then my living shall not be in vain.''

It has been my great pleasure to be associated with Bishop Bell and his family since the 1960's when I was his nephew Fred Davis' Social Studies teacher.

Bishop, we all love and revere you for having been a great leader of your people and a blessing to all.

## HONORING MARK E. LOPES

### HON. KYRSTEN SINEMA

OF ARIZONA

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Ms. SINEMA. Mr. Speaker, I rise today to ask that my colleagues join me in honoring Mark E. Lopes for his nomination to the position of United States Executive Director of the Inter-American Development Bank. If confirmed, he will be one of 14 members on the board of executive directors and will represent the United States in all aspects of overseeing the conduct of the bank.

Mr. Lopes, an Arizona native, has a distinguished and varied career in public service that makes him eminently qualified to carry out this role. He served as a Peace Corp volunteer in Paraguay and then worked for the U.S. Agency for International Development (USAID) as a Presidential Management Fellow. He spent the next portion of his career as a staffer on the House Appropriations State and Foreign Operations Subcommittee, and as the Senior Policy Advisor on the Senate Foreign Relations Development and Foreign Assistance Subcommittee. He later returned to USAID, and has risen to the position of Deputy Assistant Administrator of the Latin American and Caribbean Bureau.

These accomplishments clearly demonstrate Mr. Lopes' passion, sacrifice, and dedication. He is the epitome of expertise in International Development and it is my privilege to represent him in Congress. I ask my colleagues to join me in recognizing Mark E. Lopes on this momentous career achievement.

## PAY OUR MILITARY ACT

### HON. RENEE L. ELLMERS

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Mrs. ELLMERS. Mr. Speaker, I would like to submit the following:

COMMITTEE ON ARMED SERVICES,
HOUSE OF REPRESENTATIVES,
*Washington, DC, October 1, 2013.*

Hon. CHUCK HAGEL,
*Secretary of Defense, Pentagon, Washington, DC.*

DEAR MR. SECRETARY: I share the concerns you've expressed about the seriousness of the lapse in appropriations and the additional negative impacts on military readiness associated with a significant furlough of defense civilian workforce. In an effort to mitigate these harmful effects, the Congress reached unanimous agreement that the members of our Armed Forces, as well as the civilians and contractors who provide support to the Armed Forces, should continue to receive pay and allowances. As you know, this legislation, H.R. 3210, the Pay Our Military Act, sponsored by Representative Mike Coffman (R-CO), was signed into law last night. With the enactment of this law, active duty uniformed personnel can continue to be paid for their service and most civilian defense workers should remain on the job.

I was heartened to read your statement indicating that it is a priority for your General Counsel to review the legislation, ''to see if there's any margin here, or widening in the interpretation of the law of exempt versus non-exempt civilians.'' I believe the legislation provides you broad latitude and I encourage you to use it. The text does not limit the provision of pay to civilians who were previously categorized by the Administration as ''excepted'' or ''essential'' for the purposes of Department of Defense operations in the event of a government shutdown. Therefore, I strongly encourage you to use the authority Congress has given you to keep national security running, rather than keeping defense civilians at home when they are authorized to work. Likewise, as your General Counsel reviews the legislation, I request additional information regarding the provision of pay and allowances to members of the military Reserves and National Guard.

I look forward to an update on the Administration's interpretation of H.R. 3210 later today. I know you would agree with me that this is no time to use national security or our national security workforce as a political pawn.

Sincerely,

HOWARD P. ''BUCK'' MCKEON,
*Chairman.*

## IN HONOR OF SPC JON NAHOLNIK

### HON. JOE COURTNEY

OF CONNECTICUT

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Mr. COURTNEY. Mr. Speaker, I rise today to honor SPC Jon Michael Naholnik who died suddenly on Wednesday, September 25 of a ''Wounded Heart'' at the age of 32. Those who were lucky enough to have Jon in their life knew that he was a loving father, brother, son and friend.

Jon was an Afghanistan veteran who proudly served his country in the Alpha Company, 1st Battalion, 102nd Infantry Regiment. He attended Waterford High school and began work at Millstone Power Station as an armed guard after he graduated. In 2007, he decided to join the Army National Guard as his father Nik and his grandfather Charlie did before him.

In 2011, after returning home to Montville, Jon survived a freak lightning strike outside his home. Although he knew that he was lucky to survive, Jon maintained a great sense of humor about the incident. He told a reporter that he enjoyed watching storms but would probably stay indoors in the future.

I ask my colleagues to join with me to honor SPC Jon Michael Naholnik and his patriotic service to our Nation. Our thoughts and prayers are with his family in this difficult time.

## GOVERNMENT SHUTDOWN

### HON. JOHN D. DINGELL

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Mr. DINGELL. Mr. Speaker, here we are again wasting the people's time. But I want each and every one of my colleagues to know that we're wasting their money, too. Seventeen years ago, Republicans shut down the government for 27 days. In today's dollars, that cost American taxpayers $2 billion. For all the high-handed talk by my Republican friends about reducing deficits, they seem to have no problem with trying to score political points at the expense of hard-working American families.

This afternoon, we're going to take up the same cut-and-bite bills that the House rejected last night. We find ourselves hoping for a different outcome by doing the same thing over and over again. I'd like to remind my friends that this is the definition of insanity. On top of that, Republicans are using the World War II Memorial closure and veterans to try to shame us into going along with their charade. I'm one of two World War II vets left in this place, and

I can tell you that the best way to honor and help this country's veterans is to get the whole government running again.

Mr. Speaker, I call on my Republican colleagues to gather the collective will to do the work the people expect of them. They are putting the economic well-being of this country at severe risk, which is beneath contempt. Enough of acting like spoiled children: It's time to be adults and get this country moving again. The responsible choice here is to get together and pass a funding resolution for the ENTIRE government. The American people demand nothing less.

## IN HONOR OF MRS. EVELYN LOWERY

### HON. SANFORD D. BISHOP, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Mr. BISHOP of Georgia. Mr. Speaker, I rise today to honor an extraordinary woman and respected civil rights leader, Mrs. Evelyn Lowery, wife of the Reverend Dr. Joseph Lowery. Sadly, Mrs. Lowery passed away on Thursday, September 26, 2013. Her life was celebrated at a memorial service on Wednesday, October 2, 2013, at the International Chapel at Morehouse College in Atlanta, Georgia.

Evelyn Gibson Lowery was born on February 16, 1925, to the Reverend and Mrs. Harry Gibson, who were activists in Memphis, Tennessee and inspired her to become involved in civil and human rights activism. While her father served as President of the local National Association for the Advancement of Colored People (NAACP), she saw the injustices of society and had committed herself to working to improve those conditions before she had even turned eighteen. She attended Clark College and Youngstown University.

In 1950, she married the love of her life, the Reverend Dr. Joseph Lowery, and they built a life that was based on the love of God, the love of each other, the love of family and the love of people. They knew that the love of these could lead one to a close and fulfilling relationship with God because they are an embodiment of His greatest commandments: to love Him with all your ''heart, mind and soul'' and to ''love thy neighbor as thyself.''

Not only was she a pillar of strength with love and devotion for Rev. Lowery and his work with the Civil Rights Movement, but her leadership and support of women in the Movement reflected her personal commitment to gender equality as part of the larger Human Rights Movement. Mrs. Lowery founded the Southern Christian Leadership Conference/Women's Organizational Movement for Equality Now, Inc. (SCLC/W.O.M.E.N.). Through the organization, she created the Drum Major for Justice Award, an annual award recognizing outstanding people who have made contributions to social justice. She led the establishment of monuments in various parts of Alabama to honor those who were instrumental in the Civil Rights Movement and in 1987, she created the Evelyn G. Lowery Civil Rights Heritage Tour. In addition, she spearheaded many education and awareness projects and programs, including the Women's Empowerment Training Center in 1988 for GED and computer training and the Bridging the Gap—Girls to Women mentoring program in 1995.

Mrs. Lowery's life's work was founded upon her commitment to justice and equality, which inspired her work to empower women and to better the community in so many different ways. During her life, she touched and enriched the lives of countless people in her community and throughout our nation and her legacy will live on through the many who were inspired by her.

Mrs. Lowery was more than a wife, she was more than a civil rights leader, she was a servant to all humankind. Nelson Henderson once said, ''The true meaning of life is to plant trees under whose shade you do not expect to sit.'' Mrs. Lowery never stopped planting trees so that those in need could sit and rest and then stand up stronger than before. To God be the glory for blessing the world with a woman the caliber of Mrs. Evelyn Gibson Lowery. We are all better because she traveled this way.

Mr. Speaker, today I ask my colleagues to join me, my wife, Vivian, the nearly 700,000 people in Georgia's 2nd Congressional District, and all Americans, in paying tribute to Mrs. Evelyn Lowery and her exceptional life's work. We extend our deepest condolences to Dr. Joseph Lowery and the family during this time of bereavement. May they be consoled and comforted by their abiding faith and the Holy Spirit in the days, weeks and months ahead.

## H.J. RES. 70, H.J. RES. 71, AND H.J. RES. 72

### HON. JAMES R. LANGEVIN

OF RHODE ISLAND

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Mr. LANGEVIN. Mr. Speaker, this shutdown is already affecting millions of Americans, and the bills before us today represent a recognition of that fact. What they most certainly do not represent is a solution.

A small group of radical Tea Party Republicans has forced this shutdown on my constituents, on hundreds of thousands of federal employees and their families, on the businesses who depend upon them as customers, and on countless visitors to our nation's most treasured sites. Now, these same Republicans are being faced with the real-world consequences of their actions: World War II veterans blocked from visiting the memorial built in their honor. Communities losing millions of dollars in tourism activity each day. Our nation's capital at risk of suspending basic municipal services.

These are all devastating impacts, and they are among the many reasons my Democratic colleagues and I have worked so hard to prevent a shutdown. But these piecemeal bills are not a serious or honest attempt to reopen our government. They are merely an attempt to put a Band-aid over some of the most visible and unpopular fallout from the shutdown, while doing absolutely nothing to get us closer to a real solution.

These bills would not help the 800,000 dedicated public servants who have been furloughed, leaving them with mortgages, student loans, car payments and no paycheck. In Rhode Island, these furloughed employees include hundreds of civilians at Naval Station Newport, airline safety inspectors from the FAA, civilian technicians from the Rhode Island National Guard, and staff at the U.S. Attorney's office, the IRS and the EPA.

These bills would not help my constituents who are trying to apply for disability benefits from the Social Security Administration. They would not help the dozens of children with cancer who have been turned away from clinical trials at NIH. They would not help the millions of mothers who cannot afford baby formula without assistance from the WIC nutrition program. They would not help the small business owners who can no longer receive loans from the SBA. They would not help the thousands of children whose Head Start classes will be canceled as early as this week.

What these bills would do is merely prolong a disastrous situation. There is no doubt that the District of Columbia, our National Park system and most certainly our veterans are worthy of our attention and support. But what the Republicans are doing is using them all as pawns in a dangerous political game that leaves everyone else to fend for themselves.

I want to make sure the American people know that Democrats have offered repeatedly to support a clean Continuing Resolution which funds the government until November 15 at the rate the Republicans proposed—a rate which is lower than many of us would like but that we are willing to accept in order to achieve compromise and end this stalemate. This CR will allow us to completely reopen government and get back to work on the longer-term fiscal issues that demand our attention. And this CR has already been passed by the Senate and sits waiting in the House, if only the Republican Leadership would agree to allow us to vote on it.

Mr. Speaker, all Americans are impacted by this shutdown, and all Americans deserve our support to end it. A piecemeal approach is not the answer. Let us vote on a clean CR and get our constituents, our economy and this Congress back to work.

## CONGRATULATING HAROLD ''HB'' BRANCH III

### HON. KYRSTEN SINEMA

OF ARIZONA

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Ms. SINEMA. Mr. Speaker, I rise today to ask that my colleagues join me in congratulating Harold ''HB'' Branch III on receiving the inaugural Universal Learning Centre Courage in Learning Award. This honor is given to an individual who has overcome adversity through the utilization of education.

For Mr. Branch, this honor is well deserved. Overcoming childhood tragedy, abandonment, and poverty, he rose to receive national and international recognition for his written poetry and performance. He has also achieved notable success in public speaking and business training. Today, he serves at-risk youth of Arizona through his organization, HomeBase Poetry. This foundation gives youth a creative outlet to develop academically, socially, and professionally. I admire the efforts of Mr. Branch to help our youth grow and succeed. In doing so, he has helped lift up our communities and cultivate artistic talent.

Mr. Branch is a true inspiration and a model of excellence in service. It is my privilege to represent him in Congress. I ask my colleagues to join me in recognizing Harold "HB" Branch III on winning the 2013 Courage in Learning Award, and on the remarkable life achievements this award represents.

## RECOGNIZING UNWARRANTED STIGMA IN SICKLE CELL DISEASE

### HON. CHARLES B. RANGEL

OF NEW YORK

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Mr. RANGEL. Mr. Speaker, Congress has designated September as National Sickle Cell Disease Awareness Month to help focus attention on the need for research and treatment of sickle cell disease. Sickle Cell Disease is an inherited condition which affects an estimated 100,000 individuals in the United States and millions globally. While the disease is most common among African Americans, it also occurs in people of Hispanic, Indian, Caribbean, Mediterranean, Middle Eastern, and South Asian descent.

Sickle cell anemia is the most common form of sickle cell disease (SCD). SCD is a serious disorder in which the body makes sickle-shaped red blood cells. "Sickle-shaped" means that the red blood cells are shaped like a crescent. They tend to block blood flow in the blood vessels of the limbs and organs which can cause pain and organ damage. Tissue that does not receive normal blood flow eventually becomes damaged. This is what causes the complications of sickle cell disease.

Creating more awareness and education about this disease remains a challenge of changing attitudes and dispelling myths about both the disease and about those who suffer from it. While those suffering from Sickle Cell are living longer, they continue to endure stigma and other psychosocial issues, including stress, that continue to be associated with the disease.

Much of the stigma is based on myths and misinformation. Imagine going to a hospital ER and hearing the term "frequent flyer" or "drug seeker" to describe someone who has had to return to the ER often for a Sickle Cell Crisis? Imagine being labeled a "drug addict" and being looked at as a common narcotic drug seeker because you require excess doses of narcotics as a form of treatment for crisis pain? Imagine being told, "You should be used to this pain by now!" These are just a sampling of stories shared by sickle cell disease sufferers.

Persons with Sickle Cell Disease may face this stigma throughout their lives but especially immediately after transitioning from pediatric to adult care when coordination of health care services are limited or non-existent for this population. One way our Nation can make progress in addressing the issue of stigma and other issues related to Sickle Cell Disease is to identify the areas where we can move forward quickly while debating the broader areas of concern.

That is why I urge Congress to reauthorize the Sickle Cell Disease Research, Surveillance, Prevention, and Treatment Act of 2013 (SCTA). The reauthorization of this bill will highlight the need to increase awareness and understanding of this disease, promote education and research, provide funding for treatment, new drugs and expand the development of transition services for adolescents to adult health care.

As we consider our strategy toward improving care and treatment for Sickle Cell patients, I believe we must consider the long-term costs of stigma and other psychosocial issues. I applaud Sonja L. Banks, President and Chief Operating Officer of the Sickle Cell Disease Association of America, and the members of the organization for their efforts to promote awareness of this important issue. We must continue to educate ourselves, health care providers, school health nurses, and the business community about the specific and broad aspects of this crippling and chronic disease and advocate for new discoveries, advancements and breakthroughs for Sickle Cell, the most common and oldest inherited blood disorder.

## OUR UNCONSCIONABLE NATIONAL DEBT

### HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Mr. COFFMAN. Mr. Speaker, on January 20, 2009, the day President Obama took office, the national debt was $10,626,877,048,913.08.

Today, it is $16,747,478,675,335.18. We've added $6,120,601,626,422.10 to our debt in 4 years. This is $6.1 trillion in debt our nation, our economy, and our children could have avoided with a balanced budget amendment.

## TRIBUTE TO STAYUNITED

### HON. HENRY A. WAXMAN

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Mr. WAXMAN. Mr. Speaker, I rise today to recognize a nonprofit organization in California's 33rd Congressional District, StayUNITED, and its founders, Mark and Ismini Svensson.

StayUNITED has created a number of initiatives to improve lives in the United States and throughout the world. The organization has recently launched an initiative entitled '50 Acts of Giving Back' to promote voluntarism and demonstrate how social media can be used to transform the way acts of social good can be communicated and replicated across the globe. Mr. and Ms. Svensson are traveling to all 50 states and performing 50 acts of kindness to encourage an online community to inspire others across state, national, and international lines to help make the world a better place.

I ask that my colleagues join me in recognizing the vision of Mark and Ismini Svensson and their commitment to charitable giving.

## CELEBRATING NICHOLAS SENN HIGH SCHOOL'S CENTENNIAL YEAR

### HON. JANICE D. SCHAKOWSKY

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Ms. SCHAKOWSKY. Mr. Speaker, I rise today to recognize Nicholas Senn High School, an excellent Chicago Public High School in my district that is celebrating its centennial year.

With its mission to develop life-long learners who value diversity and social awareness, Nicholas Senn High School is teaching its students critical-thinking skills that allow them to be active, responsible, and productive citizens. For the past 100 years, Senn has been promoting and supporting education for local students, adapting to an ever changing, ever vibrant community. Today there are over 55 nationalities represented and 35 languages spoken at Senn High School.

Senn High School recently became the first school in Chicago to offer a wall-to-wall International Baccalaureate (IB) program, aided by a unique partnership with Loyola University, which provides a robust academic curriculum throughout the school. Senn students can also participate in Senn Arts, a Fine and Performing Arts Magnet Program where creative Chicago students pursue artistic and academic excellence. The school ensures they are helping all members of the diverse community by offering additional programs in Special Education, ELL and Smaller Learning Community Programs.

Over the past several years, Senn High School has seen major improvements under the leadership of Principal Susan Lofton. Senn was recently named among the city's top high schools and is a Level 1 school, the highest designation possible. Superior leadership, excellent teachers, the partnership with Loyola and strong community support all helped to make Senn the school it is today.

Nicholas Senn High School is celebrating these achievements with a centennial celebration and a fundraiser to aid them in accomplishing their future goals on Saturday, October 5th, 2013. I want to congratulate Nicholas Senn High School on its success over the last 100 years and its lasting impact on the students of the City of Chicago.

I am proud to have Nicholas Senn High School in my district and wish for its continued growth and success.

## THE HOPPERS—A NORTH CAROLINA MUSICAL TREASURE

### HON. HOWARD COBLE

OF NORTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Mr. COBLE. Mr. Speaker, on Saturday, October 5, 2013, the town of Madison, North Carolina, will unveil an historical marker to honor a legendary musical family known as The Hoppers. I am proud to say that The Hoppers live in the Sixth District of North Carolina, and that I have been invited to participate in the unveiling of this plaque.

The Hoppers, known as Hopper Brothers and Connie until 1981, are musical legends

and rightfully deserving of this honor. In the world of Gospel and Christian music, the Hoppers are at the forefront, not only for the quality of their music, but for their commitment to their faith. For more than half-a-century, this Rockingham County family has been spreading musical joy throughout the land.

What was started in humble beginnings in 1957 by Claude Hopper and his brothers, Will, Steve, Paul, and Monroe, came to be known as Hopper Brothers and Connie, when Claude, taking a break from his part-time job at the A&P food store in Madison, spotted Connie Shelton driving through the small town and asked her to join his Gospel group on the spot. Now celebrating 50 years of marriage and music together, they have mentored many musicians and singers over the years. Their sons, Dean and Michael, later joined the group as lead vocalist and drummer/vocalist.

Kim Greene of The Greenes married Dean Hopper, and in 1989 she also joined The Hoppers as soprano. Soon, The Hoppers scored a string of number one Gospel hits including Here I Am, Milk and Honey, Mention My Name, Anchor to the Power of the Cross, Heavenly Sunrise, That's Him, and Yes I Am. In 1996, Mike Hopper married Denice, who became the group's pianist. In 1998, their version of Shoutin' Time became their biggest hit.

Over the ensuing years, numerous awards and accolades came their way. They have been nominated and received just about every major award in the Gospel music industry. Known as America's Favorite Family of Gospel Music, The Hoppers are not just musicians, but business leaders in music publishing and concert promotions. Best of all, we can claim The Hoppers as North Carolina's own.

On behalf of the citizens of the Sixth District of North Carolina, we congratulate The Hoppers on more than half-a-century of outstanding Gospel music. Best wishes to everyone gathered on Saturday, October 5, 2013, as a plaque is unveiled in Madison to honor The Hoppers, a true North Carolina musical treasure.

## SUPPORT FOR BREAST CANCER AWARENESS MONTH

### HON. EDDIE BERNICE JOHNSON

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Ms. EDDIE BERNICE JOHNSON of Texas. Mr. Speaker, I rise today to express my support for Breast Cancer Awareness Month. Since 1985, October has been designated as the month in which we campaign to raise awareness for breast cancer and celebrate the victories in research and innovation in treatment.

In 2013, an estimated 300,000 new cases of invasive and non-invasive breast cancer in women will arise and almost 40,000 women will die of breast cancer. In men, more than 2,000 cases of invasive breast cancer will be detected and about 400 men will die from breast cancer. Though the numbers are disheartening, breast cancer research has made significant strides.

Early detection of breast cancer through mammograms improves survival rates. Regular screenings remain the best way to detect breast cancer and women should be encouraged to get regular exams. While 70 percent of women receive regular mammograms, this number can still be higher to increase prevention.

Unfortunately, we all know someone—a sister, mother, daughter, aunt, or another loved one—who has been diagnosed and suffered through breast cancer. Each year, the month of October reminds us of those lost and the survivors whose stories can empower us to continue to raise awareness and strive to find a cure for breast cancer. Please join me in supporting Breast Cancer Awareness Month.

## CELEBRATING PROFESSOR ALBERTO RIOS

### HON. KYRSTEN SINEMA

OF ARIZONA

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Ms. SINEMA. Mr. Speaker, I rise today to ask that my colleagues join me in celebrating Professor Alberto Rios, Arizona's debut Poet Laureate. He will serve a two-year term in this venerable position. His duties include annual public readings and a major literary project aimed to educate the public about poetry.

The Arizona Commission of the Arts selected Professor Rios because of his remarkable credentials. For nearly 40 years, Mr. Rios has preserved the culture and history of our great state through writing and community outreach. He has achieved recognition on both a local and national level. In his three decades of teaching at Arizona State University, Mr. Rios attained the status of Regents Professor—the highest distinction for a faculty member. As my colleague, I applaud his work in helping to make ASU a preeminent institution for higher education. As a devotee of the arts, I thank him for everything he has done to promote and advance artistic expression. Through his life's work, Professor Rios has helped enrich communities throughout Arizona.

Professor Alberto Rios represents the best in arts, culture and service to the public. It is my privilege to represent him in Congress. I ask my colleagues to join me in congratulating Professor Alberto Rios on this exceptional honor and in wishing him the utmost success in his upcoming term as Poet Laureate of Arizona.

## IN RECOGNITION OF MS. JEAN FICKLIN

### HON. MICHAEL M. HONDA

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Mr. HONDA. Mr. Speaker, I along with Representative SWALWELL, rise today to honor Ms. Jean Ficklin of Newark, California, a highly distinguished community member who, along with her husband Herman and four children, has been a resident of Newark for fifty years. Ms. Ficklin's excellence in education and promotion of African American culture and history is why she will be honored at the South County NAACP's 35th Annual Community Awards Gala in Hayward.

Ms. Ficklin set the stage for future instructors of color by being the first African American instructor in the school district. She spent thirty-three years educating and inspiring our youth as a teacher, ending her career in 1987 at Newark Unified School District.

Since her retirement, Ms. Ficklin has remained an active member in the community. She founded the Afro-American Cultural & Historical Society, Inc., an organization whose mission is to bring cross-cultural understanding of the African American community through the collection and preservation of art, artifacts, recorded media, and the sponsorship and coordination of awareness events. The organization's reach is vast and covers Newark and the Tri-City area, including Fremont, Union City, and Hayward. Ms. Ficklin also holds memberships in the NAACP and Alpha Delta Kappa International Sorority for Women Educators, among a variety of other groups.

The City of Newark, the California State Senate and Assembly, the County of Alameda, and so many more have previously recognized Ms. Ficklin for her excellence as an educator and cultural historian.

Please join us in honoring the extraordinary accomplishments of Ms. Jean Ficklin and her outstanding dedication to improving our society and fostering cultural understanding. May her love of education and her endless compassion continue to flow throughout our community.

## VETERANS BENEFITS CONTINUING APPROPRIATIONS RESOLUTION, 2014

SPEECH OF

### HON. SHEILA JACKSON LEE

OF TEXAS

IN THE HOUSE OF REPRESENTATIVES

*Tuesday, October 1, 2013*

Ms. JACKSON LEE. Mr. Speaker, I rise in opposition to H.J. Res. 72, the so-called ''Honoring Our Promise to Veterans Act,'' which purports to fund those activities of the Department of Veterans Affairs that are required to cease due to the House Republicans' decision to shut down the government last night.

The bill before us is a cynical attempt by the Republican majority to extricate themselves from the mess they created when they voted to shut down the government.

Mr. Speaker, it would not be necessary to have to devote the considerable amount of time needed to debate and pass this legislation in the House and Senate and present it to the President if the House would simply pass the clean continuing resolution passed yesterday by the Senate.

The CR approved by the Senate funds the government and would bring an end to the unnecessary shutdown engineered by House Republicans that disrupts the lives of innocent and hard working federal employees and their families and the millions of Americans who depend upon the services they provide.

The clean CR passed by the Senate ensures that all the employees of the Federal Government are paid for the valuable and important service they provide to our Nation.

President Obama has reiterated that he will sign that CR—and only that CR—into law.

Mr. Speaker, instead of exempting certain groups and persons from the harm caused by

a government shutdown, we should instead be focused on ending the House Republicans' shutdown, which helps no one and hurts our economy.

Those of us who were serving in this body 17 years ago remember the harm caused when the Republicans shutdown the government on two different occasions, which directly cost taxpayers $1.4 billion. That is $2.1 billion in today's dollars.

The last time Republicans engineered a shutdown of the government:

368 national park sites were closed;

200,000 applications for passports went unprocessed; and

$3.7 billion of $18 billion in local contracts went unpaid.

My State of Texas will again be hit very hard and suffer unnecessarily by this Republican shutdown.

Within days Texas will begin experiencing the impact of cutbacks in the $64.7 billion in federal spending that it receives annually, including the loss of: $518 million in federal highway funds, $411 million for interstate highway maintenance, $130 million in home energy assistance for the poor, $71 million in Homeland Security grants, $55 million in coordinated border infrastructure, and $97 million in federal adoption assistance.

As a senior member of the Homeland Security Committee, I am particularly concerned over the impact of a government shutdown on operations and activities that protect and secure the homeland.

For example, a shutdown would adversely affect the following:

Law Enforcement and Other Training: Law enforcement training would cease, including that conducted through the Federal Law Enforcement Training Center and the Secret Service's J. Rowley Training Center. This would impact CBP, ICE, Secret Service, and the Federal Air Marshal Service, and would delay their ability to bring new hires into operational service. TSA would also not be able to conduct training for screeners, Behavior Detection Officers, or canine units.

Frontline Personnel Hardships: The majority of workforces in Custom and Border Protection's (CBP) Border Patrol and Immigration and Customs Enforcement (ICE) enforcement efforts, Transportation Security Administration's (TSA) aviation passenger screening, and the Coast Guard, who are heavily reliant upon receiving biweekly paychecks, would not be paid biweekly during a federal funding hiatus.

Grant Programs for State and Local Preparedness: All DHS and Federal Emergency Management Agency (FEMA) personnel working on grants programs would be furloughed, ceasing any further activity intended to help build State and local resiliency. Should a federal funding hiatus be prolonged, State and local communities may have to eliminate jobs that are dependent upon grants funding. Further activity under the Securing the Cities program would be suspended.

In addition, a government shutdown will hurt children, seniors, working families, and the economically vulnerable:

Military Readiness: In Texas, approximately 52,000 civilian Department of Defense employees would be furloughed, reducing gross pay by around $274.8 million in total.

Law Enforcement and Public Safety Funds for Crime Prevention and Prosecution: Funding will be halted to Texas on an annualized portion of the $1,103,000 in Justice Assistance Grants that support law enforcement, prosecution and courts, crime prevention and education, corrections and community corrections, drug treatment and enforcement, and crime victim and witness initiatives.

Vaccines for Children: In Texas around 9,730 fewer children will not receive vaccines for diseases such as measles, mumps, rubella, tetanus, whooping cough, influenza, and hepatitis B due to reduced funding for personnel who administer programs that provide funding for vaccinations.

Nutrition Assistance for Seniors: Texas would lose approximately $3,557,000 in funds that make it possible to provide meals for seniors.

For these reasons, instead of wasting time on piece-meal CRs like the one before us which have no chance of becoming law, we should be working to pass H.J. Res. 59 as amended by the Senate. That is the best way to keep faith with all persons who serve the American people as employees of the Federal Government, and those who depend upon the services they provide.

## GOVERNMENT SHUTDOWN IMPACT ON TRANSPORTATION AND HOUSING PROGRAMS

### HON. ED PASTOR

OF ARIZONA

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Mr. PASTOR of Arizona. Mr. Speaker, this reckless and irresponsible shutdown that has been masterminded by a small faction of the House is disruptive for our nation's transportation system and for the programs that support our most vulnerable citizens.

The majority has taken to moving bills that will provide piecemeal programs within the federal government. These bills leave out funding for critical transportation and housing programs that are vital to our economy.

For example, there are no funds for the Federal Transit Administration's capital investment grant program to build and expand mass transit systems across our nation. This is the program that helps create construction jobs and relieves congestion in our major cities. Operating and capital assistance for Amtrak is discontinued at a time when more than 30 million passengers rely on Amtrak to get to destinations all over the country. And finally, there is no funding to continue the important safety and capital investments for the Metro system that serves millions of Americans in our nation's capital.

With regard to safety, there is no funding to put more than 3,100 aviation safety inspectors back on the job. These men and women are sitting at home because they have been furloughed through this shutdown. Likewise, there is no funding for the important vehicle safety oversight functions of the National Highway Traffic Safety Administration.

In addition, the Federal Aviation Administration's program to modernize our nation's aging air traffic control system has come to a grinding halt.

The Maritime Security Program gets no relief in this piecemeal approach. This program provides vital support by helping move the cargo that is necessary to support our national defense efforts overseas.

The piecemeal approach puts millions of dollars in construction projects at risk and undermines job creation in the construction sector by not including funding to process multifamily housing mortgages.

It puts our children at risk of lead poisoning by not funding Lead Abatement Grants.

It also weakens economic development in our communities by not including funding for Community Development Block Grants.

## GOVERNMENT SHUTDOWN

### HON. SANFORD D. BISHOP, JR.

OF GEORGIA

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Mr. BISHOP of Georgia. Mr. Speaker, today and yesterday we saw many of the Members who are responsible for the current government shut down, stand in front of the World War II Memorial, posturing before the veterans in attendance and the Fox news cameras—having knowingly voted to close the government and thus closing that same World War II Memorial.

This is a sham. This is a disgrace. These antics need to stop.

Pass a clean CR.

## HONORING ELTON GALLEGLY

### HON. JULIA BROWNLEY

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

*Wednesday, October 2, 2013*

Ms. BROWNLEY of California. Mr. Speaker, today I rise to honor my predecessor, former-Congressman Elton Gallegly for his steadfast dedication to Ventura County and his service as an elected official for thirty-three years.

Starting his career as a member of the Simi Valley City Council and serving as Simi Valley's Mayor, Congressman Gallegly was a tireless advocate for Simi Valley, Ventura County, and the State of California. He is remembered fondly in Congress by the many Members who had the pleasure of serving with him on the House Judiciary Committee and the House Foreign Affairs Committee.

The Elton and Janice Gallegly Center for Public Service and Civic Engagement at California Lutheran University is a fitting tribute to Congressman Gallegly's career and on-going service to our community. The Center will prepare our next generation of leaders for careers in public policy while also teaching them the core principles of integrity and veracity.

In partnership with the center, the Ronald Reagan Presidential Library has generously offered to give students the prestigious opportunity to intern at the library. The Elton and Janice Gallegly Center for Public Service and Civic Engagement will be a great addition to Ventura County.

I want to personally thank Congressman Gallegly for all of his years of public service to our Nation. I wish him, and his wife, Janice, all the best in the next chapter their life together.

## SENATE COMMITTEE MEETINGS

Title IV of Senate Resolution 4, agreed to by the Senate of February 4, 1977, calls for establishment of a system for a computerized schedule of all meetings and hearings of Senate committees, subcommittees, joint committees, and committees of conference. This title requires all such committees to notify the Office of the Senate Daily Digest—designated by the Rules Committee—of the time, place and purpose of the meetings, when scheduled and any cancellations or changes in the meetings as they occur.

As an additional procedure along with the computerization of this information, the Office of the Senate Daily Digest will prepare this information for printing in the Extensions of Remarks section of the CONGRESSIONAL RECORD on Monday and Wednesday of each week.

Meetings scheduled for Thursday, October 3, 2013 may be found in the Daily Digest of today's record.

## MEETINGS SCHEDULED

### OCTOBER 7

3 p.m.
Committee on Homeland Security and Governmental Affairs
To hold hearings to examine Social Security disability benefits.
SD–342

### OCTOBER 8

9:30 a.m.
Committee on Armed Services
To hold hearings to examine the impact of sequestration on the national defense; with the possibility of a closed session in SVC–217 following the open session.
SD–G50

10 a.m.
Committee on Finance
To hold hearings to examine transforming Medicare post-acute care, focusing on issues and options.
SD–215

2:30 p.m.
Committee on Agriculture, Nutrition, and Forestry
Subcommittee on Jobs, Rural Economic Growth and Energy Innovation
To hold hearings to examine investing in small town America, focusing on the importance of a comprehensive farm bill.
SR–328A

Committee on Homeland Security and Governmental Affairs
To hold hearings to examine the nomination of William Ward Nooter, to be an Associate Judge of the Superior Court of the District of Columbia.
SD–562

### OCTOBER 9

10 a.m.
Committee on the Judiciary
To hold hearings to examine certain nominations.
SD–226

2 p.m.
Committee on Veterans' Affairs
To hold hearings to examine the Department of Veterans' Affairs claims transformation efforts.
SR–418

### OCTOBER 10

9:30 a.m.
Committee on Armed Services
To hold hearings to examine the nominations of Michael D. Lumpkin, of California, to be Assistant Secretary for Special Operations and Low Intensity Conflict, Jamie Michael Morin, of Michigan, to be Director of Cost Assessment and Program Evaluation, and Jo Ann Rooney, of Massachusetts, to be Under Secretary of the Navy, all of the Department of Defense.
SD–G50

Committee on Energy and Natural Resources
To hold an oversight hearing to examine the draft regional recommendation regarding the Columbia River Treaty.
SD–366

2:30 p.m.
Committee on Small Business and Entrepreneurship
To hold hearings to examine women-owned small business, focusing on strengthening the Small Business Administration's counseling and procurement programs.
TBA

### OCTOBER 23

2:15 p.m.
Special Committee on Aging
To hold hearings to examine the future of long-term care policy.
SD–562

# *Daily Digest*

# Senate

## *Chamber Action*

***Routine Proceedings, pages S7105–7142***

**Measures Introduced:** One resolution was introduced, as follows: S.J. Res. 23. **Page S7140**

**Measures Reported:**

S. 1545, to extend authorities related to global HIV/AIDS and to promote oversight of United States programs, with amendments. (S. Rept. No. 113–112) **Page S7140**

**Iraqi Special Immigrant Visa—Agreement:** A unanimous-consent agreement was reached providing that if the Senate receives a bill from the House of Representatives which is identical to S. 1566, to extend the period during which Iraqis who were employed by the United States Government in Iraq may be granted special immigrant status and to temporarily increase the fee or surcharge for processing machine-readable nonimmigrant visas, as passed by the Senate, then the bill be read three times and passed, and the motion to reconsider be laid upon the table, with no intervening action or debate. **Page S7140**

**Appropriations Measures—Agreement:** A unanimous-consent agreement was reached providing that if the Senate receives from the House of Representatives any of the following joint resolutions or bills by 11 a.m. on Thursday, October 3, 2013, that those measures be considered to have received their second reading and an objection to further proceedings considered to have been heard under the provisions of Rule XIV during the session of Thursday, October 3, 2013: H.J. Res. 70, making continuing appropriations for National Park Service operations, the Smithsonian Institution, the National Gallery of Art, and the United States Holocaust Memorial Museum for fiscal year 2014; H.J. Res. 71, making continuing appropriations of local funds of the District of Columbia for fiscal year 2014; H.J. Res. 72, making continuing appropriations for veterans benefits for fiscal year 2014; H.J. Res. 73, making continuing appropriations for the National Institutes of Health for fiscal year 2014; and H.R. 3230, making continuing appropriations during a Government shutdown to provide pay and allowances to members of the reserve components of the Armed Forces who perform inactive-duty training during such period. **Page S7141**

**Executive Communications:** **Pages S7139–40**

**Additional Cosponsors:** **Page S7140**

**Additional Statements:** **Page S7139**

**Authorities for Committees to Meet:** **Page S7140**

**Adjournment:** Senate convened at 10:30 a.m. and adjourned at 5:06 p.m., until 10:30 a.m. on Thursday, October 3, 2013. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S7141.)

## *Committee Meetings*

*(Committees not listed did not meet)*

### NOMINATION

*Committee on Homeland Security and Governmental Affairs:* Committee concluded a hearing to examine the nomination of Beth F. Cobert, of California, to be Deputy Director for Management, Office of Management and Budget, after the nominee testified and answered questions in her own behalf.

### NOMINATIONS

*Committee on Homeland Security and Governmental Affairs:* Committee concluded a hearing to examine the nominations of Tony Hammond, of Missouri, who was introduced by Senator Blunt, and Nanci E. Langley, of Hawaii, both to be a Commissioner, Postal Regulatory Commission, after the nominees testified and answered questions in their own behalf.

### FOREIGN INTELLIGENCE SURVEILLANCE ACT

*Committee on the Judiciary:* Committee concluded a hearing to examine continued oversight of the Foreign Intelligence Surveillance Act, after receiving testimony from James R. Clapper, Director of National Intelligence; General Keith B. Alexander, Director, National Security Agency, and Chief, Central Security Service; Laura K. Donohue, and Carrie F. Cordero, both of the Georgetown University Law Center, Washington, D.C.; and Edward W. Felten, Princeton University Center for Information Technology Policy, Princeton, New Jersey.

# House of Representatives

## *Chamber Action*

**Public Bills and Resolutions Introduced:** 9 public bills, H.R. 15. 3230–3237; 1 private bill, H.R. 3238; and 2 resolutions, H.J. Res. 73–74, were introduced. **Pages H6173–74**

**Additional Cosponsors:** **Page H6175**

**Report Filed:** A report was filed today as follows:

H. Res. 370, providing for consideration of the joint resolution (H.J. Res. 70) making continuing appropriations for National Park Service operations, the Smithsonian Institution, the National Gallery of Art, and the United States Holocaust Memorial Museum for fiscal year 2014, and for other purposes; providing for consideration of the joint resolution (H.J. Res 71) making continuing appropriations of local funds of the District of Columbia for fiscal year 2014; providing for consideration of the joint resolution (H.J. Res. 72) making continuing appropriations for veterans benefits for fiscal year 2014, and for other purposes; providing for consideration of the joint resolution (H.J. Res. 73) making continuing appropriations for the National Institutes of Health for fiscal year 2014, and for other purposes; providing for consideration of the bill (H.R. 3230) making continuing appropriations during a Government shutdown to provide pay and allowances to members of the reserve components of the Armed Forces who perform inactive-duty training during such period; and providing for consideration of motions to suspend the rules (H. Rept. 113–241). **Page H6173**

**Speaker:** Read a letter from the Speaker wherein he appointed Representative Thompson (PA) to act as Speaker pro tempore for today. **Page H6105**

**Recess:** The House recessed at 11:49 a.m. and reconvened at 12 noon. **Page H6116**

**Journal:** The House agreed to the Speaker's approval of the Journal by a yea-and-nay vote of 246 yeas to 173 nays with 2 answering ''present'', Roll No. 511. **Pages H6116–17, H6133**

**Recess:** The House recessed at 12:40 p.m. and reconvened at 1:40 p.m. **Page H6121**

**District of Columbia Continuing Appropriations Resolution, 2014:** The House passed H.J. Res. 71, making continuing appropriations of local funds of the District of Columbia for fiscal year 2014, by a voice vote. **Pages H6133–38**

H. Res. 370, the rule providing for consideration of the joint resolutions (H.J. Res. 70), (H.J. Res. 71), (H.J. Res 72), and (H.J. Res. 73) and the bill (H.R. 3230) was agreed to by a yea-and-nay vote of 228 yeas to 198 nays, Roll No. 510, after the previous question was ordered by a yea-and-nay vote of 227 yeas to 197 nays, Roll No. 509. **Pages H6122–32**

**National Institutes of Health Continuing Appropriations Resolution, 2014:** The House passed H.J. Res. 73, making continuing appropriations for the National Institutes of Health for fiscal year 2014, by a yea-and-nay vote of 254 yeas to 171 nays, Roll No. 514. **Pages H6139–46, H6155–56**

H. Res. 370, the rule providing for consideration of the joint resolutions (H.J. Res. 70), (H.J. Res. 71), (H.J. Res 72), and (H.J. Res. 73) and the bill (H.R. 3230) was agreed to by a yea-and-nay vote of 228 yeas to 198 nays, Roll No. 510, after the previous question was ordered by a yea-and-nay vote of 227 yeas to 197 nays, Roll No. 509. **Pages H6122–32**

**National Park Service Operations, Smithsonian Institution, National Gallery of Art, and United States Holocaust Memorial Museum Continuing Appropriations Resolution, 2014:** The House passed H.J. Res. 70, making continuing appropriations for National Park Service operations, the Smithsonian Institution, the National Gallery of Art, and the United States Holocaust Memorial Museum for fiscal year 2014, by a recorded vote of 252 ayes to 173 noes, Roll No. 513. **Pages H6146–55**

Agreed to table the appeal of the ruling of the chair on a point of order sustained against the Van Hollen motion to recommit the joint resolution to the Committee on Appropriations with instructions to report the same back to the House forthwith with an amendment, by a yea-and-nay vote of 230 yeas to 194 nays, Roll No. 512. **Pages H6153–55**

H. Res. 370, the rule providing for consideration of the joint resolutions (H.J. Res. 70), (H.J. Res. 71), (H.J. Res 72), and (H.J. Res. 73) and the bill (H.R. 3230) was agreed to by a yea-and-nay vote of 228 yeas to 198 nays, Roll No. 510, after the previous question was ordered by a yea-and-nay vote of 227 yeas to 197 nays, Roll No. 509. **Pages H6122–32**

**Extending the period during which Iraqis who were employed by the United States Government in Iraq may be granted special immigrant status:** The House agreed by unanimous consent to discharge from committees and pass H.R. 3233, to extend the period during which Iraqis who were employed by the United States Government in Iraq may be granted special immigrant status and to temporarily increase the fee or surcharge for processing machine-readable nonimmigrant visas. **Page H6156**

**Quorum Calls—Votes:** Five yea-and-nay votes and one recorded vote developed during the proceedings of today and appear on pages H6131–32, H6132, H6133, H6154, H6155, and H6155–56. There were no quorum calls.

**Adjournment:** The House met at 10 a.m. and adjourned at 9:33 p.m.

# *Committee Meetings*

### FUTURE OF THE CFTC: PERSPECTIVES ON CUSTOMER PROTECTIONS

*Committee on Agriculture:* Subcommittee on General Farm Commodities and Risk Management held a hearing entitled ''The Future of the CFTC: Perspectives on Customer Protections''. Testimony was heard from public witnesses.

### RESETTING THE FORCE FOR THE FUTURE: RISKS OF SEQUESTRATION

*Committee on Armed Services:* Subcommittee on Readiness held a hearing entitled ''Resetting the Force for the Future: Risks of Sequestration''. Testimony was heard from Lieutenant General William M. Faulkner, USMC, Deputy Commandant Installations and Logistics, U.S. Marine Corps; and Lieutenant General Raymond V. Mason, USA, Deputy Chief of Staff for Logistics, U.S. Army.

### OVERSIGHT OF THE WIND ENERGY PRODUCTION TAX CREDIT

*Committee on Oversight and Government Reform:* Subcommittee on Energy Policy, Health Care and Entitlements held a hearing entitled ''Oversight of the Wind Energy Production Tax Credit''. Testimony was heard from Curtis G. Wilson, Associate Chief Counsel, Passthroughs and Special Industries, Internal Revenue Service; and public witnesses.

### OPEN OUR NATIONAL PARKS AND MUSEUMS ACT; PROVIDE LOCAL FUNDING FOR THE DISTRICT OF COLUMBIA ACT; HONORING OUR PROMISE TO AMERICA'S VETERANS ACT; RESEARCH FOR LIFESAVING CURES ACT; AND PAY OUR GUARD AND RESERVE ACT

*Committee on Rules:* Full Committee held a hearing on H.J. Res. 70, Open our National Parks and Museums Act; H.J. Res. 71, Provide Local Funding for the District of Columbia Act; H.J. Res. 72, Honoring Our Promise to America's Veterans Act; H.J. Res. 73, the ''Research for Lifesaving Cures Act''; and H.R. 3230, the ''Pay Our Guard and Reserve Act''. The Committee, granted, by record vote of 9–3, closed rules for H.J. Res. 70; H.J. Res. 71; H.J. Res. 72; H.J. Res. 73; and H.R. 3230. The rule provides 30 minutes of debate on each measure equally divided and controlled by the chair and ranking minority member of the Committee on Appropriations. The rule waives all points of order against consideration of each measure and provides that each measure shall be considered as read. The rule waives all points of order against provisions in each measure. The rule provides one motion to recommit each measure. In Section 4, the rule provides that it shall be in order at any time through the calendar day of October 6, 2013, for the Speaker to entertain motions that the House suspend the rules and that the Speaker or his designee shall consult with the Minority Leader or her designee on the designation of any matter for consideration pursuant to this section. Testimony was heard from Representatives Kingston, Lowey, and DeLauro.

### CHALLENGE OF RETIREMENT SAVINGS FOR SMALL EMPLOYERS

*Committee on Small Business:* Full Committee held a hearing entitled ''The Challenge of Retirement Savings for Small Employers''. Testimony was heard from public witnesses.

### FEMA REAUTHORIZATION: ENSURING THE NATION IS PREPARED

*Committee on Transportation and Infrastructure:* Subcommittee on Economic Development, Public Buildings, and Emergency Management held a hearing entitled ''FEMA Reauthorization: Ensuring the Nation is Prepared''. Testimony was heard from public witnesses.

# *Joint Meetings*

No joint committee meetings were held.

## COMMITTEE MEETINGS FOR THURSDAY, OCTOBER 3, 2013

*(Committee meetings are open unless otherwise indicated)*

### Senate

*Committee on Armed Services:* to receive a closed briefing on the situation in Syria, 9:30 a.m., SVC–217.

*Committee on Foreign Relations:* to hold hearings to examine reversing Iran's nuclear program, 10 a.m., SD–419.

Full Committee, to hold hearings to examine the nominations of James Walter Brewster, Jr., of Illinois, to be Ambassador to the Dominican Republic, Brian A. Nichols, of Rhode Island, to be Ambassador to the Republic of Peru, and Carlos Roberto Moreno, of California, to be Ambassador to Belize, all of the Department of State, 2:30 p.m., SD–419.

## House

*Committee on Foreign Affairs,* Full Committee, hearing entitled ''Al-Shabaab: How Great a Threat?'', 10 a.m., 2172 Rayburn.

*Committee on Natural Resources,* Subcommittee on Public Lands and Environmental Regulations, hearing on the following legislation: H.R. 3188, to expedite the planning and implementation of salvage timber sales as part of Forest Service and Department of the Interior restoration and rehabilitation activities for lands within the Stanislaus National Forest and Yosemite National park and Bureau of Land management lands adversely impacted by the 2013 Rim Fire in California; H.R. 298, to direct the Secretary of the Interior to conduct a special resource study to evaluate the significance of the Mill Springs Battlefield located in Pulaski and Wayne Counties, Kentucky, and the feasibility of its inclusion in the National Park System, and for other purposes; H.R. 712, to extend the authorization of the Highlands Conservation Act through fiscal year 2024; H.R. 1167, the ''Restoring Storey County Act''; H.R. 1259, the ''Coltsville National Historical Park Act''; H.R. 1633, the ''Small Lands Tracts Conveyance Act''; H.R. 1846, the ''Lower East Side Tenement National Historic Site Amendments Act''; H.R. 2015, the ''Las Vegas Valley Public Land and Tule Springs Fossil Beds National Monument Act of 2013''; H.R. 2259, the ''North Fork Watershed Protection Act of 2013''; H.R. 2657, the ''Disposal of Excess Federal Lands Act of 2013''; and H.R. 2954, to authorize Escambia County, Florida, to convey certain property that was formerly part of Santa Rosa Island National Monument and that was conveyed to Escambia County subject to restrictions on use and reconveyance, 10 a.m., 1324 Longworth.

*Next Meeting of the* **SENATE**

**10:30 a.m., Thursday, October 3**

**Senate Chamber**

**Program for Thursday:** Senate will be in a period of morning business for debate only until 2 p.m.

*Next Meeting of the* **HOUSE OF REPRESENTATIVES**

**10 a.m., Thursday, October 3**

**House Chamber**

**Program for Thursday:** To be announced.

## Extensions of Remarks, as inserted in this issue

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